

SHAKESPEARE'S ENVIRONMENT

BY
MRS. C. C. STOPES

LONDON
1914

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SHAKESPEARE'S ENVIRONMENT ***

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BY
MRS. C. C. STOPES
DIPL. EDIN. UNIV., HON. F.R.S.L.

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CONTEMPORARIES," "THE BACON SHAKESPEARE QUESTION ANSWERED,"
"WILLIAM HUNNIS AND THE REVELS OF THE CHAPEL ROYAL,"
"BURBAGE AND SHAKESPEARE'S STAGE," "BRITISH
FREEWOMAN," ETC., EDITOR OF SHAKESPEARE'S
SONNETS, ETC.

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ERRATA

[P. viii](#), line 6, *for* “of” *read* “to.”

[P. 206](#), lines 21 and 22, *for* “Royal Academy” *read* “National Gallery.”

[P. 332](#), line 3, *for* “White Tanners” *read* “white towers.”

PREFACE

In this volume I have collected a few of my old papers which all contained something *new* at the date at which they appeared. They are all more or less connected with Shakespeare, and bear at least on my studies to try to understand the influences which affected his immediate predecessors and teachers, those which helped to mould his own thought and character, and those which showed something of his influence on his contemporaries and immediate successors. My period therefore extended from the accession of Henry VIII in 1509, to the national crisis in 1640. Little as each item of itself may seem to tell, every one helps to fill in, as with a touch of the brush, the colours in the background, which throw out more clearly the outlines of the central figure. For Shakespeare knew all about the training of the boys at school, all about the legal troubles of his relatives and friends and partners, he knew the contemporary history and literature of his time, and above all, its *character*. If perhaps I have made too prominent the story of his monument in Stratford, of which he could not know, it was to draw attention to the contemporary estimate of himself and his genius as recorded on that tomb; and to collect every scrap I could find to throw light on its subsequent history, the last touch of which was provided me by the kindness of Mr. Dugdale of Merivale.

I included the Introductory Chapter, which had never been printed, in remembrance of a special occasion, fully to be understood only by the members of the Shakespeare Societies. On a day of storm, snow, and sleet, in Stratford-on-Avon, the 23rd of April 1908, I had thought it my duty to travel to London to be present at the Commemoration Dinner at which Dr. F. J. Furnivall was to preside, and the guests of honour were to be Mr. Austin, then Poet Laureate, and Sir John Hare. They were each to deliver an address. When I was comfortably seated at dinner, Dr. Furnivall sent Mr. Hunt, then Hon. Secretary, to say that Sir John Hare had brought a written address which he now thought unsuitable to deliver on the occasion, and our President asked me to oblige him by filling the gap, as well as I could. Mr. Austin read an interesting paper on "What we can learn of Shakespeare from his plays." I could only speak from my own heart, which was very full

of Shakespeare that day. Mr. Austin came up to me afterwards and said: "If it is anything to you to know it, I would like to tell you that I agreed with every word you said." Our dear old President was pleased that the possible hitch had been averted, and as my remarks had been taken down, he wished them preserved. So, though there is nothing new in it, I thought I might at the same time preserve a memory of that special day, and secure a good general introduction to the results of my work.

I thought that it was wiser to print these papers *as they first appeared*, with very trifling occasional alterations in construction, for the sake of clearness. What I have learned since on the subjects, I have put in the postscripts.

I had not calculated sufficiently for the expansion of magazine type when it takes book form, and I have had to withdraw a good many papers which I had hoped might have appeared. Therefore the links of connection between some of the later papers have occasionally had to be broken, and I have had to postpone republishing my special literary and critical Shakespearean articles, and to choose a title which fairly covers the bulk of those now produced.

My articles were formerly printed in circumstances which prevented my giving due thanks to many helpful friends. I cannot even now give expression to all the gratitude I felt and feel to many, but I must acknowledge some of it. A large share is due for their helpful kindness, especially to the officials of the Public Record Office, of the British Museum, of the Bodleian Library; to Dr. Reginald Sharpe, Keeper of the Guildhall Records; to Mr. Richard Savage and Mr. Wellstood, curators of the Records at Stratford-on-Avon; to the late Mr. Kingdon, formerly master of the Grocers' Company; to the Haberdashers' Company; to Dr. Kitto and his son for giving me access to the general papers of St. Martin-in-the-Fields; to the Clergy and Churchwardens of St. Margaret's, Westminster; and to Mr. Smith who did so much for research students there. I must also thank many clergymen for allowing me to see their registers, and Capt. C. W. Cottrell Dormer for admission to his private manuscripts. I owe much gratitude to Mr. Joseph Gray for photographing and enlarging Dugdale's engraving of Shakespeare's tomb, and latest, not least, I must acknowledge the kindness of Mr. W. F. S. Dugdale of Merivale, in allowing me to see the

sketch-book of his illustrious ancestor, which contains the drawings which he made from Warwickshire Tombs.

I have to thank, in another respect, for having given me permission to republish the articles previously inserted in their journals, the Editors of the "Fortnightly Review," the "Field," the "Yorkshire Post," the "Stratford-upon-Avon Herald," the "Pall Mall Gazette," and the Editors of the German "Jahr Buch" and "Archiv." I have also to thank Mr. Murray the proprietor of the "Monthly Review," Mr. Sinnet the proprietor of "Broad Views," and especially Mr. J. E. Francis the proprietor of the "Athenæum," from which review the greatest number of my papers have been borrowed. I have further to thank the Secretary of the Royal Society of Literature, for permission to reprint two of my Lectures from their Proceedings. And I thank cordially all those kind friends who encouraged me to work, and to write, and to publish, though that was long before any of us knew what terrors this fair month would bring. In Shakespeare's environment, there was also the *crisis* of his century, and from his own experience he could write the brave words that give us hope, "If England to herself will but be true."

CHARLOTTE CARMICHAEL STOPES.

HAMPSTEAD,
August 1914.

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Shakespeare's Environment

I

INTRODUCTORY

THE FORTUNES OF SHAKESPEARE

IN REMEMBRANCE OF 23RD APRIL 1564-1616

It is so much the fashion to write and speak of Shakespeare's misfortunes, his disabilities, disadvantages, and lack of preparedness for becoming great, that perhaps I may best fit my opportunity by touching upon what I believe to be his *good fortunes*. It is all very true to say, that "poets are born, not made," but there is a converse possibility, too finely expressed in Gray's elegy to need repeating. Shakespeare might have been born a poet, and he might have been drowned in the Avon, as his contemporary of the same name was drowned in 1575; or he might have been carried by compelling currents of his life, away from the fruition of the high possibilities of his genius, instead of directly towards them. The whole truth is, that great poets are *both born and made*, and it is worth pausing to dwell on some of the steps in the making of this "Maker." In no life is it more clear than in his that

There's a divinity doth shape our ends,
Rough hew them as we will.

Shakespeare was *fortunate* in the place of his birth. Warwickshire was in the very heart of England. The whole shire was haunted by legends and stories of a romantic past from the time when it was the Mercia of the Saxons down to the desolating Wars of the Roses. His birthplace was but seven miles from the castled city of Warwick, glorified by traditions of

Cymbeline, Guiderius, Ethelfleda, Phillis, and Guy, one of the seven champions of Christendom. Stratford was not far from the tragic Vale of Evesham, from the holiday making of the Cotswolds, and it lay amid gently swelling hills and dales, the richly cultivated Feldon to east and south, the stretches of woodland to north and west, sufficient to satisfy an artist, a dreamer, or a poet. It was of much more relative importance in the sixteenth century than it is to-day. It stood at the crossing of the two great thoroughfares of the whole country, its Avon was another highway, for water transit was much more used in olden days than now. The river was spanned at Stratford by a noble bridge, safe even in floods (thanks to Sir Hugh Clopton); it had important markets, a prosperous trade in wool, manufactures of cloth and leather and other things, and was rich in agricultural commodities. It was a spirited and independent little town, and many important families lived in its neighbourhood. The house in Henley Street in which the poet was born (three houses combined), made a roomy and comfortable home for his youth.

He was fortunate in the date of his birth, on or about 23rd April, 1564. I say on or about, as it might have been a day or two earlier or later. He was baptized on the 26th, and it was then usual enough to baptize infants on the third day after birth. Tradition has always given us the 23rd as the birthday, St. George's day. In those days, before the reformation of the Calendar, the 23rd of April fell later in the season than it does to-day. There were twelve more days of sunshine to open the May blossoms, and to encourage the nightingales to sing in welcome of another sweet singer. The poet always loved the spring; he was a May-blossom himself.

He was *fortunate* also in the period in which he arrived. England's heart was heaving. Great spiritual movements had stirred men's souls to their depths, and given them inspiration to think for themselves amid diverse creeds; the literary renaissance had brought their intellects in touch with the great minds of other times, and diverse countries; learning had become a *hunger* as well as a fashion; students translated, imitated, emulated the philosophers and poets of Greece, Italy, and France. England was in the high tide of fervour through its emancipation from the Pope's authority, its new sense of independence, its command of the sea, and its ever-widening geographical horizons; the romance of a maiden Queen, fortunate since her accession, made a new development in the spirit of patriotism. Poets born in

the previous reigns shed their glories on Elizabeth's. The very atmosphere was charged with negative poetical electricity, which only waited for a positive stimulus to flash forth in light.

He was *fortunate* in his parents. We know only too little of them, but we do know something. John Shakespeare had sprung from an honest yeoman family, which evidently had seen better days. It had contributed a Prioress and a Sub-Prioress to the venerated Priory of Wroxall, and it had its family legends concerning royal service and royal grants, not necessarily unfounded, but frustrated somehow, perhaps by an Empson or a Dudley. There is a possibility that he had had a Welsh mother, and inherited blue blood from a Cymric past. He evidently had some special charm in person, manner, or wit, because all his life he seems to have been popular among his fellows, and he managed to win the heart and the hand of the youngest daughter of a "gentleman of worship" in the neighbourhood, who was the ground landlord of his father's farm in Snitterfield. The only definite notice we have of him is "that he was a merry-cheeked old man who said 'Will was a good honest fellow; but he dares not have cracked a jest with him at any time'" (Dr. Andrew Clark, from the Plume MS. at Maldon). John had risen through all the grades of honour in the town, had shown his predilection for the drama by his payments to players, a predilection not shared by the majority of his townsmen, and we may take it he could tell a story and be good company. The mothers of men are more important to their youth than their fathers are. Mary Arden had descended from the Ardens of Park Hall, a storied Saxon line, counting amidst its ancestors no less a hero than King Alfred. She evidently had the Saxon virtues, was prudent and capable, or her father would not have left her executrix at his death. She is said to have been beautiful; we may believe it, if we realize the verbal descriptions, not the painted portraits of her son. A strong woman, whom we see reflected in the poet's noble women's characters, and yet romantic enough to marry where she loved, though doubtless many men of better position and of greater wealth in the country, would have been glad enough of such a well-dowered *gentle* bride. Hers was evidently a happy marriage, and she ensured her son the benefits of a happy home.

He was *fortunate* in his school. Stratford had once had a College of Priests with its Collegiate Church, an honourable Guild of the Holy Cross, and a notable grammar school; but all had vanished before the

exterminating Henry. John Shakespeare and many of his contemporaries had suffered through the suppression, and had grown up weak in English, lacking in Latin, and unable to write, for their sovereign's sins. But the school had been restored by King Edward VI, and was in good working order by the time John's eldest son was ready for it. The post of the master of the Stratford Grammar School was one of the plums of the profession, as he had twice the salary of the Master of Eton. We are sure from the Chamberlain's accounts, that the best men to be had, graduates in a university, were selected by the town councillors. The grammar school was free to all the sons of burgesses, so that no consideration of expense could have kept back William Shakespeare from its advantages, even at the time of his father's difficulties. He would meet there not only the boys of the town about his own age, but the sons of the neighbouring gentry. We know from several sources the books then in use for each form of a grammar school, and we may reckon what training would be offered young Shakespeare in classic literature to form his English style. A little better than the average, we should presume it to have been. Becon, some years before, had proclaimed Warwickshire to be the most intellectual of the English Counties, and there is some witness to show it still could hold its own.

He was *fortunate* in his seeming misfortunes. It was all very well to be born in the little town, with its sweet country surroundings, but Shakespeare would never have been the world-poet had he spent his life in Stratford. The place was not big enough for his expansion. But the cloth manufacturers of Stratford suffered heavily from the importation of foreign manufactured goods, and the great farmers and engrossers did what they could to kill its trade in wool. John Shakespeare lost heavily, he sold Snitterfield, probably meant as the portion of his younger children, he mortgaged and lost Asbies, destined by him as the inheritance and future living of his eldest son. And young Shakespeare was thus saved from being a little country farmer, and *forced* to go to seek his fortunes in London, where he developed into what was in him to be. In London was literary culture from books and men. In London also he was faced with difficulties. He had hoped for so many things; nothing happened to him which he expected or desired; no door was opened to him except that of the stage. Though he pitifully cries:

O, for my sake do you with fortune chide,
That doth not better for my life provide
Than public means, which public manners breed;

yet that led him to the very line of life in which he was best fitted to excel, through which he became what he was.

He was *fortunate* even in his marriage. I know that an opposite view is generally accepted, but I do not believe it. The only reason suggested is that Anne Hathaway was seven years older than himself. Did any one ever meet a bold, masterful, well-grown lad of eighteen whose first love was not a woman older than himself? Many happy marriages have been made with this difference of age, and I do not think Shakespeare's an exception. I believe she was a timid, delicate, fair-haired girl, type of the submissive wives he paints. There is reason to believe that he took his family with him to London as soon as he found a home. When fortune came he bought them the best house in Stratford, and came to dwell beside them, as soon as he could give up the acting part of his work. There he died among them, away from the world of business, envy, and of strife. There is nothing to warrant the blot on his good name and that of his wife so much insisted on by those who have not studied the question. Mr. J. S. Gray, in "Shakespeare's Marriage," is the only writer who has put it straight, and he speaks with authority.

There is nothing derogatory in the legacy of the second-best bed; it was evidently her own last request. She was sure of her widow's *third*; she was sure of her daughters' love and care, but she wanted the bed she had been accustomed to, before the grandeur at New Place came to her.

He was *fortunate* in the family she brought him, though unfortunately, his only son was a twin, apparently delicate like his mother, and he died young. For his sake Shakespeare called all boys *sweet*. His daughters lived a longer life, the elder is recorded as "witty above her sex," because she was like her father, a devoted daughter, a loving wife, a public benefactor. She brought him for his son-in-law the physician Dr. John Hall, great not only in his own county, who first used anti-scorbutics. He must have been a congenial companion to his father-in-law. Then the little granddaughter came, who must have been his joy.

He was *fortunate* in his friends. London was then but a little city, after all; it could easily be crossed and compassed on foot; its inhabitants did not reach the sum total of 300,000. On arrival he would *study* London and Westminster, twin-cities, so great and so story-laden, the clear shining Thames, its haunted Bridge, its Tower, its Churches, and the Northern and Southern heights, where he could revel in Nature, as he did at home. He may have gone to London with high hopes, and many introductions. We do not know of those who mocked him, of those who gave him no direct help. We do not know what he aimed at, but we know he failed. Perhaps he hoped to be made a Yeoman of the Privy Chamber, like Roger Shakespeare and Robert Arden, a Royal Messenger like Thomas Shakespeare, a Royal Letter Carrier, like Edmund Spenser. Possibly he meant to volunteer his help against the Spaniard, but they did without him. Possibly his ambitions sank to a share in the grocery business of Sadler and Quiney at Bucklersbury. Long waiting at the doors of negligent patrons seems to have been his share. But through all he had *one friend* at least, during his period of toil and preparation. We know that he knew his townsman, Richard Field (his senior by three years), who had been at Stratford Grammar School, and entered life on the solid lines of an apprentice to Thomas Vautrollier, the great French printer, and became his son-in-law and successor. Doubtless Shakespeare went at first to reside with him; certainly he was much with him. His shop was the poet's university, where he read for his degree, by the inclusions and exclusions of the bookshelves. The firm was licensed to keep foreign journeymen printers, and had many monopolies of classical works. From these alone did Shakespeare quote, and Field's publications account for the most of his learning. There he was inspired by "Plutarch's Lives Englished by North," trained by "Puttenham's Art of English Poesie," in the canons of literature and a taste for blank verse. There he found books on music, philosophy, science, travels, medicine, language, and literature, which we *know* he read. It was Richard Field who printed and published Shakespeare's two poems, the only works which we are sure he published and corrected himself. By this publication, the friend of his everyday life became associated with the friend of his higher dreams, who patronized, criticised, inspired, glorified Shakespeare, and helped to shape his genius. It is something to hear from his contemporary Webster, the praise of Shakespeare's "right happy and copious *industry*." For he must have been hard at work, in his early days in the metropolis to have been able to

publish a poem by 1593, which put him at once among the highest group of contemporary poets over which Spenser reigned supreme. That took the sting out of the dying Greene's scorn the year before concerning the upstart playwright who "thought he could bumbast out a blank verse as well as the best of us." The young Earl of Southampton had supplied the one thing hitherto wanting in the culture of the Stratford stranger. He was the ideal man of rank, young, learned, refined, untrammelled, wealthy, impulsive, susceptible to genius, critical in judgement. Next year, ere he came of age, Shakespeare had written for him the "Rape of Lucrece," and dedicated it to him as the "Lord of his Love." Through the same time he was writing the sonnets, the witnesses of the thoughts, hopes, feelings, fears, joys, he had passed through with his special friend.

He was *fortunate*, too, in his "fellows." He had found no doors open to him but those of James Burbage and his theatre. Play-acting was repugnant alike to his taste and his pride: we can learn that from the Sonnets.

But having been received into the company, having been trained in the "quality," he did his best to conquer. He was singularly fitted for the stage, as John Davies says, "Wit, courage, good shape, good parts, and all good." From a performer he went on to be a writer of plays. His company always stood as the best in the metropolis, the members were attached to each other, trusting each other through life, leaving each other legacies at death. How much did he owe to the expression and inspiration of his fellows, especially of Richard Burbage?

It is not too much to believe that without Richard to translate him, he would not have thought of putting on paper his great tragic characters, Othello, Hamlet, Richard III.

He was *fortunate*, too, in his theatres. The best of their time, they were worth writing for. Unhampered by much stage mechanism, and with no scene shifting, he made his audience co-operate with him through their imagination, and create for themselves the scenery from his suggestions. No interruptions, no intervals for irrelevant conversation drifted men away from the developments of the central and side plots which animated the stage continuously. The progress of a play necessitated one continued process of attention; and through educating his hearers to his level, he came to reign supreme, playing upon their heart strings, and moving them to

mirth, woe, sympathy, wonder, repulsion, or admiration as he pleased, in a way that we do not understand to-day.

In another, laudable but more prosaic, aspect, Shakespeare was *fortunate*, in making money. Trained by the pinch of early poverty, by the humiliations of his father's debts, by the constant demands of a young family, to estimate its value as a means to any end, he seems to have lost no chance of earning money, and by a self-denying life, to have economized his gains. Thereby he was able to rehabilitate his parents in their old position, to secure them a grant of arms, to place his own family out of the reach of the deprivations he must have suffered himself, and to have lived and died in dignity and honour.

Fortunate in the decline of his life, when his warfare was over and his conquest won, he came back to dwell in the place of his birth, beside the wife of his youth, his daughters, and his wide circle of friends. And when the end came, it was fortunate too. He had been allowed to finish his task, and yet he had not overlived his powers. He did not live *too long*, as Bacon did. His fellow townsmen did not approve of plays any more than did the Corporation of London, but they saw the playwright reverently laid to rest in the chancel of their parish church as owner of their tithes. The inartistic monument, and the artistic epitaph were raised by loving hearts to "Shakespeare, with whome Quick nature dide."

Need more be said as to Shakespeare's fortunes? It is not given to all great men to fit the time and to find the chance to prove what is in them, and to win success. It is not the fortune of every genius even, however associated with great deeds, to reveal the spirit of his country, and to be the voice of his age, which he helped to make what it was. Yet that was Shakespeare's fortune and our inheritance, and for this the whole world honours him to-day.

Impromptu speech at the dinner of the "Shakespeare Commemoration League," 23rd April, 1908.

II

SHAKESPEARE'S AUNTS AND THE SNITTERFIELD PROPERTY

Mr. Halliwell-Phillipps did much for the general reading public in bringing to their attention so many of the estate records which help to clear the position and the relations of the Arden and Shakespeare families. Having done so much, it were well that he had done more. Though he devoted his life and means to collecting information, he published many of his discoveries in little books of limited issue, accessible only to few, and he did not always carry them over to his "Life of Shakespeare," or to his much more exhaustive "Outlines of the Life of Shakespeare." Even in the last edition of that great work we suffer somewhat from the method of arrangement, from a very imperfect and unsatisfactory Index, from an absence of definite references, and even, it must be confessed, from occasional carelessness and incompleteness in his research among, and analyses of, the documents. He had the great good fortune to have early access to the Stratford records. Some of these were then in loose bundles, others bound in books, without any attention to order or date. He made a Calendar of these, but only in the order he found them, and did not provide an index of any kind, beyond, as I found later, a separate private booklet, limited to "ten copies," so that any student who wishes to know what has been preserved must read through the whole bulky folio volume. Probably on account of these difficulties, or through blind faith in his work, none of his successors—not even the industrious G. R. French—has followed him to his originals or checked his inferences by facts.

It seemed therefore worth while to go back to the manuscripts themselves, and to work through them collectively and chronologically, separating the results apart from the mere verbiage of legal documents. Something has been gained thereby, not only in exactitude, and in the recognition of the bearing of one fact upon another, but also several new papers have been unearthed and a few facts have been gleaned, even at this late day, and in this well-worked field.

The earliest record of the Snitterfield property which concerns the Ardens, is, as Halliwell-Phillipps states ("Outlines," 9th edit., ii, 207), Mayowe's transfer of land in Snitterfield, May, 16 Hen. VII, *i.e.* 1501. This is not given *in extenso* in the "Outlines," and I made a translation of it for "The Genealogical Magazine," 1899, p. 401, reproduced in my "Shakespeare's Family," p. 29. I afterwards found that it had appeared in "A New Boke about Shakespeare, J. O. Halliwell, 1850." But its importance was not explained. A messuage with all its appurtenances, situated between the land of John Palmer on one side, and a lane called Merellane on the other, and extending from the king's highway to the rivulet, had been handed over by John Mayowe, through his attorneys, Thomas Clopton of Snitterfield, gent., and John Porter of Arden, to six men, named in full. The witnesses were John Wagstaff of Aston Cantlowe, Robert Porter of Snitterfield, Richard Rushby of Snitterfield, Richard Atkyns of Wilmecote, John Alcockes of Newnham, and others. The names of the six feoffees were Robert Throckmorton, arm. (knighted that same year); Thomas Trussell of Billesley, arm.; Roger Reynolds of Henley-in-Arden; William Wood or Woodhouse; Thomas Arden of Wilmecote, and Robert Arden, his son. After events make it seem probable that this was a purchase desired by Thomas Arden for his son, who may then have been under age and required trustees. No one has noted fully that the others must have been the most trusted friends of Thomas Arden, if not relatives or connections by marriage. Indeed, if we might read into this the ordinary meaning of such arrangements, it might be supposed that the unknown wife of Thomas Arden was a Throckmorton, and the unknown first wife of Robert Arden a Trussell. This same Robert Throckmorton was, about the same time, made trustee for his children, by Sir John Arden of Park Hall (see my "Shakespeare's Family," p. 184). Thomas Trussell was of a distinguished old family, and the other two feoffees were gentlemen; so when Halliwell-Phillipps scorned the notion of the Ardens of Wilmecote being associated with gentility, he showed that he had missed the full import of this deed, Misc. Doc., ii, 83.

The meaning of two other deeds was not revealed to him at all, because each bore an error on its brow. The first is among the Birthplace Deeds, in duplicate 424 and 425, and dated "19 Hen. VI.," rendered in pencil 1440. Therefore it has been neglected. It seemed of too old date to concern the

Ardens. But it can be proved that the date should have been entered rather as 19 Hen. VII, a mistake having been made somehow.

It is the grant from William Mayowe to John Mayowe of Snitterfield, son and heir of Richard Mayowe, of a messuage with appurtenances lying between Marye Lane on the one hand, and the land of John Palmer on the other. The witnesses were William Wylmecote of the Wold, William Ketall, "Richard Parson of Heyth," Thomas Palmer of Snitterfield, and William Wormbarn; dated Snitterfield, Tuesday after Christmas, 27th December, 19 Hen. VII, *i.e.* 1503. As this is *later* than the deed by which John Mayowe transferred this property to the feoffees, it would seem to imply that John Mayowe was under age in 1501, or that some doubt as to his title had arisen. This opinion is supported by the next deed, which Halliwell-Phillipps must have glanced at, as he has calendared it, but cannot have read, because he describes it without comment as "Grant from John Mayhow of Snitterfield to *Thomas Arthur*," Misc. Doc., ii, 4. This has been referred to by no one else. But it is evidently the real sale, the final concord. The property is the same. Here are no trustees, no attorneys; it is the definite deed of man to man. John Mayowe, probably surrendering William Mayowe's grant to himself made six months before, confirmed to *Thomas Arthurn* (not Arthur) of Wilmecote and his heirs the messuage, with eighty acres of land in Snitterfield, with the same boundaries as before, the only variation being between "the land held by *William* Palmer on the one hand, and the lane called *Mary's Lane* on the other." John Mayowe set his seal to this before the witnesses, Thomas Clopton, gent. (who had been his attorney in 1501), Robert Porter, Thomas Nicholson, Hugh Townsend, John Scoryer, John Palmer, jun., John Pardy, and many others, 6th July 19 Hen. VII (*i.e.* 1504). The spelling of the name need perplex no one who understands the loose orthography of the time, and knows that "Arden" was frequently spelt "Arderne."

This was evidently the most important purchase made by Thomas Arden. It was the property let, at some unascertained date between this and 1529, to Richard Shakespeare, and concerning which, nigh eighty years afterwards, John and Henry Shakespeare, sons of Richard, were summoned to give evidence in the Chancery suit brought by Thomas Mayowe against the Ardens.

The next purchase was by Robert Arden, though we know from the Subsidies and the Court Rolls that his father was yet alive. Richard Rushby and his wife Agnes, daughter and heiress of William Harvey, yielded to Robert Arden a tenement and lands between the tenement of Richard Hardyng on the one side, and the land of the Lord of the manor upon the other. The witnesses were Richard Grant, gent.; “Roger Palmer, chapelin”; John Pardy, and many others. Dated at Snitterfield 14th December 11 Hen. VIII, *i.e.*, 1519 (Misc. Doc., ii, 9). Another copy of the same date is preserved as Misc. Doc., ii, 59; and still another among the Wheler MSS. at the Birthplace, i, 23 (S. 172), dated 21st December 11 Hen. VIII. Two years later Richard Rushby of Snitterfield handed over to Robert Arden of Wylmecote a general release of this same property, dated at Wilmecote 29th December 13 Hen. VIII, *i.e.* 1521 (Misc. Doc., ii, 81).

There is no suggestion of the third and fourth boundaries of this purchase, except through the description of the next. Birthplace Deed 428 is a release from John Palmer of Snitterfield, son and heir of John Palmer and Elizabeth his wife, daughter of John Harvey, formerly of Snitterfield, to Robert Arden, of one tenement and divers lands and pastures between the tenement of Richard Hardyng on the one side, and the land of the Lord on the other—the third and fourth boundaries being again omitted. Witnesses, Richard Hawe of Warwick, gent.; Richard Fysshier, Under-Bailiff of Warwick; Will Holbache, John Parker of Grove Park, Walter Nicholson, John Townsend, and Richard Maydes, 1st October 21 Hen. VIII, *i.e.* 1529. This land was the fourth boundary of the purchase from Mayowe, and probably united it with the Rushby purchase, coming also through the Harveys. Both properties lay between the tenement of Harding and the land of the Lord of the manor, and seem to have been side by side. The addition must have greatly improved the value of the Mayowe inheritance. Fragments of information come to us from the Subsidy Rolls (192/128) and the Court Rolls of the College of St. Mary in Warwick, Portfolio 207, 88. Richard Rushby and William Mayowe seem to have stayed on in the village. John Palmer was generally “tithing-man.” In 17 Hen. VIII Thomas Arden was presented for owing suit of court, and William Mayowe because he should cut Eight Leas Hedge. We do not know how much sooner he had come to reside in Snitterfield, but we find that Richard Shackspere was presented by John Palmer in 20 Hen. VIII, for owing suit of court. He was again presented for the same neglect, 22 Hen. VIII, excused 23 Hen. VIII,

and John Palmer reported that “all was well” till 28 Hen. VIII. Then Thomas Palmer presented “William Mayhew and Rich. Shakspere for default of suit of court.” Again in 30 Hen. VIII, “Robine Ardern, Richard Shackspere, and William Mayhew owe suit of court, and are amerced; and Richard Shakespeare must mend the hedge between him and Thomas Palmer under a penalty of 40 pence.” In 33 Hen. VIII, “William Mayhewe, Richard *Shakeshafte*, and Roben Ardern owe suit of court, and are amerced; and Roben Ardern must mend his hedge between him and John Palmer under a penalty of 20 pence.”

Meanwhile Robert Arden had married, and was bringing up a large family of daughters, and his wife died while some of them were yet young. The next thing I have learnt of him is through the Court Rolls of Katharine the Queen at Balsale, Portfolio 207 (9), the View of Frankpledge, 21st April 2 Ed. VI (1548): “To this court came Agnes Hill, widow, and prayed licence to marry one Robert Ardern, which was granted in the name of the Lady the Queen, by her seneschal,” on the payment of a fee of five shillings. Her husband John Hill of Bearley had died in 1545, leaving her executrix. Her marriage probably took place very soon after the licence was granted.

Robert Arden may have made other arrangements before this, but nothing is preserved earlier than the settlement of 17th July 4 Ed. VI (1550). He then enfeoffed Adam Palmer of Aston Cantlow and Hugh Porter of Snitterfield in the tenement and land now in the occupation of Richard Shakespeare, in trust for himself and his wife Agnes for life, with the remainder of a third part to his daughter Agnes Stringer,^[1] now wife of Thomas Stringer, formerly wife of John Hewins, defunct, of Bearley; another third part to his daughter Joan, the wife of Edmund Lambert, Barton-on-the-Heath; and another third to his daughter Katharine, wife of Thomas Edkins of Wylmecote (Misc. Doc., ii, 21; see also Misc. Doc., ii, 79). These three elder daughters evidently had the best part of their father’s property, bordering on the high road, a stream, and a lane,—all conveniences; its size about 80 acres.

On the same day, 17th July 1550, there was drawn up a tripartite indenture by Robert Arden, confirming Adam Palmer and Hugh Porter in the possession of a messuage and three “quatrones terre,” etc., now in the tenure of Richard Henley, to the use of Robert Arden himself and his wife Agnes for their lives, and after that a third part to go to his daughter

Margaret Webbe, the wife of Alexander Webbe of Bearley; another third to his daughter Joyce; and another third to his daughter Alice (Misc. Doc., ii, 77). Another copy is preserved in the same series, ii, 79. A similar deed in Misc. Doc., ii, 73, is dated six months later (17th December, 4 Ed. VI, 1550). This seems to have been the property Robert had bought from the Rushbys, but whether it included that formerly owned by the Palmers is not quite clear. The boundary line and the number of acres are not defined, and sometimes there were three tenants, and sometimes two, in the combined property.

Robert Arden made his will 24th November 1556, and died before 17th December following. He left his wife Agnes, as we have seen, a life interest in the shares of all his daughters at Snitterfield, and a place of residence in the copyhold of Wilmecote, to be shared “peaceably” with his daughter Alice, under a penalty. Mary was to inherit Asbies, an independent farm of over 60 acres in Wilmecote, and she and Alice were to be joint executors of their father’s will. This shows that they were both grown up, though still unmarried, and suggests that Arden had had some disappointment in his second marriage, thus to pass over his wife to leave things in charge of his daughters.

John Shakespeare must shortly after have married Mary Arden, though no record of the marriage has as yet been found.^[2] Hugh Porter, one of the feoffees, died in 1557, leaving Adam Palmer alone as trustee.

On 21st May 2 Eliz. (1560), Agnes Arden granted to her brother Alexander Webbe of Bearley, husband of her stepdaughter Margaret, a lease^[3] for forty years, at 40s. a year, of the Snitterfield estate, two messuages, a cottage, and a yard and a half of arable land, etc., “in the occupation of Richard Shakespeare, John Henley, and John Hargreave,” in presence of John Somerville and other witnesses (Birthplace Deeds, 429).

No one has noted how seriously this may have affected Richard Shakespeare. He may have been an aged man, ready to resign his life-work, or he may not. It is not likely that Webbe’s removal from Bearley to Snitterfield could have taken place before November of that year; possibly another year’s grace was granted. But we do know that either in December 1560 or January 1560-1 Richard Shackspere of Snytterfield died, and his

goods were administered by his son John, then called “Agricola” 10th February 1560-1 (see Worcester Probate Registry, “Testamenta”).

There is proof that Alexander Webbe did leave Bearley and settle down on his lease farm at Snitterfield, a share of which would revert to himself, through his wife Margaret, on the death of his sister Agnes. He strengthened his position when, on 12th February 11 Eliz. (1568-9), Thomas Stringer of Stocton in the county of Salop, yeoman, let to Alexander Webbe of Snitterfield, husbandman, and Margaret his wife, the third part of one messuage, etc., with a yard of land, etc. now in the occupation of the said Alexander, with all the interest he has in another tenement and half yardland now in the occupation of John Henley, to hold, after the decease of Agnes Arden, for the term of twenty-one years. Webbe was to pay to Thomas Stringer and his heirs 6s. 8d. at the two terms of the year. If Alexander Webbe failed to pay, the Stringers might eject him. “Witnesses, John Shakespere, Henry Russell, Richard Boyse, and James Hilman, this writer” (Misc. Doc., ii, 15, not signed by the Stringers). A bond is also drawn up between them that if Thomas Stringer does not fulfil his agreement, he should forfeit £7; same date, with same witnesses (Misc. Doc., ii, 78).

Alexander Webbe was buried at Snitterfield 17th April 1573, and “John Shackspere” was the overseer of his will. His widow Margaret shortly afterwards married Edward Cornwell. The first reference I have found to him is in a deed of exchange (Misc. Doc., vii, 41), which has not been noted, between Bartholomew Hales, Lord of the Manor, and certain freeholders in Snitterfield, *i.e.*, “Sir John Spencer; Thomas Feryman, ‘clarke,’ Vicar of the Parish Church; Edward Graunt, gent.; John Pardy; Robert Maydes; John Tombes and Elizabeth his wife; John Walker; Edward Cornewell and Margaret his wife; Thomas Stringer; Thomas Palmer; William Perckes and Marjory his wife, Thomas Harding, and Edward Watersonne, freeholders of and within the said manor, 23rd January 17 Eliz. (1575).”

There had been certain exchanges of the common lands between the farmers and the manor, but they were unsure in law. By this indenture it is covenanted that Bartholomew Hales and Mary his wife and their heirs shall grant to the freeholders and their heirs, by way of exchange, all the lands, meadows, commons, pastures, and feeding commodities now in the tenure of Edward Grant in Rowley Field; and the “four yarde land,” late in the

occupation of Bartholomew Hales, lying in Gallow Hill Field, Rowley Field, and Brookfield (except as reserved for certain tenants in beast pasture and three-horse pasture during their several terms); and all the lands in the common called Griswold or Bushe Field, and all the meadow ground with the “hades” in Aston Meadow and Errymarsh Meadow. And the Lord agreed that after the hay is mown and carried away from the common meadow called Broad Meadow, the customary tenants, without let, shall enjoy the aftermath of the said parcel of meadows for ever: And as there are so many conies in Rowley Field, to the annoyance of the tenants, they shall be allowed to kill and destroy or take the said conies wherever their corn shall grow. He further grants that one “hade land” (10 ridges) being in Coplowes next Parsons, otherwise called Burges Hedge there, and shooting down into the way after Luscombe Hedge, shall be for ever a common way to bring, lead, or carry hay out of Aston Meadow with horse, cart, or “wayne.” The freeholders grant in exchange certain ground called Common Fields or Wallfields, one close called the Parkepitt, one field called the New Lessowe or Brunthill, a pasture called Coplow and a meadow, a parcel of ground called Hollowe Meadowe, and one Lammas Close near the house of Margery Lynsycombe; also the Common Leys lying between Hollow Meadow and Ingon Gate, shooting up by Stratford Way Pit to the ground of William Cookes, containing by estimation 200 acres; and certain ground lying in the Hillfield where the windmill standeth, and the parish meadow, and all other commons, woods, furzes, etc., of the said freeholders. If either party break the agreement, the other may enter into the possession of the old lands so exchanged.

A long series of deeds follow this, most of which were known to Halliwell-Phillipps. On 12th October 18 Eliz. (1576), Edward Cornwell of Snitterfield, husbandman, and Margaret his wife, assigned to Robert Webbe, husbandman, their interest in two messuages with a cottage, and the lease granted by Agnes Arden to his father (see Birthplace Deeds, 429). The witnesses were Gualterus Roche, Nicholas Knolles, clerk, and Thomas Nycolls (Birthplace Deeds, 430).

On 16th October 18 Eliz. (1576), Thomas Stringer of Stockton, co. Salop, and his sons John and Arden Stringer, bargained and sold to Edward Cornwell and Margaret his wife all the reversion which was the inheritance of Agnes, late wife of Thomas Stringer, and daughter of Robert Arden,

deceased. A curious complexity comes in here, for they also sell, as if they had bought it, “the residue of the said tenements which late were the inheritance of Thomas Edkyne and Katharine his wife, in the right of the said Katharine.” The Stringers sell this double share for £68, to be paid beforehand, and they agree that at Christmas term next they shall sue out a fine of the parcel of the premises of the said Thomas Edkins and his wife Katharine, “if the said Katherine do so long live.” They have full power to sell all, except the life interest of Agnes Arden. They set their hands and seals to this, in the presence of the same witnesses as last deed (Misc. Doc., ii, 10).

Another important step was taken on 20th November 21 Eliz. (1578), when Edward Cornwell of Snitterfield, yeoman, and Margaret his wife, sold to Robert Webbe their moiety of three messuages in Snitterfield for £100. This seems to refer back to the last two agreements. Witnesses, John Dafferne, Nicholas Knolles, Thomas Chamberlayne, Hastings Aston, Will Cookes, Henry Talbot, and Thomas Nicholson (Birthplace Deeds, 431). The bond from Edward Cornwell to ensure the performance of the covenant was signed the same day, before the same witnesses (Wheler Papers, i, 34).

Another deed was drawn up on 23rd December 21 Eliz. (1578), in which Thomas, John, and Arden Stringer, and Thomas Edkins, gave up in perpetuity all their rights in the third part of these messuages and lands to Robert Webbe, the son of Margaret Cornwell. The signs of Thomas and Arden Stringer with seals, and the *signature* of John Stringer, follow this, but no allusion to Edkins (Misc. Doc., ii, 20).

There was a fine made between Robert Webbe and Thomas Stringer the following Easter (Public Record Office, Feet of Fines, Warr. Pasche, 15th June 21 Eliz., 1579). The Stringers received £40 thereby; perhaps this was only for their own share. There was no allusion to the Edkins, so perhaps Katharine “did not so long live.” An abstract of this fine is preserved in Misc. Doc., i, 92.

On the same day as the Stringers’ covenant, 23rd December 21 Eliz. (1578), there was a sale by Edward Cornwell to Robert Webbe of all his goods and chattels in Snitterfield or elsewhere, except “one young mare of color baye, and one coaffer, parcel of the premises”—two pieces of pewter being delivered in sign of possession. It was signed by the mark and seal of

witnesses, Anthony Osbaston, William Round, Ardenne Stringer, and John Bronde (Birthplace Deed, 432).^[4]

The next deeds concern the Shakespeare transfer, about which there is much contentious matter. Halliwell-Phillipps says, “Outlines,” i, 29, “Arden had reserved to his daughter Mary a portion of a large estate at Snitterfield.” Now this is a pure supposition, unsupported by any deed or transfer, and besides, it is an unnecessary supposition. It may be noted that there is no allusion to Joyce and Alice, or their shares, among the transfers. It is *probable* that they died without heirs of their body, and that their shares were divided among their sisters. It is *possible* that Alice, with whom she had been most associated, might have *left* her share to her sister Mary. However it happened, Mary was empowered to sell. In “Outlines,” ii, 179, the indenture is given *in extenso*, as drawn up on the 15th day of October 21 Eliz. (*i.e.*, 1579), between John Shackspere of Stratford-on-Avon, yeoman, and Mary his wife, and Robert Webbe of Snitterfield, witnessing that for the sum of “*four pounds*” paid by Robert Webbe to John and Mary Shakespeare they should sell him “all that their moiety, part or partes, be it more or lesse, of and in two tenements” with the appurtenances in Snitterfield, all reversions, remainders, grants (the rents to the chief lord alone excepted), and all charters and evidences concerning them; and that John and Mary should cause and suffer to be done every device for the more perfect assurance of the aforesaid moiety to Robert Webbe, “by his or their counsell learned in the law.” They also agreed to deliver to Robert Webbe by the following Easter all their “evidences.” In witness whereof the parties put their hands and seals, John Shackspere, Mary Shackspere, in presence of Nicholas Knooles, Vicar of Auston, William Maydes, Anthony Osbaston, and others. This long paper, written in English, has no reference, but hangs framed on the west wall in the Birthplace Museum. A bond was also signed concerning this on 25th October in the same year, by the same parties, and witnesses, that if John and Mary Shackspere fail in the performance of their agreement, they will pay 20 marks to Robert Webbe; but if they perform the conditions, the bond will be held void. This bond also hangs framed on the west wall among the Birthplace Deeds in the Museum. The final concord is found among the Feet of Fines in the Record Office, “Warr. Pasche in quindecim dies 22 Eliz.” (*i.e.* 1580), six months after the agreement. “Robert Webbe qu., John Shackespere and Mary his wife def., ... of the sixth part of two parts of two messuages,” etc., in

Snitterfield; they yielding up their share entirely to Robert Webbe, on the death of Agnes Arden, for *forty pounds*.

This is transcribed in full by Halliwell-Phillipps, "Outlines," ii, 176; but he says, "The indenture leading the uses of this fine has not been discovered," assuming that there is no connection between this fine and the agreement of 15th October, which he takes to be a sale by John Shakespeare alone of some property of his own, in which he only uses his wife's name to bar dower. Careful study will show that these three documents all concern the same sale. The puzzle is, Why did the English scribe write "foure" pounds, while the Latin *foot* gives "forty." It may in one case have been merely a scribe's error of "foure" for "fouretie"; it may, in another case, point to the result of some increase of the part to be sold, possibly by the death of another sister within the six months; it may be that Robert Webbe wished to let John Shakespeare have enough to pay the mortgage on Asbies, trusting to future good offices; it may be that the "learned counsel" employed put up the price for his clients before the final concord. Or it may be that the "foure pounds" referred to the share by division of one sister's property; and the other to the whole share by will. An abstract of the fine remains, incorrectly dated, in Misc. Doc., i, 90.

Among the Fines de Banco, "Warr. 22 Eliz., pro termino Pasche," is the note of one due to George Digby, arm., for a licence to Robert Webbe to agree with John Shakespeare and others for his share of the property in Snitterfield, 6s. 8d. "Recepta per me, Johannem Cowper Sub-Vice-comitum."

Mrs. Arden renewed the lease she had made to her brother Alexander to his son Robert Webbe, 5th July 1580 (Misc. Doc., i, 88). Witnesses John Somerville, Thomas Osbardistone.

It would seem that the question of the ownership of the Snitterfield property was perplexing enough to Robert Webbe, when a new claimant appeared. Thomas Mayowe of Shireburne, grandson of the William Mayowe who had granted it to John at the beginning of the century, laid claim to it now, and having no title deeds, appealed to Sir Thomas Bromley, Lord Chancellor. He stated that his grandfather William was lawfully seised in one messuage with about 80 acres in Snitterfield by ancient gift in tail made to him by Richard Mayowe his father; and that this descended to

Roger Mayowe, son and heir of William, and should have descended to the suppliant Thomas, son and heir of Roger. But

the deeds and charters concerning the premises of right belonging to your suppliant have casually come into the hands of Edward Cornewell, Agnes Arden, and Robert Webbe, who, by colour thereof, daily devise and practise to convey to themselves sundry estates in those by inheritance to persons unknown to your suppliant, minding, through delays, wrongfully to disinherit him.

He did not know the dates of the old deeds, nor the certain number of them, “whether in chiste locked, or boxe sealed”; and therefore he is without all remedies by the ordinary course of the common law. He knows not with certainty against whom to bring the action, for “they so covertly and secretly do use the matter that he cannot certeynely know who is the tenant of the premises or receiver of the rents.” So he appeals to the Chancellor to issue a writ of subpœna, that Edward Cornewell, Agnes Arden, and Robert Webbe should appear personally before his Honour, to give an account of their claims. This is not dated (Misc. Doc., vii, 154). It must have fallen like a bomb into the camp in 1580. Agnes Arden was still alive, but she was ill. A commission was granted to Bartholomew Hales, gent., Lord of the Manor of Snitterfield, and Nicholas Knolles, clerk, to take the deposition of Agnes Arden, now impotent, for the use of Chancery, in answer to a bill by Thomas Mayowe, 25th November 23 Eliz., 1580 (Misc. Doc., ii, 13).

As they lived so near, this was probably seen to at once. Agnes Arden died shortly afterwards, and was buried at Aston Cantlow, 29th December 1580. Her death caused a re-arrangement of claims. From tenants, the Ardens had become owners in each part. Robert Webbe, already owner of the bulk of the estate, proceeded to purchase more. Edmund Lambert, who had not been pressed by poverty to realize his reversion, agreed to sell his share. On 1st May 23 Eliz. (1581), there was granted to Robert Webbe, by Edmund Lambert of Barton in Henmarche, and his wife Joan, one of the daughters of Robert Arden, all their moiety, part, pourpart, or share of the property for £40 (Misc. Doc., ii, 80).

On the 2nd of May a subordinate deed was drawn up, signed by the *marks* and seals of Edmund and Joan Lambert, appointing their well-

beloved William Cookes and William Meades their true and legitimate attorneys to hand over their third part to Robert Webbe, or any attorney he may choose. This was signed in the presence of William Cookes, Thomas Nicholson, William Maydes, John Perkes, and Edward Cornewell (Misc. Doc., ii, 12).

On the same date, with the same witnesses, Edmund Lambert executed a bond of £80 in favour of Robert Webbe if he should not fulfil the conditions agreed upon (Misc. Doc., vii, 153).

A general release by Edmund Lambert to Robert Webbe of the interest of him and his wife in the Snitterfield property was handed over on 1st June 23 Eliz. (1581), before the witnesses John Dafferne, John Scarlett, Edward Cornewell, Henry Talbot, and John Butler. The seal has H. T. on it, probably being that of Henry Talbot (Misc. Doc., ii, 84). See also Birthplace Deeds, Appendix 276.

The final concord appears in the Feet of Fines, P.R.O., “Warr. Pasche, 24 Eliz.,” between “Robert Webbe, qu., et Edmund Lambert et aliis deforc., de terre,” etc. Robert Webbe had by this time become apparent owner of the whole of the old Mayowe property, and empowered to face the lagging Chancery suit alone.

But another complexity had arisen, and a new set of deeds, which have not yet been fully worked out. Robert Webbe was about to marry Mary, the daughter of John Perkes of Snitterfield, evidently a prosperous farmer and an affectionate father. The arrangements were extraordinary. There is an undated deed (with pieces cut out) providing that William Perkes should enjoy one tenement, one orchard, and all appurtenances, etc., now in the possession of Edward Cornewell, with no claims from the Ardens, for the sum of £20; that if William Perkes *or his assigns* do not enjoy the same and pay for it at the rate of £3 6s. 8d. a year, and do depart, then the said Edward Cornwell to have the same again (Misc. Doc., ii, 7). This seems to have been some first draft.^[5] The “settlement” *in extenso* is preserved between Robert Webbe and Mary Perkes, 1st September 23 Eliz. (1581). In consideration of a marriage hereafter to be held between them, and also in consideration of £35 of lawful English money to be paid him by John Perkes, Robert Webbe devised and let to farm two messuages with the appurtenances, and one yard land and a half, to John Perkes from the feast

of St. Michael for six years, to have and to hold, paying to Robert Webbe or his executors the sum of fourpence at each term. John Perkes was to repair the premises at his own cost, and at the end of the term to yield them to Robert Webbe. During that term Robert Webbe should have twenty sheep kept for him during the winter months by John Perkes;

and the said John Perkes shall find and allow for the said Robert Webbe; Mary the daughter of John Perkes, his wife; Margaret, mother to the said Robert; and Edward Cornell, father-in-law to the said Robert, during the term, within the dwellinghouse of the said John Perkes, necessary, convenient, and wholesome meate, drinke, chamber lodging, and fier, at the proper cost and charge of the said John Perkes, the said Edward Cornell paying for his bording as aforesaid, yearelie to John Perkes, the some of three pounds of English money. And if it haps that the said Robert Webbe and Mary his wife have any child or children during the said term, John Perkes shall find and allow for the same, meat, drink, chamber lodging, and fier, with free entry in and out of the said chamber, to and for the said Robert, Mary, Margaret, Edward, and the said children.

At the end of the term John Perkes was to yield up the land sown with all manner of corn and grain at his own charge, so that the said Robert and Mary should have it for their own use after the six years. In witness whereof both parties set their hands and seals in the presence of Thomas Nicholson, Edward Cornewell, and Thomas Pittes (Misc. Doc., ii, 14). On the same day, and before the same witnesses, Robert Webbe signed a covenant, on his marriage with Mary, daughter of John Perkes, to hold a messuage in Snitterfield to the use of himself for life, with remainder to Mary for life, with remainder to the right heirs.

It is evident that grim economy was necessary to Robert Webbe, after his efforts to buy up the other shares, and sit free on his grandfathers property. This was intensified by the unknown dangers and expenses of the Chancery suit hanging over him. John Perkes had done what he could to help him.

Still one other purchase, at least, had Robert Webbe to make. Halliwell-Phillipps, "Outlines," ii, 173, says: "How Robert Arden's other two daughters, Elizabeth Scarlett and Mary Shakespeare, became entitled to portions, is not known; but that this was the case can be shown by the

conveyances to Robert Webbe.” Elizabeth Scarlett is referred to neither in Robert Arden’s will nor in the settlement of 1550. It may be she was an elder daughter who had received her portion at her marriage. She might still share by common law in the inheritance of sisters who died. Halliwell-Phillipps suggests that she had married John Scarlett; but both the John Scarlett of Henry VIII and the John of Elizabeth had wives named Joan. Halliwell-Phillipps enters Elizabeth’s death in the Ardens’ pedigree table as in 1588, giving no authority. But John would not have been heir to his mother in 1582 if she had been alive. The Birthplace Deed 433 shows that

John Skarlett of Newnham in the Parish of Aston Cantlow, husbandman, son and heir of Elizabeth Skarlett, one of the daughters and coheirs of Robert Arden of Wilmecote, in consideration of 20 marks paid him by Robert Webbe of Snitterfield, agreed that all his part and interest in two messuages and their appurtenances

in Snitterfield should be delivered for ever to Robert Webbe, 18th March 24 Eliz. (1581-2); witnesses John Dafferne, John Butler, Edward Cornwell, and Edmund Lamberde.

On the same day was sealed a bond for 40 marks, for the completion of the sale between Robert Webbe and John Scarlett of “all the part, purparte, title, and interest, in two messuages in Snitterfield in the tenure of Robert Webbe, of which John Skarlett and Joane his now wief, or one of them, be lawful owners in fee simple”; the deed of release to cover all rents due, that of the chief lord excepted. The above-named John Scarlett and the said Joane his wife to hand over all deeds and evidences (Misc. Doc., ii, 74).

I came on this deed first (evidently unknown to Halliwell-Phillipps), and naturally thought the inheritance lay in Joane the wife; but in the light of the previous deed it is clear that it came through his mother to John, and Joane’s name was used only to bar dower. John Scarlett received very much less than the Shakespeares did, which strengthens my belief that Mary inherited a share of one dead sister’s portion, but was left the whole portion of another sister by some form of will. I find no mention of the Scarletts’ sale among the Feet of Fines.

The most painstaking research among records, wills, and registers has given me no clue to further information; indeed, rather clouds what we

already have. It is known that the Aston Cantlow registers do not begin early (1560). Among the burials appear Joane, “wyff of John Scarlett,” 9th December 1580; and on 9th December 1581, John Scarlett. The will of John Scarlett of Newnam is dated 10th December 1581; in this he mentions his brother William, and John, the son of Adam Scarlett. The date given is *the day after his burial*; and the deed is drawn up three months after both. This seems to prove that it was *another* John Scarlett. Adam Scarlett, the richest yeoman^[6] in the parish, had a brother John, who might, by common law, as the *second* son, have been heir to his mother, and who survived some time after this. But no such explanation comes as to the “now wife Joan,” who had died a year and more before the agreement was made in which she is concerned. I have been unable, as yet, to trace the cause of the discrepancies.

Robert Webbe had now got into his own hands all which had been owned by his aunts and his mother. But the Chancery proceedings were dragging their slow length along. He could, however, have little fear, further than the waste of time and money, as he would hold among his evidences the two early papers which I have brought forward for the first time. A paper in Misc. Doc., i, 89, gives the list of “Witnesses to be examined for Robert Webbe.” Among these is “Hary Shexspere.” Another (Misc. Doc., ii, 85) is the subpœna of John Shakspeare, John Wager, Adam Palmer, and others, in the case of Mayowe *versus* Robert Webbe, to appear before a special commission appointed by Chancery, Sir Fulke Greville, Sir Thomas Lucy, Humphrey Peto, and William Clopton, 24 Eliz.

No one has hitherto taken any further trouble about this Chancery suit, but, knowing that it might lead to unexpected revelations, I made a diligent search at the Record Office, and was rewarded to a limited extent; that is, I found some information, but not so much as I had hoped.

I found that a commission had been granted to hear the case of Mayowe con. Cornwell and others, in the Quindene of Trinity, to Sir Fulke Greville and Sir Thomas Lucy, Knights, Humphrey Peto, Esq., and Thomas Clopton, Arm., or any two of them, to hear the witnesses on the plaintiffs’ side; record their answers, and give the defendants a fortnight to reply, 12th June 23 Eliz. (1581).

Thomas Mayowe claimed to be the son of Roger, and that Roger was the son and heir of William, on whom Richard his father had entailed the property. Apparently William had granted it to John, son and heir of Richard. This John would be William's brother. The interrogatories to be put on behalf of Mayowe were necessarily long, but they may be summarized. Do you know the tenement in question, "lying between the house which was sometime the house of William Palmer on the one side, and a lane called Merrel Lane on the other, and doth abut on the High Street"; and if one John Mayowe did sometime dwell in it? Do you know that one Richard Mayowe deceased, father of William Mayowe, likewise deceased, was seised in this domain as of fee of inheritance, and did entail it on the said William and the heirs of his body? Do you know that William was grandfather of the complainant, that his son and heir was Roger, and that Thomas was the son and heir of Roger? Chancery is proverbially slow. The depositions were taken at Warwick 13th June, 24 Eliz. (1582), before Sir Foulk Greville, Sir Thomas Lucy, and Humfrey Peto, Esq. (Chanc. Dep. M. VIII, 22). The question of entail is not cleared.

Richard Welmore of Norton Curlew, of the age of 60 years or thereabouts, did know the tenement, but could not answer the other queries. He had heard Roger Mayowe say he was the eldest son of William. He knew that Thomas was the son and heir of Roger.

Robert Nichols of Lillington, aged 67 years, knew the plaintiff, the defendants, and the tenement, and "that it abuts itself against the High Street." He had heard by credible report that John Mayowe did sometime dwell there. He had also heard that Richard was seised in the demesne as of fee of inheritance; that William was the son of Richard, that Roger was the son of William, and Thomas was son of Roger.

Thomas Lyncycome of Yardeley in the county of Worcester, tilemaker, 58 years of age, only knew that Thomas was eldest son and heir of Roger.

The depositions were signed by Fulke Greville and Humphrey Peto. Rather an unsatisfactory plea against possession for nigh eighty years! Doubtless the two deeds were in court—the grant of William Mayowe to John, son of Richard; and the sale by John Mayowe to Thomas Arden.

Then follow "Interrogatories to be ministered on the part and behalf of Edward Cornell, Robert Webbe, Edmund Lambert, and Joane his wife."

These also must be contracted, How many tenements are there in controversy? How many inhabited them? How long have you known them? Whose inheritance was it accounted? Was it the inheritance of Arden? What was the name of Arden? Have you ever known the ancestors of Mayowe occupy the premises? How long since they did so? Do you know if Robert Arderne of Wilmecote was seised in fee simple of said premises? Do you know if said Robert made any conveyance, and to what uses? Do you know if the persons to whom the grant was made peaceably succeeded on his death? Did Agnes Arderne, wife of the said Robert, occupy the premises or receive rent for it? The replies were clear.

1. Adam Palmer of Aston Cantlow, yeoman, of the age of 60 or thereabout, said that he knew both plaintiff and defendant, that he has known the messuage in controversy forty years and upwards, and that he was one of the feoffees about thirty-six years ago. He knew one Richard Shaxpere did occupy the same messuage as tenant to Robert Arderne als Arden, and also Saunder Webbe and his wife, one Cornwell, and now Robert Webbe, son to Saunder. He hath known the said messuage and land to have been in the quiet possession of Robert Arden and his wife Agnes, as his own inheritance, and after his decease, of Saunder Webbe, who married the daughter of Arden, and now of Robert Webbe, who is in possession as heir to Saunder Webbe. He never knew any of the ancestors of the complainant dwell in the premises. Robert Arden was seised in fee simple, and did in his lifetime make a conveyance to Joan Lambert, Katherine Edkins, and Joyce Edkins, his daughters and coheirs by the feoffment. The wife of Robert Arderne quietly enjoyed the premises till of late, within this two or three years, this complainant did make some title thereto. To his remembrance Robert Arderne died twenty-eight years since or thereabout. He knew that Agnes, the wife of Robert Arden, received the rents and profits of the said messuage, 40s. by the yeare, and since it hath been improved to £4 by the year, and that she died about two years since.

2. The next witness called was John Henley of Snitterfield, husbandman, of the age of eighty years or thereabout. He knew both complainant and defendant, had known the messuage for about sixty-six years, that it had been in the quiet possession of Thomas Arderne alias Arden, father to Robert Arderne; and concerning Robert Arden, he said all that Adam Palmer said. He knew the inheritance to be in the possession of Thomas

Arderne, and afterward of Robert Arden; he was witness to the possession-taking, but cannot remember the time of the death of Arden.

3. Next was called John Wager of Snitterfield, husbandman, of the age of 60 or thereabout. He knew both complainant, defendants, and property. He knew one Rushby and one Richard Shaxpere, one Alexander Webbe and his wife, Cornwell and his wife, and Robert Webbe, son to Alexander, to occupy the property. He hath known it to be in the Ardens for fifty years, and that Robert was seised in fee simple. He said the same as Adam Palmer, though he was neither a feoffee nor was at the delivery of seisin.

I had hoped to be able to turn the page and read details of John Shakespeare's age and status, and what he had to say concerning Arden's inheritance and his father's tenure. But the paper abruptly ends, without further witness, and without signatures. No decree or order has been preserved. Either the Court considered the Ardens' case too strong to need further proof, or John too interested for a witness, or the page was lost that bore his testimony, as so much is lost concerning his family. The evidence of continued possession shows what the decision of the Court was.

There is only one perplexing statement of Adam Palmer's further to note. We have the deeds, and we know that this, formerly Mayowe's property, when in the tenure of Richard Shakespeare was settled by Robert Arden on his daughters Agnes Stringer, Joane Lambert, and Katherine Edkins; while Palmer names them as Joan Lambert, Katherine Edkins, and Joyce Edkins. It was easy at the end of thirty-six years to forget which of the daughters had her share in this messuage, seeing they all really treated their shares, not as the third part of one, but as the sixth part of the two properties. Agnes Stringer had died long before, and her family lived in Shropshire.

But it is more puzzling to hear Palmer name "Joyce Edkins," as it seems to imply that Joyce, as well as Katharine, had married an Edkins. I have made careful researches in every possible direction, but have been unable to trace a Joyce Edkins, except the sister of William Hill. I am inclined, therefore, to think that either Adam Palmer or the clerk slipped in giving the name of Edkins to Joyce, as well as to Katharine. She should have been Joyce Arden with her share in the other property. The fate of Joyce has yet to be discovered, if she was not buried, as I suggested was possible, in Pedmore, in 1557 (see my "Shakespeare's Family," p. 181).

Perhaps Adam Palmer's responsibilities had worn him out, and he had begun to mix things up, though in other points his testimony was clear. It was well for Robert Webbe that he was then alive. He was buried at Aston Cantlow, 13th July 1584.

Though this Chancery case does not yield us much new matter, it makes real our somewhat hazy notions of the property settled on Shakespeare's aunts. But the whole series of documents, taken together, teach us a great many important points regarding the poet's family and surroundings. It lets us picture the house abutting on the High Street where John Shakespeare was doubtless born, the extent of the united properties, and the stretches of the common fields which the poet doubtless haunted in his youth to catch the conies, permitted to the freeholders. But, above all, it answers conclusively the question, so mockingly put by the Baconians, Where did the Stratford man learn his law? There are more legal documents concerning this Snitterfield property than were drawn up for any other family of the time in Warwickshire, as anyone may test who wades through the "Feet of Fines," and as few of his relatives could write, it is possible they could not read. William Shakespeare may have had but little Latin, but he was very likely esteemed as the scholar of the family, and doubtless had all these deeds by heart, through reading them to his anxious and careful relatives when they were brought out of the "box of evidences," to strengthen the case for the defendant against Thomas Mayowe. The law papers of the Ardens, and the litigation of his father, prepared him alike for his many later personal associations with the law, and for the conduct of the Chancery case which he hugged to his heart during ten years at least. I trust soon to follow this out.

"Athenæum," 24th July and 14th August 1909.

FOOTNOTES:

[1] The very first entry in the Bearley Register, now kept at Wootton Wawen, is that of the marriage of Agnes Hewens, widow, to Thomas Stringer, 15th October 1550. It may be noted that this was three months *after* she was called "wife of Thomas Stringer" here.

[2] The Registers of Aston Cantlow parish church only begin in 1560.

[3] Endorsed with memoranda of assignment, by Robert Webbe, to Will Cookes of Snitterfield, yeoman, before the delivery of the deed of bargain and sale by Edward Cornwell, to the said Robert Webbe, in presence of John Dafferne, Hastings Aston, Thomas Chamberlain, Thomas Nicholson, and Henry Talbot.

[4] A writ was issued for Robert Webbe to appear before the Court of Exchequer for *alienation* without licence of lands in Snitterfield, 12th November 21 Eliz. (1579), Misc. Doc., vii, 51.

[5] In this there was either a mistake in the Christian name or the original intention was to make the arrangement in the name of the grandfather instead of the father of Mary Perkes.

[6] After the will of John Scarlett of Newnam, 10th December 1581, is an inventory of goods valued at £23. The inventory of Adam Scarlett of Wilmecote, with the will proved 1st September 1591, was £117, a very large amount for the period.

III

SHAKESPEARE AND ASBIES

A NEW DETAIL IN JOHN'S LIFE

The story of Shakespeare's lost inheritance is the clue to the shaping of the poet's life, and therefore it is worth gleaning every scrap of information concerning it. What is commonly known is, that Robert Arden, of Snitterfield and Wilmecote, had made his will in 1556, leaving the first (or the reversion of it after his wife's death) to be divided among six of his daughters.^[Z] Another daughter, Elizabeth Scarlet, seems to have been otherwise provided for, and the youngest daughter Mary, either because she was his favourite, or because of the old Saxon preference for the youngest child, was given the sole right in the freehold at Wilmecote called Asbies. There is no record of its purchase. My own opinion is that Thomas Arden, the father of this Robert, was the second son of Sir Walter Arden of Park Hall, who was to receive, by his father's will in 1502, ten marks a year for life, his younger brothers receiving five marks a year. They all seem to have been provided for beyond this meagre allowance. At the date of the will Thomas was already resident in Wilmecote. How and why he went there is the question. Aston Cantlow had long been part of the inheritance of the Beauchamps, who intermarried with the Nevilles, and some connection of the Beauchamps with the Ardens can be proved by the family pedigree. Elizabeth Beauchamp was godmother to Elizabeth Arden, Thomas Arden's sister (as French believes), and it is quite probable this little farm was given to, or bought for, the settlement of, Thomas Arden. What I wish to suggest is that Asbies was to the family the cherished heirloom, the visible link of connection between their branch and the historic family from which they sprang, and that some family jealousy may have arisen through its being absolutely left to the youngest child.

We know little about this Thomas, but much more about his younger brother Robert. He was yeoman of the King's Chamber in Henry VII's reign, and received many royal patents and grants during the reigns of Henry VII and Henry VIII. Leland mentions him: "Arden of the Court, is

younger brother to Sir John Arden of Park Hall” (“Itin.,” vi, 20). Among the Feet of Fines for Warwickshire, Trinity Term 18 Henry VIII, is an entry to the effect that Robert Arden, Arm., settled an annuity on Antonio Fitzherbert “from the Manor of Ward Barnes, formerly Wilmecote”; whether this refers to the uncle, “Robert, of the Court,” or the nephew, Robert of Wilmecote, it refers to the district.

Now, it is not a little remarkable that the Shakespeares’ little property had only “a local habitation and a name” of *Asbies*, during the life of Mary Arden and her immediate Arden relatives. It is not known before, it has not been known since. Either it changed its name, or was swamped in a larger estate. We cannot give its boundaries. Halliwell-Phillipps shows that it could not have been by the cottage *now* called Mary Arden’s Cottage^[8] at Wilmecote, for he had traced other owners back to 1561, but he seems to think that Robert Arden had lived in *Asbies*. Now it is quite clear from his will that his widow Agnes was to have his *copy-hold* in Wilmecote, so that she allowed his daughter Alice quietly to enjoy half, and it seemed they had occupied that property. This copyhold was probably for three lives, as it lapsed at Agnes Arden’s death in 1581, *after* the trouble at *Asbies*.

On Mary’s marriage an interest in *Asbies* would accrue to her husband, which by the courtesy of England he would retain for life. During Shakespeare’s youth it would be the basis of his father’s farming industries, and perhaps, after the common fashion of the time, the prospective source of support for the family, in a manner stigmatized by the Earl of Leicester as lazy, selfish, and without public spirit or family pride.^[9] It is perfectly certain it was intended to be the inheritance of William Shakespeare, and that he was prepared to be a small farmer, for which reason he was not trained to any profession, nor apprenticed to any trade. (All “traditions” on this question are untrustworthy.)

John Shakespeare had purchased in 1556, the year of the settlement of *Asbies*, a house and garden in Greenhill Street, Stratford-upon-Avon, and another in Henley Street, where he had been living since 1552 (see View of Frankpledge, Borough of Stratford, P.R.O., Portfolio 207), so he had a town home to offer the heiress of *Asbies* when he married her the following year. He seemed, having been Bailiff and Chief Alderman, to go on in prosperity till October 1575, when he again purchased two houses in Stratford, one of them also in Henley Street. From that date his fortunes declined. Whether it

was failure in the wool industry, or the misfortunes of his brother Henry at Ingon, or special losses of his own, John Shakespeare was in money trouble by 1578. Some have suggested it was through recusancy, because a much later State Paper list gives his name among recusants. I have elsewhere shown the John Shakespeare there mentioned was much more likely to have been the shoemaker who disappeared shortly after from the town. That the ex-Bailiff John's difficulties were well known, and that his fellow aldermen sympathized with him, is shown in the Chamberlain's accounts, where John is excused by his brethren from the burdens they put on themselves. He required money, and must have it somehow. His nephew Robert Webbe had been prospering in Snitterfield while he was declining, was, indeed, stimulated by the ambition and help of a prospective father-in-law, beginning to buy up the shares of his aunts in Snitterfield. Mary Arden had been left no share there, as Halliwell-Phillipps suggests, but apparently by this date, through the death of her two next youngest sisters, had become possessed of the share of the one by will, and of the share of the other, without a will, by partition.

It is nearly certain that John and Mary Shakespeare would have gone to Robert Webbe first for a loan on the security of Snitterfield, or even to sell it outright. But he had just bought in the share of the Stringers (see *Feet of Fines*, Easter, 21 Eliz.), and would be short of money. They turned to their brother-in-law Edmund Lambert, who had sufficient money, but he would not trust it with John Shakespeare in his depressed state on any lesser security than that of the family jewel, of Asbies. He drew up an indenture, purporting to be an absolute sale, for £40, with this condition, that if the money was repaid on Michaelmas Day 1580 at Barton-on-the-Heath the sale was to be void. But in the final concord, as preserved among the *Feet of Fines* for Warwickshire, Easter 1579, there is no allusion to this condition. Hence arose the trouble. When he had secured the money, John made a very complex arrangement. Asbies had evidently been leased to George Gibbes. He found Thomas Webbe and Humphrey Hooper willing to buy the lease from John and Mary Shakespeare and George Gibbes for twenty-one years from 1580, and to hand it back to George Gibbes. There must have been money paid down for that lease, as it was clinched by a fine in *Feet of Fines*, Hilary Term 1579 (230).

Though John had received the £40 from Lambert, plus the fine from Webbe and Hooper, he was evidently still in need, as we may learn from Roger Sadler's will. Among the debts due to him were "Item of Edmonde Lamberte and ——— Cornish for the debte of M^r John Shaksper £5" (Prin. Prob. Reg. Som. House 1 Bakon. 17th January 1578-9). We have had no information concerning the events of the following two years. But it appears that John must have committed some indiscretion about that time, which must seriously have affected his fortunes. Many years ago I had discovered a fine against his name in the Coram Rege Rolls, but laid it aside until I had leisure to work up the case. Not long since, with the help and advice of Mr. Baildon, I spent some weeks investigating likely papers, but found no further facts than those first gleaned, two separate yet connected cases among the unnumbered pages of the "fines" at the end of Coram Rege Roll, Trinity 22 Eliz. (a few pages from the end, half way down "Anglia" on the right). There we are told that John Shakespeare of Stratford super Avon in Co. Warr., yeoman, because he had not appeared before the Lady the Queen in her court at Westminster, as summoned, to be bound over to keep the peace, at a day now past, was due to pay £20, and that his two sureties were to pay a fine of £10 each, for not having produced him. His sureties were John Awdley of the town of Nottingham, co. Notts, Hatmaker, and Thomas Colley of Stoke in co. Stafford, yeoman. This becomes more serious, because the next case is against John Awdelay Hatmaker of the town of Nottingham co. Notts. Because he did not appear before the Court of the Queen when summoned at a day now past, bringing sufficient security, to be bound over to keep the peace, he was to be fined £40. And John Shakespeare of Stratford on Avon yeoman, one of the two securities for John Awdelay, because he had not brought him before the Queen on the day appointed, was to pay £20, and Thomas Colley, another of the securities, was also to be fined £20.

I looked through several terms before and after to see if there were any suit in the Coram Rege Rolls on which this may have been based, a difficult job, as I had no clue to the name of a plaintiff or a county to guide me. The only further reference was in the Exchequer accounts, where, under "Anglia," "Warr.," "Villa Notts," and "Staff." the same parties are entered for the same fines, Exchequer K. R. accounts 109/13, m. 22. d. Fines and Amerciaments Coram Regina Trinity Term 22 Eliz. Here, then, John had another £40 to pay, evidently unexpectedly, in association with two men

who have not yet been connected with his biography. Whether he did not appear as defendant, or as witness in some case when summoned, or whether he had committed some trespass, or had a free fight with some one, as his brother Henry had with Edward Cornwall in 1587, I have not been able to prove. In searching the Controlment Rolls, Mich. 22 Eliz., I had a surprise. Among a number of names from various counties of persons who “*indicati sunt de eo quod Corpes felonici interfecere et murderfare*” was “John Shakespeare.” The very date. It was a relief to see that he was “late of Balsall, co. Warr.” I was allowed to get out some bundles of “ancient Indictments” which had not been searched, and found in No. 650 that the said John Shakespeare, by the instigation of the Devil, and his own malice, made a noose of rope fast to a beam in his house and hanged himself on 23rd July 21 Eliz. He had goods only to the value of £3 14s. 4d. which John Piers, the Bishop of Winchester, as chief almoner to the Queen, granted by way of alms to the widow, Matilda Shakespeare. (In the inventory of the goods are included some painted cloths.)

Though John of Stratford’s fortunes were nothing so tragic as those of John of Balsall, he was in a bad enough way. His fine was money entirely *lost*, through some folly; and he seems to have lost money otherwise. He had to sell both the Snitterfield shares to Robert Webbe outright, and he went down on Michaelmas 1580 to Barton-on-the-Heath with the redemption money of Asbies in his pocket. Edmund Lambert refused to receive it and release the mortgage until John paid him also other debts he owed him; but we know from later litigation that he had promised, when these other debts were paid, to take the £40 and release the mortgage at any time. And again John Shakespeare trusted his brother-in-law’s word.

The last implicit sign of the family possession of Asbies is preserved in a little book among the State Papers, April 1580 (which none of the Baconians appear to have noted). This is a list of “the Gentlemen and Freeholders of the County of Warwick.” Among these appear John Shakespeare of Stratford on Avon (the name spelt so) and Thomas Shakespeare of Rowington. In another list the contracted form of the name is used. But the freehold was slipping from him. He could not find sufficient money to pay *everything* at once. There is no doubt that his son’s impulsive marriage would increase his money difficulties. So time passed on, and he was fighting from hand to mouth, until on 1st March 1587

Edmund Lambert died, still holding Asbies. Though John Lambert, the heir, seems to have been offered the money, he refused it, and took possession. He was not going to be bound by a mere verbal promise of his father, even if it had ever been made. There seem to have been family councils, friendly, logical, and legal pressure applied. John Lambert refused to give up the desirable family property. But a counter proposition was made to him, and under pressure, to secure peace, he seems to have agreed on 26th September 1587, at the house of Anthony Ingram, gent., at Walford Parva, to pay £20 extra by instalments, beginning on 18th November 1587, and again the Shakespeares trusted a Lambert's word.

Now it cannot be too carefully considered, that it was the private discussions and decisions about the return of Asbies, that were the deciding factors in John and William Shakespeare's life. Then they learnt that John Lambert was determined not to give up Asbies; they knew they could not go to Common Law, having for testimony only the word of a dead man. And William Shakespeare, already the father of three children, felt that he must make a career somewhere, and determined on trying London. Why not? Many of his friends had gone there and prospered. His father would have the £40 he was ready to pay for Asbies. He would have introductions enough, and he probably reckoned on the £20 that John Lambert was to pay to make up the sale-value of Asbies to a more just proportion as likely to come to himself. We know that he suffered disillusionment; we know that John Lambert did not pay that £20, denied even that he had promised it, and the next step taken was the commencement of proceedings against him for £20 at the Common Law. It is certain that, however it might be entered in his parents' name, William Shakespeare, as the heir apparent, was associated formally with it, probably instructed the attorneys, and did all the personal duties of a "complainant." And thus, by a peculiar combination of circumstances, the first time William Shakespeare's name was written in London, the first time it was spoken in London, *was in the Law-Courts!*^[10] The case teaches us certain details, which have not yet been made the most of, but it seemed to die out, possibly from lack of funds among the complainants. Lambert did not pay. And the fierce fight with fate which Shakespeare made took place during the next few years.

"There's a divinity that shapes our ends." Fortune turned in time. Shakespeare found work at the theatre, seems to have been liberally treated,

though at first servitor or apprentice, and soon had a house in Bishopsgate Street, on which he was assessed higher than either of the Burbages. So it may reasonably be inferred he had his family by him at least by 1594, for a time. He never forgot Asbies. So when he did prosper he applied for arms for his father, bought the best house in Stratford for his wife and got his father and mother to have another fight for Asbies, this time in a court in which he thought he had a better chance of success. The Complaint on 24th November 1597 of John Shackespeare and Mary his wife and Answer have been printed among Special Proceedings in Chancery, Halliwell-Phillipps has them, and also the Decrees and Orders, but the details have not been worked out. Again John Shakespeare committed an indiscretion. Either his attorney mistook, or John, thinking that William was putting himself in power too much, had put forward a second complaint in *his own name only*. Of course, Lambert complained of this, and was supported. John had to withdraw one of his complaints and pay the expenses of both parties in it, and Lambert had permission to change his commissioners if he pleased. In Decrees and Orders, 18th May 1598, John Lambert's Counsel said that John had exhibited a bill in the name of himself and his wife, and then a bill in his own name, had taken out his commission but examined no witnesses (D. and O. A. 1598, Trin. 706). On 27th June they had powers given to elect a commission to examine witnesses by the octaves of Michaelmas, directed to Richard Lane, John Combes, William Berry and John Warner. On 6th July 1598 (B. Book, 133), a new commission was appointed, and John Lambert changed his commissioners, probably finding those chosen first too much in favour of the Shakespeares. The new commission reads, Richard Lane, John Combes, Thomas Underhill, and Francis Woodward. The interesting part in such cases is the examination of witnesses. But the depositions have not been preserved; (I have sought for them very carefully both in Stratford and P.R.O.). That they had been taken, and had been in favour of the Shakespeares may be inferred by the entry,

“John Shakespeere and Mary his wife:—Yf the defendant shew no cause for stay of publication by this day sennight then publication is granted” (23rd October, Mich. 41 & 42 Eliz. D. and O. B. 1599).

This is the last word concerning the case, and we are left to surmise the sequel. Whether John Lambert, finding himself about to be beaten, put as a

bar the Coram Rege case, and the Shakespeares' offer to accept £20 in lieu of the property, and acknowledged his willingness to pay it *now*; or whether the waning fortunes of the Essex party withdrew what court influence might have come through the poet, we know not. But we know that there was never more a "Shakespeare of Asbies"; and that even on the death of his father in 1601 (curiously enough at the very time of the end of the twenty-one years lease he had drawn up from 1580), William instituted no further proceedings in his own name, and contented himself by purchasing other lands and leases of tithes.

One point I should have noticed is, that the final concord which Edward Lambert had drawn up in 1578, and had enrolled in 1579, was endorsed with the records of *fifteen proclamations*. The first could only have been at the Easter Assizes 1581, at Warwick, after the forfeiture of Michaelmas 1580; it was repeated every year, until the Shakespeares began to take proceedings in Chancery. It was stayed while the case was running, and never resumed, for John Lambert remained in possession at the now-vanished Asbies.

"Athenæum," 14th and 21st March, 1914.

FOOTNOTES:

[7] See the paper reprinted above, [p. 17](#).

[8] The illustrations in my "Shakespeare's Family," including one of this cottage, were put in by Mr. Elliot Stock, without my knowledge, and against my will.

[9] See the Book of John Fisher of Warwick. "Every man is only careful for himself ... given to easy trades of life, providing for themselves, not having consideration for their posterity, which should not so be."

[10] John Lambert had licence granted him till the Octaves of Michaelmas 1589 (Coram Rege Roll, 1311, f. 516, Mich. Term 31-32 Eliz. Westminster).

IV

MARY ARDEN'S ARMS

There has been much discussion concerning Shakespeare's descent from the Ardens of Park Hall, and, through them, from the heroes of national legend. In some of the objections brought forward against his assumed pedigree, prejudice has been treated as proof, and opinion as reasoning. The critical strictures are best summed up in Nicholls's "Herald and Genealogist," 1863, vol. i, p. 510, and in "Notes and Queries," 3rd Series, vol. v, p. 493: (1) That the relationship is imaginary and impossible, and those who assert it in error. (2) That the Ardens were connected with nobility, while Robert Arden was styled "husbandman." (3) That the heralds knew the claim was unfounded when they scratched out the arms of Arden of Park Hall, and inserted the arms of Arden of Albanley, in Cheshire. Though this was equally unjustifiable, the family being further off, there was less likelihood of complaint.

French, in his "Shakespeareana Genealogica," p. 431 *et seq.*, opposes these statements by others; and the interesting reproduction of the drafts and patents of Shakespeare's arms, with the accompanying letterpress by Mr. Stephen Tucker, Somerset Herald, puts a student in a position to estimate them at their true worth. (See "Miscell. Geneal. et Herald.," 1886, Ser. II, vol. i, p. 109.) I would now bring forward some arguments which may act as cumulative evidence to determine wavering opinion on the question.

Dugdale's table shows that Walter Arden married Eleanor, daughter of John Hampden, of Hampden, in co. Bucks, and had, besides his eldest son and heir Sir John, esquire of the body to Henry VII, five sons, Martin, Thomas, Robert, Henry, William; Martin being placed as the second son, and Thomas as the third. But Thomas is given as second son and Martin as third, in Harl. MS. 1167, from which the visitation is published. (Compare Harl. 853, ff. 113-114; 1110, f. 24b; 1563, f. 5, f. 39; Harl. 2011, ff. 64b, 65, f. 75.)

The will of Walter Arden in 1502 (31 July, 17 Hen. VII) at Doctors' Commons proves that at that date he had a son Thomas, named second in

order. “Thomas Arden and John Charnells, ^[11] Squires,” attest the document. (See French, p. 452.)

I will that my sonne Thomas have dureing his lief x marcs whiche I have given to him. And that my sonne Martin have the Maner of Natfield dureing his lief according as I thereof made hym astate yf it canne be recorded, And yf not, thenne I will that the same Martyn and every of my other sonnes, Rob^t, Henry, and William, have eche of them v marcs by yere duryng eche of ther lifes. And that my feoffees of my landes make eche of them a sufficient astate of landes and tenements to the yearely value of v marcs duryng eche of their lifes.

This is an income too small for a younger brother to live on, even in those days, and we must imagine that the father had either placed them, married them well, or endowed them in some way during his life. He could not be expected to do much. His father Robert had spent his substance in the Wars of the Roses, and was brought to the block in 30 Hen. VI (1452). Park Hall would be forfeited to the Crown and its acres impoverished. When Walter Arden was restored by Edward IV he would probably be encumbered by debt, and his large family (for there were daughters also) further limited his powers. This may help to account for the smallness of the legacies. Thomas, being the second son, might have had something from his mother or her kin. This same Thomas was alive in 1526, for Sir John Arden then wills that his brothers “Thomas, Martin, and Robert should have their fees during their lives.” We may, therefore, suppose that Henry and William had meanwhile died. It is probable that William had gone to reside at Hawnes, in Bedfordshire, as one bearing his name and arms appeared in that place about his time.

Seeing that Sir John was esquire of the body to Henry VII, it is very likely that his younger brother Robert was the Robert Arden, yeoman of the chamber (indeed Leland says he was so), to whom Henry VII granted three patents; the first on 22nd February 17 Henry VII: “In consideration of good and true services of our beloved servant Robert Arden, a yeoman of our chamber, we appoint him Keeper of our Royal Park at Aldercar,” *i.e.*, Altcar, co. Lanc., 17 Henry VII (second part, pat. m. 30). In the same series, m. 35, 9th September 17 Henry VII, he was granted the office of Bailiff of Codmore, co. Derby, and Keeper of the Royal Park there. The third is 24th

September 23 Henry VII (first part, pat. m. 12), a grant of Yoxall, for life, or a lease of twenty-one years if it descended to heirs, all royal rights reserved, at a rental of £42 a year. (See Boswell-Malone's "Shakespeare," Appendix, vol. ii, 544, 545.)

It is not recorded that Martin received Natfield, and it would not seem that he did so, as he lived at Euston, co. Oxford (Harl. Visit.). He married Margery, daughter and coheir of Henry East, of the Hayes, in co. Worcester; and his daughter and heir Eleanor (elsewhere Elizabeth) married first William Rugeley, of Shenston, co. Stafford, and then Thomas Gibbons, of Ditchley, co. Oxford (Visit. Ox. Harl. Public.).

Where meanwhile was Thomas Arden? Dugdale does not mention him again. There is no record of any Thomas Arden, either in Warwickshire or elsewhere, save the Thomas who is found, the year before Walter Arden's death, living at Wilmcote, in the parish of Aston Cantlowe, on soil formerly owned by the Beauchamps. On 16th May, 16 Henry VII, a deed was drawn up at Snitterfield, commencing:

Sciatis presentes et futuri quod ego Johannes Mayowe de Snytterfeld dedi, concessi et hac presenti carta mea confirmavi Roberto Throkmerton Armigero, Thome Trussell de Billesley, Rogero Reynolds de Henley-in-Arden, Willelmo Wodde de Wodhouse, Thome Arden de Wylmecote et Roberto Arden filio ejusdem Thomæ Arden, unum mesuagium cum suis pertinenciis in Snytterfield. (See Halliwell-Phillipps's "Outlines," vol. ii, p. 207.)

The deed is in the miscellaneous documents of Stratford-on-Avon (see Halliwell-Phillipps's "Calendar of the Stratford Records," p. 291, vol. ii, No. 83).

This list of trustees is worth noting. Thomas Trussel is identified by his residence being given. He became Sheriff for the county in 23 Henry VII, and was of an old and well-known family (see Harl. Visit. and Dugdale). No Robert Throckmorton in the county could have precedence of him, save Robert Throckmorton of Coughton, who six months later, in November of the same year, was knighted, "a noble and pious man," says Dugdale. He made his will in 1518, before he set out for the Holy Land. This was proved in 1520. His son George succeeded him at Coughton. Edward Arden, of

Park Hall, was brought up in his care, and married Mary, his son Robert's daughter.

That a man of the same name, living at the same time, in the same county, retaining the same family friends, under circumstances suitable in every way to the second son of Walter Arden's will, should be accepted as that son, seems perfectly natural and just, when *no other claimant has ever been brought forward*. But we *know* that this Thomas and this Robert were Mary Arden's grandfather and father; we *know* that this property was that afterwards left in trust by this Robert Arden for his daughters; we *know* that the Shakespeares claimed the relationship, and that the heralds allowed it. Men should be judged truthful until proved guilty of falsehood, and no proof has ever been laid down against their statement. I bring forward only as a faint sidelight^[12] the fact that of Robert Arden's seven daughters at Wilmcote, the four younger, Margaret, Joyce, Alice, Mary, bore Arden names. The first and third, Agnes and Katharine, had Throckmorton names; and Joane was the name of Thomas Trussel's unknown wife.

Mr. Nicholls's second objection to this unbeliever-in Thomas, that he could not be a son of the Ardens because he is styled "husbandman," is of little weight. The word is an old English equivalent for "farmer," and might be applied to any gentleman resident on his lands. In this sense it is often used in old wills; it is so used in Stratford-on-Avon records, and in the examination of John Somerville, who stated that he had received no visitors but "certain husbandmen, near neighbours" (S.P.D.S. Eliz., 1583). "The kingdom of heaven is like unto a husbandman that went out first bi the morowe to hire werkmen into his vineyard" (Matt. xx, 1, Wycliffe). Even Dryden, in "Threnodia Augustalis," says "The Royal Husbandman appeared"; and Mr. French notes other uses of the word: "The Arden Husbandman of Wilmecote in 1523 and 1546 paid the same amount to the subsidy as the Arden Esquire of Yoxall, 1590" (French, "Shaks. Gen.," p. 423). It is more than probable that this Thomas married an unambitious wife. There is even yet a chance of finding her name through some will or deed.

Mr. Nicholls's third assertion, that the heralds scratched out the arms of Arden of Park Hall because they dare not quarter them with those of the Shakespeares, requires to be more fully dealt with.

Drummond, in his “Noble British Families,” exemplifies many varieties of the arms of Arden, and traces them back to their derivation. He notes that “none of the branches or sons of the Earls of Warwick bore their arms, but only the eldest son, who was earl”; and that “the elder branch of the Ardens took the arms of the old Earls of Warwick, the younger branches took the arms of Beauchamp with a difference.” Now it is quite true that the Ardens of Park Hall bore Ermine, a fesse chequy or and az., arms derived from the Earls of Warwick, and that this was the pattern scratched out in Shakespeare’s quartering. But no critic seems to have noted the reason. Mary Arden was heiress not in the eldest line, but *through a second son*. The true pattern for a second son was three cross crosslets fitchée, and a chief or. As such they were borne by the Ardens of Alvanley, with a crescent for a difference. They were borne without the crescent by Simon Arden^[13] of Longcroft, the second son of Thomas, son of Sir John, and full cousin of Mary Arden’s father. It is true that among the tombs at Yoxall the fesse chequy appears; but that branch gained a right to this coat after the extinction of the elder line in 1643.

Glover’s “Ordinary of Arms” mentions among the “marks of cadency” a martlet. Martin Arden, of Euston, co. Oxford, was clearly in the wrong to assume as he did the arms of his elder brother. William Arden, of Hawnes, in co. Bedford, correctly bore the three cross crosslets and the martlet. The three cross crosslets fitchée were the correct arms, and the martlet the correct difference, for Thomas Arden, as the second son of an Arden who might bear Ermine, a fesse chequy or and az. Thus Glover enumerates (vol. ii, ed. 1780) among the arms of Warwickshire and Bedfordshire: “Arden or Arderne. Gu., three cross crosslets fitchée or; on a chief of the second, a martlet of the first. Crest, a plume of feathers charged with a martlet or.” It is strange that Mr. Nicholls omitted to consider this. Camden and the other heralds of the sixteenth century were only seeking correctness in the restitution of arms, which were impaled in John Shakespeare’s case on the right, as of the older and nobler origin.

A similar contention arose about Edmund Neville, Edward Arden’s nephew (S.P.D.S. Eliz. 185, 72):

Pedigree of Neville and statement that he may bear Latimer’s arms. Richard Lord Latimer’s eldest son was John, Lord Latimer; his second son, William Neville of Latimer. John’s son John, Lord

Latimer, died without male issue, leaving four daughters, his heirs, who divided his lands, and may quarter his arms. William Neville's son was Richard Neville, who married Barbara, sister of Edward Arden of Park Hall, and their son is Edmund. By the custom and usage of England, after the decease of John, Lord Latimer, without issue male, Richard Neville, his cousin german, may bear the arms of the family, *without distinction or difference*.

If heraldry, therefore, has anything to say to this dispute, it is to support the claim of Thomas to being a cadet of the family of the Park Hall Ardens.

Nothing is recorded to account for Shakespeare allowing the arms of his mother, impaled on his father's shield, to lapse from his own. It may be that, on his father's death in 1601, he thought of the old meaning of quartering, "that it may be known whom a man hath married"; it may be that, tender of his Anne's feelings, who had no arms to quarter, he let his spear shine alone on his shield; or it may be that, having proved his pedigree, he felt that

Honours best thrive
When rather from our acts we them derive
Than our fore-goers.

—"All's Well," Act II, sc. iii.

"Athenæum," 10th August 1895.

FOOTNOTES:

[11] John Charnells of Snarston had married his daughter Joyce.

[12] A strong proof of the connection lies in the fact that this Sir Robert Throckmorton was intimately connected with the Ardens of Park Hall, and that Sir John Arden a few months later made him also trustee of property for his younger children. (See my "Shakespeare's Family," p. 184.)

[13] See Fuller's "Worthies." He was Sheriff of Warwickshire, 12 Eliz.

V

STRATFORD'S "BOOKLESS NEIGHBOURHOOD"

In writing his "Outlines of the Life of Shakespeare," Halliwell-Phillipps determined not to give the reins to his imagination, and to accept nothing that he did not think he could *prove*. At times, however, his treatment of probabilities seems to suggest that he had made up his mind that Shakespeare had grown up under conditions which make it hard to understand the possibility of the development of the *poet* in the *man*. Many of his statements have been pressed into the service of the peculiar people who deny Shakespeare to be a poet at all. One of these, given as a fact, is that Stratford was a "bookless neighbourhood." It is always rash to use universal propositions when they are not built up from a thorough examination of all possible particulars, as it leaves them liable to be proved untrue by a very limited opposite. Very little would serve to prove Halliwell-Phillipps to be mistaken in his statement, and, with him, all the crowd of copyists who follow him in everything they please to select from his work and opinion. This may be done both generally and specially.

I. Generally.—We know that Becon, in dedicating "The Jewel of Joy" to the Princess Elizabeth in 1549, speaks of Warwickshire as the most intellectual of English counties. We know that Stratford, as a town, was intelligent enough to pay its schoolmaster far above the average. Indeed, the master of Stratford Grammar School received a salary *double* that of the master of Eton. It is therefore more than probable that Stratford had the best masters going at the time. And good masters imply good books. From several sources we know the curriculum of the grammar schools of the day, and the classical books that were used. A master who could teach from such books would be sure to have, like Chaucer's clerk,

Standing at his bed's head,
Twenty books y-clad in black or red.

The vicar of Stratford Church and the curate of the chapel would most likely have a selection of volumes in their possession; the attorneys would have their law books, the doctors their medical books. We *know* from his will as well as from John Hall's "cures" that Shakespeare's son-in-law had a notable library, which people from a distance, even, came to see. Richard Field, the Stratford printer in London, had a very large and important list of publications, some of which were sure to have found their way down to his native town. Many Warwickshire men were London printers. There is every reason to believe that the first Sir Thomas Lucy had a library at Charlecote, which had become enriched in his son's time, and is remembered in his will and on his tombstone. Sir Henry Rainsford, in the neighbourhood, the friend and patron of Drayton the poet, was little likely to be unprovided. Sir Fulke Greville, the Recorder of Stratford, was a reading man, and not only was a possessor, but also a creator, of books. Clement Throgmorton of Haseley, was a learned man; and his notable son Job was entangled in the Martin Marprelate controversy. Every recusant's arrest and trial were based on his possessing "books" of a kind other than the Government approved. One can in this way almost indefinitely widen the sphere of the *general* existence of books. But generalities have not the convincing power of specialities, and as I have found, without much searching, the *names* of some of the books in Stratford and its immediate neighbourhood, there may yet be found many more existing to prove the rashness of Halliwell-Phillipps's assumption.

II.—Specially.—Among the legal cases brought before the Town Council were some referring to special books. For instance, in 1604 "Valentine Palmer was attached to answer Philip Rogers, for unlawfully detaining a certain book called 'Gailes Kyrirgery,' valued at ten shillings and twopence." This refers to "Certain Workes of Chirurgery," by Gale, published in 1563, and reprinted in 1586 (see Miscellaneous Documents of Stratford-on-Avon, 2 James I, No. 23). No. 149 of the same series gives "the answer of Philip Rogers to Valentine Palmer about 'Gailes Kyrirgery.'" The one book in itself is important enough to overthrow the sweeping assertion.

But in support of the natural opinion that the clergy would have books, we have at least one will, one inventory, and one list of prices of the books of a curate in the very parish of Stratford—that of Bishopton. There may

have been more books, worn and valueless, but we are told the names of those in good enough condition to have some marketable price. The Rev. John Marshall, curate of Bishopton, died, not young, in the fourth year of James I (1607). He left by will to his kinsman Francis Jeccoxe “Babington upon Genesis”; to Richard his son “Martin Luther upon 1st and 2nd epistle of St. Peter”; to John Jeccoxe, “my godsonne, my boke called ‘The Image of God.’”

In the Inquisition of his goods taken 10th January 1606-7, by Abraham Sturley, Ralfe Lorde, Francis Ainge, William Ainge, and Thomas Cale, we find that some of these, or all of them, knew enough about books to affix a contemporary saleable value, which, though it seems small to us, must be reckoned according to the money rates of the time. As their inventory has not been printed, and as it gives a fair illustration of the class of libraries owned by the minor clergy, it seems worth giving *in extenso*. It will be seen that it contains various irregularities and contractions:

Bookes.

The Apologie of Thomas Moore, 6*d*. Palengeni^{us} Englishe, 4*d*. A Latine Grammar, 6*d*. L^r Evans, Dictionary, 3*d*. Mr. Latimer’s Sermons, 12*d*. D. Erasmus, Method Theologie, 3*d*. Sententiæ Pueriles, 1*d*. Mr. Latimer’s Supplication, 6*d*. The Voiage of the Wandering Knight, 2*d*. An epitome of common Prayer, 6*d*. The Testament and Psalmes, 16*d*. Evagatrium Latine, 6*d*. A newe postill, 18*d*. An Exposition of the whole booke of Psalmes, 2*s*. 6*d*. Arsati^{us} Shafer euarnes Evangelica, 8*d*. Nich. Hemingius, postallæ Evangel, 2*s*. H. Holland, Aphorisms, 6*d*. An old Latine Grammar, 3*d*. Calvin’s Harmony, English, 4*d*. Stockwood’s Greek Grammar, 12*d*. Roger Ascham’s Schoolmaster, 10*d*. Nowell’s Catechisme, 6*d*. Letters in Englishe, 6*d*. A breife of prair by the Kinge, 2*d*. A breife of Calvin’s Institutions, 16*d*. A Latin Bible, 16*d*. Accidentia Stanbrigiana, 8*d*. Parte of H. Smith’s Sermons, 12*d*. D. Sutcliffe’s Challenge, 12*d*. Aretius in evangl. Mar., 12*d*. G. Gifford on Witches, 2*d*. A Catechisme, 1*d*. Calvin’s Institutions Lat., 4*s*. J. Piscator in Epistol, 2*s*. Stockwood’s Grammar, 6*d*. B.B. Canons, 6*d*. Hyperius in Epist., 6*d*. Ovid de Tristibus, 4*d*. Aretius in Math., 2*s*. 6*d*. Enchiridion Alexd. Ariostis, 4*d*. John Dodde. Robert, Clever, Commands, 12*d*. Piscator in epistoli Petri, &c., 20*d*. Lupton’s

perswasion from papistry, 16*d*. D. Westfaling's Sermons, 12*d*. B. Babington's Commands, 16*d*. Northbrook's Pore man's Garden, 12*d*. Piscator in Matheu, 12*d*. Testament Vet., 4*d*. ... ts Vocabular Vet., 6*d*. B. Babington on Genes given away by will. A booke of Statutes, 4*d*. The plaine man's pathway to heven, 12*d*. Epitheta Jh. Rinij, 12*d*. D. Sparkes & D. Sed. Catechisme, 10*d*. D. Foulki revelation, 2*s*. The Course of Christianity, 6*d*. Common praier Lat., 16*d*. Heilbourner in Epistle ad Timoth., 6*d*. Pasquin's Trance, 6*d*. Hemigs. ad Hæbros, 12*d*. Calvin upon St. John, 6*d*. Palengenius Lat., 8*d*. An old praier-booke with a Kalendar, 4*d*. Joh. Calfled, the cros, 12*d*. Calvin upon ye commandments, 12*d*. John Bell, Pope's Funerall, 12*d*. Eras. Colloquiū., 10*d*. Virgill, 12*d*. Terents, 8*d*. Ed. Bulkler's vetuste Testimento, 8*d*. Enchiridion Militis Christ., 4*d*. Robert Crowle's discourse, 4*d*. Constitutiones, 4*d*. Terra florid., pamphlet, 1*d*. Eras. cap. Fabor, &c., 8*d*. Leonard Cutman de ægrot. consolues, 6*d*. Erasmi colloquia, old, 4*d*. B. Babington's Lords Praier, 16*d*. Homilia de Haimonis, 8*d*. Testamentum Lat. Vetus, 6*d*. Pars erat Ciceronis, 10*d*. T. Offic. Engl., 6*d*. Besa, Testamentum Lat., 18*d*. Ursinus, Catechismus engl., 2*s*. 6*d*. Morall Philosophi Engl., 6*d*. Beuerley, English Meeter, 3*d*. Martin Luther, servū. arbitrum, 10*d*. Psalmi Lat., 6*d*. An old gramer, 4*d*. English psalms meter, 6*d*. Law precedents, 10*d*. Com. praier, Eng., 8*d*. Æsopi fabula, 3*d*. Ternts Lat., 8*d*. Castal, Dialog., 4*d*. Ciceronis Epistol. pars, 4*d*. Christian Instructions, old, Engl., 6*d*. Corderius, Colloquia, 4*d*. Precatio Dominica lat., 6*d*. Castalionis Dial. Lat., 8*d*. The anatomy of the minde, 8*d*. Lodo. Vives, 3*d*. Godlie privat praiers, &c., 8*d*. Æsop fabl., engl., old, 2*d*. Acolastus de filio et digo, 2*d*. Methods Hegindorph, 2*d*. D. Erasmus, instructio grammaticalis, 2*d*. A booke of praier specially appointed, 2*d*. Accidens and instructions, old, 2*d*. An old Dictionary or Lexicon, 1*d*. Tithes and oblations, 2*d*. A booke of religious discourses, popish,—. A pathway to reading, old, 1*d*. An old portice pars II. Testamentu. duod. patriarchr'., 2*d*. John Calvin's sermons, 6*d*. Grammatica Hæbr., 4*d*. Joh. Leniceri grammaticæ Græc., 6*d*. Carvinge and Sewinge, 1*d*. B. Babington's Sermons, 2*d*. Udall's Hæbrew Gramer, 16*d*. Testamentu. Græc., 16*d*. A conference of the faith, and the some of religion, 3*d*. H. Smythe, benefit of contentacion, 2*d*. A solace, 2*d*. A

Salve for a sicke man, 4*d*. A regiment of Health, 4*d*. Exposition of the Psalmes, 3*d*. Art of Anglinge, 2*d*. The Sacred doct. of Divinity, 2*d*. Six principles of religion, 2*d*. An a. b. c., 1*d*. John Parkins of a minister's calling, 2*d*. Thaffinity of the faithfull, 1*d*. A schole-book, English and Latin, 1*d*. Aristotle's problemes, English, 6*d*. Demtes Catechisme, 2*d*. D^{no} Fenner on the Lawe, 2*d*. Catechisme, Latine, 1*d*. Cæporius, Greeke Grammer, 10*d*. And. Pola. p'litiones, 8*d*. Liber Hæbreus, 8*d*. A sermon at the Tower, 1*d*. H. Smithe, Mar. Choice, 2*d*. A consolation of ye soule, 2*d*. Thenemy of Securitie, 8*d*. Canons, 1*d*. A tract of the Lord's Supper, 2*d*. H. Smythe, prepetive to marge., 1*d*. Good huswives closet, 2*d*. Epitheton tropor, 1*d*. Epistolar' Ciceronis Libri 4to, 2*d*. Pa-t Err. Pateris, 1*d*. Stockwood's Questions gra:, 2*d*. The Castell of Health, 6*d*. St. Peter's Chaine, 4*d*. D. Barlow's Sermons, 1*d*. Gramer, a pamphlet, 2*d*. A dreame of the De. and Dives, 1*d*. P'cationes Episc. Roffens., 1*d*. The sick man's salve, 6*d*. A bible of Ralph Smythes, 5*s*. Virgill, Engl., old.... Hulett's Dictionary, 2*s*. Marloret on Mathew, 4*s*. An English concordance, 4*s*. An old postill written on parchment.... Martin Bucer in Evangelium, 5*s*. Cap's Dictionari, 6*s*. 8*d*. Junius, Apocalypse, 4*d*.

This list—fairly long in classics, divinity, and law for a country clergyman even of to-day—suggests that the Rev. John Marshall was a teacher as well as a preacher. It suggests also that he had long been a collector of books, and that he did not altogether despise the study of lighter literature. The duplicates suggest that he might be ready to lend his books. The list may help the bibliographer in regard to old editions. Vautrollier and Field had the monopoly of Calvin's works. This library certainly helps the Shakespearean to realize the class of clergy among whom the poet lived, and of itself redeems his birthplace from the charge, so often brought against it, of being altogether "a bookless neighbourhood."

Curiously enough, shortly after this the Chamberlain enters in his accounts, "For the carriage of books to London, 1*s*." The town council were always very careful to have "a sufficient scholar from Oxford for the Usher's place." It may be well to add that one of Shakespeare's sons-in-law was a great physician, the other a French scholar, and that the latter's brother, George Quiney, usher and curate, was described as "of a good wit,

expert in tongues, and very learned.” His fellow usher, Mr. John Trapp, afterwards head-master, “for his piety and learning second to none,” by overmuch study brought on a fit of melancholy, and he was rescued “from the jaws of death.” How could all these, and more, study without *books*?

“Athenæum,” 23rd February 1907.

VI

“MR. SHAXPERE, ONE BOOK,” 1595

The universal belief in the booklessness of Stratford-on-Avon in general, and the poet's family in particular, makes it the more important to record any facts which tend to weaken that belief. A case came up more than once before the burgh court concerning some property claimed by two women as inheritance from their grandmother. “The names of the jurors in the cause of Margaret Younge v. Jone Perat, 20th July, 37 Elizabeth,” are given in the Miscellaneous Documents, Stratford-on-Avon, VII, 245 and 246, Apparently Jone Perat had already disposed of some of the property she held, which chiefly seemed to consist of articles of women's clothing. But there were other articles also, and there were at least four books. At the foot of the statement is the note:

M^r Shaxpere, one book; M^r Barber, a coverlett, two daggers, the three bokes; Ursula Fyllid, the apparell and the bedding clothes at Whitsontyde was twellmonth. Backe debts due to the partie defendant.

It is to be supposed that at this date it must have been John, and not William, who was designated “Mr. Shaxpere.” Imagination is left to play vainly round the nature of the book; but it is clear from these rough notes that he had coveted one special book in Jone Perat's possession, that he had secured it, but that he had not yet paid for it. Mr. Barber also, it may be noted, held three books on the same doubtful tenure, between plaintiff and defendant. But at least four books were in the market in Stratford at that date which had been in the possession of the old grandmother.

“Athenæum,” 23rd January 1909.

VII

JOHN SHAKESPEARE, OF INGON, AND GILBERT, OF ST. BRIDGETS

When a long chain of arguments depend upon one fact, and that fact is disproved, the dependent arguments become invalid. It would be invidious to correct formally two trifling errors in Halliwell-Phillipps's monumental work, if it had not happened that they were the support of other errors.

1. He states authoritatively in his "Outlines" (ii, 253) that the John Shakespeare of Ingon could not be the John of Henley Street, because the former was buried in 1589, and the latter in 1601. "Joannes Shakespeare of Yngon was buried the xxvth of September, 1589," in the parish of Hampton-Lucy. Yet a careful consideration of the register shows that the entry was not "Joannes," but "Jeames." This Mr. Richard Savage is clear about. The "Jeames" may have been some elder untraced connection, but it is much more than likely he was the "Jeames, son of Henry Shakespeare, of Ingon," whose baptism is recorded in the same register, 1585, as there is no further entry concerning this cousin of the poet's. This error being cleared away, there is no fundamental objection to the opinion that John Shakespeare of Henley Street might be the same as John of Ingon, mentioned in the measurement of a neighbouring farm, 23 Elizabeth, "Ingon ... then or late in the tenure of John Shaxpere or his assignes." The relation John held to his brother Henry makes it very likely indeed that Ingon was in his nominal tenure, and that Henry farmed it as his "assigne."

If John of Henley Street may be considered the same as John of Ingon, he must also be considered the same as the John, Agricola, of Snitterfield, who, in conjunction with Nicols, was granted administration of his father Richard's goods in 1561, under a bond for £100. Some have considered this uncertain, but they cannot have gone to authorities. The administration in Worcester Probate Registry, 10th February 1560-1, definitely states John of Snitterfield was the son of Richard. He had probably been born in Snitterfield, had some interest in the land there, was probably resident there

at the time of his father's illness and death, to look after affairs, and very probably described himself at the Registrar's Office as having come direct from Snitterfield to wind up the affairs of his father's farm, complicated by the lease granted by Mrs. Arden, to her brother Alexander Webbe. Though it might not be absolutely certain that John of Snitterfield was John of Stratford, it seems settled in 1581, when the Mayowes contested the claims of the Ardens, and Adam Palmer, the surviving feoffee, and John and Henry Shakespeare, his brother, were summoned as witnesses for the Ardens before the Commission appointed at Stratford.

2. The second is a more important error, for it seems to substantiate a hazy tradition that Shakespeare's brother lived to a great age, and retailed to greedy ears gossip concerning the poet's acting. Halliwell-Phillipps, "Outlines," i, 35, states that "Gilbert entered into business in London as a Haberdasher, returning in the early part of the following century to his native town." Among the notes there is given an indefinite entry to support this, without the term, the case, or the names of the parties being given (ii, 289): "In the Coram Rege Rolls, 1597, Gilbert Shackspere, who appears as one of the bail in the amount of £19 for a clockmaker of Stratford, is described as a Haberdasher of the Parish of St. Bridget." He further considers the Stratford burial of 1612 to have been that of Gilbert's son.

I had always thought it extremely improbable that at the time of John Shakespeare's financial difficulties in Stratford-on-Avon he would have found himself able to place his second son as an apprentice in London to any member of that wealthy company. But lately I determined to test the truth of the statement. Through the courtesy of the Worshipful Company of Haberdashers I was allowed to go through their books at leisure. I found that not only was there an entire absence of the name of Shakespeare from the list of apprentices or freemen, but that during the whole of the sixteenth century there was only one "Gilbert," and he was "Gilbert Shepheard," who took up his freedom in 1579, when the poet's brother would be thirteen years of age.

Through the kindness of the Vicar of St. Bridgets, or St. Brides, I was also allowed promptly to go through the registers, which commence only in 1587—early enough, however, for Gilbert Shakespeare. But there is no mention of the name, either among marriages, births, or deaths. Of course, this does not prove that he did not reside in the parish.

The subsidy rolls are also silent as to his residence there. But in both places occur the name of Gilbert Shepheard, Haberdasher. The discovery of Halliwell-Phillipps's want of thoroughness in regard to this statement discouraged me in attempting to wade through the six volumes of closely-written contracted Latin cases that make up the Coram Rege Roll of 1597. I felt nearly certain that I would only find Gilbert Shepheard there also. For I have been driven to the conclusion that Halliwell-Phillipps misread "Shepheard" as "Shakespeare." It sends us, therefore, back to the more likely neighbourhood of Stratford-on-Avon for further reference to the poet's brother. He was known to be there in 1602, taking seisin of land in his brother's name. The burial entry of 1611-12 is peculiarly worded, I confess, and gives some reason to suppose that he had a son born elsewhere, here buried as "Gilbertus Shakespeare, Adolescens." But when we remember there is no other record of marriage or of birth, no other entry of a Gilbert's death save this, it makes us reconsider the situation. We know that the poet's brother Edmund died in 1607 in Southwark, and his brother Richard in 1612-13 in Stratford-on-Avon. In the poet's will, written about four years later, there is no allusion to a brother or any of his connections or descendants. This brother would certainly have been mentioned in some of the wills of the Shakespeares had he been alive. We are aware that parish clerks were not always perfectly correct, and that, at the time, there was a general tendency to use pompous words, of which the meaning was not fully understood. Shakespeare's plays show this. Dogberry would have borne out the clerk of Stratford-on-Avon in any rendering he chose to give. He would have been no worse than a Mrs. Malaprop if he intended "adolescens" to represent "deeply regretted," and in the absence of further proof this need not be accepted as clear evidence that Gilbert Shakespeare lived to a great age. (See Note VII.)

"Athenæum," 29th December 1900.

VIII

HENRY SHAKESPEARE'S DEATH

We know little of any of the poet's relatives, but from what we do know, none of them touches our imagination so keenly as does his uncle Henry Shakespeare of Snitterfield. We can read between the lines of the bald notices preserved, and picture him warm-hearted, hot-headed, high-spirited, imprudent rather than improvident, unlucky himself, and bringing bad luck to all connected with him. I have discovered some papers which show that misfortunes pursued him even to the bitter end.

He was probably born in the house his father Richard rented from Robert Arden, which abutted on the High Street of Snitterfield, and seems to have been the youngest son. It was John who "administered" his father's goods; it was more likely John who found the farm in Ingon, whither Henry had to remove when Agnes Arden leased the Snitterfield property to her brother Alexander Webbe. There Henry dwelt from 1561 till 1596, seemingly industrious, but rarely able, even with his brother's help, to make two ends meet.

Alexander Webbe made his will 15th April 1573, to which Henry Shakespeare was one of the witnesses, and John, being brother-in-law, was an overseer.

On 12th October 1574, Henry Shakespeare had a free fight with Edward Cornwell. Both were fined, the latter 2s., Henry 3s. 4d., because "he drew blood to the injury of Edward Cornwell, and against the peace of the Queen." It must not be forgotten that this Edward Cornwell stepped into Webbe's shoes by marrying his widow Margaret (*née* Arden). It may therefore have been some matter of jealousy, or some exasperating airs of superiority, which made Henry Shakespeare take the law into his own hands, and give Cornwell a good drubbing. Yet "Hary Shaxsper" was among the witnesses subpœnaed by the Commission appointed to hear the appeal of Thomas Mayowe against Edward Cornwell and the Ardens in 1580.

He had serious trouble in a title case about that time, in which the proceedings show the farm was of considerable size. He refused to pay, because he said he had compounded; he was summoned before the Ecclesiastical Court,^[14] refused to submit to the decision, was pronounced contumacious, and was finally excommunicated, 5th November 1581.

In 1583 he was fined for refusing to wear cloth caps on Sunday, as by statute was ordained for men of his degree; and he was often fined for default of suit of Court.

Lettyce, daughter of Henry Shakespeare of Ingon, was baptized 4th June 1583; and “Jeames, son of Henry Shakespeare of Ingon, was baptized October 15th, 1585.” See Register of Bishop Hampton.

On 4th September 1586 Henry stood godfather to Henry Townsend in Snitterfield along with William Maydes and Elizabeth Perkes.

On 2nd November of that year, when Christopher Smith, *alias* Court, of Stratford-on-Avon, yeoman, drew up his will, he entered among his assets “Henry Shaxspere of Snitterfield oweth me 5*l.* 9*s.*”

Other debts Henry was unable to pay—one especially to Nicholas Lane, for which his brother John had become security. Nicholas Lane sued John Shakespeare to recover in the Court of Records on 1st February 29 Eliz., 1586-7, for the debt of “Henricus Shakesper frater dicti Johannis” (a statement clear enough to silence the quibblers who assert there is no proof of relationship between the men). Doubtless this was a crushing blow to John amid his own troubles.

In 1591 Henry Shakespeare was arrested for debt by Richard Ainge, and, seeming to have found no bail, remained in prison some time.

The last recorded incident in his life is of the same nature. John Tomlyns had him attached for debt on 29th September 1596. Henry Wilson bailed him (see Misc. Doc. vii, 225; also Court of Records, 3 papers), 13th October 1596, continuation of the action of John Tomlyns against Henry Shaxspere; and on 27th October 1596, John Tomlyns pled against Henry Shaxspere in a plea of debt. This entry has been scratched out. He had lost his children, worldly success had eluded him, and the broken-spirited man sickened and died.^[15] He was buried at Snitterfield on 29th December 1596.

My new papers come to darken the circumstances into tragic intensity (Uncal. Court of Requests, Elizabeth, B. III). There are two complaints, both by John Blythe of Allesley, co. Warwick, against William Meades, who, it may be remembered, stood sponsor with Henry Shakespeare for John Townsend's child. The first complaint, presented 30th June 40 Eliz., 1598, narrates that about three years previously John Blythe had become, along with William Meades of Coleshall, surety for a debt of John Cowper of Coleshall to an unnamed creditor. Cowper did not pay, neither did Meades, and the creditor recovered from John Blythe alone, and he appealed for protection. This complaint is scratched out, though it is pinned together with the other papers.

The second complaint is to the effect that, about three years before, John Blythe of Allesley had sold and "delivered to Henry *Shakespeare* of Snitfield," two oxen for the sum of £6 13s. 4d., and the purchaser became bound in a bill obligatory to pay at a date specified, now past, and had not paid. The reason was that

Shakespeare falling extremely sicke, about such time as the money was due, died about the time whereon the money ought to have been paid, having it provided in his house against the day of payment.... Now, soe it is ... that Shakespeare living alone, without any companie in his house, and dying without either friends or neighbours with him or about him, one William Meades, dwelling near unto him, having understanding of his death, presently entered into the house of the said Shakespeare after that he was dead, and, pretending that the said Shakespeare was indebted to him, ransacked his house, broke open his coffers, and took away divers sums of money and other things;

went into the stable, and led away a mare;

carried away the corn and hay out of the barn, amounting to a great value, being all the proper goods and chattells of the said Shakespeare while he lived; and not contented therewith, in the night time, no one being present but his servants and such as he sent for that purpose, he caused to be conveyed away all the goods and household stuff belonging to the said Shakespeare, which money

and goods were of a great value ... and converted them to his own proper use.

John Blythe cannot speak with certainty upon the subject, as no witnesses were present but those brought by Meades, and it was worked in secret, so that he cannot proceed by the course of the Common Law. He had frequently asked Meades to pay the £6 13s. 4*d.* due to him for Henry Shakespeare's oxen, from the goods he had taken. Blythe did not think it fair that Meades should satisfy himself without considering the other creditors, and thought that if there was not enough to pay all, they should share in proportion, and prayed that William Meades be summoned before the Court to make personal answer.

A Privy Seal for a Commission to inquire into the truth was granted, dated 30th October 40 Eliz., 1598, on which is written "The execution in another schedule attached" (now lost).

The answer of William Meades, dated 13th January 41 Eliz., 1598-9, lightens the horror a little. He does not acknowledge anything in Blythe's complaint to be true, but is willing to declare all he knows. Henry Shakespeare, late of Snitterfield, having a wife living in the house with him named Margaret, died at Snitterfield about two years ago. He, William Meades, understanding of his death, went to the house about two hours after his decease, being accompanied by Thomas Baxter, Christopher Horn, Richard Taylor, and others, neighbours, hoping that Shakespeare had taken order with his wife to satisfy him of the sum of £4 6s. 8*d.*, due by Shakespeare to him, William Meades. But the said Margaret said there was no order taken by her late husband for the payment of any debt to him or any other creditor, and he departed quietly, without any ransacking of the house or taking away any money or goods which were Henry Shakespeare's while he lived, as most untruly and slanderously hath been alleged against him. But he hath been credibly informed, and verily believeth, that

one William Rownde of Allesley, co. Warr., husbandman, standing bound to John Blythe jointly with Henry Shakespeare in the said sum of 6*l.* 13s. 4*d.* for the said oxen, and understanding that Henry Shakespeare was under arest at Stratford-upon-Avon, and there detayned in pryson for debt, and fearing lest he, the said William Rownde, should be compelled to paie the sum of 6*l.* 13s.

4d. to the said John Blythe for the debt of Henry Shakespeare, he, the said Rownde, did fetch the said two oxen from the said Henry Shakespeare and delivered them to the said John Blythe of Allesley in discharge of the same debt.

Meades denied that he had gone in the night time and taken away Henry Shakespeare's goods, that he had detained anything to his own use, or that John Blythe had asked him to pay the £6 13s. 4d. as surety. This is signed by Bartholomew Hales, William Jeffreys, William Cookes, and Ambrose Cowper, the Commissioners, the first being lord of the manor.

The replication of John Blythe to William Meades, 23rd June 41 Eliz., 1599, upholds his former complaint, which he is willing to prove. But the name of Henry Shakespeare does not appear in it. There is no trace of further action, or of any decision. But we have the tragic picture of Henry Shakespeare's haunted death-bed. John Shakespeare, only four miles off, must have felt inclined, when he heard of it, to say what Macduff did: "And I must be from hence!"

Even more touching is the picture of the widow of two hours being worried about her husband's debts. Bereaved and childless, she was left alone in the dismantled house, where the wheels of life stood still, for a short time (only six weeks), and then in Snitterfield "Margaret Saksperre, being tymes the wyff of Henry Saksperre, was buried, ix Feb., 1596/7."

"Athenæum," 21st May 1910.

FOOTNOTES:

[14] Act Book IX, Diocesan Registry, Worcester.

[15] The "Dictionary of National Biography" describes him as "a prosperous farmer."

IX

“MRS. SHAXSPERE” IN THE LAW COURTS

It is well known that William Shakespeare, his family, and his friends were frequently connected with lawsuits in Stratford-on-Avon; but it has not yet been noted that his mother also appeared, in one case at least, under conditions not quite clear.

Among the Miscellaneous Documents, Stratford-on-Avon, Vol. VI, is a narrow strip of paper numbered 168. It begins:

Jurie between Robert Reed, plaintiff, and John Sadler, defendant, in a pley of trespas committed.

List of Jury: Phyllyp Grene; Ralph Lourd; Valentyne Taunt, Jur.; Robert Byddell, Jur.; Rychard Dyxson; William Wyat, Jur.; Rychard Boyse; Hough Piggon, Jur.; Edmund Watt; Rychard Taylor, Jur.; Nycholas James, Jur.; George Perey; Thomas Sharpe, Jur.; Humphrey Wheeler; Thomas Brydges; Jullyan Shawe, Jur.; Robert Wylson; John Knyght; William Tetherton; Rychard Pinck; George Mase, Jur.; Wyllyam Slater, Jur.; George Rose, Jur.; Thomas More, Jur.

This seems to be the case described in the same volume of Miscellaneous Documents, VI, No. 176. Robert Reade was a surgeon. John Gibbes was dangerously wounded 10th June 37 Eliz. John Sadler, his intimate friend and neighbour, summoned Robert Reade, and promised him £10 if he should cure Gibbes. This sum Sadler refused to pay after the cure had been effected.

At the foot of the page, apparently unconnected with the above, is another entry:

Capiat Rychard Jumpe at the suit of Johne Coocke in assumpsione for cecurytie for iiii^{li} vi^s viii^d to paye at Stratford fayre next.

Endorsed upside down, and hence on the back of the later entry, appears

Maria Shaxspere, Jur.
Jone Reade.
Jane Baker, Jur.

Now can it be taken that these women were also on the jury, or were they only sworn witnesses? One of these they must have been. Of the three women's names, one was apparently ruled out, Jone Reade, probably related to Robert Reed, plaintiff. The case is undated, and one gathers no clues from the calendar. I have looked up the dates of all the names mentioned in the Stratford Registers, and find that it cannot have been heard later than 1597, as Robert Bydell was buried 28th December 1597. Of the others, Thomas Sharpe was buried 18th August 1608, and "Marye Shaxspere, Wydowe," on 9th September: "Jane, daughter of Richard Baker, Shoemaker, 23rd Sept., 1613," though the entry might really refer to Jone, wife of Daniel Baker, who was buried 16th May 1600.

It seems almost certain that this Maria was the wife of John Shakespeare and the mother of William. There is not another of the name in the Stratford Register; and had she been one of the Rowington Shakespeares, her place of residence would naturally have been mentioned as a distinction. It is therefore possible that the poet learnt some of his knowledge of law terms even from the experience of his mother.

"Athenæum," 13th May 1909.

X

“HONORIFICABILITUDINITATIBUS” IN WARWICKSHIRE PILLERTON REGISTERS

Through the kindness of the Rev. Neville Hill I have been allowed to see the Pillerton Hersey registers, which date from 1539. They have not been very badly preserved, that is, they are not mouldy nor worm-eaten, nor much frayed. But the earliest volume, at least, is the most carelessly *kept* that I have ever seen, in the sense of having entries (now undecipherable) scribbled all over the covers, outside and inside; in having long gaps without any records; and in having those of later date wedged into spaces among the earlier ones, so that, for instance, eighteenth-century entries in some places immediately follow those of 1579.

On the inner sides of the covers are various scribbblings that can only be roughly dated by the study of the handwriting. A superficial set of marks shows the scribbles of a child. Yet the first scribe left his work exceptionally well done. He was evidently proud of his beautiful penmanship, and took great care in producing his records, especially in his earlier years. What relation he bore to the parish is uncertain. Dugdale says that the sixteenth-century incumbents were “Ric. Moore, Cler., Nov. 11th, 1562; and v.p.m. Ric. Moore,^[16] Rob. Hall,^[17] Feb. 23rd, 1590.” Of the first I can find no further record; of the second we may premise that he was the Robert Hale who matriculated 1580, 28th April, Glouc. pleb. f., 17 Broadgates H. (see Boase, Reg. Univ. Oxford, vol. II, ii).

But the person who wrote the earlier pages leaves us in no doubt as to his name being William Palmer. I can find no reference to him in Boase, unless he appears in the list of students: “Mr. William Palmer, 1565, Christ Church, Student.” There were many Palmers in the neighbourhood, some even in the parish. He may have been an incumbent between the two known vicars; he may have been a scribe employed to do the work; he may have been a gentleman doing it for pleasure. But the work he did was to

transcribe the earlier paper registers into parchment, as required by Act of Parliament. He did it well and clearly, on several occasions stating that there had been no entries during a certain number of years, or that they had been put out of chronological order. It is not quite clear when he reached contemporary dates; but the last trace of his handwriting is in 1598, when a sprawling script commences, and “Ro: Hale” signs the pages for a long period, down, at least, till 1653. When William Palmer commenced the little volume (about folio size from top to bottom, little more than half in breadth) he wrote in the inside of the upper cover two lines:

Hac jacet in Tumba Rosamundi non Rosamunda
Non redolet, sed olet, quæ redolere solet.

A translation is given below by a later writer, but Palmer in a more careless hand (yet evidently his own) states further

An easie good brings easie gaines,
But thinges of price are bought with paines.

Apparently to try his pen and his handwriting on parchment, he turned to the last page, laid the volume at right angles, and wrote, in his best and earliest style, near the margin, “Honorificabilitudinitatibus, Constantinopolis.”

This fact might hardly have been thought worth recording, but that some peculiar people, who base arguments upon half-truths, have founded an oft-repeated argument on the assertion that the only known use in literature of this long word is in “Love’s Labour’s Lost” and “The Northumberland Manuscript.” The fact has already been recorded in “Notes and Queries” (9 S. ix, 494) that the first known use in this country was in “The Complaint of Scotland,” published in St. Andrews, 1548-9, where the author (Sir John Inglis or Robert Wedderburn) classes it among the “*long-tailed* words” which had been used in other books. It is shown that Nash used it in his “Lenten Stuff” in 1599, but this might have been quoted from “Love’s

Labour's Lost," and there are many later examples ("Notes and Queries," 9 S. ix, 371).

Here, however, is a case of its use in Warwickshire, under exactly the same conditions as those of the Northumberland MS. at a date earlier than that on which it had been scribbled there, and in a locality where the book and the writer were quite accessible to Shakespeare.

At the top of the same page on which the long-tailed word was inscribed, there is recorded

Collected at Pillerton Hersey towards the reliefe of Marlborough
the some of eight shillings and two pence, Aug. the 24th, 1653. Ro:
Hale, Minister. Allyn Smith, John Reeve, Churchwardens.

In another handwriting below this is written:

William Cunninghame is my name
And for to wryt I thinke no shame.

He may or may not have introduced some lines irregularly written below this:

Earth upon earth bould house and bowrs,
Earth upon earth sayes all is ours.
Earth upon earth when all is wroght,
Earth upon earth sayes all is for nought.

In a somewhat similar hand, at the foot of this page, written in prose order, and with few capitals, run the lines

I hade both money and a frend
as nether thoght nor store
I lent my money to my frend
and tooke his word therefore.
I aste my money from my frend
and noght but words I gott
I lost my money and my frend
for sheu him I colde not.
At lenth with money came my frend
which plest me wondrous welle.
I got my money, bot my frend
Away quite from me fell.
Had I my money and my frend
as I have had before
I wolde kepe my money from my frend
and playe the foole no more.

A few more scribbles are sufficient to cover the long narrow page.

As no one has transcribed, or even read, this register, I may select a few entries, though of little direct Shakspearean interest:

Baptisms

1561. Marie, daughter of John Palmer, was baptized 14th August.

1566. John, son of John Palmer, was baptized 7th Maye.

1567. Anker, the sonne of Anker Brent, was baptized 19th day of June.

John, the son of John Elton, baptized by the midwife; died the 29th day of April, 1568.

1568. Mercall, the daughter of John Franklin, was baptized 15th day of Maye.

1568. Anker, the son of John Reeve, was baptized the 20th daye of Maye.

1570. Alice, daughter of John Palmer, was baptized 1st September.

1575. Marke, the son of Richard Graunt, was baptized 24th April.

1584. John, son of Thomas Palmer, was baptized 13th October.

1585. Katharine, the daughter of Mrs. Hill, was baptized 12th November.

1599. Eme Hemmings, daughter of John Hemmings,^[18] was baptized 17th December.

1600. Israell, the daughter of Rowland Robins, was baptized 4th Maye.

1603. Katharine, the daughter of John Heywood, was baptized 14th January.

—— Israell, the daughter of Gabriell Gillet, was baptized 20th January.

1607. Cornelius, daughter of John Smith, junior, and Anne his wife, was baptized the 14th daye of Maye.

1612. Penelope, the daughter of Allan Smith, gent., and Frances his wief, was borne the 13th Apperill, and baptized the 19th daye of the said Apperill, the witnesses Robert Hale mynister, Margaret Palmer, Marie Reeve.

Further on, stuck in at the side of the register, appears:

Hester, ye daugh: of Humanities Jackson, nat: fuere primo die Augusti, 1655.

Among the marriages are:

1553. Richard Manners was married to Margerie Rawlins the 23rd day of October.

1611. Thomas Davis and Israel Reeve were married 22nd Oct.

1622. John Parlbe, of St. Leonards in Shoreditch, and Christian Stickly were married together the 8 day of July.

1626. William Pargiter, of Sulgrave in the countie of Northampton, gent., and Frances Smith, gent., were married together the 30 day of Januarie.

1642. Humanitas Jacson, of Asherne, and Anne Smith, of Pillarton Hersey, were married together the 21 day of June.

Among the burials are:

1552. Margerie Quittles, buried the 28th day of May.

1596. Mary Horsekeeper was buried the 27 of November.

Many deaths took place among the Jacksons closely together:

1681. Anne, ye daughter of Humanitas Jackson, junior, was buried August 9th.

1682. Humanitas Jackson, junior, was buried Jan. 10th.

1682. William Jackson, buried Feb. 2.

1682. Mary, ye daughter of Humanitas Jackson, was buried Dec. 31.

1683. Humanitas Jackson, senior, buried Oct. 4th.

It is recorded shortly after this

“Anno Salvatoris 1703/4, Annæque Angliæ Reginæ Beatissimæ Regni Secundo. Collected to a Breef for the relief of our persecuted Protestant Brethren of the principality of Orange the sum of five and thirty shillings and eight pence.”

Among family names in this early book are Wing, Jude, Prophet, Makepeace, Nason, Sambache, Vinsen, Leah, Fredwell.

In the same box is now preserved the earliest register of what was formerly a separate parish, Pillerton Priors. It lacks its outer cover, and apparently the earlier slip has vanished. It begins abruptly with “Criseninges, 1604,” though on later pages there are marriages and burials from 1594. Both parishes seem to have been in the same cure at this date. “Ro: Hale” signs both registers at the foot of each page. A few entries are of some philological or genealogical interest:

1609. Athalia, the daughter of William Smith and Luci his wife, was baptized the 25th day of March.

1610. Edythe, the daughter of Richard Griffyn and Jane his wief, was baptized the 22nd June.

1621. Moses, the son of Abraham Neale, baptized 11th Nov.

1630. Athalia, ye daughter of William Symkins and Susanna his wife, was baptized the 12th day of Dec.

1631. Harma, the daughter of Abraham Neale, baptized 13th Nov.

1633. Alva, the daughter of William Reading, baptized 19th May.

1639. Lucie, the sonn of William Sambache, gentleman, and Dorethie his wiefe, was baptized the 30 day of July, Anno Dni. 1639, Witnesses Sir Thomas Lucie, Knight, Sir Edward Underhill, Knight, and Piers Hobdy.

Burials

1599. Edward Clifford buried 19th November.

1600, George Clifford buried 7th April.

1600. Franciscus Underhill, Gent., was buried the 19th of May.

1611. Edward Underhill, Esquier, departed his lieff the 13th daye of June, 1611, before sonne rising in the morning, and was caried to Nether Ettington and buried the 14th day of the said month, early in the morning.

Marriages

1594. Symon Smith and Angell Palmer were married the 11th November.

1608. Thomas Horniold, gent., and Elizabeth Underhill, gent., were married the three and twentieth day of August.

On the last page is the entry, "Collected at Pillerton Priors towards the relief of Marlborough the somme of eight shillings and seven pence. Ro: Hale Minister 1653," a curious parallel to the entry in Pillerton Hersey, and further witness to the long incumbency of Robert Hale. At the end is the

inventory of the church goods. I thought the free use of names generally denoting the other sex was worth recording, as well as the few entries of well-known families.

I went to Nether Ettington to seek the tomb of Edward Underhill. This property has belonged to the Shirleys for a thousand years; but it was let to the Underhills for a long lease of ninety-nine years, and many of their tombs remain there still, among which is the reproduction of the tablet to the memory of Anthony Underhill with the notable verses. I could not find the tomb of this special Edward carried from Pillerton. But there is one “to the memory of Thomas Underhill of this town, Esq., and Elizabeth his wife, who lived married together in perfect amity above 65 years, ... and died in 1603.” As they had thirteen sons and seven daughters, it is not remarkable that their family should have spread to many neighbouring parishes.

“Athenæum,” 19th September 1908.

FOOTNOTES:

[\[16\]](#) See Heath, f. 37 a.

[\[17\]](#) Reg. 32 and 62 b, Fletcher.

[\[18\]](#) I was told by the Vicar that the family of Hemmings claims to have been Parish Clerks for 500 years. The last one died in 1885.

XI

SHAKESPEARE AND THE WELCOMBE ENCLOSURES

A NEW DETAIL IN HIS LIFE

Among the many direct references to Shakespeare contained in the records of Stratford-on-Avon, perhaps none has been discussed more frequently than his relation to the enclosures which his high-handed neighbour William Combe wished to make at Welcombe. But the discussion has not always led to a study of all the papers concerning it. Those who try to belittle Shakespeare assert that he secured himself from loss by making conditions with Mainwaring and Replingham (who were acting for Combe), and then let the poor of Stratford bear the loss of their ancient common as they might. But there are a great many facts to be known concerning these enclosures which are not reckoned with by the general readers of Shakespeare's so-called "Lives." A few of these must now be noted to lead up to the point I wish to record.

On 7th September, 1544, Anthony Barker, steward of the dissolved College of Stratford-on-Avon, granted to William Barker, gent., certain messuages, lands, and tithes of Stratford, hitherto belonging to the College, for a period of ninety-two years. This may or may not have been legal, but the transfer has never been questioned. In time this grant was inherited by John Barker, who in 22 Eliz. sold the bulk of his estate to Sir John Huband, reserving to himself a yearly rent of £27 13s. 4d., with the condition that if any part of that rent were left unpaid for forty days, he could enter and retake possession of all until the end of his term.

The charter granted by Edward VI to the Corporation of Stratford-on-Avon settled on it the tithes for the support of the refounded school and almshouses, and I have not at present time to discuss the complex relations between the town and Barker's lease. Dr. Ingleby is entirely wrong in his account of the tithes, which were not owned only by Shakespeare and Greene. They were sold by Sir John Huband in 1605, either directly or indirectly, to a large number of holders, among whom was Shakespeare,

who was said to hold a “moietie”; but this by no means represented a half, as we might be inclined to read it, even of the tithes, and the “property” consisted, beyond the tithes, of houses, cottages, and fields. It may help the consideration of the question to note the chief holders.

Richard Lane had a proportion worth £80 a year in the tithes of Old Stratford; Shakespeare’s share was worth £60 a year; Thomas Greene’s, £3, and 20 marks in the tithes of Drayton; Sir Edward Greville’s, 40s.; Sir Edward Conway’s, £30; Mary Combe, widow, an estate for six years to come, worth £10; John Lane, £8; Anthony Nash and William Combe, £5; Daniel Baker, £20; John Smith, £8; Francis Smith, £12; William Walford, 40s.; William Court, £3; John Brown, £4; Thomas Jakeman, £10; Richard Kempson and Stephen Burman, £15; Thomas Burman, £3; “Thomas Horneby, an estate of the messuage in which he now dwelleth, of the yearly value of £3”; and eighteen others had similar shares, most of the smaller holdings being in land or houses, and the larger in tithes.

Shortly after the poet’s purchase, he discovered that, though he was careful to pay his share of Barker’s reserved rent of £27 13s. 4d. to Henry Barker, then lessee, many of the other tenants were not paying theirs, and he ran the risk of losing his property through the fault of others. So he co-operated with Richard Lane and his lawyer cousin Thomas Greene to file a complaint in Chancery against those other tenants who did not pay their due share of the reserved rent. The complainants acknowledged that some of the tenants were willing to pay, but refused for fear of the others; some made light of the claim; and the complainants, for the preservation of their estates from forfeiture, have had much loss and trouble. They prayed that subpœnas be sent to the chief defaulters to appear and make answer. The case was entered as “Lane, Greene, Shakespeare, and others, con. W. Combe and others.” See Misc. Doc., ii, 2. The suit appears to have been successful, or at least some settlement was come to, for the possession of the tithes was not lost by Shakespeare or his family. (Their shares were sold later by Dr. Hall.)^[19] That is the story of the tithes.

The enclosures began in 1614, about the time of “the Great Fire.” There died in July that year John Combe the moneylender, who had bought the old College in 1596, and he left much of his property between his nephews William and Thomas Combe. William apparently went to live at the College, and shortly after took it into his head to enclose, not “the

Common,” but the “Common Fields” of Welcombe, *i.e.*, arable land, liable to tithes. His agents inquired who were likely to be most concerned. Probably for them Thomas Greene had drawn up the list of “Auncient freeholders in Old Stratford and Welcombe.” The poet heads the list:

Mr. Shakspeare, 4 yard land, noe common nor ground beyond Gospel Bush, noe ground in Sandfield, nor none in Slow Hillfield beyond Bishopton, nor none in the enclosure beyond Bishopton. Sept. 5th, 1614.

William Combe was well aware of the purchase made by Shakespeare, from his uncle and himself, of 107 acres of arable land and 20 acres of pasture, not long before, recorded in the Feet of Fines, P.R.O. It would only be through the tithes that Shakespeare might suffer, so he sent to him Mr. Mainwaring, steward of Lord Chancellor Ellesmere, and Mr. Replingham, who seem to have been acting both for Ellesmere and Combe, to guarantee that no one should lose by the enclosures, as he was willing to make up all losses, and was willing to make a deed in that respect, to protect Shakespeare and his heirs. The poet seems to have allowed them to do this, and one touch of his personal affection for Thomas Greene incidentally appears in his insisting that the security should include his cousin Greene. These “articles” were drawn up between William Shakespeare and William Replingham on 28 October 1614. It is one thing to allow any one to make an agreement that he should not lose by an arrangement if it should be settled, and quite another thing to approve of it, or to help it forward.

Thomas Greene, feeling that the question was now becoming important, commenced a series of “Mems. about the Inclosure,” still preserved at Stratford-on-Avon, which throw light on Shakespeare’s position. He took it easily, because he did not think anything would be done. Greene says:

Jovis 17 Nov. [1614.] My cosen Shakspeare commyng yesterday to towne, I went to see him howe he did; he told me that they assured him they ment to enclose noe further then to gospell bushe, and so upp straight (leavyng out part of the dyngles to the field) to the gate in Clopton Hedge and take in Salisbury’s peece; and that they meane in Aprill to servey the Land, and then to gyve satisfaction and not before, and he and Mr. Hall say they think there will be nothyng done at all.

This is one of the very rare examples of Shakespeare's conversation having been preserved, even indirectly.

The next entry is also interesting. Greene, the Town Clerk, records:

23rd Dec., 1614. A Hall. Letters wrytten, one to Mr. Manneryng, another to Mr. Shakspeare, with almost all the Companyes hands to either: I alsoe wrytte of myself to my Cosen Shakespeare the coppyes of all our oathes made then, also a note of the inconveniences wold grow by the Inclosure.

Both of the letters to Shakespeare have disappeared; that to Mainwaring has been preserved.

For the corporation did not take the proposal easily. Even in the present they would lose, and in the future, when Barker's lease fell in, they would lose very much more, for the composition made with the leaseholders was personal, and would not descend to them. In the midst of the heavy losses caused by the recent fires, the danger assumed large proportions in the eyes of those who had sworn to do their best in trust for the town. They resisted it determinedly, and were finally successful. Thomas Greene, their clerk, proved a faithful and energetic official, yet he too was tempted. He did not seem to have been told at the time, but he records in his Diary:

9 Ja: [1614.] Mr. Replingham 28th October, articled with Mr. Shakspeare, and then I was put in by T. Lucas, who drew up the articles.

On Wednesday, being the 11th day [January.] At night Mr. Replingham supped with me, and Mr. W. Barnes was to beare him company, where he assured me before Mr. Barnes that I should be well dealt withall, confessyng former promisses by himself, Mr. Manyryng, and his agreement for me with my Cosen Shakspeare.

Yet during the whole of the struggle Thomas Greene honestly threw himself into the duties of defending the rights of the town which had reposed trust in him, "and was much excepted to for his opposition" by the other side. It is probable that Shakespeare was in the same position.

Now we come to the last entry of his name. It is known to all Shakespeareans that Dr. C. M. Ingleby was so interested in this that he had

a photographic facsimile made of Greene's Diary; had it transcribed by Dr. Edward Scott, wrote an Introduction and Appendix himself, and published these in a thin folio.

I referred to the copy at the British Museum to save going down to Stratford to check my former notes made at the Record Office there. After a great deal of time spent through an unexpected confusion I found in it, I was forced to make a careful comparison, line by line, between the facsimile and the transcript. At first this did not clear up my difficulty; but, on my going through a second time, referring to the dates alone, the cause of the confusion flashed on me: *one of the pages of Greene's Diary had been placed out of order in the facsimile*, and Dr. Scott, who was supposed to have worked from the original, must have followed the facsimile. I went down to check the original last month, and to see if there was anything to account for the mistake. But there was nothing. The four leaves are written down one side and up another, making in all eight pages. It could only be the photographer's blunder by misnumbering the pages. Page seven should be read as page six, and the dates then read consecutively. My difficulty had lain in the fact that the year 1615 was made to have had *two springs*. My re-arrangement, which has been noted and initialed by Mr. Barwick in the Museum copy, restores order. But this late correction does not put right the blunder based on it by Dr. Ingleby, who says (p. vi, Introduction) that this entry "records, five months after the death of Shakespeare, the statement of Shakespeare himself." Now this statement was not recorded five months *after*, but seven months *before*, the poet's death.

Two other important points must be noted concerning this entry: first, that though it was somewhat crowded in, it was intended to be read straight on; and second, that the memorandum of a man's death was associated with it, and has some relation to it. As it is written, it should be read:

14 Aug. 1615. Mr. Barker [?] died.

Sept. W. Shakspeares tellyng J. Greene that I was not able to beare the encloseinge of Welcombe.

5 Sept. his sendyng James for the executours of Mr. Barker [?] to agree as ys said with them for Mr. Barker's [?] interest.

The subject of the old and only discussion about this was, Did the “I” refer to Shakespeare or to Greene? It is unlike the other letters of the first person generally used by Greene, but he does occasionally use that form as a capital. It could not be a mistake for “he” in writing; but it might be so in thought and word, as Greene’s style is very elliptical and careless in the Diary. The argument put forward by Dr. Ingleby was, Why should Shakespeare tell one brother what another said, as he was likely to know it, and why think this fact important enough to be recorded, unless it was a report that Shakespeare could not bear the enclosing of Welcombe? This is perfectly reasonable, but it may have been that gossip had said that Thomas Greene served the corporation when he gave them advice and wrote their letters, but that he naturally was friendly with the enclosers, and likely to benefit by the enclosure. It might be but a note of pleased surprise of Thomas Greene’s to find that the poet had read his honest heart better than his more worldly-minded brother had done.

But the new point I wish to add is that on 14th August there is the record of the death of an inhabitant, and the note for 5th September clearly carries on Shakespeare as the subject, and shows that he it was who sent for the executors to agree with them for the interest of the defunct. I wish I could accept Dr. Scott’s rendering, and read it as “Mr. Barker,” for the meaning would then be straight and clear—that, seeing Shakespeare had had so much trouble over that reserved rent of Mr. Barker for £27 13s. 4d. on the lease of the tithes, etc., he was about to buy this up and set his estate free from any future danger. But alas! on referring to the Stratford Burial Register I find the entry on the day after, 15 August 1615: “Burial. Mr. Thomas Barbor, gent.” I have had the entry tested by an expert, who assures me there can be no mistake *there*.

I referred to the baptisms, and found there were two children born to “Thomas Barbor, gent., of Shottery,” within a year or two before; and that five days before the burial of Thomas Barbor was entered the “Burial of Joane, wife of Thomas Barbor, gent.” So I am driven back to the earlier pages of original, and there I find, on

7th April, 1615, being Goodfryday, Mr. Barber commyng to Colledge to Mr. T. Combe about a debt he stood surety for Mrs Quynney, W. Combe willed his brother to shew Mr. Barber noe

favour, and threatned him that he should be served upp to London within a fortnight (and so yt fell out).

This is also rendered in the transcript as “Barker,” but is clearly “Barber” in the original, and it seems to me that the action here recorded broke Mr. Barber’s fortunes and health, his wife died, and he followed, and that William Shakespeare, still willing to invest in “an odd yard land at Shottery,” sent for the executors, to do what he could for the deceased and his children as well as for Mrs. Quynney, whose unlucky debt was the cause of Mr. Barber’s distress and ruin. Coming back from the registers and miscellaneous documents of Stratford-on-Avon, we must therefore read the name as “Barber,” and not as “Barker,” however like it may be. Mr. Barber had done some important work for the corporation previously, and may have been an attorney.^[20]

It had always been a matter of surprise to me that Thomas Greene, who mentioned the death of Mr. Barber, did not mention the death of Shakespeare. Perhaps there was no need for him to make a memorandum of an event so important to the town and himself. He goes on in his dates regularly till he comes to the spring of 1616. Then he notes:

At Warwick Assises in Lent 1615-1616 my Lord Chief Justice willed him [*i.e.*, W. Combe] to sett his heart at rest he should neyther enclose nor lay downe any earrable, nor plowe any auncient greensward.

And the last words which fell on Shakespeare’s ears were the news that his judgment was right, and “that nothing should be done.”

The Diary leaps on then till 4th September 1616, and says little more of interest, but sufficient to show that Mr. W. Combe was determined to defy the Lord Chief Justice as well as the corporation, and go on with the enclosures after Shakespeare’s death. Indeed, the details^[21] of the struggles during the next two years, as gleaned from the corporation records, give the romantic tale how Stratford then

The little tyrant of its fields withstood.

The Combes raged at the corporation, defied their arguments, and threatened them with dire consequences for defending the rights they had sworn to hand down to their successors; the aldermen complained in every Court, and went in their own persons, rather than risk sending messengers, to throw down the fences and fill up the ditches made by Combe's servants, and some were wounded in the free fight which ensued. William Combe was High Sheriff of the county for one year during the struggle, and was Justice of the Peace during its course, though he seemed to hold himself above law and successive legal decisions.

Finally, however, he was summoned for contumacy before the Privy Council, and, after he was brought to his knees, was granted "absolution" in 1618-19, So Shakespeare's legal acumen was proved when in 1614 he said "he thought nothing would be done"; but it took a long time to prove it.

"Athenæum," 27th September 1913.

FOOTNOTES:

[19] Yet I find in the Vestry Minutes: "15th Dec. 1648 M^{rs} Elizabeth Nashe for Shottory Corn Tithes being yearly value £100."

[20] "Charges of Mr. Barbor and Mr. Jeffrey" in riding to London 15th May, 1590, "for search in the Rolles for my Lord of Essex's patent."

[21] I gave the story of William Combe more fully in "The Stratford-on-Avon Herald," 23rd August 1912. See Note XI.

XII

OTHER WILLIAM SHAKESPEARES

Among Shakespeare's contemporaries there were a good many bearing both of his names, and the few facts known concerning them become interesting, even when clearly shown not to refer to the poet.

I found one curious entry in London, among the burials in the registers of St. Clement Danes: "Jane Shackspeer, daughter of Willm., 8 Aug. 1609." This Jane *might have been* the daughter of some country "William" temporarily in town—*might* even have been a daughter of the poet. But I think it much more likely that the father's name was written in error for "John." The bitmaker of that name had settled in the parish, and had a large family. He had baptized a daughter "Jane" on 16th July 1608, of whom no further notice appears in the register, if this entry does not record her death. (See my "Shakespeare's Family," p. 148.)

The Warwickshire Shakespeares seem to have favoured the name of William. Christopher Shakespeare, of Packwood, mentions in his will (proved 15th August 1558) a son William, who may be the subject of other later references.^[22] A William priced the goods of "Robert Shakesper, of Wroxall," on 19th March 1565; and one of the same name did the same duty to the goods of John Pardu, of Snitterfield, 1569. John Shakespeare, of Wroxall, labourer, in his will, 15th December 1574, speaks of his brothers William and Nicholas. A William signed and sealed, as one of the witnesses, a feoffment of lands in Wroxall, 27th June 1592; and a William of Wroxall made his will on 17th November 1609 (see Ryland's "Records of Wroxall").

A youth, probably the son of Thomas Shakespeare, shoemaker, of Warwick, was buried at St. Nicholas's in that town, when the poet was fifteen years old. The clerk thought the manner of his death worth recording: "1579. July Sexto die huius mensis sepultus fuit Gulielmus Shaxper, qui demersus fuit in Rivulo aquæ qui vel vocatur Avona."^[23]

Another William, of Coventry, shoemaker, made his will 18th March 1605-6.

I see no evidence that the William Shakespeare of the Worcester Register, who applied for a marriage licence on 27th November 1582 was a different man from the poet, who, the next day, had a licence granted to marry Anne Hathaway. I have given my reasons elsewhere for believing them to be one and the same, and so has Mr. J. W. Gray in his "Shakespeare's Marriage." I have never come upon any other Anne or Agnes recorded as the wife of a William Shakespeare.

There was a William, however, of Hatton or Haseley, who married, 6th January 1589, Barbara Stiffe, and who is entitled "gentleman" when, on 14th March 1596, he baptized *his daughter Susanna*! "Barbara, wife of Mr. William Shakespeare," was buried in February 1610. One can hardly think this the same person who was associated with John Weale: "John Weale granted to Job Throgmorton the cottage in which William Shakespeare dwelt at Haseley 4th March 1597" (Hist. MSS. Com. Rep., App. II, Davenport MSS.).

In the Star Chamber proceedings there is the notice of a fine "inter Willielmum Shackspeare et Georgium Shackspeare, quer., et Thomam Spencer, arm., Christopherum Flecknoe, et Thomam Thompson, deforc., de octo acris pasturæ cum pertinentis in Claverdon alias Claredon, 12 Jac. I."

Another William was in the habit of selling malt, lending money, and sometimes borrowing it. He might have been some of these others of the name, but he could not have been the poet, as some suppose, because his bills, preserved at Warwick Castle, continue until 1626.

The greatest number of Shakespeare entries in general, and of those concerning William in particular, are found in relation to Rowington. There had been residents of the name for a long time in the parish. The early registers are lost; but from the will of Richard Shakespeare, of Rowington, weaver, we know that he had a son William and a son Richard under twenty-three years of age on 15th June 1561. Another of the same name, called "Richard Shakspeare of Rowington, the elder," mentioned in his will, dated 6th September 1591, his sons John, Roger, Thomas, William; and a third Richard's will, of 13th November 1613, show that he had four sons—William, Richard, Thomas, and John. The eldest, William, had at the date of

the will a son John; the second, Richard, had four—Thomas, William, Richard, John; and after the registers commence, we find on 28th April 1619, William Shakespeare, son of John Shakespeare, was baptized; and on 13th August of the same year, “William, son of Thomas Shakespeare.”

The name of William Shakespeare appears in the list of the trained soldiers of Rowington taken by Sir Fulke Greville at Alcester on 23rd September 1605, probably the son of the second Richard, but erroneously, by some, supposed to have been the poet. Collier says that “we have intelligence regarding no other William Shakespeare at that date.”

The mark of a William Shakespere is found on a roll of the jurors at the Court of the Manor of Rowington in 1614, which is almost certainly that of William, son of the third Richard.

Mr. Ryland’s “Records of Rowington” show us that a lease was granted through feoffees to Richard Shakespeare, of Rowington, weaver, of the “Tyinges,” which may refer either to Richard the second or the third. The Customary rent of Rowington in 1605 mentions “Richard Shakespere, one messuage, half a yearde land (14 acres), 14s.; John Shakespeare one cottage and one quarter yard land (9 acres), 6s. 8d.; Thomas Shakesper, one close, 2s.; one tofte and 16 acres, 13s. 4d.; one messuage, 10s. 4d.” It is not clear which “Thomas” it was. Richard and John are those referred to in the legal proceedings which give the story of their lives.

This Richard the third was evidently son of Richard the first, and, as he was under twenty-three in 1561, would be about seventy-six when he died in 1614. In consequence of his will and actions a protracted litigation commenced. The case somewhat resembles that of Jacob and Esau. The youngest son, in the absence of his eldest brother, prevailed on his father to disinherit him in his favour, and the dispossessed brother did not bear his loss with equanimity. Some of the facts were known to Malone, “Proleg.,” ii, 15, note 8; and Mr. Cecil Monro had included some of the references in his “Acta Cancellaria,” 1847. Mr. Knight discovered, and Mr. Bruce published, the Star Chamber Bill and answer in “Notes and Queries,” Third Series, xii, p. 81 (3rd August 1867); and a list of the official entries collected by Mr. Monro is given at p. 161 of the same volume.

The Catalogue which, within the last few years, has been drawn up of the Second Series of Chancery Proceedings has given us access to still another

paper; and as so many minor illustrative details have turned up, it seems time to make a *résumé* of the whole mass of material. The story illustrates the domestic and legal life of the times.

Richard Shakespeare was of Turner's End, or Church End, Rowington, when he made his will on 13th November 1613. He did not trust to its being sufficient of itself to go against the Customary of the manor, and during his lifetime he surrendered his copyhold estate into the hands of the steward by his attorneys, Thomas Ley and George Whome, in order to "settle it upon himself and his wife Elizabeth for their lives, and the longer liver of them, and after their decease, upon his youngest son John and his heirs," provided that John paid to his brother William £4 a year. This deed of settlement was completed, and the fine paid into Court, in March 1613-14. Richard died within a month, and his wife followed him almost immediately, repenting of her share in the arrangement. William thereupon applied to be put on the homage of the manor, as his father's eldest son and heir, probably at the time he made his mark; and also contested his mother's will at Worcester. (See MS. Episc. Reg. Worcester, "per Wilielmus Shakespere, filium naturalem Elizabeth Shakespere nuper de Rowenton.")^[24] But the combination against him had been too powerful. He had no remedy but to eat humble-pie and accept the first instalment of his yearly fee from his brother John at Michaelmas 1614. When John had claimed his inheritance at the Manorial Court, the steward had bidden him be cautious with that proviso, or he would forfeit it, as it devised it to be paid in two portions, at the two half-yearly feasts of Lady Day and Michaelmas, between the hours of ten in the morning and two of the afternoon, in the church porch of Rowington. At Lady Day 1615 difficulties arose. Each said the other did not keep the appointment. William was not paid at the time specified in the settlement, and, assuming that the premises were thereby forfeited, made an entry into his father's house as his natural heir, and was forcibly resisted. He thereupon instituted a case in Common Law. John went above him, and filed a bill in Chancery against him. Mr. Cecil Monro collected the following entries of this case:

1. Bill in Chancery, filed 1st May 1616, John contra William Shakespeare.

2. 11th May 1616, L. C. Ellesmere's order to stay proceedings of defendant in Court Baron of Rowington until heard in Chancery.

Mr. Richard Moore to consider it (Reg. Lib. B, 1615, fol. 747).

3. 16th May, Master Moore's report (*ibid.*).

4. 8th June, a week given for plaintiff to reply (Reg. Lib. B, 1615, f. 824).

5. 10th June, Master Moore's supplementary report, on a petition presented by defendant. Possession only established with plaintiff until the hearing of the case (Trinity Term Reports, 1616).

6. 11th November, Master of the Rolls allowed defendant to amend a clerical error in date (Lib. B, 1616, f. 146).

7. 31st January 1616-17, an order *nisi* for publication (*ibid.*, f. 140).

8. 3rd November 1617, William files a bill *against John*, but, in respect of his poverty, is permitted to sue *in forma pauperis* (Reg. Lib., 1617, f. 132).

9. 18th November, Mr. Moore desired to consider the sufficiency of the answer of the defendants (*ibid.*, f. 192).

10. Master Moore's report in favour of plaintiff, Michaelmas Term, 1617 (Monro's "Acta Cancellaria," p. 222).

11. 22nd November 1619, an order for an injunction to restrain the defendant from putting plaintiff out of the possession of the premises at Rowington, and from suing plaintiff at Common Law upon a bond of £500, until defendant had answered plaintiff's bill (Lib. B, 1619, f. 300).

12. 27th November 1619, an order for attachment against the defendant for not appearing.

Mr. Monro here omits the reply of William, filed on 6th May 1616, which should have come between 1 and 2. No. 4 refers to the reply to this, which should have appeared between 5 and 6; but it seems to have been lost.

Mr. Moore's report of 16th May is favourable to John, whom he believes *willing* to pay, and the supposed forfeiture, if any, incurred by his reposing trust in another brother. Plaintiff might be relieved (Monro's "Acta

Cancellaria,” p. 221). But in his supplementary report he explains the “relief” to be only until *decision*. From the later Star Chamber case we know that the appointment of the commission of inquiry in Warwick should come in between 6 and 7 (13th January 1616-17). Mr. Moore’s report in Michaelmas Term 1617 is favourable to William, who should have the premises, if annuity not paid; and he finds the answers of the defendants defective (Monro’s “Acta Cancellaria,” p. 222).

In this counter case of “William contra John,” Mr. Monro omits to mention another paper, lately found by Mr. J. W. Gray and by myself, “The further answer of John Shakespeare, Edmund Fowler, and Thomas Sadler, defendants, to the bill of complaint of William Shakespeare, complainant.” It is not dated in the draft, but written across the top is a note in another hand, “Sworn 27th Jan., 1617 Matthew Carew,” *i.e.*, 1617-18 (Chanc. Proc., Ser. II, Bundle 291, S. No. 108).

In spite of Mr. Moore’s favourable report, the case was evidently decided against William, in Easter Term 1618, by Sir Julius Cæsar, on the sworn evidence of Thomas Shakespeare, Fowler, and Sadler. William filed a bill in the Star Chamber as to their perjury, 9th June 1618, which was replied to on 11th June. The result is not preserved.

In the course of the depositions, both sides agreed as to preliminary facts; both allowed John to have been the father’s favourite son; they differed as to the cause of Richard’s action. John stated that “William had for many years been undutiful and disobedient, and taken very unnatural and wicked courses, to his father’s great grief.” William explained that until he was forty years of age he had worked as a labourer on his father’s farm without wages, only receiving his meat, drink, and garments. His father had never even allowed him any stock that he might raise up means to live on. He had done this, believing that the farm would later be his own, as his father always said it should. But about ten years before his father’s death he had gone into service, with his father’s permission, that he might earn some money, and “might be able to bestow his brothers and his sister, and fare in personal estate the better.” It is not so stated, but one can read between the lines, that he wanted to marry, and did marry, a certain well-to-do Mrs. Margery. When, through service on other people’s property, he “had gotten some money into his purse, he lent and bestowed much on his brother Richard, and did also, in all dutiful manner, respect and use his father and

mother, and did him many services to his good liking.” But the ageing father had doubtless missed the strong arms of his son, all the more that they had not been duly appreciated. While William was away, working for money, John was at home, weaving, and not only John, but his sister Joan, whom his father loved exceedingly. Joan preferred her younger brother, and the two combined to obtain for him the property “by false information and other sinister means.” John used every means in his power to keep William away. Even when his father sent for him, John shut the door in his face and would violently assault him, threatening William that “if he hindered him from getting the premises, he would keep him in prison all his life for it.” The action of John and Joan “was very hardly spoken of among the neighbours.” Their mother had encouraged them at the time, but on her death-bed she bitterly repented, and “asked William to forgive her, and to pray to God to forgive her too.” William had submitted until John had broken the proviso. John’s bill in Chancery, 1st May 1616 (Bills and Answers, James I, Bundle S. 1457), is an appeal to be protected against the intrusions of William, who had injured him, and maltreated his cattle, turning them out of his pasture. He said he had fulfilled the conditions of the deed, and at the said Lady Day 1615 “did by himself, or some one for him, tender the money between the hours of 10 and 2.” He had gone to the church porch between 11 and 12, but, William not being there, he departed about other business, leaving the money with his brother Thomas, supposing that William would either come or send for it. Thomas waited in the church porch, but William did not come, and he sent it to his house the next day: but William, “being of a contentious and troublesome spirit, and seeking and endeavouring by all means to trouble your orator and put him to unnecessary expense, refused it.” “The said William Shakespeare, the *6th of April last*, at a Court holden for the manor, did make claim to the messuage as the eldest son and heir of Richard Shakespeare,” pretending that it had been forfeited; and “except for the Equity of Chancery, your said orator is altogether remediless.” It may easily be seen that John’s statement as to the tender was somewhat indefinite. William’s answer is clear (filed 6th May, not included in Mr. Monro’s list). He had gone to the church porch of Rowington, not, indeed, at 10 o’clock, but shortly after 12, and waited until 3 o’clock. He had “openly published the cause of his coming there, and many took notice thereof”; but neither John, nor any one for him came thither to pay. John, indeed, had ridden off to Warwick, four miles away, on

pleasure. William therefore, “considering how John, by indirect and undue means, had gotten the inheritance,” and believing that he by neglect of this proviso had forfeited it, lawfully entered into the premises as his father’s legal heir, in a peaceable manner, along with his wife. He *had* turned some cattle out of the pasture, but quite gently, and they did not belong to his brother, but to Thomas Ley. Here something is implied, which is not expressly stated. John was his own master, and could fix his own hours; William, still at service, was not master of his own time. Hence he was late at the appointment, and hence his wife, and not himself, made the later “forcible entries,” referred to as his. He goes on to say that he had heard that his “wife had been uncivilly beaten and buffeted about the head, and at one time was bruised upon the breast that it wrankled,” and her nursing child fell ill in consequence. This had been done by John, Thomas Ley helping him, “who, in a most violent and unchristian manner, did take the shoe from his foot” to strike her. John had falsely excused himself that Margery had attacked his wife. William confessed that he had laid claim to the premises at the Court held on 6th April last, and that by all lawful means he intends to have and to hold them. He is sure that he was not paid, and he knows nothing of John or his representative waiting in the church porch.

The further answer of John Shakespeare and others of 27th January 1617-18, also omitted by Mr. Monro, suggests either that by some curious but not impossible coincidence, one party went out of the church porch just the minute before the other came in, and that more than once, or that one or the other committed perjury. It is too long to transcribe, and most of it is recited in the Star Chamber case. John denied William’s statement that on Lady Day 1615, “relying on his craft and subtilty, accompanied only by Henry Clarke, minister, he did, near the church porch, tender the forty shillings,” and go off to Warwick on pleasure, leaving neither money nor representative. He stated that “about 12 of the clock he came into the church porch, and did tender the money, but neither William nor any one for him was there to receive it.” He had “heard it reported that the complainant had threatened to cut off an arm or a leg,” and he therefore went home to dinner, and afterwards went to Warwick, where he had business, as it was market day. Before he left, he gave the money to his brother Thomas, with direction and authority to pay it to William, or any other for him, and to stay at the church porch until the last instant, to be able to tender the money. Thomas Shakespeare had told him, and he thinks he can prove it, that he did

stay until after two o'clock, and at the last instant did tender the money in presence of these two witnesses, Edmund Fowler and Thomas Sadler, who say that Thomas entreated them to be present with him. They met him, as they were coming to see him; about a quarter of a mile from Rowington, and went to the church porch about half-past one and they stayed until the last instant, or "neere thereabout," and saw him tender the money at 2 o'clock; but neither William nor any for him was present. They deny that they or any of them have "contrived any secret estates, surrenders, articles, or agreements," concerning this business. They are quite willing to answer further in any point "not sufficiently answered, confessed, avoided, and reversed or denied," and trust this honourable Court may give them their reasonable costs and charges wrongfully sustained. It is signed by Ric. Weston.

The Star Chamber case six months later, 9th June 1618, transcribed in full in "Notes and Queries," 3rd August 1867, after reciting the bulk of the Chancery proceedings, continues the plea. William's complaint shows that John at first said *he* had stayed until 2 o'clock or near thereabout. He acknowledges there may have been a tender between 11 and 12, but there was none afterwards. He tells us that a commission from Chancery had been sent to John Norton, gent., Francis Collins, gent.,^[25] Thomas Warner, clerk, and John Greene, gent., to examine the witnesses at Warwick, 13th January 1616. (This commission sat between the dates of Mr. Cecil Monro's entries 6 and 7.) He there denounces "the wicked, ungodly, and corrupt subornacion of the said John and Thomas, of Edmund Fowler, tailor, Thomas Sadler, hempdresser, both of Coventry, who answered falsely, untruely, corruptly, and unlawfully" that they had come and seen Thomas tender the money between half-past 1 and 2 o'clock, and the money lay on the bench all the time until 2 o'clock, when they went away together, Thomas Shakespeare to Killingworth, Sadler and Fowler to Coventry. William declares their deposition false, untrue, and corrupt, to the displeasure of Almighty God, contrary to the laws of the "Realme," and to the king's peace, crown, and dignity, and to the great prejudice of him, whose case in Chancery was decreed against him by Sir Julius Cæsar in Easter Term last. He says he has no hope except the equity of the Star Chamber.

On the 11th of June John and the other defendants reply, supporting their previous assertions, saying that William was not present at 2 o'clock, and as "to all the perjuries, falsities, and corruptions, they are not guilty."

The decision has not been preserved, nor the initiation of a third Chancery suit. But the two Chancery orders of 1619 referred to by Mr. Monro belong to this later series.

It is relevant to the question to return to the records of Rowington. The action does not seem to have prejudiced William with his neighbours, because in 1622, only three years after the last notice in Chancery, he was elected churchwarden. As a churchwarden had to be a "substantial householder," this implies that William had been left in possession of his dearly bought inheritance. It also suggests a great change in his prospects from the time in which he sued *in forma pauperis*; or a desire of the neighbours to show their respect for him. John was buried 5th May 1635; William on 20th February 1646-7.^[26]

Their long-continued litigation must have stirred not only Rowington, but Warwickshire, and it must have been well known to the poet. For he, too, was a homager of the manor of Rowington, for one of the only two tenements belonging to that manor in Stratford-on-Avon—the property in Chapel Lane taken over by his brother Gilbert for him in 1602. For that tenement, therefore, he should have been on the jury at Rowington, at the Court in April 1614, when, immediately after his father's death, William claimed his inheritance; or in the following April, when he claimed it as forfeited. Though, from reasonable causes, he might have been excused attendance, the poet was certain to know of all the cases brought before the Court. It is probable that he sympathized with the elder brother, who had been ousted from the headship of the family, a man of his own name, exactly of his own age, possibly related to him in some degree, with the same number of brothers as he, and also with one sister, Joan. One trifling fact suggests acquaintanceship and sympathy—that William's case was taken up by, and developed and signed by, Thomas Greene, the poet's cousin and attorney of Stratford-on-Avon, when, a week after Shakespeare's death, the younger brother interfered with the course of Common Law by throwing it into Chancery.

"*Athenæum*," 18th and 25th August 1906.

FOOTNOTES:

[22] A William Shakespeare “paid 8/ to the Lay Subsidy, Walton super Olde ... Co. Leicester,” 36 Hen. VIII, 133/144.

[23] Since writing above I have found among “Early Indictments,” 650, the account of the death of William Shakespeare, shoemaker of Warwick, by slipping into the Avon. “Coroner’s Inquests.”

[24] I find that reports of the case at issue are to be found in Act Book No. 9, Consistory Court, on 22nd June 1614; 7th July 1614; 15th July 1614; 28th July; 9th September and 23rd September 1614. And in Act Book No. 10 the discussion is again resumed on 6th October 1614.

[25] Mentioned in the poet’s will and the overseer thereof.

[26] Some light is thrown on his position by the Sequestration books of Warwickshire, 1646, Add. M.S. 35098, f. 12. There it is ordered that “the rents payable out of the lands of M^r Betham, M^r Atwood, M^r Hunt; and William Shackspere in Rowington shall be payed since the same was sequestered.” On f. 38, 3rd March 1546-7, it was ordered that “William Shackspere of Rowington shall hould all his lands which is given in by ye oath of John Milburne to be £38 per annum ... for one yeare at £32.” But they were too late. Sequestered for loyalty, he had departed beyond their “orders” by that time.

XIII

THE TRUE STORY OF THE STRATFORD BUST

Our poverty in respect of authenticated likenesses of our great dramatist, makes us the more eager to learn all that we can concerning the only two that have been universally accepted, and even makes us patient in hearing what can be said in favour of others more or less doubtful in their pedigree. Therefore, it is all the more surprising that one authentic rendering, produced by a Warwickshire man, who was eleven years of age when the poet died, should have been entirely ignored by all the numerous writers on “Shakespeare’s Portraits,” especially as it has a most important bearing on the determination of the facial characteristics of the great dramatist. To understand this fully, due consideration must first be given to what are recognized as the “undoubted portraits.”

That which was publicly put forward as the poet’s likeness, and accepted as such by his contemporaries, was the inartistically designed, and coarsely executed engraving of Droeshout, appearing as frontispiece to the First Folio Edition of the Plays, brought out by his fellows, Heminge and Condell, in 1623.

There was no English *art* at the time worthy of the name, and probably for this reason the people found a double charm in theatrical representations. The actors supplied them with concrete images of the characters whose life-stories interested them, and became to them more closely identified than any historical portraits are to-day with their originals. Artistic taste and judgment were unknown amongst ordinary people, and even literary men, except such as had had special training, could not be held as art-critics of any importance. Hence, we may be justified in considering Ben Jonson’s fulsome praise of Droeshout, in his desire to help the editors, as only possible to him through his deficiency in artistic sense.

Bad art as Droeshout’s is, it nevertheless conveys to us the information that Shakespeare had a high forehead, prematurely bald, fine eyes, long straight nose, small moustache and beard, clean-shaven cheeks, oval face, and rather long hair. The dress is of rather less importance, as it might have

been his own, or that of some character in which he had acted. The painting from which the engraving was taken has long been sought for. Some thought it had been found in the so-called Felton portrait. The right panel of this had been split off in the middle of the collar, and the foot shortened to make it fit a frame. It has some details *similar* to, but not identical with, those of the engraving, though it has a little more art in the workmanship, and a little more expression in the features. On the back is written, "Guil. Shakespeare 1597," and two letters, "R.B.," supposed to stand for Richard Burbage. Notwithstanding much that was unsatisfactory in its pedigree, Richardson restored the hair, collar, and dress after Droeshout, and published it, whence have arisen many reproductions.

A much more important rival has, comparatively lately, turned up. Though its pedigree also is hazy, the likeness to the Droeshout print is undoubted, and Mrs. Flower of Stratford-on-Avon purchased it, and presented it to the Memorial Picture Gallery in 1895. Mr. Lionel Cust, Director of the National Portrait Gallery, read a paper about it before the Society of Antiquaries, 12th December 1895, in which he accepted it as genuine. It is, of course, open to the questions whether the picture was painted *for* the engraving or *from* the engraving, and whether it had been painted before or after the poet's death. The expression is better than that of the engraving.

The first reproduction of Droeshout, after the Second Folio, is that which appeared as frontispiece to "Shakespeare's Poems" in 1640. The engraver, Marshall, turned the face the other way, increased the inanity of the expression, flung a cloak over one shoulder, and put a spray of laurel in the poet's hand. "This shadow is renowned Shakespeare's," etc. William Faithorne introduced it into the frontispiece of "The Rape of Lucrece," 1658. Very many varieties of these two engravings have appeared.

The chief rival of the Felton and Flower Portraits is the Chandos portrait, which has a long pedigree. If there is any weakness in the chain of evidence for the authenticity of this portrait, it is only in the first links. It was *said* to have been painted either by Burbage, or by Taylor, the player, to have remained in the possession of the latter until his death, and to have been left by him to Sir William Davenant. It is no objection to this likeness that it should have rings in the ear, because the custom of wearing a rose in the ear was so common among the *jeunesse dorée* of Elizabethan times, that it was

quite natural that an actor should have his ears pierced. But one always feels a little in doubt of the good faith of Davenant, because of his known desire to be thought like Shakespeare. The picture passed from Davenant to Betterton. While in that actor's possession, Kneller painted a *portrait* from it, which was presented to Dryden. This came afterwards into the possession of Earl Fitzwilliam. The original passed from Betterton to Mrs. Barry, Mr. Keck, Mr. Nicholls, whose daughter married the Marquis of Carnarvon, afterwards Duke of Chandos, and thence to his daughter, who married the Duke of Buckingham. The picture was bought by the Earl of Ellesmere in 1848, and presented to the nation on the founding of the National Portrait Gallery.

The first engraving taken from it was by Van der Gucht for Rowe's "Shakespeare," 1709.

Many other oil paintings and miniatures of unproven authenticity have been put forward as likenesses of the poet, but so diverse are they in their characteristics, that it is impossible that they can be all genuine.

Some fine conceptions based upon composite ideas, others avowedly works of imagination, have been evolved in stone, glass, and oil paintings through the centuries. There is dignity in the Kent and Scheemacher's statue at Westminster, in the Roubiliac statue, genius in Lord Ronald Gower's group, and there is pre-Raphaelite art in Ford Madox Brown's rendering of 1849, but there is no space here to discuss these and other artistic productions. They teach us no *facts*.

The Stratford bust should possess a stronger claim to antiquity and authenticity even than the Droeshout engraving. It is referred to in the First Folio by Leonard Digges, as having been already set up by the time he wrote. It was designed under the supervision of Shakespeare's widow, daughters, and sons-in-law, amidst his friends and kinsfolk, who knew him as a man, not as an actor, and they had it *coloured*, so that the likeness, if at all good, should have been much more striking than the work of the engraver. They, too, suffered from a plentiful lack of art in their sculptor, Gerard Johnson, and from their own deficiency in critical judgement. But there is every reason to believe that they did their best to represent him to the life. They loved him, and they were rich enough to pay for the best they could get.

Yet every one who approaches the Stratford bust is more disappointed in it, as a revelation of the poet, than even in the crude lines of Droeshout. There is an entire lack of the faintest suggestion of poetic or spiritual inspiration in its plump earthliness. The designer has put a pen and paper into the hands, after the manner of the school-boy, who wrote under the drawing of something-on-four-legs, "this is a horse." The pen strives to write "this is a literary man," but there is nothing to support the attribution. The intensely disappointing nature of this supposed simulacrum of the poet, made me, years ago, commence a careful study of all his known representations, whether founded on fact or based on imagination. A good deal has been written on the subject from the time of Boaden's "Inquiry," 1824. In 1827 Mr. Abraham Wivell brought out a book upon Shakespeare's portraits, criticizing the opinions of Steevens, Malone, and Boaden, and since then many successive writers have more fully classified and illustrated the varieties, and brought our knowledge of them up to date. But none of them gave me what I wanted, an early representation of the Stratford original bust. I therefore commenced to search with a purpose, and in the very first book I opened I found what I sought, a representation of the tomb as it appeared little more than twenty years after its erection.

This was, of course, in Sir William Dugdale's great "History of the Antiquities of Warwickshire." He seems, judging from the notes in his diary, to have prepared his work in the neighbourhood of Stratford-on-Avon about 1636, though the publication was delayed by the civil wars for twenty years.

His representation of Shakespeare's bust is therefore entitled to respect as the earliest known engraving, though it has never been calendared, compared, or criticized. The unsatisfactory, or rather, in some aspects, the satisfactory fact is, that *it differs in all important details from the bust as it appears now*. We have here also, doubtless, to grapple with the lack of art-perception in the draughtsman and of the engraver, but there are simple leading distinctions, that could not have been imagined, if there had not been something to suggest them. Far from resembling the self-contented fleshy man of to-day, the large and full dark eyes look out of cheeks hollow to emaciation. The moustache drops down softly and naturally instead of perking upwards, there is no mantle on the shoulders, no pen in the hand, no cushioned desk. The arms are bent awkwardly, the hands are laid stiffly,

palms downward, on a large cushion, suspiciously resembling a *woolsack*. It is not unlike an older Droeshout, and the Death-mask might be considered anew beside it. The engraving is, of course, open to the interpretation that Dugdale, or his draughtsman, was careless and inexact in details. In order to compare his work in other examples, I asked a friend to take a photograph of Sir Thomas Lucy's tomb, as pictured in Dugdale, and another from the original, which has been very little restored since it was sculptured in Shakespeare's time. He took that from the book, but found that the tomb itself was in a very bad light for photography, and sent me instead a pencil outline. This supports Dugdale's rendering of important details, though he failed somewhat, naturally, in catching the expression. It allows us to believe that he reproduced Shakespeare's bust with some degree of fidelity. He was appreciative of his fellow countryman's fame, and would not pass him by as a nobody. It is quite possible, indeed, that he had seen the poet in habit as he lived, and any divergence from the tomb would be more than likely to be in the direction of the reality.

I had reached this stage when I consulted Dr. Richard Garnett. He reminded me that the little red lions that held the railings on the outer front pavement of the British Museum had been wont to be considered great works of art, but modern critics could not praise them. On their being taken down a few years ago, however, in order to broaden the pavement, one of them was subjected to a severe cleansing process, which proved that it was nothing but the successive coats of paint, liberally applied every three years, which had obscured the art of the original conception. His question therefore was, had Shakespeare's bust been repainted frequently enough to cause the plump unpoetic appearance it now has. I could not think so, because no amount of painting would alter the position of the arms, the shape of the hands, or throw a mantle over the figure.

I had therefore to have recourse again to engravings, and went through those in the Print-room of the British Museum. There I found a curious engraving in the Slade collection, signed "Grignion sculps," which support's Dugdale's rendering. I then went through every illustrated copy of Shakespeare in the British Museum, a large order for the attendants. Rowe, in his first edition of Shakespeare's works, 1709, has a very bad representation of the tomb, which conveys the idea of a certain amount of decay in the original. There is absolutely no expression in the face, which is

not quite so thin as Dugdale's, but the figure agrees with the early rendering in all points in which it differs from the modern one. Rowe's edition of 1714 presents a bad copy of his first edition. In Pope's edition of 1725, we find a remarkable variation. Vertue did not go to Stratford but to Rowe for his copy. Finding it so very inartistic, he *improved* the monument, making the little angels light-bearers rather than bearers of spade and hour-glass, and instead of the bust he *gives a composition from the Chandos portrait*, altering the arms and hands, and adding a cloak, pen, paper, and desk. It retains, however, the drooping moustache and slashed sleeves. In Sir Thomas Hanmer's edition, 1744, Gravelot copies from Vertue the monument and the figure, while he alters the face into what seems to be the original of what is called *The Birthplace Portrait*.

Dr. Thomas in 1730 expanded Dugdale's "Warwickshire" into two volumes, but used the original block of the tomb unaltered.

Before the middle of the eighteenth century we know that the tomb was "very much decayed." Mr. John Ward, the grandfather of Mrs. Siddons, was in Stratford in 1746, and gave the whole proceeds of a representation of "Othello" in the Town Hall on 8th September towards the restoration of Shakespeare's tomb. Orders were given "to beautify" as well as to repair it. We are left altogether in the dark as to the degree of decay and the amount of reconstruction, but that it was considerable seems evident. By 1749 the repairs were completed, and the colours repainted by Mr. John Hall, a limner of Stratford-on-Avon. Probably they worked with the *new* edition of Shakespeare before them as a guide, depending upon Gravelot and Hanmer of 1744. Alas for the result! We may apply Browning's words, in another sense than he meant them, to the fate of this honoured memorial:

Wherever a fresco peels and drops,
Wherever an outline weakens and wanes,
Till the latest life in the painting stops,
Stands one whom each fainter pulse-tick pains;
One wishful each scrap should clutch its brick
Each tinge not wholly escape the plaster
—A lion who dies of an ass's kick
The wronged great soul of an ancient master.

Whoever the sculptor was who so much *improved* the figure, it is more than likely he restored the face by the aid of some cement. It is curious that none of the other editions of the eighteenth century reproduce the tomb either as Vertue or Gravelot rendered it. None, indeed, reproduce it at all, until we come to the second edition of Bell's "Shakespeare," 1788, into which he introduces the "Life" from Rowe's second edition of 1714, and in the "Life" the representation of the tombstone according to that edition. It was engraved by Reynold Grignion, and "printed for Bell's 'Shakespeare,' 1st Dec. 1786." This fact, printed on the plate itself, is important, as Grignion died in 1787, and the book came out in 1788. He rather improved on Rowe's print, as Bell's other engravers improved upon the Droeshout and the Marshall copies. Bad as it is, it represents the same figure as Dugdale did, falling into decay. This engraving is the same as that in the British Museum, "Grignion sculps," so the latter may have been a proof copy.

All later renderings are of the modern type. Then commenced a new series of vicissitudes for the *restored* bust. Not so very long after the repairs it was taken down from its pedestal, so that Mr. Malone might take a cast from it. More than likely that was the time when some accident removed the tip of the restored nose, which has left the "long upper lip" a marvel to many since the days of Sir Walter Scott. William Henry Ireland, in his "Confessions," 1805, states that he had been down taking drawings from various tombs in Stratford, and "greatly reprehended the folly of having coloured the face and dress of the bust of Shakespeare, which was intended to beautify it, whereas it would have been much more preferable to have left the stone of the proper colour." He applied for leave to "take a plaster-cast from the bust as Mr. Malone had done," but the necessary delay in petitioning the Corporation for permission made him give up the idea. In his drawing of the bust, he makes Shakespeare an eighteenth-century gentleman, moustache turned up, a pen in one hand, paper in the other, and the cushion like a desk. An engraving was made by Mr. William Ward, A.R.A., from a painting by Thomas Phillips, R.A., after a cast taken by Bullock from the bust, and published by Lake on 23rd April 1816, the second centenary after the poet's decease. This has the cloak, the pen, and the paper.

We are, therefore, in the bust likeness confronted by greater difficulties than the mere obscuring of the truth by paint, such as occurred in the case of the British Museum lions. We have to consider the much more serious question, the degree to which the features and surroundings of the original, deliberately or unconsciously, have been tampered with. It would seem that the sculptor who collaborated with Hall in 1746 was the culprit who deprived us of the original outlines of a memorial so dear, either through ignorance, vanity, or culpable carelessness. He had Dugdale to consult had he so pleased, but he contented himself with Hanmer. The decay must have been serious, and the alteration fundamental, to have so obscured the design. Mr. John Hall, who was responsible for the colouring, was believed to have followed the tints of the original. Be that as it may, Mr. Malone, like Mr. Ireland, disapproved of them, and in order to suit his own taste, and the fashion of his age, he persuaded the Corporation to have it painted white in 1793. One contemporary, however, wrote in the album of Stratford-on-Avon Church the lines:

Stranger, to whom this monument is shewn,
Invoke the Poet's curse upon Malone
Whose meddling zeal his barbarous taste displays
And daubs his tomb-stone as he marred his plays.

The bust was repainted in 1861 after the *original* colouring by the artist who *discovered* what has been called The Stratford Portrait, still reverently preserved at the birthplace, though it has no claim to authenticity. Its strong resemblance to the bust is of itself suspicious.

We suffer now, therefore, from the combined action of the various improvers and restorers of Gerard Johnson's clumsy workmanship. Though the crude colours of Hall shocked the sensibilities of Malone, he thought it no sacrilege to have the bust taken down, and submitted to the moulder's mercenary hands. Several others have been allowed to sin in a similar way. Many have written discourses upon its physiognomy, and based arguments and fancies upon it, unwitting of all these facts.^[27] It is comforting to be able to go back to the simple rendering of Dugdale from the original—not a picturesque or poetic rendering, of what was probably a poor

representation. But in it there is something biographical, something suggestive; it shows us the tired creator of poems, exhausted from lack of sleep, "Nature's sweet restorer," weary of the bustling London life, who had returned, as soon as possible, to seek rest at home among his own people, and met an over-early death in the unhealthy spring-damps of 1616. A happy suggestion of the thoughtful poetic soul, of which the modern restored and adapted representation had deprived us, but only a suggestion. We sadly ask, where is the true likeness of our Shakespeare? and Leonard Digges speaks for us when he says that it is to be found in

Thy works, by which outlive
Thy tomb, thy name must, when that stone is rent
And Time dissolves thy Stratford Monument,

Here we alive shall view thee still, This booke
When brasse and marble fade, shall make thee looke
Fresh to all ages.

*"Murray's Monthly Review," April 1904, and pamphlet reprinted from it,
same date.*

PS.—When I wrote the above paper I called it "An Uncalendared Presentment of Shakespeare," as no one had placed the drawing in the lists of credited or discredited likenesses. Dr. Gollancz and Dr. Furnivall altered the title, and the Editor accepted it, though I always thought the new title too aggressive for *my* meaning. Since in it I first drew attention to the discrepancies between Dugdale's representation and the present tomb, there have been many heated discussions about it. Sentimentalists did not like the notion that there had been *any* change in the precious memorial, *critical* sentimentalists, seeking for some support of their opinion, satisfied themselves that these discrepancies only proved the inexactitudes of Dugdale. Baconians accepted Dugdale eagerly, as they do accept everything that they think can be made to seem derogatory to Shakespeare in any way. Thereby they obscured the whole question, and ignored my work and statements. Good Shakespeareans thought they had demolished me in

discrediting the value of Dugdale's testimony. The two last articles published by Mr. Andrew Lang were on this subject, and it took a large place in the book published since his death, but I have not been allowed to reply to these. Mr. Robertson, who had ignored my "Bacon-Shakespeare Question" in his "Baconian Heresy," also ignored my article on this subject, and says: "Incidentally by reproducing Dugdale's version of the Carew Monument in Stratford, and confronting it with a photograph of the actual monument, he has exploded the small mystery built up by Mr. Greenwood, out of the difference between the actual Shakespeare Monument and Dugdale's representation of it in 1656." Mr. Greenwood had expressed strong faith in Dugdale's general correctness, and had quoted Dr. Whitaker to the effect that "his scrupulous accuracy, united with his stubborn integrity, has elevated his 'Antiquities of Warwickshire' to the rank of legal evidence." Mr. Lang in 1912 said: "Mrs. Stopes argues that the monument was entirely reconstructed..." "It is positively certain her opinion is erroneous." Then he gives as his absolute *proof*, the Carew Monument in Stratford. (For the reversing of the position of the recumbent figures from north to south, we probably have to thank a printer's accidental reversal of plate.) But Mr. Lang's argument contains not one, but *two* logical fallacies. In the first place it claims to *prove* that because Dugdale was incorrect in one monument he must have been incorrect in all. There may have been special reasons for the carelessness; if any, Dr. Thomas has suggested them in his second edition. And the argument *against* is no stronger than the argument *for* Dugdale, in that the Lucy tomb is a fair representation of the present one, and therefore reasoning from it, he might be treated as correct. There were special reasons that Dugdale should have taken extra care with Shakespeare's tomb, because he mentions the poet in his text as an honour to his native town, and Dugdale knew it well.

Mr. Lang's second fallacy is more important. It is the old logical fallacy of *accident*, or, as some logicians put it, "of cooked meat." I had definitely refused to accept as witness against Dugdale's trustworthiness the evidence of any other tomb which had also been "repaired and beautified." Now the Clopton tomb has been "repaired and beautified," and therefore, without some stronger support, it has no convincing power at all. I fear that I made a little confusion by my use of the word "fundamental," for Mr. Lang seems to have attached a wider meaning to it than I did. If I may take a woman's simile, I may make it clear. When a woman sends an old dress to be

“repaired and beautified,” it may be relined, turned, the worn pieces cut out and replaced, alterations made in design to make up for losses by wear, trimmings laid on to cover seams, and yet after all it would remain *the same dress*, and her male friends might notice no change in it. But the dressmaker would call it, as to her work, a *fundamental* change. I saw that it was by some such process that it was *possible* to harmonize the discrepancies. I did not start wishing to prove any particular point. I did not even want to prove myself right, for I have no prejudices about it, I only wanted to seek for, and to find *the truth*. None of my opponents have done any original work concerning this matter, and therefore *the question* stands exactly where it did, *i.e.* Dugdale’s representation is different from what the tomb is to-day. Why is it so? The two answers are, Dugdale’s representation was incorrect, or, the tomb has been modified.

Since I wrote the paper, I have done a good deal of further work on it. I found the contemporary letters of “the restorers,” 1746-9, published them in the “Pall Mall Gazette,” and have reprinted them now in my Note XIII. I have also gone through all the consecutive *history* of the Bust. Dugdale himself tells us his method of going through the country, by hundreds, and by rivers, *beginning with the Avon*. He says that he asked the nearest heirs of the famous individuals whose monuments he had inserted, to co-operate with him, to give him information, and, where possible, to pay the expenses of the plates. At the time he wished Shakespeare’s bust to be prepared, the poet’s daughters, granddaughter, and son-in-law, Thomas Quiney, were still alive, and would be more or less able to criticize. But Mrs. Susanna Hall died in 1649, and her only daughter had married John Barnard who evidently thought little of his father-in-law’s genius.

The tomb has generally been supposed to have been raised by Gerard Johnson, a tombmaker, entered among the lists of the Strangers in London in 1593. But I have lately found a lawsuit which proves that his wife was acting as his widow before 1616. Therefore, if the *name* be correct, it must have been not his, but that of his son, who succeeded him in his business. It is not quite so clear which of them built Combe’s Monument. John Combe made his will in January 1612-3, leaving £60 for “a convenient tomb.” He died on 10th July 1614. There are traditions that he had been “seeing to” the preparations for his tomb while he was yet alive. He might have fixed his sculptor, and he might have secured the elder Gerard Johnson. The tradition

concerning the poet's satirical suggested epitaph, is the only tradition about the poet which has a respectable antiquity, being referred to in a Diary of Travel in 1636, when a lieutenant and two friends, travelling through some of the county, saw that Shakespeare had a "neat monument" by that time (the first definite allusion to it).

The *material* of the monuments is worth nothing. I have seen a small piece of Combe's Monument which has been accidentally broken off, and have been assured on the best of authority that Shakespeare's is the same, as a little piece of the stone at the back has been left unpainted. It is a peculiarly soft and friable stone for the purpose, variously described as a "soft bluish grey stone," a "loose freestone," a "soft whitish grey limestone," with pillars of marble and ornaments of alabaster.

Given a soft and friable stone, we have to consider probabilities and possibilities, as well as certainties, in duly estimating the story of its *struggle for existence*. Time works against it with greater odds in his favour than he has in reducing stronger materials.

It may not be quite irrelevant to note, that there was ("Wheler Misc.," i, p. 124) a peculiar list of charges brought against the Vicar, the Reverend Thomas Wilson, for which "being notorious," he was suspended for three months from 5th June 1635. Among these charges it was stated that he allowed his maids to dry linen in the chapel, his fowls to roost, his pigs and dogs to couch there, and his children to play at ball and other sports. He himself was said to have "walked about the church in the time of divine service." In the vestry minutes it is recorded: "The minister's study over the bone-house to be repaired." Now, if the children also carried their sports and balls to the Church it might account for many accidents, and the very first items to fall victims to boys and balls would be the legs of the little alabaster angels above Shakespeare's bust.

We have also to remember that every church *ran risks* during the civil wars, as they were so frequently used as barracks.

I have found in Add. MS. 28,565, a whole volume of Bills for Damages by the Parliamentary forces in Stratford 1645, from private people^[28] which are only representative of many others.

In March 1691 the Chancel was repaired, the contributors being chiefly the descendants of those who had monuments of their ancestors there. The names of most of these are given, but there is no record of any descendants or friends of Shakespeare then, so that it may be supposed the tomb was left in a worse state of repair than the others. ("Wheler Misc.," iv, p. 99.)

The very fact of the admiration of visitors was a source of danger. Foolishly enthusiastic adorers are known to have chipped pieces from other monuments elsewhere as personal remembrances, and it is quite possible they may have done so here. At any rate, from many combined causes, we have clear testimony from contemporary records, that by 1746 it was "*in great ruin and decay.*" It is idle to attempt to estimate the degree of ruin, but that it had shocked the sensibilities of the poet's reverent adorers, is quite clear. The mere wearing off of *paint* could not have done so, *that* rather creates an impression of greater antiquity. The details of the events are given in the notes, and their results. One thing must be made clear, that everybody concerned was *giving* at that time according to his power. The Actors gave their performances, the Committee their time and trouble, the Schoolmaster was honorary secretary, and there were sundry donations. Therefore a close estimate of the purchasing power of money at that time cannot be justly made. It is nearly certain that Mr. John Hall, Limner, and his other unknown coadjutor, who was to prepare the greatly ruined monument to receive his painting, would be doing it at the lowest possible charges. So the amount of work put into the job would probably far exceed the ordinary cost price. Mr. Hall was told to "repair and beautify," and to let it remain as like as possible to the original.

Any artist or sculptor could inferentially follow their proceedings. *Suppose*, for the time, that Dugdale had been fairly correct. The first things to have been broken off would be, as I have shown, the alabaster legs of the ridiculous little cherubs. Their trunks would probably be pushed farther back to keep them out of further danger, and would be "restored" in the safer position. By the natural wear and tear of such a soft and friable stone, the bust would have *lost outline*. This had to be made up somehow to hold the paint, either by skilfully inserted pieces of stone, or by some plastic material. We know that the tip of the nose, the index finger, and part of the thumb had been broken off, and probably many other projections. They had *no pattern to go by*, except one evolved from memory, judgment, and

imagination. No one alive could remember back to the days of the unrepaired bust. They would do their best, they could do no more. Probably the outline of the moustache had been obliterated, and they moulded one after what they thought the best fashion. They would mend the nose, plump out the hollow cheeks, and fill up the eyes. When they reached the attire, they would not see the outline clearly, and, guided by the shoulder ridges, would bring the lines of the doublet straight down (it needed no farther change to make the cloak such as it is to-day). They would probably scrape down the cushion to a more normal level, and, believing that a pen should have been held between the broken finger and thumb, would put one there. Thus there would be a good many little repairs made, as in a *lining to the coat* of paint. But the result would necessarily be very different from the original.

Perhaps it may not be irrelevant here to refer to a paper among the “Wheler Miscellaneous Papers,” ii, f. 39.^[29] It notes “The fixtures; the things left in Mr. Talbot’s house at Stratford-on-Avon, 26th September 1758”: “In ye Hall, *Shakespeare’s Head*.” “In the other rooms 6 Family Pictures,” “In ye Wildernesse a Stone-Dyal.”

Now, the family portraits might have been Cloptons or Shakespeares, but *what* was “Shakespeare’s Head”? was it the death mask, a cast of the old Bust, or a model for the new one, then ten years old? Or was it a Bust made in Shakespeare’s life, from which the original was designed? I cannot even suggest an idea about it. But it is significant that it is noted, that in the following year “doubts arose, perhaps not unworthy of notice, whether the original monumental bust had any resemblance to the poet” (see Wivell’s book).

In regard to later vicissitudes of the Bust more is known. It was only in 1793, forty-four years after the repairing, that Malone attacked it. It is said that he had it down to examine; it is certain that he covered up Hall’s painting, by instructing a common house painter to lay over it a thick coating of common white paint. John Britton, F.S.A., writes in 1849: “In Dec. 1814 I incited Mr. George Bullock to make a cast of the monumental bust” ... “through the influence of Dr. Bell Wheler, and the Vicar, Dr. Davenport, he was allowed to take a model”.... “He was much alarmed on taking down the Effigy to find it to be in a decayed and dangerous state, and declared that it would be risking its destruction to remove it again.” Early in

the nineteenth century Abraham Wivell made a most careful examination of it, and gave his report in his small volume (published in 1827).

A most important step was taken at the Shakespearean Committee Room, Stratford-upon-Avon, 23rd April 1835, announced thus: "The Shakespearean Club of Stratford-upon-Avon have long beheld with regret, the disfigurement of the Bust and Monument of Shakespeare, and the neglected condition of the interior of the Chancel which contains that monument and his grave."

Thereafter was "a new Society formed, for the Renovation and Restoration of Shakespeare's Monument and Bust, and of the Chancel." Mr. John Britton was Hon. Secretary, and sent out a prospectus. In it he states: "A small and comparatively trifling tomb was raised to the memory of Shakespeare, immediately after his death; but it failed to attract anything like critical or literary notice until the time of Malone," of whom he gives his free opinion, and the anathematizing lines.

The chief ostensible object of the Society was to *repair* the monument, also, in order to preserve it, to repair the walls and roof of Chancel, to remove all whitewash, and to restore the colours. The subscriptions invited were limited to £1, but many sent more. The King subscribed £50, the Borough of Stratford the same. Many sent their subscriptions "only for the restoration and preservation of the Monument." "Mr. Lucy, of Charlecote, for the Chancel £10." One of the subscribers says that he had lately "purchased a very fine bust of Shakespeare at an auction." Again comes the query—which one was this, was it Gastrell's one?

"The cost of restoring Shakespeare's Monument and the Chancel" was £1,210, 12s. on that occasion. A Bazaar was held for further repairs to the church in 1839; other subscriptions came in, and the whole amount expended amounted to £5,000. Yet they did not take off the white paint then. Mr. Britton says of the work: "Had the building been left a few years longer, it would have ranked among the Classical Monuments of Antiquity." Mr. Britton wrote to Mr. Hunt that: "Your builder is dilatory, inefficient and embarrassing the progress and character of the Shakespeare works." Many things can be learned from the correspondence with Mr. Hunt, now preserved in a separate volume in the Birthplace.

Again, in 1861, the bust was treated by Mr. Simon Collins, a picture restorer, “who with a bath of some detergent” removed the white paint. He found under it sufficient traces of the restoring colours of John Hall, to reproduce them again on the old lines. The only person whom I have known to have seen it in both conditions was Professor David Masson, and he said that “he had to confess *he* preferred it *white*.” Halliwell Phillipps said in his fourth edition, 1886, “that the 1793 painting was injudicious, but did not altogether obliterate the semblance of an intellectual human being, which is more than can be said of the miserable travesty which now distresses the eye of the pilgrim.” The only really fresh remarks that have been made on it were by Dr. Keith (see “Morning Post” and “Birmingham Post,” 10th April 1914), when he estimated by anthropometric calculation of the shape and size of the skull, from which branch of the human race the poet was likely to have descended.

This was all that I had been able to find before this postscript went to press. Some hard-working student in future may find more, and give us further reasons for making up our minds.

Fortunately, before I corrected proof, Mr. Dugdale of Merivale returned from abroad, and kindly allowed me to see the volume of Sir William Dugdale’s Diary which contained his own special drawings for the tombs in Warwickshire Churches. Among these are, as I expected, Shakespeare’s Tomb. It teaches us many things. Sir William Dugdale was not an *artist*, but an Antiquary. He did not attempt to carry over the *expression* of the human countenance, even as represented in Stowe, but he was very careful as to significant details. He works with slow and careful pen-and-ink touches. Many of the “proofs” of his untrustworthiness vanish in the study, and a new element in the question is introduced, the art of the *engraver*. One of the objections brought against his rendering was the spelling of “Judicyo” in the engraving. Dugdale himself, however, renders it “Judicio,” both in his drawing and in his copy of the epitaph by its side. The monument is important, the bust has some of the faults of the engraving. The hands are quite as clumsy, but the cushion on which they rest is not nearly so high or so woolly. The face is older even than that of the engraver, who really improved the *expression*, possibly after a personal visit. The moustache falls naturally down. The face, as Dugdale draws it, is not so far removed from Rowe’s rendering as might have been expected after “ruin and decay”

had injured the outlines. And I was surprised to find that what had proved my own stumbling-block, the lines of the cloak, *are drawn by Dugdale as they appear to-day*, and the engraver must have carelessly altered the sartorial effect.

The greatest “*proof*” of Dugdale’s inexactitude, so triumphantly brought forward by my opponents, is utterly extinguished by this volume. The drawing of the Carew Clopton Monument does not appear in the Diary, which means, that *the Clopton family, and not Dugdale, was responsible for its drawing and its inaccuracies*. He only drew those which had not been sent on to him by the families whom he had invited to do so. He evidently thought Shakespeare’s Monument, though not sent on, specially important, and did it carefully himself. The present Mr. Dugdale thinks, from its position in the volume, and from some notes in the Diary, that it therefore was one of the latest of the drawings before the final publication in 1656. I have to thank him warmly for his help, which has satisfied somewhat my hunger for truth. These facts, with due attention to the contemporary letters about the restoration in 1746-9, given in Note XIII, conclude all I have to say concerning the Shakespeare Monument.

FOOTNOTES:

[27] Halliwell-Phillipps knew of the alterations and doubted the exact likeness of the present restoration to the old, but as he says nothing but what Abraham Wivell said before him, and did not notice the difference in Dugdale’s print, I have not brought him into the necessarily contracted space of this article.

[28] Perhaps the most amusing entry is in the bill from Elizabeth Wheeler. “Lost a pigg when the Earl of Essex passed by worth 4/.”

[29] New Place had been bought by Sir Edward Walker and given to his daughter on her marriage with Hugh Clopton. Henry Talbot, her son-in-law, sold it to Rev. Mr. Gastrell.

XIV

SIXTEENTH CENTURY LOCKS AND WEIRS ON THE THAMES

The use of steam, steel, and electricity has changed not only the methods of travelling, but the appearance of the highways of the country. The facilities of transit have enormously multiplied the number of travellers and the quantities of goods consigned. We have been taught to picture the difference between the railroad of to-day and the highway of the sixteenth century—deficient in construction and beset by highwaymen, who lay in wait (as spiders watch for flies) for the saddle horses, pack horses, and lumbering cars and carriages of the time. Sometimes the difficulties of the road were artfully made or increased, so as to bring the prey more easily within reach of the spiders.

But there has been little or no attention paid to the changes on another highway—a Queen's highway, under Elizabeth as well as Victoria—I mean the royal river of Thames. I started on the subject years ago, because I thought it more than likely that Shakespeare had travelled between Oxford and London by water, and I desired to understand the appearance the river would present in "Shakespeare's England." Harrison does not speak of it, nor do novelists romance of it. The passage would not be made in the light skiffs that to-day lend themselves to the picturesque and ideal, in quite dream-like motion through an Arcadian land, apart from the hurry and scurry of everyday life, where all seems peace and joy, and the only modern representative of the old dragon is the snorting steam-yacht that churns the water. Not such a Thames could Shakespeare see, not such a passage could Shakespeare know—but a descent in heavily-laden barges on a busy stream, more cumbered with dangerous locks and weirs than it is to-day, at each of which was a struggle for life and property, and probably a battle with the lock keepers "who sold water."

From the earliest recorded times there had been a war waged on the waters of the Thames between landed and vested or local interests and

travelling or commercial requirements. One of the clauses of Magna Charta determined “that all locks and wears should be utterly pulled down,” a clause expanded and enforced by every succeeding sovereign who confirmed Magna Charta (see M. C. Hen. III, c. 23; 25 Ed. III, st. iii, c. 4; 45 Ed. III, c. 2. In 21 Ric. II, c. 19, there is a recital of the Act of 25 Ed. III, st. iii, c. 4).

The Commons shewing by their petition that the passage of boats in the Rivers, and also Meadows, Pastures, and Arable Lands adjoining the said Rivers be greatly troubled, drowned, wasted, and destroyed by the outrageous inhansing and straitening of Wears, Mills, Stanks, and Kiddles of old Time made, and levied before the time of the said King Edward, son to King Henry, whereof great damages and losses have oftentimes happened to the people of the Realm, and daily shall happen if remedy thereof be not provided: It is accorded and stablished, by the Assent aforesaid, that the said Statutes in all their articles shall be firmly holden and kept, and also duly executed.

The statute also provided that, if any freeholder had an old weir erected before King Edward’s time, and the Commissioners of the Thames desired him to improve it, he should do it at his own cost. No new ones were to be built and no old ones enlarged. This was confirmed 1 Hen. IV, c. 12; enforced 4 Hen. IV, c. 11, with new reference to the destruction of young fish; confirmed in 1 Hen. V, and in 2 Hen. VI, c. 12. “Because of much mischief done in destruction of people, ships, merchandise, fry of fish in the river of Thames without the bounds of London.” In 12 Ed. IV, c. 7, and 14 Ed. IV, the statutes again were confirmed against “Wears, Fishgarths, Kidels, &c., by Thamys,” which were reconfirmed in 11 Hen. VII. But it may be noticed that the statutes did not affect those weirs privileged by ancient rights or by royal possession. For instance, in the “History of Oxford,” by William Henry Turner (p. 54), there is given the Act 17 Hen. VIII (25 Sept.) for the regulating of the flood-gates, etc., of the City Mills; and in the June of 1545 “at a council held 24th June, 37 Hen. VIII., yt ys agreed that a certen lokk, lately erected, and called Ruly Myddell Lokk, shall be stopped upp, so that Mr Doctor Owen and his assignes shall not drawe the same and torne the water from the Kynges Mylle of the Cyty of Oxford; and also that all other sluces and lokks belonging to Ruly shall be

stopped at such tymes as nede shall requyer to cause the water to have hys right course to the seid mylls,” p. 177. All the inhabitants were bound to grind their corn at “the Castle Mills,” p. 179. At the putting down of the monasteries, Oseney Abbey was leased to William Stumpe, Clothier, of Malmesbury, and “the Mylles, the Waters, with the fyshyng, apperteyning to Oseney, with the benefits of the water of Ruly, to helpe the mylles of Oseney.”

In the Harleian Manuscript, 2084, f. 165, there is a record of discussions about the mills and weirs of Chester, 1607, and precedents were brought forward showing how divers had been “presented” for obstructing the Thames, and had been acquitted. This shows that in Easter, 3 Hen. IV, John Shelforde, Lord of Gatehampton, held one lock on the Thames and one at Rumford, Berks; and the “Priorissa de Goring” held one weir in the same river. In 5 Hen. IV, Thomas Camoys narrowed the Thames at Chiselhampton, and in 6 Hen. IV, Elizabeth, Prioress of Goring, proved that all her predecessors had a right to a lock on the Thames.

In Stow’s Survey, Book I, p. 30 (ed. 1598, revised by Strype), he says of the Thames, that “it is lamentable to see how it is and hath been choaked of late with lands and shelves by the penning and wresting of the course of the water for commodities’ sake”; and at page 39 he speaks of Bishop’s complaints.

I had found these and several other manuscripts on the subject in the British Museum, before I turned to Stow. They seem to be the same that he referred to; but the originals are so interesting, both to the historian and to the lover of the river, that, as they have never been reproduced, I think it would interest all to read the words themselves. The first “complaint” does not seem to have been preserved, but the “reply” appears in Lansdowne Manuscript, XVIII, 62, endorsed “The Reasons of the Mylls, Locks and Weares to be uppon the River of Thames, 1574.” It runs thus:

A declaration of what is to be said and proved for the maytenance of Mylles, Lockes, and Weares, within the River of Thamys.

Fyrst the said Mylles, Locks, and Weres were erected and made, and so have contynewed for manye hundred yeres beyonde the memorye of anie man nowe livinge, without any challendge or interrupcion. The Lawes and Statutes of this Reallme, whereof the

last was made in the XIIth yere of Edward the Fowerth that towcht the Reformation of Locks and Weares, extends onelie to such as then were erected, to the disturbance of barges and other vessells, whereas at that tyme there was no comon passaige for barges, so farre as Marlowe or Byssham, as it is upon vehement presumpcion thought. And it is further to be moost manyfestlie proved that within the memorye of such as be yet liveinge, there were not above the number of fower barges, that passed so ferre into the Ryver of Thamyse as the said Marlowe or Byssham. And that such as then so passed were not above half the burden of such as nowe comonlie passe by the said River, beinge neare abowte the number of three score.

Item, it is most certeyne and true that such inconsiderate people, and namelie of the said Bargemen as wishe or desier the decaye or pulling downe of the said Lockes and Weares, desier therein but their owne greate hindrance, or rather undoinge, considering that it is most manifestlie to be proved, that without the said lockes and weares they could not passe. And that many tymes, and specyallie at lowe waters, they are inforced to desier the shuttinge of the said Locks to thende to convey water for the removinge of their barges when they are sett on grownde. And it is also very certeyne that if the said weares should be pulled downe there be such quantities of chalke and other rubbyshe therein, as that by the losinge thereof, such hills would growe in many places within the River of Thamyse, as that a small bote in many places thereof would hardly passe.

Item, that in case the said passaige should be disturbed, yt should not onelie tende to the greate lett and hindraunce of the Queenes Maties. provision and of her Highnes Cyttie of London, but also of divers of her subjects and people.

Item, that the provision for gryndynge of a greate parte of the Inhabitants corne within the counties of Bucks, Berks, and Oxon, resteth upon the mylles, that ben scituate and beinge within the said Ryver, which, without the said Locks and Weares could not be mainteyned, or grynde anye thinge, which, in case they did decaye, shoulde tende to be to the greate losse and hindraunce of the said

inhabytaunts, who without the said mylls should be to seeke where to grynde their corne.

Item, in all the commissions of Sewers, that in anye aige or tyme have been awarded, theis Mylls, Locks and Weares were never thought to be within the precyncts of anye Lawes or in anye respecte meete to be reformed.

Item, that the said Mylles, Lockes and Weares are the inherytaunce some of the Queenes Highnes, and others of dyvers personaiges, wherein, if any disorder were, the same is to be reformed by the ordinarye proceedinge of the Queenes Maties. Lawes and not otherwise.

In Lansdowne MS., xxx, 16 and 20, are preserved two petitions which are entered as if in the same year, but which can be seen, from slight differences among general resemblances, not to be exactly contemporary. The one was probably written by John Bishop, the other certainly was so. "To Sir William Burleigh, Lord High Treasurer," the first complaint is presented of the dangers, and a list is given of "the holders of the locks and wears, and of the Keepers of the same, which sell the Queenes Majesties watter in the same river."

The number of locks given is twenty-five between Maidenhead and Abingdon, and the paper is indorsed by another hand "Sept. 6, 1580." The second is addressed to "Sir William Cecill, Lorde High Treasurer," and more forcibly brings forward the danger and losses of property and life of the Queen's subjects; being signed by "John Bishop, 1580." The list varies in number, as there are thirty-six mentioned; and there are several slight variations in facts, and many in detail. The parish of each is given, and the names of the owners have a genealogical interest. Rea Locke belonged to Harry Merrye, a yeoman of the Queen's Chamber; Hedgeworth Wear to Hugh Cotterell. Marlowe Locke, belonging to Thomas Farmer, gent., is by all reckoned to be the most dangerous.

Temple Locke belonged to John Brinkys, gent., and Newe Locke to Mr. Bowde and Mr. Lovelace; Mr. Scroope's Locke at Hambledon was "kept by Thomas Bulter, a seller of water"; Fraunces Stonor, gent., at the Marsh, held one locke, and Robert Wolley, yeoman, another; Bowney Weare (Mr. Anthony Elmes), Waregroves Weare, Shiplacke Weare followed; Sunning

Locke, belonging to Mr. Richard Blunte, was kept by two sellers of water. Then came Cawsam Locke, Chansey Weare; Mapledurham Locke, said to belong to Mr. William Blunte in one petition, and to Mr. Michael Blunt in the other; Whitchurch, to Harry Knappes in both; Harte Lock, Goringe Lock, and another, owners unnamed. Cleve Locke was the Earl of Derby's; of South Mill Weare the owner is unnamed; North Stock Weare and Wallingford Lock belonged to Raphe Pollington, another locke and Benson Locke belonging to Robert George (one of the keepers being named Jacob Buishoppe). At Little Witenham, a locke and two weares, one owned by Edmund Fettiplace, the other by Mr. William Dunshe; a weare at Long Witenham, belonging to Widow Sanger; Thomas Trullock's Lock of Appleforde; an old, ruinous wear belonging to Clement Dabnet; two locks and one weare, called Sutton Weare; Collombe Weare, belonging to Edward Wilmott, gent.; Abingdon Locke, "being Mr. William Blackmanne's Locke"; three locks, at Newnam, Samford Locke, and "Ifle Lock, being kept by one Mrs. Pitte." "Every one of these being most perillous for all passengers, and the Kepers of every locke making sale of the water, keping the same severall which ought to be comon to all her Mat^{ies} subjects, and whereunto in truth they have noe right."

The petitioner then goes on to state, and mentions witnesses ready to prove, that fifteen men had been drowned within four years, and all their goods lost, and begs his lordship's earnest attention to this serious state of affairs. Neither of these petitions seems to have been very successful. Local interests had outweighed travelling necessities.

But Bishop was not crushed. He designed a more elaborate composition on a larger sheet of paper, and addressed it directly to Queen Elizabeth herself. Believing in her poetic sympathies, he wrote it in verse, which, though nearly as bad as it could be, was full of earnest feeling and a certain original quaintness. He spoke movingly of the "exceeding loss and spoil" of the goods and commodities of poor men, of £300 a year spent by them in buying water, of the "murthers" of Her Majesty's loving subjects, and of the sorrows of many woeful widows and fatherless children. Twenty men had been drowned during the last seven years. The great wrongs he had seen had moved his heart to write. He had previously complained to many and found no remedy, though good laws had been made by many kings "against the mills, wears, and locks that doe annoy this worthie streame." Some men

neither care for laws nor for drowning men, and have no fear of hell before their eyes. The worst of these is Thomas Farmer, who is as great a persecutor as Pharaoh. To the widow of one drowned at his lock he had given, in lieu of life, the sum of 5s. Another man had been cast into prison by him for complaining, but had been drowned in his lock at last. Farmer's Lock at Marlow alone has cost the poor bargemen a thousand pounds and more. The water falls so high it often sinks ships and men, and it is a wonder any escape. Four City aldermen had come to view it, and Bishop refers to them in proof of his words. He is willing to die if they be proved false. He had complained four years or more before to the Lord Treasurer in vain, and since then seven men had been drowned. For his interference Farmer had tried to work him mischief, and had complained of him to his captain, whom he loved much, but who had apparently dismissed him. Bishop was well acquainted with the perils of the river. He brings them before the notice of the Queen because he was her faithful subject born; and the murder of her people, and loss of their goods, was her loss. He was sure that if she knew the truth her merciful heart would find means to help, and that she would command the Lords that understood the Laws of Parliament to look into the matter before more blood was spent.

He then gives a list of the men that had been drowned, and another of his witnesses. This is signed by him, and is endorsed 13th October 1585.

I have been able to find out nothing more about Bishop than what he himself relates. If really *born* a subject of Elizabeth's, as he states, he could not have been more than twenty-seven years old; he was evidently a bargeman, and Farmer had undone him by complaining of him to his "captain." The lock-keeper at Benson is Jacob Bishop, and may have been a connection. About Fermor more may be known. The Archaeological Institute of Oxford in 1850 published "The expenses of the Fermor family on the death of Thomas Fermor or Farmer of Somerton, County Oxford, who died Aug. 8, 1580." If he was the "Pharaoh" above alluded to, there is some discrepancy in the dates assigned to the petitions. An official answer sent up to this petition is preserved in Lansdowne MS., xliv, f. 40, but it is in such an imperfect condition that I could only understand it by collating it with the paper of 1574, already referred to, "Reasons alleged for the maintenance of the Locks, Wears, etc., on the River Thames, 1584." They are of as great antiquity as any town or village; that many of the inhabitants

of the villages between Maidenhead and Oxford would not know where to grind their corn without them; that the water is preserved for the passage of barges; that, notwithstanding divers laws made for the advantage of ships and barges, “yet were the milles, lockes, and weares never impeached as things repugnant to lawe or offensive to the Commonwealth before one *Busshop* begonne outrageous attempt therein.” That, though they number in all about seventy, they are in part the Queen’s royal inheritance; that the residue are the inheritance of others of the subjects of the Queen, having only a way for the passage of herself and her people through the said Locks. Touching Marlow Lock, that it was as well maintained as it had been in any age past. This lock had been obtained from the Queen in the tenth year of her reign, and had been as carefully used as it ever had been, as may be proved by depositions taken before the Commissioners of Sewers, and preserved in the Star Chamber. The Causes that the passage of this Lock has become so much more perilous are, that the Barges are laden with greater burdens than formerly, sometimes nearly double. They used to carry eight or ten loads, now they carry twenty loads; they lade and unlade with little care; and are often up and down so late and so early that they cannot see where they are going. “They commonly observe neyther Sabbath dayes nor other dayes, besides many evil demeanours too long to narrate”; the number of barges has increased from ten or twelve to about forty.

The statements of Bishop about the men drowned are criticized, and opinions brought on the other side. The accidents were often caused by neglect of the watermen’s duties, and the lock-keepers often helped them in ways that could not otherwise be provided for.

Another perplexity not much alluded to in these papers arose from the fact that, though the bed of the *stream* was a highway for the people, the *banks* belonged to the owners of the adjoining lands; hence many struggles between the bargemen and landowners over the use of the towpaths. In 1605 (3 Jac. I, c. 20) it was decreed that the Lord Chancellor might appoint commissioners to clear the Thames so that it might carry barges to Oxford and beyond, cutting down the banks if necessary. In 21 Jac. I, c. 32, fuller powers were granted them. They were to make compensation to owners of land required, and to assess the University and city of Oxford for reasonable sums; and as the passage up against the stream made it necessary that the barges “should be haled up by the strength of men, horses, winches,

engines, &c., that it should be lawful for them to use the banks” for this purpose, if they did no harm. The ancient right to tow on the Thames had been brought forward in a case heard before Lord Chief Justice Popham as to a similar right upon the river Lea, which was contested (State Papers, Domestic Series, 1594; see Calendar, pp. 499-501).

John Taylor, the self-styled “water poet,” a contemporary of Shakespeare, though writing a little after his date, published in 1632 “A description of the two famous Rivers of Thames and Isis ... with all the Flats, Shoales, Shelves, Sands, Weares, Stops, Rivers, Brooks, &c., as also a discovery of the Hindrances which doe impeach the passage of Boats and Barges between the famous University of Oxford and the City of London.” Taylor commences by regretting the death of Lord Dorchester, who had determined to make the river passable, and then enumerates the dangers and difficulties in verses and spirit somewhat resembling those of Bishop’s petition. He refers to “learned Camden, Speed and Holinshead, and Drayton’s painfull Poly Olbion,” and then describes his own journey down. At Sutton Lock they were nearly upset, the water fell with such violence; after Cullam they ran aground; at Clifden there were rocks and sands and flats; and everywhere were shoals and piles. More than once a sunken tree nearly cleft his barge. Near Goring the party was entertained by “Master Cotton,” and near Henley by “Judge Whitlocke.” The river did not want much repair below Staines Bridge, for that was under the power of the Mayor of London. To Taylor also Marlow Lock was the worst, though he anathematizes many others:

Shall Thames be barr’d its course with stops and locks,
With Mils and Hils, with gravell beds and rocks,
With weares and weedes, and forced Ilands made
To spoile a publike for a private Trade?
Shame fall the doers, and Almighty’s blessing
Be heaped upon their heads that seek redressing.

Thus John Taylor ends, like John Bishop. [\[30\]](#)

These old discussions are interesting, not only to the historian and antiquarian, but to engineers and boating men of to-day, as they have never

been collected, and the Thames Conservancy have no papers of so old a date.

The old system of “flashing” was probably the method used in those days at the locks mentioned as dangerous. The chamber-lock is said to have been invented by Leonardo da Vinci in 1497, but there is no clear notice of the date of its introduction into English rivers. The beautiful mechanical invention of working the sluices lately placed at Richmond Lock opens a new era in the river navigation, and under the Thames Conservators the dangers of the water are reduced to a minimum. But we must not forget that, but for the outlet of the railway and the high-road, and the relief of the heavy traffic carried thereon, this waterway would present a very different aspect to-day from that which so often soothes the worried, rests the weary, and calms the troubled soul.

“The Field,” 9th February 1895.

FOOTNOTES:

[\[30\]](#) I reproduced the whole of Bishop’s poem at the end of the fourth volume of Harrison’s “England,” edited by Dr. Furnivall.

XV

THE FRIENDS IN SHAKESPEARE'S SONNETS

I take it, until proof yields a better date, that Shakespeare came to London in 1587. We know nothing definitely about him, until 1592, when Greene's address to his fellow actors makes it clear that some time before that date he must have turned to the stage as a profession, and must have achieved some degree of success, for Greene bitterly describes him as "an upstart crow, beautified with our feathers, that with *his tiger's heart wrapt in a Player's hide*, supposes he is as well able to bumbast out a blanke verse as the best of you, and being an absolute Johannes factotum, is in his own conceit, the only Shakescene in a countrie."^[31]

When Shakespeare had come to London he had found theatres built, players performing, and dramatists writing for them, Lyly, Peele, Lodge, Greene, and Marlowe, who, had Shakespeare never come, would have been the greatest of all. But Shakespeare did come, and developed the perfect flower and fruit of the English Romantic Drama.

This remark would have been irrelevant to the subject in hand, but that I hold that the poet bore the same relation to the sonnet that he did to the Drama.

The Sonnet was not, as the Drama was, of native growth; it had been imported from Italy early in the century by the Earl of Surrey and his friend, Sir Thomas Wyatt. They did not closely adhere to their Italian models, but varied them somewhat to suit the English language and taste. They had a group of courtly imitators, and various miscellanies appeared of verses, often but loosely called "sonnets," poems written to be said or sung, which we now would rather call lyrics.

There were "The Court of Venus,"^[32] much reprobated by serious writers, no copy of which has come down to us, "The Newe Court of Venus,"^[32] which seems to have been an attempt to improve the old songs in tone, while adhering to their form, some of the verses having been written by Sir Thomas Wyatt himself; "The Book of Songs and Sonnets,"

1557, or “Tottell’s Miscellany,” a collection chiefly of poems written by Wyatt and Surrey, but also including some of the works of their imitators. We know that Shakespeare had read this volume, because he gave a copy to Slender (“Merry Wives,” i, 1).

It is interesting to know that Van der Noodt published a series, avowedly translated from the sonnets of Petrarch and Du Bellay, a translation of which, into English, in blank verse, was produced by Spenser in 1569, which were included in his works in 1591. Spenser’s “Shepherd’s Kalendar” came out in 1572.

The most important later miscellany was “The Paradise of Dainty Devises,” 1576, which we also may be sure that Shakespeare had read.

The harbinger of the new harvest of Elizabethan Sonnet Literature was Thomas Watson, who, in 1582, published his “Hecatompethia, or the Passionate Century of Love.” Two points may be noted concerning this: (1) That he named each sonnet a “Passion,” which explains Shakespeare’s use of the word in the phrase, “The Master-mistress of my passion;”^[33] (2) that W. C., in his “Polimanteia,” 1595, in a marginal reference, not very clear in its bearing, said, “All praiseworthy Lucrecia, sweet Shakespeare, wanton Adonis, Watson’s heir.”

Puttenham’s “Art of English Poetry” was printed by Field, 1589. The first three books of Spenser’s “Faerie Queene” appeared in 1590, and Sir Philip Sidney’s “Arcadia” in the same year, which, quite as much as any sonnets, affected the thought of Shakespeare’s early works.

In 1591 was published Sidney’s “Astrophel and Stella,” with some of Daniel’s Sonnets, and in 1592 Daniel published a collection of “Sonnets to Delia,” after French models, dedicated to Sidney’s sister, the Countess of Pembroke. At the same time Henry Constable brought out “Diana: the Praises of his Mistress in certain Sonnets,” and “Four Letters and certain Sonnets” were published by Gabriel Harvey, the friend of Spenser.

Here I must pause, having reached the time of Shakespeare’s proved association with the Stage, in order to trace his career up to that date in his private life, and make clear my reasons for my main proposition concerning the necessarily early date of the Sonnets. Starting with Shakespeare’s arrival in London we must remember that the traditions concerning his being

driven from Stratford by Thomas Lucy or by anybody else, can be disproved by fact and legitimate inference.

The only two facts we are sure of are, that he had married a wife and had a family before he was able to support them; and that neither his father nor he was in financial prosperity. His mother's inheritance of Asbies, which, it is clear, his father meant as the sphere of his son's career, had been lost through a mortgage and some juggling on the part of Edmund Lambert. In 1587 the Shakespeares, in despair of regaining it, had offered to sell it outright to John Lambert for another £20, and to this the poet, then of age and the heir apparent, had agreed, but that the money had never been paid is clear from later litigation.

We cannot *prove* to the sceptical anything concerning the poet for the next five years. But as Tennyson's lover says of Maud,

I know the way she went
Home with her maiden posy,
For her feet have touched the meadows
And have left the daisies rosy:

a student may, with the fine sense acquired by patient loving study, read signs into known facts as clearly as that of Tennyson, that the morning daisies and buds when trodden on, lay their crimson under petals to the side, and the path is *really made rosy*. Our poet's path may be traced in printer's ink.

I believe that Shakespeare went to London in 1587 hoping to earn his fortune there, but that his plans were somewhat guided by business concerning this desired arrangement with John Lambert. There is little doubt he would first go to take counsel with Richard Field, the apprentice, who was about to become the son-in-law and successor of Thomas Vautrollier the great French printer. But the following morning, when he started on his mission, I venture to put forward a suggestion that his footsteps took a very different direction from what has usually been accepted; indeed, that Shakespeare began by seeking his fortune not at the play-house, but at the Court!

I find that a John Lambert, possibly the poet's cousin, was a Yeoman of the Chamber at the time, and young Shakespeare might have hoped to persuade him to agree to the payment of that extra £20, or make up for it in Court influence. Why not? John Arden of Park Hall had been Esquire of the Body to Henry VII, his younger brother Robert, Yeoman of the Chamber to Henry VII and Henry VIII, his nephew or relative William held the same office to Queen Elizabeth down to 1584, and his son Robert was associated with him; John Scarlet, so friendly with the Ardens of Wilmcote, had been also Yeoman of the Chamber; Roger Shakespeare had held the same office in the reign of Mary, and Thomas Shakespeare was the Royal Messenger, at least down to 1575, possibly later. William Shakespeare was a man of good appearance and of manly courage, the two essentials for the post; he may have had many introductions, and evidently had high hopes. But he failed. We may realize his feelings during his first months in London by his works. It was not Hamlet, Prince of Denmark, who had learned by personal experience:

Who would bear the whips and scorns of time,
The oppressor's wrong, the proud man's contumely,
... the law's delay,
The insolence of office, and the spurns,
That patient merit of the unworthy takes.

The country was then stirred to its heart by the threatened Spanish invasion; gentlemen all over the country served in the ranks; it is possible that Shakespeare either served on board a ship or in the army at Tilbury, which the Queen herself went to address. If he did, he would be among the disbanded men in 1588, still seeking a post. There were men of lower rank he was almost sure to know; Sadler and Quiney, the grocers in Bucklersbury; John Shakespeare, the bit-maker of St. Martin in the Fields (not the later John of St. Clement Danes); Mathew Shakespeare, the goldsmith, who had married the sister of George Peele, the dramatist. With none of these did he seem to associate himself. But we have testimony that he did associate himself very freely with Richard Field. We see the suggestions of the books printed by him on many a page of Shakespeare's works, and reading through the signs of his familiarity with the printer's art

we may well believe that he tried to give some return for hospitality by helping Field as much as he *dared* do. There was a limit, for the Stationers' Company was very jealous of unapprenticed workmen, and fined Richard Field for keeping one. But there was nothing to prevent Shakespeare from helping in reading and correcting proof, and in 1589 Field brought out Puttenham's "Art of English Poetry," a liberal education to a would-be writer. Other special works were on Field's shelves. A new edition of "Ovid," Sir Thomas North's translation of "Plutarch's Lives," "Salust du Bartas," books on Music, Medicine, History, and Philosophy, which we can also see reflected in Shakespeare's works. I could never satisfy myself with a natural reason for the inter-weaving of Giordano Bruno's thought into the sonnets until I found that Vautrollier had printed his works, which were condemned, and he himself had to fly the country on account of them, flying, however, no further than Scotland, where the King welcomed him, and let him print his own new book "The essayes of a prentis, in the divine Art of Poesy."

From the beginning of Shakespeare's career he must have earned the epithet applied to him later by a fellow dramatist, Webster, who, in the introduction to Vittoria Corambona, spoke of "The right happy and copious *industry* of Master Shakespeare."

He was preparing for a patron by the time he found one, but he had been forced, through the stress of circumstances, to take advantage of the only opportunity which had been opened to him, that is, on the stage, where his handsome figure would recommend him, and he probably had some influence through Warwickshire acquaintances. But it would take three years at least for any one to acquire the position outlined by Greene, so we may suppose that he entered the theatre as a "servitor" or apprentice in or about 1589. His work must have, at first, been hard, as he had to be trained, and from the Sonnets it was evidently distasteful.

The consideration of all the various opinions on, and interpretations of, the Sonnets would necessitate more space than can at present be given. Writers have differed widely concerning their autobiographical value, and those who do believe them to be autobiographical, disagree concerning the identity of the persons addressed, of the rival poets, and of Mr. W. H.

I believe that the Sonnets are a source of some authority, both biographical and autobiographical, but that they cannot be interpreted in crude realism. Shakespeare was not a prose diarist of the twentieth century, but a poet on the rising high tide of the most creative period of English literature, in the first fervours of poetic inspiration and romantic personal affection. After a period of trial, during which he had been agonizing in order to live and to support the lives of those that were dear to him, he had met some one who had the supreme inspiration to encourage and to help him in the way he needed.

Many of the allusions to conversations, common experiences, and common studies, are lost to the readers of later days, but some of the links of association may be restored by careful comparison. Sometimes the poet was only treating a common theme in hackneyed phrases, sometimes he was only transmuting current philosophy into verse, But sometimes he was trying to express feelings that lay too deep for words; his love and gratitude occasionally led him to impulsive exaggerations, his susceptibility to hasty misunderstandings. He knew how “to tear a passion to tatters, to very rags,” when his thoughts hurtled against each other from their very abundance and exuberance. But the twined threads of biography and autobiography are there, on which to string the pearls of Shakespeare’s thought. These threads can only be wound round the neck of Henry, the third Earl of Southampton.

No wrong has ever been done to Shakespeare’s memory so great as the publication of what has been called “the Herbert-Fitton theory.” The only cure for this, as for any other heresy, is *more study*, patient, unprejudiced, wide-reaching, long-enduring study, not only in the direct biography of the two men, but in contemporary life, thought, and literature. The theory was only possible to a real worker like Mr. Tylor, because he neglected the Baconian scientific advice, “to search after negatives.” He only attended to facts that seemed to support his hypothesis, and turned from those that opposed it, even when laid before him. Yet he has found followers numerous enough and important enough to be combated because they blind the multitude to other truths.

The Herbert-Fitton theory assumes that the Sonnets must have been written after the arrival of Lord Herbert at Court. This was in the spring of 1598, he being then eighteen years old. We are asked to imagine therefore that Shakespeare instantly was introduced to him, immediately began to

write quatorzains, or disingenuously pretended to do so for the *first time* at this late date in the sonnet-harvest, ascribing to the newly-arrived Lord Herbert, not only inspiration, but *education out of rude ignorance*, and the guidance of his *pupil-pen*, *after* he had written, not only both of his poems, but his “Midsummer Night’s Dream,” “Romeo and Juliet,” “The Merchant of Venice,” many other plays, and some of the Sonnets themselves in other plays.

It presumes that he must have warmed up, for this inexperienced young lord, not only the same feelings that he had formerly expressed for another, but the same *phrases* that he had already *published*. The whole beauty of “*the passion*” dies out before the supposition. We cannot read the Sonnets as hackneyed imitations of past fashions. They have all the *verve* of a fresh impulse, all the ideal transport of newly discovered power, all the original treatment of newly acquired music. Little in the data fits the supposition. Lord Herbert was *not* the sole hope of his great house, having both a father and a brother; he was *not* a *fair* youth, but exceptionally dark; he wore no long locks, curling “like buds of marjoram”; his breath could hardly have exhaled the odours of flowers (S. 99), seeing that a diarist states that his chief comfort was in the use of *tobacco*.

The lady with whom he was associated has been proved, on the other hand, to have been, *not* dark, but fair, *not* married and old in the world’s ways, but a bright young foolish girl of twenty-two, a favourite of the Queen and the Court, over-impulsive and credulous certainly, and probably vain and ambitious. But it was one thing, in the lax customs of the times, to become entangled with the handsomest and richest young bachelor of the Court, under the evident expectation of matrimony, and another to have risked her good name in going forth to tempt, with experienced wiles, in her even earlier years, the somewhat well-balanced heart of a middle-aged play-actor and moralist. What the propounders of this theory make of Shakespeare’s manliness or morality it is hard to say. An unwarrantable stain has been thrown on the girl’s character because Will Kemp, one of Shakespeare’s company in 1600, dedicated to her his “Nine Days Dance to Norwich.” But his lack of the supposed intimacy is shown on the title-page by the error even in her Christian name. The dedication was quite a natural one from the best dancer on the stage to the best dancer at Court. In the famous “Masque of the Nine Muses,” performed at Court at the marriage of

“*the other Lord Herbert*,” “Mistress Fitton led, and went to the Queen, and wooed her to daunce. Her Majestie asked her what she was? ‘Affection!’ she said. ‘Affection?’ said the Queen, ‘Affection is false.’ Yet her Majestie rose and dawned” (“Sydney Papers,” 23rd June 1600). Now I believe she should have said “Terpsichore,” which would account for both the Queen’s remark and Kemp’s dedication.

We are asked to believe that all the three-years story of the Sonnets had happened, and that Meres had had time to complete his notices of Shakespeare based on them, and get his book passed by the censor, and registered, *within six months*!

Finally, this theory pre-supposes that Thomas Thorpe, in 1609, would, upon the sole ground of two common initials, have taken the unwarrantable liberty of addressing in such familiar terms as “Mr. W. H.” the chief nobleman of the land, who, being the eldest son of an earl, had, from birth and baptism been designated Lord Herbert. Thorpe would not have been so short-sighted. That he was not so, can be proved from his dedications of Healey’s books^[34] to the same nobleman in 1610 and 1616. The latter I found among Mr. W. C. Hazlitt’s “Prologues,” and first published it *in extenso* in relation to this controversy in the “Shakespeare Jahrbuch,” Berlin, 1890, to show how Thorpe really dedicated, “out of what frenzy one of my meannesse hath presumed to commit this Sacrilege.”

No, Pembroke was impossible!

In Shakespeare’s poems, dedications, and sonnets the songs and praises were—

To one, of one, still such and even so.—S. 105.

and that *one* was the Earl of Southampton.^[35] His life and character alone provide all the essential desiderata; his dates alone fit into the chronology of the sonnet sequences and give Shakespeare his natural place in the history of literary development; his life alone gives a natural and unstrained account of “Mr. W. H.”

We do not know the exact circumstances under which Shakespeare met the Earl of Southampton.

Probably the young noble, in an outburst of sympathetic admiration and gratuitous criticism, greeted him with easy patronage on the stage, said to him, "You ought to learn to write poetry for yourself, come, and I will show you how," took him home, gave him some more or less good advice on accent, manner, dress, law, literature, versification, and courtly tastes, for which posterity is grateful to him. Kind offices, on the one hand, were responded to by gratitude and adulation on the other. Hardly had Shakespeare been introduced to the Earl than he was made acquainted with the skeleton in the closet. To understand this we must turn to the fortunes of Southampton, or rather, in the first place, to those of his mother. For he was essentially "his mother's boy," though no critics have followed out her career in relation to Shakespeare's environment. She was the daughter of Anthony Browne, Viscount Montague, and Jane, daughter of the Earl of Sussex. Her grandfather, Sir Anthony Browne, was considered the handsomest man in the country in Henry VIII's time, and all the family were noted for personal beauty. She inherited a goodly share, as may be seen by her portrait, taken in 1565, at the age of thirteen, when she married Henry, second Earl of Southampton. This is now in the possession of the Duke of Portland at Welbeck.^[36] It probably hung on the wall of Southampton's home in Holborn when Shakespeare sung:

Thou art thy mother's glass, and she in thee
Calls back the lovely April of her prime.—S. 3.

Her elder son had died before his father, her second, Henry, had become sole heir to his great house when he was eight years old. He seems to have inherited, not only her beauty and her natural tints, as may be seen by his fine portrait also preserved at Welbeck, but to have resembled her in her characteristics. Cultured in taste, with a strong appreciation of humour, refined in sentiment, religious in spirit, she was generally able to control the self-will of her temper by a strong sense of duty, though sometimes her hasty impulsiveness verged almost on imprudence; faithful and self-forgetting in her affections, yet, through her very sensitiveness, easily

offended; Mary, Countess of Southampton, does not seem to have been very happy in her marriage. Her somewhat severe husband had conceived some unjust cause of jealousy against her after his temper had been soured by his imprisonment in the Tower for the matter of the Duke of Norfolk and Mary Stuart. She wrote to her father on 21st March 1580, "My Lord sent me word it was not his intention to keep me prisoner, only he barred me of his board and presence ... neither could I take that but in the highest degree of imprisonment, howsoever it pleased him otherwise to esteem it.... I sent what I wrote *by my little boye*, but his heart was too great to bestow reading on it, coming from me." Possibly his misunderstanding was the precursor of illness, for he died the following year (1581). He left her as bare as he could, and she wrote to the Earl of Leicester, entreating his kind offices on behalf of herself and her children, Henry and Mary. (These letters are among the MSS. of Cottrel Dormer, Esq., but being evidently misdated in the second appendix to "Rep. of Roy. Hist. Com.," I applied to the present owner, who kindly allowed me to see them.) Her son became, of course, a royal ward, and he and his great possessions were put under the supervision of Lord Burghley. Camden warmly praises Southampton, and says "he spent his young years in the study of learning and good letters, and afterwards confirmed that study with travel and foreign observation."

In December 1585 he was admitted to St. John's College, Cambridge, where he became M.A., 6th June 1589, and was incorporated of Oxford. Before leaving College he enrolled himself a member of Gray's Inn, 1587, where he seems to have studied as creditably as he had done at Cambridge.

But domestic trouble was rising. Burghley was impressed with the engaging personality, as well as the extensive possessions of young Henry Wriothesley, and, backed by a guardian's privilege, wanted to secure him for his granddaughter, Lady Elizabeth Vere, the daughter of the Earl of Oxford. The young Earl seems to have become, under the persuasions of his mother and grandfather, to some extent, engaged. It was a suitable marriage in every way, had but the young people loved each other.

The poor Countess had been handicapped in the battle of life, because her husband's family and her own, as well as she herself, had persisted in the expensive indulgence of exercising the rites of the Catholic religion. She well knew the enormous advantage it would be to the family to be known to

be “connected with my Lord Burghley,” the “searchings” and “fines” it would help her to evade, the public offices it would secure to her son.

She urged him to complete the arrangements, his grandfather urged him, too. Perhaps, because of the very urging, the burden of matrimonial responsibilities became more and more distasteful. Dreams of military glory under his admired Earl of Essex disturbed his studies in old Gray’s Inn. Burghley began to make inquiries. He could not understand how any young man in his senses could refuse such a splendid offer, or even hesitate in accepting it. He suspected interlopers. He fancied that Sir Thomas Stanhope might be trying to win him for his daughter; but that gentleman wrote a long and very full explanatory letter to Burghley on 10th July 1590, clearing himself of any such treacherous presumption.

The Countess had, it is true, gone with her son to see Mr. Harvey, who lived next door, and he had asked them to sup with him, that was all. Lady Southampton had told him “She knew what a stay you would be to him and to her ... in good fayth she would do her best in the cause.... She did not find a disposition in her son to be tied as yet; what will be hereafter time shall try, and no want shall be found on her behalf.” Burghley seems next to have consulted Viscount Montague, who replied on 19th September 1590 from Cowdray that he had “tried as orderly as he could, first to acquaint his mother, and then himself with your lordship’s letter, his lordship being with me at Cowdray....” His daughter had told him that she did not know of her son’s fancy having changed to any other maiden, and the youth had replied that “Your lordship was this last winter well pleased to yield unto him a further *respite* of one year to ensure resolution in respect of his young years.” I told him that the year was almost up, and said “that it was natural your lordship should wish to have the matter about his granddaughter settled.” The most he could get out of his grandson was a promise that he would himself carry his answer to Lord Burghley, and Montague arranged that he and his daughter should take him to London at the beginning of the term.

On the 6th of October Southampton completed his seventeenth year. He took, if he did not receive, another “year’s respite,” and on 2nd March following, 1590-1, he wrote from Dieppe to the Earl of Essex offering him the service of his sword. The Earl of Essex had lately married the widow of

Sir Philip Sydney, much to the Queen's wrath, and he was in some trouble himself. He did not risk accepting the offer of the Royal ward.

Southampton was recalled to London, and *then*, in the April of 1591, he probably first met, at least as a friend, that inland-bred actor, who so strangely fascinated him, and soothed him somewhat in his regret at being forbidden to follow Lord Essex. Someone suggested to the Countess, or to the new poet himself on her behalf, that he, a married man, should try to make the young lord "Suivez raison" (the family motto of the Brownes). The most likely person to do so was the stalwart and prudent Mr. William Harvey, who had won golden opinions from all sorts of people at the time of the Spanish Armada in 1588, and who was a devoted friend of the family. If we allow ourselves to realize the likelihood of this, we find one key to the mystery of the dedication to the sonnets lying ready to hand in a place where no one before has looked for it. (See my article, "Who is Mr. W. H.?" "Athenæum," 4th August 1900.)

It was held a part of the higher culture, then, to be able to write verses and to sing them to the lute, and, as such, doubtless Southampton had essayed to do after the model of Thomas Watson at least, and we have noted what had been published by that date.

Manuscript copies of the verses of the Earl of Essex, poured forth when he wanted "to evaporate his feelings in a sonnet," would probably also be found in that Holborn home, when, in that "mutual improvement society for two," the principles of literature were discussed. The young Earl, with his beautiful expressive eyes lit up by intellectual fire, with his fair face, rich attire, gracious manners, ingenuous outlook into life and philosophy, and enthusiastic inclination to help, made a real conquest of the hungering home-sick heart of the poor player, and such a love was kindled as had not been sung since the days of Jonathan and David. It was because Shakespeare could feel as well as write that he found the sonnet silver and left it golden. Mr. Wyndham, in his splendid introduction to the "Poems of Shakespeare," leaves nothing unsaid concerning their aesthetic charm. Excepting the first few I do not think the order of the sonnets at all correct. Some critics accept the 107th as necessarily the last, and we know that those to the lady should have been sandwiched in between those to the youth if the date of production had been the principle of arrangement. Within the two series also the order has evidently been disturbed somehow.

We know that they are not all on the same level of merit; neither do I think them all constructed with the same “intention.” The last two evidently should come first, two forms of expressing the same idea from foreign sources which had probably been read to the poet by the patron.

Those to the youth were evidently intended to be sent, and were sent: the earliest ones probably through his mother. Those to the lady were written, as Goëthe puts it, “to work off a feeling,” or to shape the expression of “a passion.” The poet might have *sung* them to the lady, but he would not risk the chances of *sending them in black and white*. When the feeling had “evaporated” they would be sent in block to the friend, and thus be kept together, though possibly multiplied in copies among friends, one of whom must have proved unfaithful, or Jaggard would not have secured two by 1599.

It was doubtless with some sense of self-reproach that Shakespeare, yielding to the family arguments, turned the engines of his new power upon his patron, urging him to marry. Training and straining are both too visible in the admonitory sonnets, which smell of Sidney’s “Arcadia.” The first seven sonnets, to which I would add the eleventh and twelfth, make a sequence by themselves. The second sequence shows deepening affection, freer hand, more original conceptions. He bids the youth wed to complete a harmony, to make war with Time, and to do so “*for love of me*,” S. 10. Started as a literary experiment they developed more and more into the expression of personal feeling, and the advice to matrimony became subordinate. In the 13th Sonnet the poet first addressed the youth as “love”; in the 20th and 21st he took him as the inspiration and his muse.

A woman’s face with nature’s own hand painted
Hast thou, the master-mistress of my passion.—S. 20.

So is it not with me as with that muse
Stirred by a painted beauty to his verse.—S. 21.

It was something for a poet living lonely in London to have such a wholesome and safe source of inspiration. The young noble was vain, and there was a subtle charm in being thus sung to by one whose genius he

thought he had evoked. He listened more patiently to his poet than he had done to his mother and friends, but of course the sonnets had no effect in mending his misogynic mood. Their writer never expected they would do so, probably did not even wish it. The first double set of twenty-five was marked out by a separation which is recorded in history.

The Queen was to be at Cowdray, Viscount Montague's country house, from the 15th until the 22nd of August 1591, and the youth would be summoned to his grandfather's assistance. The Queen and Court afterwards went on to his own house at Tichfield. Special opportunities would be certain to be made for him on this occasion. Essex was not at Court, and Sir Fulke Greville and others were trying to replace him by this friendly rival. Every young nobleman of the day was trained to act in courtly devices, and much depended on compliment with Elizabeth. Shakespeare would very likely have given his "sweet boy" return lessons in dramatic art, which he is nearly sure to have tried to display on this important occasion.

During this first period of separation, as Shakespeare wrote, there had been dawning on him the conception of a poem, by which he might at once take his position in the world of letters, honour his friend's teaching, and in a somewhat allegorical fashion, after the Spenserian "second intention," show how the entreaties of Venus fall unheeded upon ears intent on other music, and upon hearts filled with other interests. I do not wish now to go into any criticism of "Venus and Adonis," but comparison makes it clear that the Sonnets were written about the same time, and addressed to the same person.

Describe Adonis,^[37] and the counterfeit
Is poorly imitated after you!—S. 51.

The work on the poem checked the supply of Sonnets. Through the next year it developed, a joy apart from the strains of the miserable time. It was a year quite black enough to colour all poor grumbling Greene's bitter spite against the "Johannes Factotum," who could both act and redact plays; a year gloomy enough to tone the picture of the reverse poem which came insistently into Shakespeare's brain to complete his "Venus" conception.

For he began to take two sides to paint his pictures even then, as he always afterwards did.

Another separation had taken place. In the autumn of 1592 Southampton was in the Queen's train at Oxford, acknowledged by all to be the brightest ornament of her Court. Probably by the end of 1592 Shakespeare sent him the completed manuscript of his poem, with the private dedication of the 26th Sonnet, before he began to arrange about the publication of his "written ambassage," bidding him keep it

Till whatsoever star that guides my moving
Points on me graciously with fair aspect,
And *puts apparel on my tattered loving*
To show me worthy of thy sweet respect:—S. 26.

that is by having it printed and bound.^[38] By 18th April 1593 the Archbishop of Canterbury had licensed it, and Richard Field had entered it as his copy in the Stationers' Registers. A more timid prose dedication faced the critical world. The poet would not shame his friend, nor commit him to anything, until he knew how the public would receive him. Then came a surprise doubtless to both of them, and certainly to others. Adonis leaped at once into popularity! I noted that before he had completed *his first Essay of a Prentice in the Divine Art of Poesy*, Shakespeare had sketched the outline of the "graver labour," alluded to in the Preface to his "Venus and Adonis." Some of the later Sonnets seem to be studies for *Tarquin*, as some of the earlier had been studies for *Adonis*. It is worth considering Sonnet 129 in this light.

The Sonnets had been affected by the appearance of "Astrophel and Stella" in 1591, and the author was probably incited by the appearance of Daniel's "Delia" and Constable's "Diana" in 1592 to new variations.

After Southampton's return to London he seems to have become interested in other poets, and to have spent some of the hours hitherto devoted to Shakespeare with other literary acquaintances. Thence sprang the allusions to the "alien pens" (S. 87), the "better spirit" (S. 80), the "proud full sail of his great verse." Doubtless the chief rival was Chapman,

who even then was doing worthy work. But he has left no notice of the Earl of Southampton until much later years. Evidently the young Earl, moved by his poet's suffering, had granted that he "was married to his muse," and had refused to become the special patron of other *poets*. Indeed, he had shown a fit of answering jealousy, alluded to in Sonnet 109. But all frictions were smoothed away, and the happy friend and triumphant poet was able to redeem his promise and to publish his "graver labour" in May 1594, expressing his love to his patron in nearly the same terms as he had used in Sonnet 26. His "Lucrece" assured his position in the literary world and cleared his character in the eyes of sober men.

I have said that I do not think the order of the sonnets correct, that the love-sonnets should have been interleaved with the others, that they had not been sent, and that they did not mean so much as they seemed to import. Nevertheless, it seems evident that in the plague year, with all its depressing influences, in the absence of his friend, Shakespeare himself had been tempted by a dark-eyed witch, a married woman, experienced in coquettish wiles. We do not *know* who the lady was. I do not think she was a *lady* at all in the Court sense of the word. Many coincidences support my opinion that she was a rich citizen's wife (some of these had been educated by wealthy fathers to the level of the culture of the time in art and music); a citizen's wife who had been married just long enough to feel a sense of ennui creep into her leisurely life, and a desire for new conquests to awake in her vain heart. Such a one he might have met in the very house he must most have frequented. I do not *know* anything about the moral principles of Mrs. Jacquinetta Field, and do not wish to bring my views as a personal *charge* against her. But she fulfilled all the necessary external conditions, and she was a Frenchwoman, therefore likely to have dark eyes, a sallow complexion, and that indefinable *charm* so much alluded to. Such a woman might very well have ignored young Shakespeare when he first came, poor and unknown, about her husband's house, But when she found him popular and making his way among the aristocracy she might suddenly have become interested in him, and tried to attract him. Other men's sonnets had taught her how to act. She tuned her sweetest music to his tastes, and played remorselessly upon her poet's heart. After the publication of "Venus and Adonis" by Richard Field, she might achieve her desire of meeting Shakespeare's Earl. She entangled him for a short time in a game of bagatelle, in order to torture her victim, though it really seems to have cured

him. And *then*, it was all over, there was no treachery, no cruelty, it was all a mistake, *a comedy of errors*. The echo of the explanations ring through Shakespeare's plays, as well as through his sonnets. A strange outside reflection of this little domestic drama seems clearly intended in "Willobie's Avis," registered on 3rd September 1594, in which Shakespeare's "Lucrece" is definitely mentioned, and H. W. and W. S. alluded to, under conditions that strongly suggest the story of the Sonnets. It shows the picture of a wonderfully admired woman of incorruptible chastity, beset by many wooers, these two among them. "W. S. determined to see whether it would sort to a happier end for this new actor, H. W., then it did for the old player." Many strange parallels between the book and the sonnets might be noted, and I have a shrewd suspicion that the dark lady herself was a moving spirit in its publication. Personalities were evidently intended and resented, and the book was "called in." But the pain of the publication rankled in Shakespeare's heart:

'Tis better to be vile, than vile esteemed.—S. 121.

In the same month as Shakespeare brought out his "Lucrece," the Countess of Southampton married Sir Thomas Heneage, a trusted friend of the Queen's, and Vice-Chamberlain of the Royal Household. Henceforth Court patronage was opened to Shakespeare, and during the following Christmas holidays, for the first time, his name was entered in the accounts of the Privy Chamber, as having played before the Queen at Greenwich. Curiously enough, on the evening of the same day, his company is recorded to have appeared suddenly amid the confusion of the Gray's Inn Revels, and to have performed "The Comedy of Errors" on the stage designed for graver concerts. This led to great trouble in Gray's Inn, and mysterious investigations, in which an enchanter was blamed. Nobody asked *who paid the players?* I have always fancied Southampton did, and that *he* introduced them, for how, without the permission of some fellow of Gray's Inn, could they have had access to the stage.^[39] Bacon was employed to write a device to "restore the honour of Gray's Inn," lost on The Night of Errors.

In two ways, both painful to the poet, during the following year, while Sir Thomas Heneage's illness absorbed the attention of the Countess of

Southampton, his young friend's name had become bandied about among the gossiping cliques of Paul's Walk. His friends, Sir Charles and Henry Danvers, instigated by personal revenge, for some cause unknown, had, in January 1594-5, taken their servants and gone out deliberately to murder two men, the Longs, which they had succeeded in doing. They stalled their horses in Southampton's stables at Tichfield that night, and when they went to London next day he rode with them and helped them to escape to France. It is very difficult to understand the meaning of this episode in his life, for the Danvers remained his friends. The other was more natural. Southampton, "having passed by the ambush of young days," at last fell incurably in love with the fair Mistress Elizabeth Vernon (the daughter of Sir John Vernon), cousin of the Earl of Essex, and Maid of Honour to the Queen. He needed no sonnets now to urge him to marry, but the Queen forbade the banns. He hovered round the Court, the "Sydney Papers" state that he was, in the absence of Essex, "a careful waiter here, and *sede vacante* doth receive favours at her Majesty's hands, all this without breach of amity between them." But it was the *other Elizabeth* who drew him thither. Hasty and impulsive as he was, "My Lord Southampton doth with too much familiarity court the fair Mistress Vernon, while his friends, observing the Queen's humour towards my Lord of Essex, do what they can to bring her to favour him, but it is yet in vain," wrote Rowland Whyte, 22nd September 1595.

This gossip sunk into Shakespeare's heart. He knew that he might be blamed by some, as the Earl's adviser, and he called him to task in Sonnets 95 and 96. After the commencement of this absorbing passion the sonnets gradually ceased. Probably Shakespeare realized that his reign was over. None seem to suggest Southampton's voyages, knighthood, marriage, or subsequent imprisonment. For the allusions in Sonnet 107 must not be confused with this.

Having interwoven many of the phrases, ideas, and even situations of the sonnets into his plays, having *thrown in* even some of the verses entire, Shakespeare's fame became fixed in 1598 by the liberal praise of Francis Meres, Professor of Rhetoric at Oxford, who noted not only the plays and the poems, but "the sugred sonnets among his private friends."

By some means, pirate Jaggard got possession of two of these private sonnets, culled those already printed in the plays, stole many verses from

other writers, among them the “Paris to Helen” and “Helen to Paris” of Thomas Heywood, and published them in 1599 as “‘The Passionate Pilgrim,’ by William Shakespeare,” eager to exploit the value of his name.

To reclaim his own, Heywood published them, as he had intended, in his “Troia Britannica,” registered before 1609. Apparently Jaggard published a second edition, probably in 1609. In the postscript of his “Apology for Actors,” 1612, Heywood complained of Jaggard’s “manifest injury,” and stated that the reputed author was much offended with the publisher for “having altogether unknown to him, presumed to make so bold with his name.”

This is interesting to us, because it is the only recorded notice of Shakespeare’s opinion of his publishers. Indeed it is just possible that Shakespeare permitted, if he did not suggest, the publication of his Sonnets, in order, by showing all that he laid claim to, at once to punish Jaggard, and protect Heywood and other injured poets. In spite of Heywood’s and Shakespeare’s protest, Jaggard brought out a third edition of the “Passionate Pilgrim” in 1612, stating that they were “newly corrected and augmented by W. Shakespeare. Whereunto is newly added two Epistles, the first from Paris to Helen, and Helen’s answer back again to Paris.” But pressure was evidently brought to bear upon Jaggard, for though this stands in the title-page, the epistles *do not appear in the text*.

To whatever cause we owe it, the Sonnets were published in 1609, long after the vogue of sonneteering had passed, by T. T., *i.e.* Thomas Thorpe, with an address to Mr. W. H. The chief battlefield in the history of the sonnets has been over the meaning of those initials. I believe, as I have said above, that they mean Mr. William Harvey.

Sir Thomas Heneage had died in 1595, leaving the Countess of Southampton the second time a widow, in trouble over his bills, and not over well treated by her friends. Shortly after her son’s stolen marriage to Elizabeth Vernon in 1598 she had promised to marry her faithful friend, now her knight, Sir William Harvey. Her action roused the indignation of her son at first, and caused discomfort among her friends. Harvey’s family and position were not equal to hers, and matrimony in a mother is sometimes inconvenient to a son. The Earl of Essex himself took the trouble to counsel her gravely. But like her son she held her own way through thick

and thin, and married Sir William Harvey that same year. She died in 1607, and it was reported by Chamberlain that “she had left the best part of her stuff to her son, and the most part to her husband.” It is very likely that a manuscript copy of “Shakespeare’s Sonnets” would be left among “the most part,” and it is quite possible that after consultation with Southampton and Shakespeare, Harvey, always a patron of letters, prepared them himself to be published.

Thomas Thorpe was too glad of the chance of becoming a merchant adventurer on the sea of publication. If, as I have shown to have been possible, Sir William had, in the first instance, suggested the writing of the early sonnets, the meaning of Thorpe’s address is clear. It was quite usual to address a gentleman as “Mr.” after his knighthood. Lady Southampton always spoke of her second husband as Mr. Heneage. Further, since the death of his first wife, in 1607, Sir William had consoled himself with a bright young bride, Mistress Cordelia Ansley, of Lee. It would therefore be perfectly consonant with Thorpe’s gratitude and his character to wish “Mr. W. H. all happinesse, and that eternitie promised by the everlasting poet.”

The “eternity” intended might have been that of a long line of descendants to keep up his noble name^[40] (for it was a Thorpe who wrote the address).

It may be urged that I cannot *prove* this. I acknowledge it. But surely an explanation so simple and one that fits so naturally into the whole known series of facts, may be justly considered and duly treated as a good working hypothesis, until something better may be discovered.^[41] And the surest way to learn more of Shakespeare is to learn more about his friends.

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vol. xxviii (read 24th June 1908).

PS.—I had embodied most of these facts in the preface to my edition of “Shakespeare’s Sonnets,” 1904 (De La More Press) and in my articles in the “Athenæum.”

FOOTNOTES:

[31] Greene's "Groatsworth of Wit," 1592.

[32] See my articles in the "Athenæum," "The Metrical Psalms of the Court of Venus," 24th June 1899, and "The Authorship of the New Court of Venus," 1st July 1899.

[33] Sonnet xx, 2.

[34] See my article, "Athenæum," March 1898, "The Date of the Sonnets."

[35] The Wriothesley motto was "Ung par tout, tout par ung."

[36] See my "Date of Shakespeare's Sonnets," "Athenæum," 19th and 26th March 1898.

[37] It is curious that the allegorical "second intention" in the poem should have been applied by Thomas Edwards, so early as 1595, to the poet himself.

[38] The plague began on 20th October 1592 and ran on through 1593.

[39] See my article, "The First Official Record of Shakespeare's Name," "Shakespeare Jahr-Buch," 1895, Berlin.

[40] He was afterwards ennobled as Lord Harvey of Kidbrooke, and Baron de Rosse in Ireland.

[41] It has been accepted by Dr. Brandl and published in his Introduction to his translation into German of Shakespeare's Sonnets, 1913.

XVI

WILLIAM HUNNIS, GENTLEMAN OF THE CHAPEL ROYAL

It has hitherto been a matter of surprise to the students of Elizabethan literature, that a writer who seemed to them so commonplace should have held such a high position in the opinion of his contemporaries as William Hunnis evidently did. This apparent anomaly set me seeking for something in the man that did not appear in his works, or appeared there only suggestively. Every dictionary that included his name added, "of his life very little is known." When I grasped the meaning of his association with the Kenilworth festivities, I realized that his life was worth working out in relation to that of Shakespeare. One thing I have been fortunate enough unexpectedly to find: the William Hunnis of Elizabeth was only a survival of the William Hunnis of Mary. Throughout the earlier reign he was the centre of a group of dissatisfied subjects, whose souls were stirred within them by the miseries of their country, and who kept plotting in a haphazard and disconnected manner until their final discovery in 1556, when severity silenced them. The Protestant doctrines and the Protestant spirit of individual independence could, no doubt, find some means of reconciling treason to a Catholic sovereign and faithfulness to a distressed fatherland, crushed under a detested Spanish oppression. His was a period of unrecognized incongruities. An imitator of Sir Thomas Wyatt the poet (d. 1542) in his first literary effort, a metrical translation of the Psalms published in 1550, it is evident that he shared in the feelings of Thomas Wyatt the son about the Spanish marriage, even if he did not join in his "plot" in 1553-4.

He was a friend of John Rogers, once Prebendary of St. Paul's, the co-worker with Tyndale in editing "Matthews' Bible," and he had seen his friend burned at Smithfield on 4th February 1554-5. A few days after he had been implicated in a plot "to kill the King and after him the Queen," while they were witnessing the "Juego de Cañas," the Moorish game of throwing cane lances on horseback, brought over here by the Spaniards, at the

wedding festivities of Lord Strange and the Lady Margaret Clifford.^[42] Whether the “gentlemen of the Chapel Royal” were to be among the mounted performers, and thereby veil their purpose, or whether they expected to take advantage of the excitement and confusion prevailing, I know not. Nothing happened. Caution overcame their courage.

It is probable this was the real foundation of the rumour of what Rapin calls “the forged conspiracy pretended to be discovered before Philip left” in September 1555. (Bk. xvi, p. 242, ed. 1733.)

The burning of four Bishops, thirteen clergymen, and sixty-seven persons this year for religion; the increasing unpopularity of Philip, his neglect of the Queen and infringement of his marriage articles; the patriotic dread of seeing England overrun with Spaniards and its troops and money drawn into the Spanish wars; all these causes had combined to deepen the general discontent. Patriotic unity was even stronger than religious bonds; and a wider conspiracy, including many Catholics, was formed at the end of the year, aided by the shifty policy of the French King, also bitterly anti-Spanish. In January 1555-6 there was a close meeting of the chief conspirators, to plan how best to remove from the treasury the money destined for Philip, and to use it in a national war against the Spaniards, the Queen among them. One of their number, John Dethicke of Westminster, proposed they should invite to join them “William Hunnis, a very handsome man.” Thomas Whyte, “he who afterwards betrayed them,” made a difficulty about admitting a stranger to their secrets, “for fear of disclosing” (doubtless the others already knew his name), and then John Dethicke answered Whyte, “We shoulde not nede to dowl this man, because before at the Jugo de Cano or Barryers, he, Allday, Cornwalle and others to the number of twelve, were appointed to have slayen the Queen’s Majestie, and after that the King’s Majestie.” Being asked how this took not effect, he said: “There was such a cowardness and fear in their stomachs when they sholde have done it, that they made scrupulnes who sholde begynne—knowing that whoever should have been ruler afterwards would have been bound to have made an example of them.” This at least proved William’s inclination to action (tempered though it was with prudence), and prepared the conspirators to welcome him. But the matter was clinched by Dethicke’s telling them that Hunnis had *already* “been aboute to counterfeit the Keys of Brigham, and stele away the treasure.” When asked how he could have

come to the handling of them, Dethicke said Hunnis was very familiar with Nicholas Brigham, the Keeper of the Treasure House at Westminster, and with his wife. His special knowledge, skill, and opportunities made him a valuable acquisition.

Shortly after, in the beginning of February, as Hunnis himself narrates in his examination, John Dethicke, “understanding that I had some skylle and practice in the syens of alchemy, and more, knowing me to be, by means of certain suites in Ireland, in many men’s dangers, debated with me in this wise, ‘Mr. Hunnis, I have but small acquaintance of you, and that which is, came of my friend, Mr. Rogers, for whoes sake and yor own, I should be glad ye should do well ... for I take you to be a constant young man.’” Thereupon Mr. Dethicke tempted him to exercise his skill in “coining” in Dieppe Castle, as the French King had promised £100,000 to aid the conspirators. Through an amusing series of conversations, in which the acuteness as well as the caution of Hunnis is evident, the various plans of the conspirators were explained, further than the “oath” of Dethicke should have allowed to a member yet unsworn. “Thereunto,” quod he, “Beshrew that head. Thou hast a cursed brain, and forasmuch thou hast so truly gessed, I put thee out of dowte that same is our intention, for the French Kinge hath promised our gents on the other syde to ayd them with shippes and vitalls and ordenance, and all that we shall require shallbe to ayd them withall.” “This,” quod I, “doth lyke me very well.” Nevertheless Mr. William Hunnis very sensibly saw the possible dangers, and desired to know what friends they were likely to have. Dethicke told him of some thirty knights, and a great many noblemen, of Mr. Bethell and Mr. Thomas Whyte, and notably of Sir Peter Carew, the fellow of Wyatt in his ill-fated rising. “He is as sure on our syde, as I have you by the arm.” Suddenly Dethicke recollected himself, and warned Hunnis that if he disclosed the names and plans he had now heard, he would soon be despatched by a dagger from an unknown hand. “Why Sir,” quod I, “what nedeth ye thus to dowl of me?” “No, fayth,” quod he, “I dowl thee not, but as friend, I willed wysh thee fyrst to be slaine so that they might have their enterprise.”

Through further examinations we find that shortly after, Bethell, preparing a ship by the aid of John Benbow, of the Chapel Royal, and others, invited Hunnis to “go a-fishing with him.” Here, too, his humour and acuteness seem to have forced Bethell to lay bare the plans of his

department of the conspiracy. "I would be loth to spend my time in fishing, I would rather go a piracying," which remark Bethell seemed to disapprove of. Nevertheless Hunnis concluded, "I would very faine go with you, only I shall not be ready so soon." Another time he asked Bethell "Do ye here of any news abroad that certen men should arrive in this land from beyond the seas?" Says he, "In faith I car not what I hear, but for myself I will be sure to serve my country truely." "And howe?" "To kepe that no stranger shall land!" "Captain, that is well said!" answered Hunnis. This was at the very beginning of March, when they met at Fleet Bridge, and the Captain, having been to buy an ensign, told Hunnis that his boat was due by this tide at St. Katharine's, and that he had harnesses and coats of mail aboard for over 109 men.

Hunnis was also consulted about the transcript of King Henry's will made by Henry Peckham for Sir Anthony Kingston, who believed that this will, properly read, and also the laws of the realm, would support the plan of the Western conspirators "to send the Quenes Highness over the seas to the King, to make the Lady Elizabeth Queen, and to marry her to the Earl of Devonshire." Kingston encouraged them all, saying, "I tell you true that the Lady Elizabeth is a goodly liberall dame, and nothing so unthankfull as her sister is, and she taketh this liberality of her mother, who was one of the bountifullest women, but you have served the unthankfullest mistress on the erth, and all she has done, has been agaynst her father, and her brother, or else to our sweet Lady Elizabeth."

Allday attempted also to win Roger Carter, one of the King's servants at Westminster, saying that Dethicke had sent him to open matters to him and to tell him that "Hunnis also was privie to the plot"; but Carter after a sleepless night had told Allday that he would have nothing to do with it, and willed both Dethicke and Hunnis "to leave all such practises, or he would turn Displayer."

Nevertheless they worked on, without telling him any more.

Constant communications went on with Henry Dudley, the Ashtons, and other gentlemen abroad; with the "Pirates" and the leaders of the movement in the West, and with the French King, for a convoy. The conspirators had progressed so far that they had entered the Treasure House on the 6th of March, and finding the box too heavy had planned to force it open, and take

the treasure in portable packages through Rossey's garden to the boat that would await them on the river by the steps on the 17th of March. On the 16th they took the final solemn oath to hold by each other, and John Throgmorton, the real leader of the London party "said he wished his dagger was in the Queen's heart, and in that of her Council." On the 17th twenty of the chief of them were arrested, and conveyed to the Tower. I know that Mr. Froude gives it as the 18th, following Machyn and others. But the "Tower accounts" of the year contain the expenses for boarding Throgmorton, Daniell, Peckham and others, and are dated from the 17th.^[43] I suppose therefore the arrest took place on the evening of the 17th, and became known to the people on the morning of the 18th. The name of Hunnis does not appear in this bill, but that only proves that he did not pay for extra diet. His name is given in Machyn's list under the spelling Heneges, which Froude misrendered into Thomas Heneage. His name appears twice on the first list of conspirators. He was captured about the same time, and lodged near the others in the Tower; his conversations upon "prudence" and "purgatory," spoken through the walls of cubicles and subdivided cells, are recorded among the confessions of Peckham. It must have been a trying time. The heat of action and the hope of success had died out of him, the certainty of danger, the dread of torture and of destruction surrounded him. Four days after his incarceration he would hear (for jailers then spoke to their prisoners) of the burning of Cranmer, while one after the other of his fellow prisoners was tortured. On the 21st of April his friend and leader, the one brave man among all the batch of prisoners, John Throgmorton, was tried at Southwark, along with Uvedale, Governor of the Isle of Wight, and they were executed together at Tyburn on the 28th. On the 5th of May, Hunnis himself was arraigned at Guildhall in company with Henry Peckham, John Daniell, William Stanton and Edward Turnour; on the 7th Peckham and Daniell were condemned, and the others afterward.

But Hunnis now disappears from *historical* notes. Whether he appealed to any rights on technical points; whether he owed his life to his being arraigned as "Thomas," instead of "William," or to the unusually difficult writing of the clerk who took down his depositions; whether his youth, beauty, popularity, talents, or frank confessions moved the hearts of his judges; or whether he was *remanded* through the interest of his old master the Earl of Pembroke, I know not. He may have been forgotten as being too *insignificant*. For two years he languished, neglected in the Tower, only to

be delivered on the death of Mary. He may have been released *shortly* before that date through influence. That the terrors and discomforts of prison life had entered into his soul, that fears of rack and execution had aged his youth, we can see from two sets of verses in “The Paradise of Dainty devices” (ed. 1596), “Being asked the occasion of his white head,” No. 4 and No. 93. In the latter, in feeble verse, and many incomprehensible phrases, he certainly gives a chapter from his life’s experience, and asserts his belief in the righteousness of his cause and in the reward of his faith in God.

(93) Being in trouble he writeth thus.

In terrours trap with thraldome thrust,
Their thorny thoughts to taste and trie;
in conscience cleare from cause uniust,
With carping teares did call and crye,
and saide O God yet thou art he,
that can and will deliver me. Bis.

Thus trembling there with teares I trod,
To totter tide in truthes defence;
With sighes and sobs, I said O God,
Let right not haue this recompense.
Least that my foes might laugh to see.
That thou wouldst not deliver me. Bis.

My soule then to repentance ranne,
My ragged clothes all rent and torne;
and did bewaile the losse it wanne,
With loathsome life, so long forlorne,
and saide O God yet thou art he
that can and will deliuer me. Bis.

Then comfort came with clothes of ioy,
whose seames were faithfull stedfastnes;
and did bedeck the naked boy,
that earst was full of wretchednesse.
and said be glad for God is he.
That shortly will deliuer thee. Bis.

Finis. W. HUNNIS.

Whether the whole period between March 1556 and the accession of Elizabeth was spent by William Hunnis in the Tower or not, we are certain he would be freed at once by the new queen, “his sweet Lady Elizabeth,” and restored to his “living” as gentleman of the chapel (if he ever had been formally deprived of it). Early in the new reign he passed through great personal sorrow, as well as joys. His friend Nicholas Brigham did not survive his Queen long. And his widow, having lost her only child Rachel before the death of her husband, married William Hunnis. His predecessor William Crane in the office of Master of the Children of the Chapel was a married man. Until I learned the fact, I had not thought the laws, or at least the customs of the time, would have permitted this. And the marriage of Hunnis was also surprising, especially in connection with the gossip of Dethicke, which implied undue familiarity between Hunnis and Brigham’s wife. Nevertheless the testimony is irrefragable. On 2nd June 1559, “Margaret Hunnis, alias Brigham, alias Wariner, wyfe of William Hunnys, gentleman of the Queene’s Majesties Chappell,” made her testament nuncupative, in which, by consent of her husband, she left to her “Cousin Francis Brigham all that her tenemente and mansion house lyinge and beyinge at Westminster, commonly cawled ‘The Allmes House,’”^[44] founded by Henry VII, and sold by Vincent to Brigham in 34 Hen. VIII. All her other goods, movable and immovable, she left to her husband, William Hunnis, whom also she named her executor. This testament was proved by Thomas Willot for William Hunnis, 12th October 1559. Her will in Somerset House is strangely involved with that of her husband, and clears up much.

Chalmers' "Biographies" and Wood's "Athenæ Oxonienses" say that "Nicholas Brigham died in his prime in December, 1559, at Westminster, leaving some MSS.: (1) 'De Venationibus Rerum Memorabilium,' a collection of notices of characters and events of which Bale has made much use; (2) 'Memoirs,' in the form of a diary in twelve books; and (3) 'Miscellaneous Poems.' None of these is probably in existence." Wood thinks he was buried near Chaucer, whose tomb he had restored in 1556. But he is in error in the date; he died in 1558, leaving, by a verbal will, everything to his wife. She was granted powers of administration 20th February 1558-9, and at least before the following June, Hunnis had married Brigham's widow. The entry among the wills, December 1559, is an objection to William Hunnis succeeding his wife, widow of Nicholas Brigham. Considerable litigation ensued in consequence of her bequests.

The young widower had, however, consoled himself within two years by marrying again. This time it was Mrs. Blancke of the Grocers' Company; through her right Hunnis became a member of the Grocers' Company, being admitted as redempcioner on 11th November 1560. Having found from the Guildhall records that he was a "Citizen and Grocer" of London, I made application to the Grocers' Company, and was allowed to search their books, where I found many details unknown before. The authority of Mr. Kingdon corroborated that evidence. On 9th May 1567, he was formally admitted to the "Livery and Clothing" of the company, the fourth among a list of eighteen citizens. He duly paid his brotherhood money, two shillings. In the year 1570 his name was entered among the group of those "dwelling at Westminster and extravagant"; and he paid four shillings for the brotherhood money for the last two years, and two shillings towards defraying the expenses of the election feast. His marriage would be all the more important to him financially as he had, with other of her subjects, to wait some time before any practical recognition of his services was rendered him by Queen Elizabeth, beyond those connected with his living. The first that I have found recorded is a patent in June, the fourth year of Elizabeth, to the office of supervisor and custodian of the orchards and gardens at Greenwich, called the "great gardyne" and the "new gardyne," to hold during his life with a salary of 12*d.* a day and various perquisites.^[45] One duty was to present the Queen with seven gallons of "sweet water" a year. I am aware that Cunningham, in his notes to his edition of the "Revels Book," asserts that this is another William Hunnis; but he had not made a

thorough search, or he would have found it expressly stated that the grant was to “William Hunnis of the Chapell.” This, therefore, connects him with various payments made “to the supervisor of the gardens” for “men gardeners and women weeders at Greenwich”; and also with the famous account for seventy-nine bushels of roses and many bushels of other flowers in June of the 14th Elizabeth, “in preparation of the Banketing Howse made at White Hall for the entertainment of the said Duke.” Not only were there to be wreaths and adornments of flowers, but the floor was to be strewn with “rose-leaves pickt, and sweetened with sweet waters,” under the supervision of Hunnis. One suggestive point in connection with this patent of supervisor I have not yet worked out; but I may mention that his predecessor in office was one Philip Innes, whom Edward VI, in the fourth year of his reign, appointed for life to this post.^[46] But in 1562 the said Philip Innes appears before Elizabeth and “renders up his office in favour of one William Hunnys,” and his patent is then cancelled. The new patent is at the side named “the patent of Philip Innes alias Hunnys,” and this is scratched out, and below is written fair “the patent of William Hunnys.” Is it possible that this Innes was his father, and that he had been brought up as a “gardener’s son”? Had he improved his name into Hinnes, in which form it appears oftener than in any other? I cannot yet say more than that the point is worth noting. In the first year of Mary there was another of the name, a John Innes, of Westminster, appointed to receive the “first almsmans room in the cathedral church of Westminster.”

Elizabeth often liked to pay her debts at the expense of other people. It was through a second grant of hers that I discovered Hunnis as a “citizen and grocer of the city of London.” In relation to the entry in Guildhall, which states in the Records, 30th May 1570, that a “reversion of the office of collection of the cities rightes, duties, and profittes, cominge and growinge uppon London Bridge, for wheelage and passage” was granted “to William Hunnys, citizen and grocer, and also master of Hir grace’s children of hir Chappell Royal,” upon letters of her Majesty in his favour.^[47]

Various difficulties had arisen from the fact that the acting collectors had been promised that they should retain the post, not only for the twenty-one years for which they held a patent, but for the term of their natural lives and the life of the survivor, so it was agreed that the bridge-master should pay to

Mr. Hunnis, in gratification of the Queen's letters, the sum of £40 for a lease in reversion of the wheelage and passage of London Bridge.

Whether this £40 was in lieu of the reversion, or only as a *douceur* for the time likely to elapse before the reversion should fall in, is not clear from the passage, and I have not yet been able to work it out. With his various expenses among the boys of the Chapel this £40 would not last long.

I do not now notice his poems, because I have only acquired any knowledge regarding them from printed material. But it is evident his poems read differently when connected with the events of his life. For instance, the opening device at the Kenilworth^[48] festivities in 1575, when Sybilla prophesies good things to Elizabeth, comes gracefully from one who had conscientiously plotted to make her queen two years earlier than she became so—probably the only *poet* of that conspiracy then surviving. The *rewards* for his plays can be found among the declared accounts of the Treasurer of the Chamber, and his death is noted in 1597 in “the Cheque Book of the Chapel Royal.”

By the favour of Elizabeth, on the death of Richard Edwards, Master of the Children of the Chapel Royal, on the 31st of October 1566, William Hunnis was appointed in his place on the 15th of November. But Elizabeth proved in his case not a “liberall dame,” as his perquisites, or rather his provisions, were materially curtailed, at the same time that the prices of food had much increased. This he very clearly explains in an interesting petition presented to the Council in November 1583,^[49] where he states that he had to keep not only an usher, but a man-servant, to wait on the boys, and a woman-servant to keep them clean, on an income of 6*d.* a day each for their food, and £40 a year for their apparel and all other expenses, nothing being allowed for travelling and lodging when the Court required him to carry the boys with him to various places. On an examination of his demands, they appear both just and moderate. We do not wonder that he left no will, unless the verses written on the fly-leaf of Sir Thomas More's works really represented one:^[50]

To God my soul I doe bequeathe, because it is his owen,
My body to be layd in grave, where to my friends best knowen,
Executors I wyll none make, thereby great stryffe may growe,
Because ye goods that I shall leave wyll not pay all I owe.

W. HUNNYS.

But this will has been previously noted by Warton, and I only now allude to it in connection with others that are original.

I know it is possible that some may object that the William whose name I find spelt in seventeen different ways is not the same as the "Thomas Hinnewes" tried for his life at Guildhall. But the connecting links are strong.

This laxity of orthography made me look up all resembling names in wills, inquisitions, etc, about the period, to find a pedigree for him, but without success as yet. I have not found the name "Hunnis" appear before his time, and since then only twice; the first being a Thomas Hunnis, who died in 1626, and might very well have been his son; the other a "Marchadine Hunnys, of Berks, Plebs; a Demy of Magdalene College, Oxford, 1605; M.A. 1610." This may give a clue to the local origin of the name, but the Marchadine "Plebs" could not have been son of William, as he was always entered "gentleman," and had a coat of arms granted him in 1568 different from that printed by the College of Heralds (Ash. MS. Bodleian Library).

My original materials have been collected from the Manuscript Department of the British Museum, the Public Record Office, the Guildhall Record Office, the books of the Grocers' Company, and from Somerset House. Only want of space prevents my giving references in full. I sincerely hope, however, that I may have an opportunity of publishing ere long the whole series of papers which I have *in extenso*, as an addition to the known history of the poet.

“Athenæum,” 21st February and 21st March 1891.

PS.—This first paper ever printed on Hunnis came out in time for the D. N. B. In that same year I had all the patents concerning William Hunnis translated for me, in order to be exact (I still have the dated bill for the transaction) in preparation for a Paper which I read before The New Shakespeare Society in April 1892. Dr. Furnivall allowed me extra time to read it because my materials were new. Shortly after I completed my book entitled “William Hunnis and the Revels of the Chapel Royal,” which I could not afford to publish, and laid on the shelf for ten years till Dr. Furnivall recommended it to Professor Bang for the Louvain Series of “Materials for the History of the English Drama.” It was sent to him in 1904, but, by a special stroke of bad luck, was not published until 1910. The only point I had not secured was found by Professor Feuillerat too late to be included; as he only published it on 22nd December 1911 in the “Daily Chronicle.”

This gave the important story of the association of Hunnis and Farrant with the early venture of the Blackfriars private theatre in 1576. I had long sought for it; had, indeed, applied for a ticket for the Loseley Manuscripts on purpose in 1906, but, as the late owner was abroad in search of health, my search was postponed. A friend of the family assured me that there was nothing among the papers on William Hunnis, but very much about the Earl of Southampton, so I *thought* that I could afford to wait. My only real regret, however, was that Professor Feuillerat should not have published his find earlier, to allow me to borrow it (with acknowledgement), to complete the life of the writer, of whom the reviewer in the “Times” in 1910 said, “Mrs. Stopes has made a *man* of him.”

Unfortunately the Louvain Series is produced at such an expensive rate that it finds comparatively few English purchasers. Some of my new facts have appeared *since* in Professor Wallace’s “Evolution of the English Drama.”

FOOTNOTES:

[42] See Art. XXV.

[43] Q.R.M. 924.17. Tower Records, 2 and 3 Ph. and Mary. P.R.O.

[44] See “Henry Seventh’s Almshouse,” “Athenæum,” 30th December 1905.

[45] Aud. Pat. Books, 4 Eliz., vol. ix, 85*b*.

[46] *Ibid.*, 4 Edw. VI, vol. iii, f. 40.

[47] See Letter-Books, v, f. 292-294.

[48] See “George Gascoigne’s brief rehearsal of as much as was presented before her Majestie at Kenilworth during her last abode there, July, 1575,” printed 26th March 1576.

[49] State Papers Dom. Series. Eliz., clxiii, 88.

[50] The edition of 1557, in the Library of Trinity College, Oxford.

XVII

BURBAGE'S "THEATRE"

To few pioneers is it given to initiate, and also to develop into completeness, any great new form of national art. Chaucer was not our first poet, Shakespeare was not our first dramatist. Our first architect, our first musician, our first painter, would be hard to find. But we know where to look for our "first builder of playhouses."

A remarkable man he must have been, strong of physique, intellect and courage, strenuous, many-sided, imaginative, far-seeing, irrepressible. A special strain of genius must have prepared him to face difficulties thrown in his way during the development of his great Idea.

In all our discussions about the Shakespeare Memorial and the National Theatre, it would be well to remember what one man did towards that end 330 years ago.

James Burbage, the joiner by apprenticeship, the player by inspiration, the manager by sheer superiority, formed the best company of players of his day, and persuaded the greatest Earl of the kingdom to secure him the first Royal Patent to players, a patent which raised them from being "vagabonds" into artists. With a strategic skill worthy of a great commander, he circumvented the fettering edicts of the Common Council by carrying his company outside their jurisdiction, and, in seeming to obey the regulations against playing in inn-yards or in open spaces, reared for himself an edifice in which he could foster and develop the national drama, an edifice which he had the foresight to name "The Theatre." The special and particular name he chose has become the generic name or patronymic of all its descendants. Within the wooden walls of his citadel, protected by doorkeepers, he had an opportunity, not only of earning money, but of educating the people, superintending at the same time a school of actors and a school of dramatists. To him came the honour of rearing a son whom he trained to be the greatest tragedian of his day; to him came the proud satisfaction of finding and training the provincial player who helped him to make his name; to him came the appreciative insight

into the powers of this “fellow,” which led him to encourage Shakespeare to make use of his opportunities of patching and improving old plays until he could stand alone; to him came the crowning glory of seeing *his man* become the greatest dramatist of his time. And all this was done in about twenty years! What actor-manager has ever done like unto him? And all that he did was achieved under the stress and strain of active opposition from many quarters; he was constantly being harassed by regulation, legislation, and litigation with rivals, relatives, and landlords, eager to share in the profits of his phenomenal financial success (which, however, through his heavy expenses must have been much less than they supposed it to be). He was a pioneer, but he had more than his fair share of fighting to do. The Curtain “rose like an exhalation” in his wake, and left no records in its train. His very popularity made his path more thorny.

It may be well to collect what little is known of him. Halliwell-Phillips, that industrious writer, discovered many points, but his reticence, or at least haziness, about references has prevented his successors from following him to his originals. He is generally correct in his transcripts, but not always so; his inferences are sometimes erroneous; he did not cover the whole possible field, so there are many fresh references to be brought forward, not, perhaps, of prime importance, but still important enough to help to complete “the idea of the life” of James Burbage.

We do not know when or where he was born or educated, what was the occupation of his father, or when he joined the Earl of Leicester’s servants. We do know that he was bred a joiner, and must have been a member of the company, as he is frequently described as a “joiner,” in his legal actions, even after one would have thought another description of him would have been more suitable. But any *citizen* then, even in the lesser companies, was reckoned more respectable than a “*player*.” Think of his times. On 12th February 1563 Edward, Bishop of London, wrote to advise Sir William Cecil to inhibit all players, at least for a year, it would be well if it could be for ever. They spread the plague and profaned Holy things; “the Histriones, the common players,” are “an idle sort of people which have been infamous in all good commonwealths.” In 1572 Queen Elizabeth enacted the famous statute^[51] that “Rogues, Vagabonds ... fencers, Bearwards, Common Players, and Minstrels not belonging to any baron of the Realm shall be judged Vagabonds,” and made liable to be whipped and sent to some

respectable service. To satisfy the Queen's private tastes, however, and their own, many barons helped the better class of players by enrolling them as their "servants," and thus securing them some ill-defined privileges. But the City strongly disapproved of plays and players. On 2nd March 1573-4 the Lord Mayor declined to license a place in the City, even for the servants of the Earl of Sussex; on the 22nd the Privy Council asked the Lord Mayor what cause made him thus restrain plays. Dissatisfied with his reply, the Earl of Leicester, determined that his servants should not be put to such an indignity, secured the first *Royal Patent* under the Privy Seal for them, which introduced James Burbage into the history of his country. As it gave him, on paper, a large liberty, and raised his craft to the level of an art, often as it has been printed, it is important to start with it in any history of the stage. One forgets sometimes. On 7th May 1574 the Royal Patent warned all officials to permit

to James Burbage, John Perkyn, John Laneham, William Johnson, Robert Wylson and others, servants to our trustie and well-beloved Cousin and Councillor, the Earl of Leicester, to use, exercise and occupie the art and facultie of playing Comedies, Tragedies, Interludes, Stage Plaies, and such other, like as they have already used and studied or hereafter shall use and study, as well as for the recreacion of our loving subjects as for our solace and pleasure when we shall think good to see them ... together with their musick ... as well within our City of London and the Liberties of the same, as also within the liberties and freedoms of any other cytyes, towns, boroughes, &c., whatsoever, throughout our realm of England; willing and commanding you and every of you, as ye tender our pleasure, to permit and suffer them therein without any your letts, hindrance or molestation, any act, statute, proclamation or commandment heretofore made, or hereafter to be made to the contrary notwithstanding. Provided that the same ... be allowed by our Master of the Revells, and that they be not published or shewen in the time of Common Prayer, or in the time of great and common plague in our said City of London.

Nothing could have been more explicit, or more exasperating to the Corporation of London, than this permission to contravene their mandates. [52] The Corporation's counterblast was the famous Order of 6th December

1574. They threatened fine and imprisonment to any who “played without a licence from the City each time,” and without giving half the proceeds to the poor. They did not “tender the Queen’s pleasure” in respect to the players.^[53]

At the close of 1574, on St. Stephen’s Day, the Earl of Leicester’s servants played before the Queen at Court, and opened the year by playing on New Year’s Day, 1574-5.

Other noblemen hastened to request Royal Patents for their servants. The battle between the Privy Council and the Common Council raged all the more hotly since the players had been “patented,” and the climax came when the Lord Mayor expelled all players from the City, under an undated “Order for the relief of the Poor” printed by Singleton.

Leicester’s servants played before the Queen on Innocent’s Day 1575, and again on the Sunday before Shrovetide. For the first time they were fully described in the warrants for payment granted by the Privy Council^[54] and in the declared accounts of the Pipe Office^[55] as “Burbage and his company, servants to the Earl of Leicester.” But even Leicester’s servants, with a Privy Seal Patent from the Queen, could not very well live all the year round on Christmas gifts. They must either go on tour, act in the City or near it, starve, or turn to another trade. Burbage did return awhile to his original trade. He had had a prevision of what was coming, had kept his eyes open, and had laid his plans, and found a “place where to stand.” A few months after the expulsion order, on 13th April 1576, he had signed and sealed an indenture of lease for a parcel of land of the disused monastery of Holywell, stretching from the barn and outhouses of the property of the Earl of Rutland to the brick wall that bounded Finsbury Fields. It belonged to Giles Alleyn, Arm., and his wife Sara, and contained a barn, some old tenements, gardens, fields, and some “voyd ground.” His plans necessitated engineering and financial skill, credit, and money. James Burbage had the first, but he was not rich. He had married, however, some time previous to this, Ellen Braynes, who had “expectations.” Halliwell-Phillips and all his followers say she was the *daughter* of John Braynes. But he is in error; the language of some of the cases he knew might have taught him better. But a case which he evidently did not know states clearly that John Braynes was the only brother of Ellen Burbage. He was evidently, at the time, a childless

husband, as in his lawsuits there is constant reference to the understanding that his sister's children would inherit all he had, seeing he had none of his own. There was an inn upon Burbage's leasehold, but players had been forbidden to play in inn-yards. He could not risk playing on his "voyd ground," as his audience might melt away before they paid the costs, so he resolved to build a *playing-house* in his fields. John Braynes, fired with the idea of making a speedy fortune, agreed to become a sharer in costs and profits, and each signed a bond to the other. Giles Alleyn signed the lease, knowing quite well it was to be for the players, but he did not mind much, as he himself was going henceforth to live in Essex. He also knew that Burbage was the "servant" of the Earl of Leicester, and it was not safe to disoblige that great noble, even through his servants. Alleyn was used to land-transfers and litigation, and he thought he made a safe bargain. He did not want to give a longer lease than twenty-one years until he saw how playing-houses were likely to do, but he permitted a clause that if, before the end of the first ten years, James Burbage had spent £200 in repairing or rebuilding the old tenements on the property, he could have another lease from that date of twenty-one years (making in all thirty-one years), and he could, at the end, carry away the materials of any building he had erected for himself.^[56] Burbage was to pay the legal expenses of drawing up and the engrossing of this second lease. Of course, there was some preliminary "consideration," but the rent seemed very moderate even for the time, for the extent of land leased at £14 by the year including the tenements inhabited by sub-tenants. Burbage, with Braynes' help, set to work at once. It is probable he was his own architect, contractor, and master-builder, that he even used his own hands in the work, and pressed those of his "unemployed" company to hasten forward the edifice which promised so soon to help them in return. Wood does not necessitate so many difficulties or delays as stone and brick. It can be fetched from the country prepared, and even partially put together, as can be learned from one of Peter Street's lawsuits.^[57] As the building rose, it became its own advertisement. Finsbury Field was the City-ground for drill and archery, the people's play-ground. From its boundary crowds watched the rising fabric, eager and impatient as the owners, and more curious. We may be quite sure that Burbage's building was the main topic of London gossip during 1576. When, protected by walls, doors, and doorkeepers from impecunious prying eyes, it did open on some unrecorded day that year, of course there were

disturbances. Everybody wanted to enter the charmed circle at once, to see the plays from which they had been so long debarred, and to understand Burbage's little game. The humour of the situation tickled the fancy of the people; the taste of the forbidden tree was sweet to their palate; cutpurses saw their chance among the genuine play-lovers, and there was crowding, crushing, struggling for entry, quarrelling for places, shouting, and all signs of a brawl. Free fights ensued, and "The Theatre," from the very first, through no fault of its owner, became associated with breaches of the peace, which its enemies made the most of. In the following year it came into history by name. On 1st August 1577 the Privy Council, moved by the City, for fear of the plague, wrote to the Middlesex authorities to take order with "such as use to play without the Liberties ... as at the Theatre and such like," to forbear playing till after Michaelmas.^[58] A sermon preached at Paul's Cross in the time of the plague, 3rd November 1577, by T. W. (printed 1578) refers to "the sumptuous Theatre houses, a constant monument of London's prodigalitie and folly."^[59] John Northbrook's "Book against dicing, vaine playes, or enterludes," entered in Stationers' Hall, 2nd December 1577, refers to "the Theatre and the Curtain." The Earl of Leicester's players however played at Court that Christmas, but again on 17th April 1578 the Privy Council wrote the Middlesex authorities to restrain players till after Michaelmas. John Stockwood, Schoolmaster of Tunbridge, preached a sermon at Paul's Cross on 24th August of that year, in which the Theatre and Curtain are both referred to by name, and again he refers to "the gorgeous Playing place erected in the fields, as they please to have it called, a Theatre."^[60] On 24th December 1578 the Earl of Leicester's servants had a licence to play in the City, because they were going to play before the Queen at Christmas. They played on St. Stephen's Day, but on Shrove Tuesday they were paid in full for coming, though the play, by her Majesty's command, was supplied by others.^[61] This was probably the sign of a tiff with Leicester.

Burbage's promptness, sumptuousness, and success could not be attained without lavish outlay of money, more than he had himself or that his brother-in-law could command. Apparently he found it through John Hyde, grocer, though no record of the transaction has been preserved otherwise than the fact that Hyde held the house in pawn from 17th September 1579 till 7th June 1589, during which time Burbage remained legal and

ostensible owner. At the latter date it was restored, but to Cuthbert, not to James Burbage. Against the dangers of debt and public interference he still bravely fought, but even in “The Liberty of Holywell” troubles assailed him. Mr. Cordy Jeaffreson, in editing the Middlesex County Records for James I, found among them a few entries of Elizabeth’s reign, and among these is the record of the presentation at Clerkenwell Sessions of John Braynes of Shoreditch yeoman, and James Burbage of the same, yeoman, 21st February 22 Eliz., ^[62] on the charge of

“bringing together unlawful assemblies to hear and to see certain colloquies or interludes called playes or interludes exercised and practised by the same John Braynes and James Burbage, and divers other persons unknown at a certain place called The Theatre at Holywell in the county of Middlesex, by reason of which great affrays, assaults, tumults and quasi-insurrections and divers other misdeeds and enormities ... perpetrated to the danger of the lives of divers good subjects ... against the form of the Statute,” etc.

This shows that Braynes, though not mentioned in the original patent, had become one of Burbage’s players. But it hardly supports Mr. Jeaffreson’s contention that he must have been the *chief* player and proprietor of The Theatre. Braynes might very well have been placed first as being the elder, and apparently the richer, of the two, and they might have agreed to put Braynes forward as the chief, so as to bear the brunt of the examination, while Burbage was looking after his plays, his house, his rehearsals, and his audience. Braynes was a business man, quite able to face an attorney and a magistrate, but he was second fiddle at The Theatre.

It is curious to remember that the great earthquake took place about six weeks later, 6th April 1580. Enemies read in it a token of God’s wrath against The Theatre. Ballads were written to bid men haste away from the play because of the earthquake. ^[63] But we have no record of any damage at The Theatre, or to Burbage’s house in Holywell Street, though many chimneys fell in more respectable places. ^[64]

The Lord Mayor wrote to the Lords of the Council, ^[65] “Where it happened on Sunday last that some great disorder was committed at the Theatre, I sent for the Undersherive ... and for the players to have appeared before me, the rather because these playes doe make assemblies of citizens

and of their families of whom I have charge,” but hearing the Council was considering the matter he “surceased to proceed,” but thought it his duty to remind them “that the players of playes which are used at the Theatre, and other such places ... are a very superfluous sort of men, and of suche facultie as the lawes have disallowed.” An order of the Privy Council was issued to forbid all plays in and about the City till Michaelmas next, 13th May 1580. Five months’ forced “unemployment,” with his rent, his interest running on, his creditors clamouring, his housekeeper asking for food, and his company doubtless worrying him for money. His was the fate of Tantalus, for the golden stream was ever at his lips. The constant interference with the players only increased the eagerness of the populace to see them. Battles with courtiers, preachers, citizens, authors, raged round Burbage’s head. But he played at Court that Christmas as usual. In 1583 the Queen, to keep up with her nobles, resolved to patent a Royal Company of her own, and exercising her prerogative of “taking up,” not only singing boys, but any^[66] “men” she needed for her service, she took the pick of the players from all the companies, among them Robert Wilson and Richard Tarleton. This did not really hurt them much, as they remained on friendly terms, and often played with their old companies. The Queen’s players had their first performances at Court, with but few others, during the Christmas of 1583-4.

In 1584 Fleetwood wrote to Lord Burleigh that the Lord Mayor desired to suppress all playhouses, and had sent for the players themselves to come to him, among them the Queen’s players and Lord Arundel’s players. “They all well nighe obeyed the Lordes letters: the chieftest of her Highness’s players advised me to send for the owner of The Theatre, who was a stubborne fellow, and to bind him: I did so. He sent me word that he was my Lord of Hunsdon’s man, and that he would not comme at me, but he would in the morning ride to his Lord. I sent the Under-Sheriff for him but he would not be bound.”^[67] This has been supposed not to refer to Burbage, because he said he was Lord Hunsdon’s man. But there was no one else who could be called *owner* of The Theatre, no one so resourceful and so daring. He was any Lord’s man, so that it was not the Lord Mayor’s, and, seeing what the Earl of Leicester was about, he was off to Court, to ask his Lord what his Royal Patent meant when a mere Lord Mayor could flout it

so. After that his Company became Lord Hunsdon's (then the Lord Chamberlain) till the Queen's death. That danger passed.

Before April 1586 Burbage had the proposed new lease of his property drawn up to add ten years after the expiration of the first lease, but Giles Allen refused to sign it. He denied that the £200, as agreed, had really been spent on the repair of the old tenements; he said there were alterations from the old lease, though Burbage explained that the difference only lay in not including a clause and condition for further extension of lease. Alleyn showed a shifty desire to juggle with the 1576 agreement, and, having an exaggerated idea of the net profits realized by Burbage, he wanted to raise the rent from £14 to £24; and while granting the ten years' extra lease of the soil, he wanted to restrict the further use of The Theatre as a playing place to a term of *five* more years, after which it might be used for *some other purpose* by Burbage. It was clear that Burbage was not going to sign a lease at the raised rent without having the use of his theatre during the full term, so the two second leases lay in abeyance, and landlord and tenant spent the remaining eleven years of the first lease suspicious of each other, and watching every turn of events.

In 1586 a new set of troubles arose through the death of John Braynes, who, apparently by the influence of his wife Margaret and the pressure of circumstances, had not remained quite as brotherly as he had formerly been. Through fear of being called on to pay theatre debts, he had made a deed of gift of his goods and chattels to Robert Myles, goldsmith, to one Tomson, and also to John Gardiner. Margaret Braynes, widow, had herself a suit against Robert Myles, and in Easter 1587, ^[68] "a week is granted him to make answer, or an attachment will be granted." By this time John Gardiner had died, and his administrator, Robert Gardiner, claimed to be executor of Braynes in his place. The widow, Myles, and Gardiner united to worry Burbage. They refused to consider the notion that Braynes meant his investment in building The Theatre to come eventually to his nephews, or that through his breach of agreement he had forfeited his bond, and they made themselves very harassing.

Halliwell-Phillipps, and all the writers who follow him, say the first action was taken in the Chancery suit of Braynes v. Burbage, 1590. But it began long before that. He had never seen the earlier suit of Burbage v. Braynes, ^[69] nor followed its various stages through Chancery. I am not able

to give the exact date of this first action, as the document is very much injured, but I *believe* it is 1588. The plaintiffs are James Burbage, Ellen his wife, and Cuthbert, Richard, Alice, and Ellen their children v. Margaret Braynes. This explains how James had taken the land from Giles Alleyn, and how his brother-in-law had agreed to go shares with him in The Theatre and the George Inn. There had been an arbitration between them which had been in favour of Burbage, on 12th July 1578, and Braynes had forfeited a bond of £200 through not obeying the arbitration. Braynes had conveyed his goods and chattels to Myles, to Tomson, and to John Gardiner, and had ceased to pay his share of expenses. But shortly before his death he confessed that his moietie should all remain to Burbage's children. The defendants claimed the same, only under an old will made before the conveyances and against the arbitration. Robert Myles "enters The Theatre and troubles your orator, and his tenants," and Robert Gardiner, the administrator of John Gardiner, who died in 1587, "goes about to sue James Burbage in two several bonds," and "by reason of the multiplicity of their conveyances they joyn together to imprison your said orator, to enforce him to yield to their request." They will not pay the £200 bond forfeited by Braynes; their action is costly, and leads to his impoverishment. He prays relief, and a subpœna to the defendants to appear personally and answer material facts, and he is willing to submit to justice. Their answer is, of course, that his is an untrue and insufficient bill. I suppose this is the case referred to in the Decree^[70] that the defendants have put in an insufficient demurrer. It was referred to Mr. Dr. Carew, and if he thought it insufficient, a subpœna to be awarded against the defendants. Margaret Braynes, Myles, and Gardiner had meanwhile brought a cross-suit against the Burbages; and in that, on 21st May 1590,^[71] the court was informed that the defendants put in an insufficient demurrer, and it also is referred to Mr. Dr. Carew for the same purpose. This came up again in the Trinity term,^[72] and on 4th November Mrs. Braynes appeals again, through Mr. Scott,^[73] for the moietie of The Theatre and other tenements; the defendants have put in an ill demurrer, and take the whole gains and benefits of the premises, albeit she and her husband had been at very great charges in the building of The Theatre, to the sum of £500, and did for a time enjoy the moietie. It is ordered that if the defendants do not show good cause, sequestration of the moietie shall be granted. On 13th November^[74] Mr. Serjeant Harrys, for

Burbage, prayed consideration of a former order made in his behalf in the suit of Burbage v. Braynes. There had been an arbitrament made on 12th July 1578, in favour of Burbage, and neither of the parties showed why the arbitration should not be performed. Sequestration was stayed. This promised peace; but on 20th January 1590-1^[75] Robert Myles made oath that the Burbages had broken an order made in court on 13th November; therefore an attachment was awarded for contempt. On 30th January^[76] Cuthbert Burbage made his personal appearance to save his bond to the Sheriff of London, but nothing was done. On 23rd March^[77] it was stated in court that the Burbages had been examined upon interrogatories, and these committed to the consideration of Mr. Dr. Cæsar. On 24th April 1591,^[78] Burbage continued his case against Mrs. Braynes, she having put in an insufficient demurrer; consideration was referred to Mr. Dr. Carew. On 15th June,^[79] as nothing material had been advanced on her side, Burbage asked for a subpœna against her and Myles. On 20th July^[80] Margaret Braynes appeared in her own case against Cuthbert and James Burbage; they also appeared, but the Master in Charge could not attend. On 12th October 1591^[81] it was decided that no advantage should be given until it was found whether Burbage had committed contempt of court; and on 13th November^[82] it was heard again. It had been referred to Mr. Dr. Stanhop and Mr. Dr. Legg, who had heard counsel on both sides, but they could not well proceed to examine the parties before they examined John Hyde of London, grocer, Ralph Myles of London, “sopemaker,” Nicholas Bushop and John Allen upon the contempt pretended. The need of considering these witnesses arose in this way. Burbage, at some date, following his brother-in-law’s lead, had transferred all his property to his sons. Hyde, holding The Theatre for ten years, had released it to Cuthbert. To Robert Myles had been let the George Inn, part of the Holywell property; Myles had let the stables to his son, Ralph Myles, and Nicholas Bushop^[83] for a soap manufactory.^[84]

One is interested to know the inns at which Shakespeare might have “taken his ease.” Here is one, on the very Theatre ground. Was it in his thought when he wrote, in “King John,”

St. George, who swunged the Dragon, and ere since
Sits on his horseback at mine hostess' door.

For by this time Burbage had got firm hold of Shakespeare. He was learning all round, *even law* through the troubles of Burbage, helping all round, becoming a “Johannes Factotum ... a Shakescene able to bumbast out a blank verse as well as the best of you!” Was there a little bit of lively badinage of James Burbage when, in the play suggesting the Earl of Leicester and his Kenilworth festivities, “Midsummer Night’s Dream,” he cast, in the artisan’s play “Snug the *Joiner*,” for the Lion’s part?

The plague caused a lull in the Chancery proceedings, but they started again. Latterly Margaret Braynes died, but Robert Myles continued *versus* Burbage and Burbage *versus* Myles. The next best thing for him to a speedy settlement in his favour was delay. Time told for him. On 4th February 1595-6 James Burbage, “gent.,” purchased from Sir William More for £600 some rooms in the dissolved Monastery of Blackfriars,^[85] also out of the jurisdiction of the City authorities. Throughout that year he urged on the alterations of the rooms into a winter theatre, that his brilliant son Richard might not be hindered in his performances by further troubles at The Theatre. By 16th November the inhabitants of the Blackfriars had sent up a petition against the starting of a playhouse there; a copy, undated, is preserved among the State papers.^[86] But the date can be found in a later petition and order at the Guildhall, which implies that the first had been successful, at least for a time.^[87] James Burbage, therefore, though the inventor and designer of the modern theatre in stone and brick as well as in wood, in the famous theatre afterwards called the private stage of Blackfriars, did not see his son Richard triumph there. Baffled in that, he “laboured with Giles Alleyn to sign the extended lease of Holywell drawn up in 1586, and got his friends also to move him.” Probably among these were the Earls of Southampton and Rutland, whose property bordered his ground.^[88] Giles Alleyn was, however, unresponsive. Amid the anxious discussions with his sons concerning their critical future, I feel sure that James planned the manœuvre, which afterwards proved really successful. He thought that if he could but carry that out as he wished, he would be able to fight all his enemies at once, and give his beloved Theatre a new lease of

life. But he was not so young as he had been, the strain of his strenuous work had told upon him, and sorrow for losses by death. Just a year after he had bought his Blackfriars property and just before the lease of his Theatre had run, the lease of his life ended; he died suddenly, and was buried in St. Leonard's, Shoreditch, 2nd February, 1596-7.

O! Brave James Burbage!

"Fortnightly Review," July 1909.

FOOTNOTES:

[51] 14 Eliz., c. 5.

[52] Lansdowne MS., XX, 10, 11, 12, 13.

[53] *Ibid.*, IX, 18.

[54] Privy Council Register, 14th March 1575.

[55] Pipe Office. Dec. Acc. Treas. Chamb., No. 541.

[56] Court of Requests, Burbage v. Alleyn, 26th January 42 Eliz. 87/74.

[57] Court of Requests, 20th January 39 Eliz. 91/57.

[58] Privy Council Register of Date.

[59] See Harrison's "England" (ed. Furnivall), vol. iv, p. 343.

[60] *Ibid.*, p. 329.

[61] Pipe Office. Dec. Acc. Treas. Chamb., No. 541, f. 210.

[62] Middlesex County Records, vol. ii, xlvii.

[63]

"Come from the Plaie,
The House will fall so people saye
The Earth quakes lett us haste awaye."

[64] Stow's "Chronicles," p. 686.

[65] 12th April 1580. See "Athenæum," 12th February 1887.

[66] Rymer's "Fœdera," xl, 375.

[67] Lansdowne MS., 41, art. 13.

[68] As the Books begin in Michaelmas, they always seem a year too soon.
Ch. Proc. D. and O., 1586-7, Braynes v. Myles, A. Book, 6th May 1587, 384.

[69] Chancery Proceedings, Series II, 222/85.

[70] Ch. Proc. D. and O. (A. Book, 454, 1588, 22nd February 1588-9.)

[71] *Ibid.*, 1589, A. Book, 21st May 1590, 610.

[72] A. Book, 1590, 15.

[73] A. Book, 4th November 1590, 109.

[74] A. Book, 13th November 1590, 145.

[75] A. Book, 23rd January 1590-1, 270.

[76] A. Book, 30th January 1590-1, 317.

[77] A. Book, 23rd March 1590-1, 456.

[78] A. Book, 24th April 1591, 493.

[79] A. Book, 15th June 1591, 720.

[80] A. Book, 20th July 1591, 818.

[81] Decrees and Orders, A. Book, 12th October 1591, 16.

[82] A. Book, 13th November 1591, 151.

[83] *Myles v. Bushop*, Chan. Proc., 2nd Series, 245, 85.

[84] In the Nebraska University Studies, 1913, Professor Wallace states that *he told me* of all these papers. He mistakes, or forgets. I had been engaged in this work for fifteen years before he came to the country, had them all, and was only checking them for type when one was being repaired at this date. The Uncalendared MSS. of the Court of Requests were not previously opened to students.

[85] See Manuscripts at Loseley, and the Appendix to 7th Rep. Roy. Com. Hist. Man., 653b.

[86] Dom. Ser. St. Pap. Eliz., cclx, 116.

[87] Repertory, 34a, 38b, 21st January 1618.

[88] Exchequer Bills and Answers, Eliz. 369. Many interesting details are of necessity crowded out, through lack of space.

XVIII

THE TRANSPORTATION OF BURBAGE'S "THEATRE"

The story of the dramatic transportation of "The Theatre" from the north to the south bank of the Thames is well known to every student of Shakespeare's life. But Halliwell-Phillipps, who did so much to bring forward new facts concerning it, rarely gives his references, and, among the mass of material which must have passed through his hands, he neglected sufficiently to compare and collate different papers. Hence he did not complete the story of "The Theatre."

James Burbage had died in February 1597, just before the conclusion of the twenty-one years' lease granted by Giles Alleyn, who had been juggling with his promise to lengthen it by ten years, on the plea that the conditions had not been fulfilled. Burbage's sons were already in possession (see my paper "Burbage's Theatre," "Fortnightly Review," July 1909). Richard Burbage entered into negotiations with Henry Evans about a lease of the newly altered theatre at Blackfriars. The Privy Council, on 28th July 1597, had issued an order that the Theatre and the Curtain should be pulled down, or at least dismantled, so as to make them unfit for stage-playing. It was a hard saying, for it meant that all the money, energy, and ingenuity which had been put into the realization of Burbage's great idea would be dissipated *without any compensation*, while imitations survived. Cuthbert Burbage, evidently hoping that he would find friends at Court to help him to weather the storm, as he had done before, renewed his entreaties to Alleyn to extend the lease. Alleyn temporized, but allowed him to continue on the old terms for the time. Probably he had no better offer on hand. The Lord Chamberlain's company went on tour in the summer, when all companies were forbidden to act in the City until Allhallows-tide; but they were engaged to play at Court at Christmas as usual. The year 1598 was critical for them; it is uncertain whether they played at their own "Theatre" or not. Guilpin's "Skialethia," published that year, says:

But see yonder one
Who, like the unfrequented Theater,
Walkes in dark silence and vast solitude.

Shakespeare's friend, the Earl of Southampton, had lost favour with the Queen through his marriage with Elizabeth Vernon. On the other hand, Shakespeare himself had been glorified by Francis Meres, Professor of Rhetoric in Oxford; and Richard Burbage had been generally recognized as the greatest genius on the stage. Hesitation ended when Cuthbert Burbage heard privately that his ground landlord meant to pull down his "Theatre," ostensibly in obedience to the order of the Privy Council, but really that he might confiscate its materials to repay himself for the mortifications and losses that he fancied he had unjustly endured. Cuthbert looked at Southwark *over ye sea*, where already Henslowe had prospered in the Rose, and Langley in the Swan, and, secretly finding a site to the east of these, removed.

We are accustomed to think of the building as the permanent and fixed item and the players as the transitory and passing element in a whole theatre. But on this occasion the company, like the snail, in its exodus from Middlesex, carried its house on its back. Two contemporary descriptions of the event give different dates. The Star Chamber proceedings, 44 Eliz., A. xii, 35, state that it was on 28th December 1598; the Coram Rege Roll, Trinity Term 42 Eliz., 587, says it was on the 20th of January following. Possibly the wardrobe and the stuff, the portable properties, and the play-books went on the first date to safe storage; and the solid framework on the later date. But I think authority is all in favour of the earlier date. It was a stiff piece of work to take down and carry away the materials in a short time; it would necessitate a little army of housebreakers and transplinters, probably aided by the players themselves. They had more work to do than they bargained for, as they met sturdy opposition from Giles Alleyn's men, who saw their expected job and pickings thus torn away from them. It is likely that the night would be selected by the phase of the moon and the time of the tide, for it cannot be supposed that Cuthbert would be rash enough to carry his materials in a train of lumbering wagons across London Bridge, paying wheelage and passage dues, under the danger of being

stopped to explain at any point. He would be certain to ship them over the water. He was fortunate in the man he employed, Peter Street, an “ordinary servant of the Queen’s Household.” I find, from an earlier lawsuit (Court of Requests, 91/57, January 1597), that Peter Street had a wharf of his own handy near Bridewell Stairs, whence he probably wafted the lot in a little flotilla of boats and barges, at high tide, to the wharf on Bankside, nearest his new site. The night of 28th December 1598, or rather the following dawn, saw a pile of unsightly wreckage lying on the southern bank of the Thames, beyond Giles Alleyn’s control or the Lord Mayor’s jurisdiction. Peter Street did his best; Burbage did his best; the shareholders were eager, and moneylenders ready; and in a very short time a new “Theatre” rose, like the phoenix, from the ashes of the old. Shakespeare by that time knew what was in a name, and as the decree had gone out against “The Theatre,” they changed its name. Was it because they knew “all the world’s a stage” that they called it then “the Globe”? There Shakespeare was free to create, and Burbage to interpret his creations. Londoners on the other side had known of its exodus, and had watched its rising, and again it was its own advertisement. The hopes of the Thames watermen were radiant as it grew.

The litigation which had handicapped the Burbages had ceased with the death of the two principals, Margaret Braynes and James Burbage. But Cuthbert, even before he left Holywell, had been sucked again into the vortex of the law. In Trinity Term 38 Eliz., 1596, while his father was yet alive, Cuthbert had sued in the King’s Bench, Roger Ames, John Powell, and Richard Robinson, because they had on 1st May 1596 trespassed *vi et armis* on the inner close of Cuthbert Burbage at Holywell, had destroyed grass to the value of 40s., and had kept the close from the 1st of May till the 27th of June in their own custody, the damage in all amounting to £20. One can read between the lines that in May 1596 James Burbage would be away superintending hurried building alterations in his newly purchased property at Blackfriars, and the company would be on tour to earn their livelihood. The case did not come on for hearing until Tuesday in the Octaves of Hilary, which fell on or about this very removal day, 20th January 1598-9 (Coram Rege Rolls, Hilary 41 Eliz., r. 320). No one has hitherto understood the full bearing of this case, through lack of the light shed on it by a later case (Exchequer Bills and Answers, No. 369, and Exchequer Depositions, 44-45 Eliz., No. 18). Thence we find that Cuthbert Burbage was really in this case acting on behalf of Giles Alleyn, and in co-operation with him,

against the three defendants. These, Giles Alleyn said, had been put forward by the Earl of Rutland, the neighbouring land-owner, or rather by command of his steward, Thomas Scriven. They had ejected Cuthbert from the inner court, and inclosed it with a mud wall. Cuthbert had brought an action against Ames and the others for loss of profits; Thomas Scriven, without the knowledge of the Earl, who was a minor and a royal ward, and “was beyond the seas,” caused information to be sent to “the Court of Wards and Liveries”^[89] against Cuthbert Burbage and *Richard Allen*, “misnaming him of purpose that he might not answer.” There had been an injunction issued to stay Burbage’s suit against Ames till the facts should be considered in the Court of Wards. This continued for two years, when, the Earl having come of age and sued his livery, the power of that court ceased, Burbage went on with his suit, and Ames, Powell, and Robinson were forced to plead. They denied force and injury, and demanded to be tried by a jury. The real cause at issue was as to the ownership of “the Capital Mansion House of the late dissolved Priory of St. John Baptist in Holywell.” The Earl of Rutland claimed that his father had had a lease of it from the Queen, with many years yet to run, and that “the void ground” was part of the estate. Cuthbert Burbage had wrongfully entered it, and the Earl’s undertenants had justly withstood him. Giles Alleyn answered that it was true “the void ground” did belong to the capital mansion house, but the capital mansion house did not belong to the Earl. His was only a secondary house, which the Earl’s father had enlarged. The real Capital Mansion House had been granted by Henry VIII to Henry Webbe for £136. He settled it on his daughter Susan when she married Sir George Peckham. They sold it to Christopher Bumpstead, mercer, for £533 6s. 8d. in 1556, and in that same year he sold it to Christopher and Giles Alleyn for £600. Giles held it as the survivor, and drew his rents peaceably till 1st May 1596, when Thomas Scriven commanded Ames to enter, and Cuthbert Burbage sued them under Giles Alleyn’s title. Thomas Scriven had had the case repeatedly postponed, to the great trouble and cost to Alleyn.

Cuthbert Burbage had therefore, during this critical time, shared with his landlord the trouble and worry of this suit against “the trespassers,” though apparently Giles Alleyn was responsible for the costs.

In this very Hilary Term, January 1598-9, Cuthbert’s infuriated and unexpectedly-outwitted landlord took the preliminary steps for bringing a

suit against him, or rather against his agent, Peter Street, in the Court of the King's Bench, also for trespass on the same ground! A strange cross-suit indeed! He made his complaint in Easter Term, 41 Eliz. (see Coram Rege Roll, Trinity Term 42 Eliz., No. 587). This is one of four suits, of which Halliwell-Phillips speaks, and quotes largely from three. But as he did not study their relative dates, and the bearing of the one upon the other, and as he had not *read* the fourth, the later Star Chamber case, he has missed the legal bearing of them all, and is ignorant of the decisions in any of them. It is very easy, and it becomes very interesting to collate them. In the 1602 Star Chamber case Alleyn says he began his suit against Burbage in the Hilary Term following 28th December 1598; but that would be about 20th January 1598-9, the second date given for the transportation of "The Theatre," and the time of the hearing of the case brought by Burbage *and* Alleyn versus Ames and others. I think he was in error, because it is stated in Coram Rege Roll, 42 Eliz., 587, that Giles Alleyn had commenced his suit against Peter Street in Easter Term, 1599, but it had been postponed. This was because Cuthbert Burbage appealed to the Court of Requests, 42 Eliz., 87/74 to stay this suit. Burbage in his complaint, dated 26th January 1599-1600, states simply that Giles Alleyn and his wife, Sara, owners of certain garden grounds and tenements near Holywell, in the parish of St. Leonard's, Shoreditch, on 13th April 1576, granted them to his father James for good consideration, for a term of twenty-one years at £14 a year. The condition was that if he had spent £200 on the repair of the tenements (not the theatre) before the end of the first ten years, he could then sue for a new lease at the same rent for a new term of twenty-one years, making thirty-one years in all. He could, at the end of either term, carry away any building he had put up for himself. James Burbage was to pay the expenses of drawing up the second lease. All these conditions James Burbage had faithfully performed. But Giles Alleyn would not sign that lease when drawn up, substituting another, in which the Burbages were to pay £10 more annual rent, and not use "The Theatre," *as a theatre*, for more than five years of the second term. James Burbage would not sign such a lease, nor would Cuthbert; but the latter had stayed on at the old rent, buoyed up by the hopes of having *his* new lease signed. It was only when he heard that Alleyn was about to take away the Theatre that he did so himself, which he had a perfect right to do. Alleyn was prosecuting his suit against Peter Street with "rigour and extremity"; the heavy damages he claimed would

injure him much. Cuthbert prayed, therefore, that the suit in the King's Bench might be stayed, and Alleyn summoned to answer personally in this Court.

Giles Alleyn presented his voluminous "answer" on 6th February 1599-1600. He said, of course, that the complaint was untrue, and "exhibited of malice." He went through the original lease, with a few glosses. He refused to sign the new lease because it was different from the original one; also because James Burbage had not spent the £200 in repairs, and there were arrears of rent. "He was a troublesome tenant. When he had tried to distrain for rent, either the doors and gates were kept shut, or there was nothing left to distraine." He had offered to give Cuthbert a new lease, with good security and increased rent. He could well afford it, seeing he had made at least £2,000 by the Theatre. He had heard it had been built at the charges of John Braynes, whom James Burbage defrauded,^[90] as Cuthbert now defrauded Robert Myles, his executor. It was manifestly illegal for Burbage to remove the Theatre.

Cuthbert's "replication" is dated 27th April 1600. He said he could prove everything in his complaint, and denied all Alleyn's charges. If his father delayed paying the rent, it was owing to the trouble and expense he had had in keeping the property against Edward Peckham, who disputed Alleyn's right to it. He could bring the workmen's bills to show that his father had spent the £200 in repairs. He himself had disbursed a large sum since. He had been quite willing to sign a fair lease such as his father drew up. The sole difference from the first lay in its containing no clause for the further extension of the lease. A Royal Commission was issued on 5th June to examine witnesses on interrogatories, the depositions to be returned by Michaelmas 1600. The depositions on behalf of Giles Alleyn were taken at Kelvedon, Essex, on 14th August. They were not very convincing. The depositions on behalf of Street and Burbage are not among the Calendared Proceedings of the Court of Requests, or we might have had some interesting names as well as facts. But they appear to have prevailed. No one seems to have found the decisions in any of the cases. But I have found from the Star Chamber case Alleyn's statement, "*Thereby I lost my suit.*" This case, therefore, is the only one of the four which came to a conclusion. The 5th of June 1600, on which Alleyn's witnesses were being examined, is in Trinity Term, and it was in this Trinity Term that Giles Alleyn sued Peter

Street in the postponed action in the King's Bench, regardless of the injunction from the Court of Requests, or the order that the answers were to be returned at Michaelmas, It is from this King's Bench case (Coram Rege Roll, Trin. 42 Eliz. 587) that Halliwell-Phillipps selected his lengthy extracts. But the vital points are missed. The Court, "not being sufficiently informed of particulars," postponed the hearing till Michaelmas, and it was never heard. Why? Because on 18th October 42 Eliz., the Privy Council decreed, through the Court of Requests, that Giles Alleyn and his attorneys should from thence surcease, and no further prosecute the action at common law for trespass, and should never commence any suit for the *pulling down of the Theatre*, and that Cuthbert Burbage should be at liberty to take his remedy at Common Law against Alleyn for not agreeing to seal the second lease. (See "The demurrer of Cuthbert Burbage, Richard Burbage, Peter Street, and William Smith to Giles Alleyn's complaint" in the Star Chamber case, 23rd November, 44 Eliz., 1601, A. xii/35.)

In Hilary Term 43 Eliz., 1601, postponed till Easter, 44 Eliz., Alleyn sued a plea of broken agreement against Cuthbert Burbage in his own name (Coram Rege Roll, 1373, r. 255, Easter 44 Eliz.).

Then Giles Alleyn, still at white heat, brought the noteworthy, though hitherto unnoted, complaint in the Star Chamber, again defying legal etiquette and legal decision, 23rd November 44 Eliz., 1601. He recited the well-known indenture and conditions, and further blackened the character of the Burbages by saying that Braynes, not Burbage, had built the Theatre at the cost of 1,000 marks. (Mrs. Braynes herself only claimed to have contributed £500 for their moiety; see D. and O. Books, Chancery A., 1590, p. 109.) "Cuthbert, desiring to make gain, allowed the theatre to remain after the expiry of the lease, when it became clearly vested in the Landlord," who, "seeing the grievous abuses that came by the said Theatre, resolved to pull it downe"; but Cuthbert carried it away "in and about 28th December, 1598." Alleyn claimed to have commenced an action in Hilary Term following (*i.e.* January 1599); but Cuthbert exhibited a bill to stay him in Easter. We have proved both of his dates incorrect. Alleyn goes on to make an extraordinary charge—that Burbage had combined with John Maddox, his attorney, and Richard Lane, the Register of the Court of Requests, to draw up a forged order that he should not make any demurrer. Being ignorant of this, he drew up a demurrer and went home to Haseley,

thinking everything settled till the case should be heard. But Burbage gave information that he had “broken order,” and he was, for supposed contempt, in the vacation time following, fetched up to London by a pursuivant, “to his great vexation and annoyance, a man very aged and unfitt to travell, to his excessive charges in journey, and likewise to his great discredit and disgrace among his neighbours in the country.” The pursuivant brought him to a Master of the Court of Requests, and bound him in a bond of £200 to Cuthbert to appear at Michaelmas, when he was purged of contempt. Alleyn further said he had witnesses to bring up, but Cuthbert and Richard Burbage, reviling them because they had formerly testified untruths, threatened to stab them if they did it again, so that the witnesses were terrified and could not testify on his behalf. Meanwhile Burbage suborned his witnesses “to commit grievous perjury” concerning the costs of James Burbage, “by which unlawful practises your said subject *did then lose his case.*” Further, in the suit between him and Peter Street, and between him and Cuthbert Burbage, one William Smith laid out “divers sums of money on their behalf, whereby arose forcible entries, abuse of justice, law, and order, and examples of misdemeanour worthy of punishment.” Cuthbert and Richard Burbage and the others denied all his charges, and denied “the riott in pulling down the said playhouse called the Theatre.” Cuthbert “in conscience, being the assignee, could justify it, although not in strictness of common law, by Alleyn’s breach of covenant.” Therefore he had sought relief in the Court of Requests, which on 18th October 1600, non-suited Alleyn, and forbade him ever again from bringing another “action for pulling down of *The Theatre.*” Cuthbert added that Alleyn “offers great scandal and abuse to your Majesty’s Council by calling the same matter again in question, after such judiciall sentence and decree passed against him.” On 12th June 1602, Richard Lane, “who was then and is still acting as deputy Register in the Court of Requests,” denied Alleyn’s charge against himself. His whole procedure had been what he was accustomed to for the past thirty years; he therefore denied the charge of forgery. On 17th June Richard Hudson and Thomas Osborne denied the charge of perjury brought by Alleyn against them. After these wholesale denials Giles Alleyn’s bill of complaint and the demurrers were referred to the consideration of “the right worshipful Mr. Francis Bacon, Esq.”; and he decided that Giles Alleyn’s bill of complaint was very uncertain and insufficient in law, and *no further answer need be made to it.* This means that it was dismissed. This is my

first discovery of any association between Francis Bacon and the theatre, and even the Baconians must allow it was a purely legal one, and not literary.

Alleyn defied legal etiquette and legal decision by continuing the postponed suit against the same man in another court. This is the case in the Queen's Bench (Coram Rege Roll, Easter 44 Eliz. R. 257), which is varied from the former one in that court by being brought directly against Burbage, instead of his servant Peter Street. The case gives the former recitals quoted by Halliwell-Phillipps, who apparently did not understand that Burbage argued this time that Alleyn was incompetent to bring the action. Giles Alleyn and Sara his wife appealed to the country for a jury. This was never summoned, because, Alleyn's case being dismissed from the Star Chamber in Trinity, 44 Eliz., he was left by the previous decision of the Court of Requests incompetent at law to bring the case at all.

I can only account for Giles Alleyn's audacity in bringing such a case again by the fact that since the Privy Council's decision had occurred, the Essex conspiracy, executions, imprisonments, and fines had occupied the attention of the Privy Council, and weakened the strength of the players' friends at Court. Burbage's company themselves had not escaped without suspicion: Augustine Phillips had been summoned, though he had proved his innocence, and the company performed at Court till the eve of the executions.

Giles Alleyn was a stubborn and testy man, and very likely would have revived the case the following year in the new reign. But, unfortunately for him, the new sovereign from the first showed decided favour to these special players, and, among the first acts he performed in his reign, patented them to be his own Royal Servants and Grooms of the Chamber. Exit "Giles Alleyn, Armiger." After that, the troubles were ended concerning the transportation of the Theatre over the water to Southwark and its transformation into the Globe, though the losses crippled the company for long.

This paper acts as the second part of my answer to the Baconian query, "Where did Shakespeare learn his law?"

"Athenæum," Oct. 16, 1909.

PS.—These latter two articles and several lectures on the same subject were expanded into a volume called “Burbage and Shakespeare’s Stage,” delayed by my printers until July 1913, and then delayed by my wish in publication till 8th September 1913. Later in the same year came out Dr. Wallace’s “Nebraska University Studies,” where he gives many of the documents *in extenso*, along with some interesting depositions from the Uncalendared Court of Requests which he was permitted to see in advance of others. He has chosen to add a note that “*he told me*,” in 1908, of all these papers above-mentioned. He is mistaken. If he ever told anybody it must have been somebody else. Neither then, nor at any time, did he ever tell me anything that I wished to know. I had all my papers before he began his work, which I can prove.

FOOTNOTES:

[89] I have been unable to find the Information, but another case in the same court, 38 Eliz., concerns the same property and the same tenants.

[90] See my article “Burbage’s Theatre,” “Fortnightly Review,” July 1909.

XIX

EARLY PICCADILLY

The exact locality of early Piccadilly, the date of the first appearance of the name, and its derivation from a “collar,” a “gaming-house,” or a “hill-peak,” have been frequently discussed by London topographers and by writers in “Notes and Queries.”^[91] I do not pretend to be able to decide the third question, but I have collected some definite facts concerning the first and second which are worth preserving, as they may prevent futile discussions and may hereafter help to the elucidation of the derivation.

Many writers, stating that the name was first used by Gerard in his “Herbal,” assume that he did so in his first edition of 1597. This is an error. It first appears in the edition of 1633. I have, however, found the word used at least ten years earlier than that, not in connection with “Higgins the draper,” as Walford suggests (who really lived at “the Mearemaide”), but in connection with “Robert Baker, Gent., of Piccadilly Hall, St. Martin-in-the-Fields.” “Piccadilly,” like many other names and things, has travelled considerably westward in its day. There is no mention of the name in any book, nor, so far as has yet been discovered, in any manuscript, of Elizabeth’s reign. Having found Mr. Baker first associated with it, I worked back on his traces.

In Aggas’s map, which shows the appearance of the neighbourhood at the beginning of the reign of Elizabeth, there is a mass of building about the royal mews, facing St. Martin’s Church (on the present site of the National Gallery), and open fields stretching beyond to the country. The wall of Convent Garden formed the eastern boundary of St. Martin’s Lane, or, as it was then called, Church Lane. There were a few buildings about St. Giles’s, and *one* at the end of St. Martin’s Lane, commonly described as “*over the Church Lane.*” The district does not seem to have changed much in the early years of James’s reign. The churchwardens of St. Martin-in-the-Fields regularly entered receipts for the rent of “the house *over Church Lane,*” but the first sign of an enclosure of the Fields appears in the books of 1612, when they stated they had “received from Roger Haighton, steward of the

Right Hon. Earl of Salisbury, Lord High Treasurer of England, on February 17th, 1611, 50s, for a yeares rent of five acres of ground in the Lammas Common, heretofore called Swanne Close, whereuppon the new buildings are erected to the west of St. Martin's Lane." In the following year, 1612-3, there is a similar entry and the record of a new tenant:

Item, receved of Robert Baker Tayler, for the Lammas ground which he built uppon neare the Windmill, for one year ended Lammas Day, 1612, 30s.

The next year similar rents are recorded, and a topographical entry:

Received of Francis Gilford, Inholder, towards the charges of throwing up the ditch, and amending the highway of the upper corner of St. James's Fields, near the Windmill, 16s. 6d.

In 1614-5 the churchwardens admit a third encloser:

Received of Jeffrey Culsheth, gent., for one yeares rent of the Lammas ground, which he enclosed with a brick wall for a bowling alley, 10s.

Ten shillings appears to be the ground rent of an acre of ground in that neighbourhood then! The three rents reappear in the following account, with the exception that "for a bowling alley" is scratched out and is not repeated. Other temporary enclosures near the almshouses in 1616 seem to have been recalled later. In 1619 the Earl of Salisbury, Jeffrey Culsheth, and Robert Baker are still tenants, and the last is described as "gent." In 1621 the name of Jeffrey Culsheth is omitted. In 1622-3 William Warden is allowed "the gravel pitts hitherto demised to Thomas Warden, 10l." The Earl of Salisbury is still in possession, but

Receyved of the Executors of Robert Baker, gent., for the Lammas Common of certain grounds lyeing at the Causeway-head, near the Windmill, builded uppon by him, 30s., in lieu of the said Lammas Common, &c., 30s.

Here we may turn to another authority. The Overseers of the Poor of St. Martin's acknowledge in the record of the same year 1622-3, "Landside ... Of Robert Baker, *of Pickadilly Hall*, given by him by will, 3l." This then, is the first entry of the name that has yet been found, and it is important to note that the term "Hall" is used. This "Robert Baker, gent.," made his will

on 14 April 1623, and it was proved on 8 May of the same year. He left Samuel Baker sole executor, to sell all leases, pay all debts, and provide for the liberal education and endowment of his children and his wife. His daughters Judith and Mary were to have £600 each. His wife Mary to have the house where he then dwelt, with the garden and the cowhouse in St. Martin's, and "2 houses in the High Street neere against Brittaines Burse." To his son Samuel he left

a peece of ground divided into several parcels, and in part built upon, containing about 2 acres, situated behind the muse of St. Martin's, which I lately enclosed with a brick wall, together with all walls, stables, howses and edifices thereupon.

He also provided for his son Robert, and an unborn child, who was to have "a close called Conduit Close" and the reversion of the mother's houses. The name Piccadilly nowhere appears in the will, so it would seem not to have been a name selected by himself. As Samuel was to have two acres, doubtless the house and garden of Mr. Baker occupied the other acre, thirty shillings being regularly paid for the whole. With this will in memory, we may go back to the churchwardens' accounts, and find in the following year, 1623-4:

Item, received of the executors of Samuel Baker, gent., deceased, who was executor of Robert Baker, deceased, the some of thirty shillings in lieu of the Lammas Common neare the Windmill, builded upon by him in his lifetime, and *lately called Pick a dilly*, 30s.

In 1624-5 the same entries continue, with only slight variations. The Earl of Salisbury,

for the *Swanne Close* upon which many faire dwelling houses have been erected, and gardens belonging to them taken out of it, 50s.

Of the heirs or executors of Robert Baker ... for certain ground near the Windmill at Causeway-head, and *usually* called Pick a dilly, 30s.

Item, received of John Johnson for a piece of ground heretofore enclosed by Jeffrey Kelsey and used for a Bowling Alley, 10s.

The entries of 1625-6 remain the same, but in 1626-7 “Mrs. Marie Baker, Widdowe,” pays for the ground

neare the Windmylne at the Causewayhead builded uppon in the lyfetime of Robert Baker, her late husband, deceased, and *usually now called Pick a dillie*, 30s.

No Johnson or representative was charged for the bowling alley. In 1628-9, other entries remaining the same, a new tenant was admitted:

The Hon. Sir William Howard, Knight, in lieu of the Lammas Common of a certayne piece of ground called *the Swanne Close*, whereuppon the same Sir William hath lately erected a faire dwelling house, with a garden thereunto adjoyning taken out of the same Close, and is the first yeares rent for the same, 10s.

In 1631-2 to this small list is added another encloser:

The Right Honble, the Earl of Leicester, for the Lammas Common of a piece of ground adjoyning to the military garden, newly enclosed with a brick wall, 30s.

In 1632-3 the entries remain the same, Mrs. Marie Baker’s lot being described as “usually nowe called Pickadilly.” To the Earl of Leicester’s entry is added “and faire buildings thereuppon erected,” and his rent raised to £3. In 1634-5 the Earl of Newport held the land built on by Sir William Howard, and an adjoining close. This small list of enclosers remains the same. In 1638 the churchwardens’ books cease to record the rents, a special book after that date being used for the Lammas lands.

Returning to the overseers’ books, we find Mrs. Mary Baker assessed 16s. 4d. in 1623-4, and 17s. in 1625-6. The following year the residents are classified by their addresses, and for the first time is mentioned “Pecadilly, Mrs. Mary Baker, widow, 11s., John Woode, 2s., Isabell Ridley, 3s. 4d.,” which entries imply subletting. In 1634-5 she was only charged 6s. 6d., but no streets were named. In 1636, under the wider address of “Brick hill, near Soho,” we find “Mrs. Mary Baker, 18s.,” and “Symon Osbalston, Esq., 4s.” which assessments in the following year are raised to 26s. and 34s. 8d. In 1637, under the heading “Brick Hill, near Soho,” is specified “Pickadilly,” which now contains nine names:

The Widow Camell, 2s. 2d., William Vaugh, 2s. 2d., Thomas Heylock, 2s. 2d., Mrs. Mary Baker, 3s. 6d., Sir Richard Grymes, Knight, 9s. 6d., William Larke, 3s. 4d., Widow Bedwell, 2s. 2d., Symme Osbaldston, 8s. 6d., Anthony Walter, 6d.

This certainly implies lodgers or subletting of houses on her own or her son's property, as the ground rent is still paid in Mrs. Baker's name. It is an important list, for it shows that "the gaming-house" must have been very near, or part and parcel of the Bakers' lands.

In another book, entitled "An Abstract of Rents in St. Martin's-in-the-Fields," there are entries concerning the Earl of Salisbury and others which show that, though undated, it commences about 1633. Mrs. Mary Baker has to pay for "the Lammas common of the *land neere Pick a dillie* where his buildings are erected, 30s." The next folio is dated 1635, where her ground is "*usually now called Pick a dilly.*" In that list appears "Of Symon Osbalston, Esq., for ground built upon sence, neere Pick a dilly, the some of 4*l.*" There is some reverse writing on p. 1 of this volume, which reads:

Item of Mr. Fox for the Bowling Greene and Bear *in Swanne Close* yearely 10*l.*

Rents due yearely from these undernamed for the ground rent of the ground added to the ends of their gardens out of *Swanne Close*, Mr. Dobbins, 1*l.*, Mr. Boulton, 12s., Mr. Cooke, 4s., Mr. Temple, 1*l.*, Mr. Plunkett, 15s., the Lady Vane, 1*l.*, the Lady Armin, 2*l.*, Mr. Bull, 6s.

A marginal reference adds, "The Earl of Leicester hath these now."

On p. 4, also reversed and without date:

Of the owners of Pickadilly House and Bowling Greens, 4*l.* Of Mrs. Mary Baker, for the Lammas Common of grounds whereon she hath houses at Pickadilly, 1*l.*

These notices clearly show that the name was first applied to the Bakers' property, and the title of "Pickadilly Hall" only applied to their house; that the neighbouring building of Simon Osbaldistone's, which became the "gaming-house," was built either partly on their ground or in close proximity to it (probably including the old bowling alley of Culsheth or Kelsey), and that it was therefore called "Pickadilly House."

The earliest notice of the name in the State Papers occurs in “Dom. Ser. St. Pap. Car. I, 178 (43), 1630 (?),^[92] note of priests and Jesuits now in England: ‘John Blundeston, a priest, son to Blundeston in Fetter Lane, is now much at Pecadilly Hall at the Countess of Shrewsbury’s’”; and in the same series, S. P. D. C. Car. I, 195 (3), on 24 June 1634, Rich. Wainwright and others, writing to Secretary Dorchester, say:

This day at Lady Shrewsbury’s house at Piccadilly Hall, Parish of St. Martin’s, Mass was said by Captain George Popham, Priest. Richard Wainwright apprehended him, by the aid of Edward Corbett the Constable, and took him to Somerset House, whence he escaped, and was received by the Friars.

Evidently the countess at the time must have been renting Mrs. Baker’s “Hall.”

An important description is preserved in a letter written by the Rev. George Garrard, Master of the Charterhouse, to the Earl of Strafford:

Since the spring garden was put down (1634), we have, by a servant of the Lord Chamberlain’s, a new spring garden erected in the fields beyond the Mews, where is built a fair house and two bowling greens made to entertain gamesters and bowlers at an excessive rate, for I believe it hath cost him above 4,000*l.*, a dear undertaking for a gentleman barber. My Lord Chamberlain much frequents that place, where they bowl great matches. June 24, 1635.

Garrard, writing to Edward, Viscount Conway, 30 May 1636, adds:

Simme Austbiston’s house is newly christened. It is called Shaver’s Hall, as other neighbouring places are named Tart Hall, Pickadell Hall. At first, no conceit there was of the building being a barber’s, but it came upon my Lord of Dunbarr’s loosing 3,000*l.* at one sitting, whereon they said a northerne Lord was shaved there; but now, putting both together, I feare it will be a nickname of the place, as Nicke and Frothe is at Petworth, so long as the house stands. My Lord Chamberlain knows not of it yett, but will chafe abominably when he comes to know it. My neighbours at Salisbury House are all gone to Hatfield.—Dom. Ser. St. Pap. Car. I, 323 (41).

The barber was Simon Osbaldistone, servant to Philip, Earl of Pembroke and Montgomery, Chamberlain of the Royal Household.

Clarendon, in "The History of the Rebellion," mentions the place:

Mr. Hyde going to a House called Piccadilly, which was a fair house for entertainment and gaming, with handsome gravel walks with shade, and where is an upper and lower bowling green, whither many of the best quality resorted for exercise and recreation.

A description of the building is found in an estimate of 1650.

Mr. H. B. Wheatley in "Round about Piccadilly" gives a full account of the later fortunes of Piccadilly. "The house commonly called Pickadilly House" was assigned as soldiers' quarters on 1 August 1650 ("Interregnum Order-Book"). Faithorne's map (1658) shows it as "The Gaming House." Evelyn mentions the locality in his "Diary" (1662) saying that "orders had been given to pave the way from St. James's North, which was a Quagmire, and the Haymarket, and Piquadillo." Colonel Thomas Panton seems to have purchased it in 1671, and petitioned for leave to build on it, which was granted.

All this throws very little light on the derivation of the name, except that it dissociates it from "the gallants of the gaming house," which was not built until Piccadilloes were out of fashion. Among the annals of 1612 we find mention of "yellow starch, and great cut-work bands and piccadillies (things that hath since lost the name)," said to have been imported or contrived by the notorious Mrs. Turner (Kennet's "England," ii, 638). Barnabe Rich in his "Honesty of the Age," 1614, satirizing the tailors and "body-makers," says, "he that some forty or fifty years sithens should have asked after a Pickadilly, I wonder who, could have understood him, or could have told what a Pickadilly had been, either fish or flesh." Ben Jonson, in undated lines in "Underwoods," says:

And then leap mad on a neat Pickardill.

In 1615 the Vice-Chancellor of Cambridge promulgated an injunction against excess in apparel and the use of "strange peccadillies"; and in that

same year, “4th November, 1615, Mrs. Anne Turner, who was executed at Tyburne, for poysoning of Sir Thomas Overbury, Knight, was buried at St. Martin’s,” and the churchwardens received 17s. 8d. for her grave. An effort to discredit her invention was made by “hanging her in yellow ruffles,” and the piccadillies shortly went out of fashion too.

Butler in his “Hudibras” styles the collars of the pillory “Peccadilloes.” Cotgrave, 1611; Minsheu, 1627; Nares’s “Old Glossary,” Blunt’s “Glossographia,” 1656, explain the word as a stiff collar or hem round a garment.

Seeing that Robert Baker was originally a tailor, it is quite possible that his aristocratic neighbours threw scorn on his ambitious house by nicknaming it after his collars “Pickadilly Hall,” a possibility supported by Garrard’s letter. But there is another possibility which I may suggest. Seeing that it was in the immediate neighbourhood of “Swanne Close,” held by the Earl of Salisbury, and seeing that the district was marshy, full of ditches, and pools formed in old gravel pits, it is just possible that a breed of plebeian ducks thrived there. Down to the present time children in East Essex, calling these to their meals, cry,

Dilly Dilly, cuddilly, cuddilly, cuddilly,
Cud, Cud, Cud, Pick a dilly, dilly, dilly,

which words are probably a survival of the old original of the mocking parody “Dilly Dilly, come and be killed.” It is also possible that some specimens of dill, or of daffodils, frequently called dillies, grew there abundantly. The churchwardens’ clerk of St. Martin’s-in-the-Fields, in early years, carefully dissociated the parts of the word as “Pick a dilly.” It remains at least a fact for us that the word as a place name first enters literature associated neither with collars, tailors, nor gaming-houses, but with the botanist John Gerard, who found the blue buglosse “growing in a dry Ditch at Pickadilla” some time before 1633.

“Athenæum,” July 27th, 1901.

FOOTNOTES:

[\[91\]](#) “Notes and Queries,” First Series, viii, 467; Third Series, ix, 176, 249; Fourth Series, i, 292; iii, 415.

[\[92\]](#) The doubtful date of the calendar should be rendered 1633-4.

XX

LITERARY EXPENSES IN ST. MARGARET'S, WESTMINSTER, 1530-1610

The important historical information given in the accounts of the Churchwardens justifies the reproduction of those selections which testify to the rapid changes in religion and education. William Russell and Thomas Cloudesley were churchwardens from 2nd June 1530 till 11th May 1532, and they "Payd for a Prick Song book xx^d." The next Wardens "payd for the covering of the Pryksong book ij^s." Thurston Amere and William Combes 1538-40, in their "first yere" "payd for a book to registre in the names of the Buryalls Weddynges and Cristeninges ij^s." This entry is exceedingly interesting for many reasons. Archbishop Cranmer and Thomas Cromwell issued a set of Injunctions dated 11th October 1538; of which a contemporary copy is preserved in the Public Record Office, (uncalendared Papers of Henry VIII, 253). The second of these ordained

The Bible in English to be sett up in the churches Royal et parrochim.... Sixth, A sermon to be preached at least every quarter.... Twelfth, Register-bookes to be kept of weddings Cristenings and Burialls, and for safe keeping thereof, the Parish to finde a cheste with two locks and two Keyes to be taken out every Sunday and the Parson in the presence of the Wardens to write.... etc.

For every omission a fine of 3s. 4d. to be levied.

St. Margaret's is one of the few churches whose Registers are preserved from this early date. This entry proves promptness in obedience, as the books themselves show carefulness in preserving. In their second year these Wardens "payd for the halfe parte of the Bybell accordingly after the King's injuncions ix^s ix^d, Item payd for a desk for the Bybell iij^s viii^d. Item payd for a Quire of Paper for a parucker booke for this 2nd yere ij^d." Among the Foren payments are repairs to the organ, and "payd for two hympnalls for pdco, ij^s viii^d." The "accompt of Robert Smalwood gent, and William Heynings, grome of the King's most honourable Chamber," wardens from

1540 to 1542; in relation to pew-letting mentions “the purchase of a book for the pews of freemen xi^d.” Passing over the regular items of quires of paper for their “particular books”; of “parchment for their general book” and of help “in the writing of the same; in the Accompte of John Kenet and Thomas Massy 36th to 38th Hen. VIII,” we find amid the “foren payments of the first yere,” “Also payd for VI Bookes of the Lattony in Englyshe xviii^d.”

In the account of Nicholas Ellys and Richard Dod, 12th June, 38th Henry VIII to 17th May, 2nd Edward VI, after mentioning the dirge for Henry and the expenses contributed to his funeral, recorded in the second year.

Also payd in Christemas quarter to Goodman Beyton for makynge of the stone in the body of the churche for the priest to declare the pistolls and gospels, ij^s.

... to Thomas Stokedale for xxxv ells of clothe for the fronte of the Rode Lofte where as the X commaundements be wrytten, price of the ell viii^d, xxiii^s iiiii^d.

... to hym that dyd wryght the said X commaundements and for the drynkynge, lxvi^s ix^d.

Also payd for the hangyng of the same clothe, v^s ij^d.

Also payd for a Byble for to rede the pystell and the gospels, x^s.

Also payd for ij wayscotte bords for the hie Alter, xij^d.

Also payd for the wryghtynge of the Scriptures upon the same bords, v^s.

The Account of Richard Babbye and John Buckherde, 2nd Ed. VI to 4th Ed. VI. In the first year is entered a dated purchase,

Also payd for the half pte of the paphyrice of Erasmus the xth August, v^s.

After Christmas they bought and

Also payd for viii salters in Englyshe, xiiij^s iiiij^d.

Also payd to Hansforthe for the Inventory that was deliuered to the Kyngs commysioners, iiiij^s viii^d.

In the second year

Also paid for the searching of the records in the Kynges Exchequer, ij^s v^d.

Also paid to Nicholas Poole for wryttyng and prykyng of Songs for the Quyer, iiij^s iiij^d.

Also payd to William Curlewe for mendynge of divers pewes that were broken when Doctor Lattymer dyd preache, xviii^d.

Forren payments. First payd for iiij books of the Service in the church, xvi^d.

... to Nicolas Poole for pryking of divers songs, iiij^s iiij^d.

Also payd for the taking up of the foundation of the Crosse at the west door, viij^d.

The Book of Thomas Duffield and John Curtesse from 4th to 6th Ed. VI is written on paper, while all the others have used parchment.

They note an energetic sale of tabernacles and Popish ornaments; the introduction of a communion table and communion cups after the Protestant fashion.

Also payde to a Carpenter for a dayes workynge for to set up the Skaffolde for hym that dyd wryght the vi chapter of St. Johns Gospell in the quire, viij^d.

... for nailes to the same, iiij^d.

Also payde to hym that did paynte and wryghte the vi chapter of Saynt Johns Gospel in ye quyre, xl^s.

Also payd to hym for wrytynge of certeyne chapitres more in the quyre as appereth, xiiij^s iiij^d.

Also paid to him for wrytynge and trymmynge of the north yle and the sowthe yle, iii^{li} ix^s viiiij^d.

Also payd for the makynge of our bill to put in at the Bishopp's visitacyon, iiij^d.

Also payd for a boke of the Artycles, ij^d.

Also payde for a supplicacyon that was put to Mr. Chanceloure of the Augmentation for his patent, ij^s.

Nicholas Ludforde and Rychard Castell occupied the responsible position from 6th Ed. VI to 1st Mary.

Also payd to Mr. Curate and Nicholas Poole for makynge the Book of Church goods to be presented to the King's Commissioners and for ye paynes they toke abowte it, that is to say to Mr. Curate, iii^s iiij^d and to Nicholas Poole, vi^s viii^d.

Allso payde for two communion Bookes, vii^s iiij^d.

Allso payde for the pulpit where the Curat and the Clark did reade the chapitres at servis tyme, xiii^s iiij^d.

Without any notice of change of sovereign, the entries go straight on to the service of the "old faith."

Allso payd for an ymnall & a processionall, iiij^s.

... for iij Great Antiphoners ij Grayles and a Masse Book, xlix^s.

Also payde for an owlde Legente, a Massebook, and a processionall, and an owlde Antyphoner, xii^s.

Allso payd to John Bray for the new trimming of an Antiphoner, ij^s.

Allso payde for a Supplicacion to the Queen's Majesty for the Church goods.

Allso payde for a copie of the Instructions geven by the commissioners to Mr. Smallwood and others for the Churchgoods, vi^d.

William Pampion and John Bray (from 1 Mary to 1 and 2 Phil. & Mary), early in their first year pay

to a painter for washing owte of the Skripture from of the hie Altar table, xii^d.

Item payde to Wyer for new byndynge of a mansel and a processyonall, xii^d.

The next churchwardens

Payd for making of a Serplis of the cloth that hung before the Rode loft wrytten with the Commandements, ij^s.

Richard Hodges and Robert Davys were churchwardens from 4 and 5 Phil. and Mary to 2nd Eliz.

In their second year they

Payde for a Bybill & a paraphrase, xvi^s.

Item for a Communion Booke bounde in Parchmine, vi^s.

Item paid for a book of the names of all such persons as were buried within the Parish from Mydsommer day in Anno domini 1558 until Mydsommer day in the year 1559 delyvered to the vysytors, ij^s.

Item for a chaine and two stapulles for the paraphrase. x^d.

John Skonner and John Hunter 2nd Eliz. to 4th Eliz.

First yere, Item a quire of paper, iiij^d.

... for a Psalter for the Quyre, xviii^d.

... for Byndyng of a Communion Booke, xii^d.

... for a Quyre of paper and for setting the same into the Register booke, vi^d.

Item for a new Calendar set for the order of our servys in the church, iiij^d.

... For a paper with the 10 commaundements, xvi^d.

2nd year Item, for making a bill to the Commissioners of concealed lands, viii^d.

Item for a Communion Book, iiij^s.

William Worley and William Stanton, 4 to 6 Eliz.

payde for 4 qr bookes of psalmes in meeter for the quyer, iiiij^s viii^d.

Item to Nicholas Poole for the pryckinge of two bookes withe *Te Deum Laudamus* for the quyre, x^d.

Item payd for 2 bookes of meeter psalmes of the gretest volume for the quyer bought by Poole, ii^s viii^d.

... for a quire of paper for the making of a certificate of strangers, iiij^d.

... for a book of the Queens Mat^{ies} injunctions, vi^d.

... a quier of paper for a book for clerk's wages, iiij^d.

... for 4 q^r songe bookes for the service of God in the same churche, v^s.

... for 4 q^r bookes of service for the censing of warres, xvi^d.

... for 4 q^r books of prayer to God for the censing of the plague, viii^d.

... To a booke bynder for newe byndynge and mendinge of sondrie places of the Bible iij^s.

For a quier of papier for the clerke to make weekly certificates unto the Court of all Burials and cristenings, iiij^d.

... to Christopher Robinson for a copy of Edmond Wilgres Will signed under the hand of Mr. Argall, iii^s iiij^d.

William Spencer and John Fisher, 1564 to 1566.

payd for two quyer of paper, viii^d.

... one pynte of ynke, viii^d.

... for two paddelocks for the Register cheaste, xvi^d.

Item, payd for a quyre of paper for the Register Book, iiij^d.

Item, payd for 2 psalme books for the Quyer, iii^s.

It. payd to Mr. Archdeacon's man for writing a book of Articles, xij^d.

For two psalme bookes for the quyer, iiij^s.

For a quire of paper for certificates, iiij^d.

For writing a book for the Collectors, x^d.

For two Books of Prayers, ij^d.

Richard Gybbes and Roger Boseley, 1566 to 1568, 2nd year.

Item paid for a Book of Queen's Injunctions, iiij^d.

... for a Book of Homilies, iiiij^s.

... for twoo books of prayers set out by the Byshoppe of Canterbury to be redd Sondaies Wedensdaies & fridaies, vi^d.

... for a Certyficat made of all the strangers within the parishe, vi^d.

... for one book of Homelyes and another book called a protestation, xii^d.

John Jennens and Richard Garradd, 1568-1570.

Item payde for byndyng and new covering of the Bybell, vi^s viii^d.

... for the writing of a book to the Queen's maiesties Commissioners for armer, xij^d.

... for writing of a booke to Mr. Latimer of articles, xij^d.

George Bryghte and Nicholas Corne, 1570-1572.

Item payd for a new booke of the Queen's Majesties injuncions, iiij^d.

... for a plott of the church drawn out in parchment, xx^d.

... payd to the Registre for entering our booke of presentments when we delivered up the same, iiij^d.

Thomas Clerke and Andrew Holborne, 1572-1574.

Item for a new Regyster book for to wryte in the names of every buryall crystening and marryge that is in the Parisshe, v^s.

... for 3 new books of common prayers set owt by the Bishop, vi^d.

... for writyng a copy of the Artycles, iiij^d.

John Wheler and Edward Taylor, 1574-1576.

Item payd for a coppy of the Artycles gyven by the vysytors to the sworn men to inquiry of, ij^s.

Item payd for a new Byble of the largest volume, xxviii^s.

The accompt of Davy Rogeres and John Ryall, 1576-1577, during which year John Ryall died, and the following year the account is of John Fysshier and Davy Rogers, 1577-1578.

1st year Item payd for tow iron chaunces for the tow paraphrases of Erasmus.

Item paid for making writinge & drawing out of the lease of St. Anns Chappell to laye wood in for the poore, v^s viii^d.

These continue in office for a second term.

The Accompt of John Fisher and Davy Rogers, 1578-1580, has no literary expenses worth noting.

The Accompte of Thomas Wharton and John Lovadge, 1580-1582, 2nd yere.

Item payd for a Book of Abridgments of Statutes to remain in the church, ix^s.

John Bradshawe and William Conham, 1582-1584, the usual paper, ink, parchments, and nothing else.

Richard Ferris and George Lee, 1584-1586, the same.

Morris Pickeringe and John Prieste, 1586-1588.

Item payde for a Communion Booke, vij^s.

Item payde for an Hower glasse, iij^d.

Item payde for three Psalter bookes, v^s.

Item payde for a lace for a register for the communion booke, vi^d.

Item payd to Robert Jones for wrytynge of certayne duties ordered by the consentes of the parish and for wrytynge the names of the pore people of Mr. Cornellis his almes howses, xii^d.

Item payd for three bookes of prayers for the Queenes Matie, vi^d.

Item payd for a Book of Injuncions, iiij^d.

Item payd to Mr. Price for two bookes of prayers for the Queenes Mayesties daye, vi^d.

Item paid for a backe and cheste for a writting table.

Item payd to the joyner for makeing a Table wherein are sett the names of all such that payde in every ward towards the statute of Westminster, and for wrytyng of the same table, ij^s viij^d.

Thomas Cooper and Richard Ireland, 1588-1589-90.

1st year Item payd for the wrytynge of a cotype of Mr. Warnham's Will, vi^d.

Item payd for two prayer books, when the Spanishe Fleete was upon the narrow Seas, iij^d.

Item payd for mendinge the Table of the Tenn Commaundements that hangeth over the Communion Table, ij^s.

Item payd for makinge of the Indentures between Baron Southerton and the Churchwardens, xij^d.

William Towe and Cuthbert Lyne, 1590-1591.

Item payd to Thomas Collins for drawing certen articles of agreements for the benefit of the Churche & after for ingrossing them into the Register Booke, iiij^s.

The Accompt of Marmaduke Servaunt and Thomas Cole, 1592-1594.
This being plague time there was little literature.

William Goddard and George Waites, 1594-1596.

Item geven to Mr. Fletcher a precher who preched the 4 of August being Sonday in the afternoon by consent of such of the vestry as were present at that sermon, v^s.

2nd yere Item geven to Jhon Crewonne alias Foke a pore scoller borne in this parish after a sermon by him made in this church by consent of such of the vestry as were present at that sermon, xx^s.

Roger Darly and Samuel Haselwood, 1596-1598.

Item for a prayer-book, j^d.

2nd yere. Item for a Communion Booke & a Psalter book, bothe embossed, viii^s iiij^d.

Item for a praier book, ij^d.

Henry Weatherfield and William Man, 1598-1600.

It. gyven to Mr. Ailworthe for preaching on Easter day, x^s.

Item payd for a service book, iij^s.

Robert Gouldinge and William Stanlake 1602-1604.

There was plague again. Only at the end there is an entry,

Item payed 24th March, for four books, xxi^d.

the very date of Elizabeth's death and James's accession.

William Carter and John Butcher, 1604-1606, head their title-page with the motto "Tempora mutantur et nos mutantur in illis." After 5th November 1605 they paid

Item for three prayer bookes, xii^d.

Item to Thomas Collins Scrivener for drawing and ingrossyng an abstract to be delivered for the justices, x^s.

Item for the search of three wills, iij^s.

Item for an Almanack, j^d.

They seem to have had their almanacks regularly after this.

John Fabyan and Thomas Tickeridge, 1606-1608, were not literary.

Thomas Bond and Christopher Bennet, 1608-1610, paid

Item for an Almanack & paper, iii^d.

To Mr. Burte the preacher for three sermons, xx^s.

For four bookes of Common Prayer, xix^s.

Thomas Walker and John Mulys, 1610-1612.

6th week. Item paid for a Spunge Ink & paper, xi^d ob.

5th August 1611. Item payd for a paper booke of two quyers redie bownde for the Sexton to register the names of all them that are to be buried under everie pewe, and for other paper to be spent about other businesses and for boathier furthe & backe, ii^s x^d.

Payd for twoe hundred leaves of parchment & for the ruling and binding of the same at iij^d the leafe to Registre the Christenings buryings & weddynges therein, l^s.

Item for three prayer bookes for the Churche, xii^d.

Item paid unto the preacher for a sermon made the Vth of August, vi^s viii^d.

This would probably relate to the Gowry conspiracy, keenly remembered by James.

Item for a sermon made the xviith of August, vi^s viii^d.

Item paid to the preacher for a sermon made more, vi^s viii^d.

Item payd to John Roade for wrytynge the names of all such persons as were presented for not receiving of the holy Communion at Eeaster last past 1611, iij^d.

The chapter naturally closes here, completing the changes through the four reigns, with the new edition of the Bible, published 1610-11; since then comparative permanence of creed and custom has prevailed. Each point seems trifling in itself, but helps to piece together the fragments of the past into one connected whole.

“Athenæum,” 12th June 1897.

XXI

OLD WORKINGS AT TINTERN ABBEY

Among the heterogeneous papers of the Court of Requests are preserved a few which remain of general importance.

A complaint was made on 25th June, 2 James I, by “the Governors, Assistants, and Society of the City of London, of and for the Mineral and Battery Works,” which gives interesting details as to the advance of science, and the progress of manufactures at that time. It is stated that the late Queen Elizabeth had been told by William Humphrey, Saymaster of the Mint in the Tower, that by great efforts he had induced

one Christopher Shutz, now deceased, an Almaine, born at St. Annen Burgh, under the obedience of the Elector of Saxony, a workmaster of great conning, knowledge and experience, as well in the finding of the Calamine Stone, called in Latin *Lapis Calaminaris*, and in the proper use thereof, and in the mollifying and manuring of Iron and Steele and drawing and forging the same into Wyer and plates for the making of armour, and for divers other necessary and profitable uses, to come over with him to this country.

The Queen, through her good hope in the possible success of this enterprise under Shutz, granted letters patent at Westminster, dated 17th September, 7 Eliz., giving full power to the said William Humphrey and Christopher Shutz, their deputies, servants, and workmen,

to search, dig, mine for the Calamine Stone and all kinds of Battery wares, to make cast-worke and wyer of Lattin, Iron, Steel, and Battery, to manure and work into all manner of plate and wyer,

to their own profit for ever. And they were allowed to build any houses suitable for their work, at their own cost and charges, on her royal property or the property of any of her subjects, without any let or hindrance, with various other powers, privileges, and immunities for raising sufficient stock, for building of watercourses, for provision of wood and coal, paying wages and buying tools, and other things necessary. William Humphrey and

Christopher Shutz gave concessions of shares to others, and these were, by another royal patent, incorporated into a company by the name of “the Governors, Assistants, and Society of the Mineral and Battery Works.” It seemed to have succeeded. The Right Hon. William, the late Earl of Worcester, owned lands in Tintern and Chapelhill, co. Monmouth, with divers houses built thereon, and in 29 Eliz., in consideration of a large sum of money paid as a fine, he leased them to the Society for twenty-one years by a legal deed, which might be renewed. This included all the edifices in the parish of Chapelhill, in the lordship of Tintern, co. Monmouth, that were erected, or would be erected for their works; also as much as they required of the stream called Angewe Brook, with the waters, watercourses, banks, dams, walls, fences, and enclosures for its necessary course to the houses and buildings. The land extended from the Tryenbridge to the meadow then in the tenure of John Edwyn *alias* Barbor and Margaret his wife, and so much of the old ditch or watercourse which was digged to convey water out of the brook to the mill that sometime stood within the walls or precincts of Tintern Abbey, and all the banks and enclosures of this old ditch from the beginning of the old issue out of Angewe Brook to where the Barbor’s hedge crossed the ditch, and the new ditch made lately to bring the water back to Angewe Brook, as far as it led to Tryenbridge, with free ingress and egress, liberty to dig, to convey away, and to make water passages for their use. The only rights reserved to the Earl were the woods and mines on the estate; all other rights were transferred to the Company, it paying £4 a year as rent, and rendering certain services to the lord.

They reminded King James that he had renewed the patent on 22nd January last past, and signified his royal pleasure that he would grant a new and more effective patent, and no one should interfere with the Company. They set to work 600 poor people on the spot, and helped 20,000 others of the people. Notwithstanding this, one John Phillipps and Gwenllian his wife, late wife of Thomas Welsh *alias* Irish, deceased, of Chapelhill,

being riotous and outrageous and evil disposed persons, and intending the let and hindrance of the wire works at Tintern, the utter undoing of the poor people therein working, and the

disturbance of the Company in its quiet proceedings, having gotten into their hands the deeds of the lease made by the Earl and other deeds belonging to the Company, have made forcible entry by outrageous means, as by throwing of scalding water, and with spits and other desperate weapons have forced out and kept out the Company's workmen out of their working places, and houses built upon the ground for them

by the plaintiffs' predecessors, to their great loss. These defendants also

stop the watercourses which issue from these works and work-houses, so that the wheels of the other houses are so drowned in water they cannot turn. This is to the great impoverishment of the poor workmen and the many thousands who live by working the wire to divers uses, which is first made by these workmen. If these defendants are allowed to continue their oppressions, it will become a general harm to the whole dominion, for many depend on wire to make woolcards and many other things of great necessity, which cannot elsewhere be so plentifully had, except from foreign parts.

In tender consideration of their difficulties, seeing they cannot sue at common law because they have not the lease granted them by the Earl, and do not remember the exact dates, and also for the present necessity of the continuance and daily keeping up of the wire works and poor people at work, and as the action of the defendants is an intolerable offence not only to the plaintiffs, but to the commonwealth, and work may not be stayed or hindered a week without great loss all round; they therefore pray a privy seal to be sent to John Phillipps and Gwenllian his wife to appear immediately, and also an injunction to them to stop all their proceedings until they have answered this complaint.

Unfortunately the rest of the suit is not to hand, and we have no "answer," "replication," or "depositions" to supply further details, but they may be found yet. Meanwhile Dr. Owen might turn his researches to a practical use and excavate the site—perhaps even find the Company's books, with the name of Bacon as a shareholder, a little further up the Wye, where the Anjou Brook enters it.

"Athenæum," 24th June 1911.

XXII

“MR. SHAKSPEARE ABOUT MY LORDE’S IMPRESO”

Mr. Stevenson’s discovery among the lately calendared Belvoir MSS. of an apparent reference to the poet stirred the Shakespearean world. It encouraged us in the hope that somehow, somewhere, we might some day discover more important facts; but nevertheless it puzzled us. It did not quite seem to fit into the known facts of the poet’s career. There is an indefiniteness, too, about the wording of this entry which makes it different from the ordinary records of the Steward’s book of payments. It is not “for,” but “*about* an Impreso.” There is no suggestion of the material on or in which the device was worked, nor whether the idea, complete in some material, or only the design of it, was referred to.

The *impresa* was a private and personal device, as distinguished from the family coat of arms, and was especially used in tournaments and masques when there was some attempt at concealing one’s identity. A coat of arms told a man’s name as clearly as written or spoken words; an *impresa*, especially when used for the first time, would be known only to the intimate personal friends of the wearer.

The Belvoir *impresa* of 1613 was about to be used for the first time. Roger, Earl of Rutland, who, in company with the Earl of Southampton, in 1599 “went not to the Court, but only to see plays every day,” had died, and had been succeeded by his brother Francis, who was now preparing for a Court tournament.

There is nothing surprising in the poet’s being employed by the Earl of Rutland, nor in his being able to design a device, nor even in his using his hands in fashioning it. His association with Burbage seems to strengthen the fact. The players of the day knew about preparations for festivities, and all the Burbages seem to have been handy men. We know that the poet was interested in heraldry through the Sonnets and the plays, as well as through his method of securing arms for himself.

The Steward's account in which the reference to Shakespeare occurs runs as follows:

Aug., 1612, to Aug., 1613.

Account of Thomas Screven.

Payments in 1612-13.

5 Feb. Paied to Edward Morris, embroderer, in parte for my Lord's masking suyte, *xlii*. 12 Feb. More to him, *xxli*.—*lxli*. ...

29 Martii. Paied to Mrs. Gascard, a French woman in Black Friers, for the plume for my Lords caske, fetheres, &c. ... *xxiiijli*. ...

14 May. Paid for a forest seale of my Lords arms of 4 coats & creast & forest mantlings, the silver 4 oz., *xxs*. Making & graving it, *vili*. *xs*. In all, *viili*. *10s*.

21 May. Paied to Morris the embroderer in full for the masking suite, *xxiiili*. ...

14 Dec. Paied to Fisher, bytmaker, for a paire of guilt styrrops, *xxiijs*. A guilte snaffle, *xiis*. A silvered snaffle, *xs*. A paire of silvered stirrops, *xxs*. Bought in July last for the King and Prince, *iiili*. *vis*. ...

21 Martii. Paied to Knight that drewe the armes with helmet, crest, and mantlinges in 4 eschocheons upon 2 banners for 2 trumpettes, and making them up, being 20 coates, *viiili*. Ryban, *xvid*. ... *viiili*. *is*. *iiid*.

31 Martii. To Mr. Shakspeare *in gold*, about my Lord's impreso, *xlivs*.; To Richard Burbage for paynting & making yt, *in gold*, *xlivs*. ... *iiili*. *viiis*.

The name of Shakespeare does not occur again, but, curiously enough, another entry shows Richard Burbage at similar work, at a time very near the close of the poet's life:

25 Martii, 1616. Given to Richard Burbidge for my Lorde's shelde, and for the embleance, *iiili*. *xviiis*.

It seemed quite clear that the above entry referred to the poet, and yet many students have an uneasy sense of dissatisfaction, and I have been tempted to mention two alternative theories. The money that was paid him “about my Lord’s impreso” might have been paid him to convey to some one else; or the entry might refer to another “Mr. Shakspeare” altogether. There was one in London at the time. A John Shakspeare married Mary Gooderidge in St. Clement Danes on 3rd February 1604-5. He was a fashionable bit-maker, was in the royal service, and might well be called “Mr.” by the Belvoir Steward. He was probably master of the Loriners’ Company, though we cannot be sure of this, as the early books of the guild are lost. But we know that in St. Clement Danes he was buried: “John Shackespeare, the King’s Bitmaker, 27 Jan., 1633”; and that the King was indebted to him at his death to the extent of £1,692 11s. (See my “Shakespeare’s Family,” p. 147.)

Many entries of payments to him are recorded in the Wardrobe Accounts of Charles as Prince and King, for wares concerning horses, carriages, tournaments, and tiltings—so many that I can only here give limited selections.

In the account of Sir John Villiers, Master of the Wardrobe to Prince Charles—Exchequer Q.R. 434 (4), 1617—there appear:

To John Shakespeare for 18 Bitts, with guilte Bosses at xxs. a piece, *xviii li*.

More for 18 cavasson irons at xs. a piece, *ix li*.

To John Shakespeare for a strong removing vice for the sadler’s office, 1s.

To John Shakespeare for tryimming of bittes, for esses, cheynes, bolts, rivets, curbes, and new mouthing, and for all manner of reparacions, as under the hand of the Clarke of His Highness’ stable appeareth, *lv li iis*.

In the second account of the same nobleman—Exchequer Q.R. 434 (9), 1617—there occur:

To John Shakespeare for 10 dozen of hunting snaffles at xls. the dozen, *xx li*.

To John Shakespeare for 30 Bitts with caste [*i.e.*, chased] and guilte bosses at xxxvis. a piece, liv*li*.

To John Shakespeare for two guilte bitts with guilt bosses for his highness' use at v*li*. a piece, x*li*.

To John Shakespeare for 20 Bitts with guilte and graven Bosses for Caroch Horses at xxxs. a piece, xxx*li*.

In the third account of Viscount Purbeck, Master of the Wardrobe to Prince Charles—Exchequer Q.R. 434 (14), 1618-19—

To John Shakespeare for 4 Bitts, with caste and guilte Bosses at xxs. a piece, iiij*li*.

More for viii. wattering Bittes at xiis. vid., v*li*.

To John Shakespeare for 18 Bittes with caste & guilte bosses at xxxs. a bitt, xxvi*li*.

More to him for Caroch Bittes with engraven & gilt bosses at xxxs. a bit, xxi*li*. xs.

To John Shakespeare for two guilt & silvered Bitts engraven and guilte all over at v*li*. a piece, x*li*.

The fourth account of Viscount Purbeck still points to the rich work done—Exchequer Q.R. 435 (6), 1620—

To John Shakespeare for xiiii bittes guilt, silvered, and chast at v*li*. xs. a piece, iii^{xx} xvi*li*.

To one payre of bosses richly ornamented, 1s.

In the account of Lord Compton—Exchequer Q.R. 435, 14, 1622—there are varieties:

Expenses of the Royal Green Velvet Carroache....

To John Shakespeare for v Byttes with guilte bosses at xvs. a Bytt, iii*li*. xvs. ...

For the Blue Velvett coach sent beyond seas....

To John Shakespeare for sixe coach byttes, with guilt bosses charged with the armes of England at xxiiis. vid. a piece comes to

viili. vis.

At the end of the accounts are “abatements” of many kinds, apparently from overcharging. John Shakespeare’s work has never an “abatement” against it, so he evidently either charged fair prices, or had special Court favour.

In a tilting account of Lord Compton’s—Exchequer Q.R. 435 (16)—we find for one quarter in 1622:

To John Shakespeare for 7 Bittes with caste & guilt bosses for coursers at *xxs.*, *viili.*

For 12 Watering Bitts for Coursers at *iis. vid.*, *xxxs.*

More to the said John Shakespeare for 8 cavasson irons at *vs.*, *xls.*

For esses, chaines, curbes, boults, rivets, rings, and all other reparacions, *ivli. xvs.*

To John Shakespeare for 4 bittes with caste & guilt bosses for coursers at *xxs. ivli.*

4 Bittes for the bottle horses [*i.e.*, botell, pack, or hay horses] at *vis. a piece*, *xxivs.*

“The perticulers of the seconde accompte of Spencer, Lord Compton, Master of the Wardrobe and the Robes to the High & Mighty Prince Charles, Prince of Wales,” etc.—(Exchequer Q.R. 435 (20), 1622-3):

To John Shakespeare for one bitt playne guilt with caste and guilte bosses, *iiili.*

For 4 Bitts plaine silvered at *ls. a bitt*, *xli.*

For 2 Bittes chaste with goulde and silver at *iiili. a piece*, *vili.*

For Silvered Boults, rings, and hooks for curbes and esses, *vli.*

For 3 snaffles, hatchte, and gilte at *xiiis. iiid. a piece*, *xls.*

“The Accompt of Lord Compton”—Exchequer 436 (1), 20-21 James I—gives a long list, among which are the items—

Three bottell byttes without bosses at *vis. a piece*, *xviiis.*

For tryimming & moutheing 22 byttes for Coursers at iiis., *iiili*.
[sic].

In 1624 there is a little variety in Lord Compton's bill—Exchequer Q.R. 436 (2):

To John Shakespeare for 8 Bittes for the horses of the crimson carroche ["For the Queen of Bohemia" is the marginal reference] at xvs. a bitte, *vili*.

To John Shakespeare for 6 bittes with chased and gilt bosses at xxs. a piece, *vili*.

For a dozen of Snaffles, xxs.

To John Shakespeare for 2 gilt and silvered bitts for the said saddles, *vli*.

For 2 watering snaffles, iiis. *iiid*.

The Earl of Northampton gives his accounts in a great roll, with the sum total of each bill and the name of the workman, referring to the special books. In this occur the name of John Shakespeare and the amount of his bills; but it seems unnecessary to do more than give the reference—Exchequer Q.R. 436 (3). Collier noted some of the entries.

With all this special work on lines associated with tournaments, it is evidently *possible* that John Shakespeare might be the person referred to in the Belvoir accounts. As there is more than a possibility that this John is the cousin who disappears from Snitterfield, the association with Burbage may be naturally explained. I have not made up my own mind upon the subject, but so many have asked me to put forward the facts that I thought it wise to do so. If there is nothing more in them, they at least prove that there was another contemporary and well-to-do "Mr. Shakespeare" in Court service, engaged in work which might have suggested employment "about my Lorde's impreso."

"Athenæum," 16th May 1908.

XXIII

“THE QUEEN’S PLAYERS” IN 1536

Dramatic records of Henry VIII’s reign are very scarce, and therefore it may be of interest to some students to have the text of a little Chancery suit to which I was guided through the studies of Mr. J. S. Young. It is undated by the scribe, but a proximate date may be reckoned. The appeal was addressed to “Sir Thomas Awdley,” who was appointed Chancellor in 1533, and he was made Lord Audley of Walden, 29th November 1538. The complaint states that the company were Queen Jane’s players, “late her servants.” As she was married only in June 1536, and as the cause of the dispute was referred back to “a year and three quarters past,” and she died in 1537, the complaint must have been brought just before the Chancellor was ennobled in 1538.

The document does not tell us much. It only gives the names of the chief members of the company as John Young, John Sly, David Sotherne, and John Mountfield (names that appear in the Lord Chamberlain’s books); and shows that they had been travelling professionally in “the northern parts,” and came to trouble over their packhorse.

The only earlier notice of “the Queen’s company” was in 1532, when it must have been Queen Katherine’s, whose waning power may have accounted for the trifling reward at Oxford “given to her players by the President’s orders,” viz. 12*d*. (E. K. Chambers, ii, 249.)

Early Chancery Proceedings. Uncalendared

(Bundle 931, 11, Y., no date given.)

TO SIR THOMAS AWDLEY, LORD CHANCELLOR.

In most humble wise sheweth unto your goode Lordshippe your dayly orator John Yonge mercer, that whereas he with one John Slye, David Sotherne, and John Mounffeld, late servants unto the most gracious Queene Jane, abought a yere and 3 quarters past, to thentent for the further increase of lyvinge to travail into the north

partes in exercising their usuall feates of playinge in interludes, he your said orator, with his other companions aforesaid, hyred a gelding of oon Randolphe Starkey to beare there playing garments, paying for the use of the same gelding twenty pence weekley till there comyng home ageyne, at which time the said Starkey well and truly promysed to your said orator and other his said companions that the said gelding should be goode, and able to performe there journey where of trouthe the same geldinge was defectyve, and skarsly servyed them in there said journey, by the space of four wekes, by occasion whereof your said orator, with other his said companyons, susteyned great damadge, as may evidently appere to all that have experience in such travayles and affayres. Ageynst whom they can attayne small *redress* onles they shuld leve other their more necessary affayers to be undoon, yet nevertheless the said Starkey, intending to have more for the hyer of the said geldinge then of equitie is due, And also to charge your said orator of the hoolle hyer, where of thought he made his bargayne and receyved earnest for the hyer of the said geldinge, as well of thother thre aforenamed as of your said orator. He late commenced a playnt of det uppon the demande of twenty-four shillings only agaynst your said orator before the Sheriffes of London, who uppon the same caused hym to be arrested, in which accion he declared upon a graunte of payment of forty shillings for the said geldinge to be made by yor said orator sole, whereof he affyrmed hymself to be satisfied of sixteen shillings, wherewith yor said orator, having no lerned councill, pleaded that he owed him nothings, &c.... In which Accyon your said Orator is nowe lyke to be condempned onles yor goode Lordshippes lefful favour be to hym shewed in this behalf. In consideracion whereof it may please the same to graunte a writ of Cerciorari to be directed unto the Lord Mayor and Sherevez of London commandinge theym by the same to remove the tenor and cause of youre saide orator's arrest before your Lordship in the King's Highe Courte of the Chancery at a certaine daye by your gracious Lordship to be lymytted, to thentent the cyrcumstances thereof maye be by your saide Lordship examined and ordered according to equitye and good conscience. And your said orator

shall ever more praye to God for the prosperous preservation of
your goode Lordship in Honor.

ATKYNS (attorney).

Further papers concerning this suit do not seem to have been preserved. But it gives the earliest picture yet known of “the glorious vagabonds who erstwhile carried fardels on their backs” under the title of “the Queen’s players.”

“Athenæum,” 24th January 1914.

XXIV

MARY'S CHAPEL ROYAL AND HER CORONATION PLAY

No previous sovereign had made on his coronation so sudden and complete a change in the Chapel Royal of his predecessor as Mary did. The Bishop of Norwich was the Dean; six priests replaced so many clerks and gentlemen; little boys to bear censers and crosses were introduced; the communion table became the altar once more; the English service was replaced by the Latin; the metrical Psalms were banished, and the old Psalters and Antiphonals took their place. Doubtless to the gentlemen of the Chapel who had taken the oath of fealty this latter change was welcome, from the Psalms sung in unison (for there is no mention of Crowley's four parts having been used at Court) to the richer harmonies and more "curious" music of the old service. But Mary's changes marked conservative, not revolutionary, ideas. She never thought her young brother old enough to understand or to judge for himself in matters of such great moment, and she wanted to conform to the customs of her progenitors on their accession in so far as she could.

Therefore, among other things, she ordered a play to be performed at her Coronation, and the "gentlemen of the Chapel Royal," as was their wont, were to perform it.

Meanwhile her poet, whoever he was, must have taken his cue from a general caution. On 16th August the Privy Council prepared a "Proclamation for reformation of busy medlers in matters of religion, and for redresse of Prechers, printers, players." This was printed^[93] and circulated on 18th August, and treated of "the playing of Interludes and printing of false fond bookes, ballettes, rhymes, and other lewde treatises in the English tongue concerning matters now in Question and controversy." No one was to play an interlude without the Queen's licence in writing. Collier, "History of the Stage," i, 154, says that "a play had been ordered on the occasion of her coronation, which, we may presume, was performed by the gentlemen of the Chapel." But he says no more. Stowe does not further allude to it, and the name of the play is not known. Others state that it was

postponed until Christmas. Therefore it is of some importance that certain definite facts should be recorded and preserved concerning it. Apparently the play *was* performed by the gentlemen of the Chapel, and their dresses, which had probably been prepared before, were given out to them on 30th September.

Among the papers subsidiary to the Wardrobe Accounts is a Royal Warrant (Excheq. Acc., 427, 5 (9)):

TO OUR TRUSTY AND RIGHT WELBELOVED COUNSAILOR SIR EDWARD
WALGRAUE KNIGHT, M^r OF OUR GREAT WARDROBE.

Marye the Quene. By the Quene. We will and comande you furthwith upon the sight hereof, to provide and deliver to the berer hereof, for the gentlemen of oure Chapell for a play to be playde before us for the feaste of oure coronacion, as in tymes past hathe ben accustomed to be don by the gentlemen of the Chapell of oure Progenitors, all suche nessesary stuff and other thinges as hereafter followithe.

Item, *Genus Humanum*, for a gowne purple breges satten, vii yardes (purple)

Item, V Virgins' Cassockes of white breges satten, and vii. yardes for euery of them, that is to saye xxxv. yardes

Item, Reason, Verytie and Plentie, euery of them vii yardes purple (breges satten), xxi. yardes (purple)

Self-Love, a Cassocke of rede Satten of Breges, vii yardes

Care a Cassocke of grene Satten of Breges, vii yardes

Skarsitie, a woman's Cassocke of Russett Satten of Breges, vii yardes

Disceate, a Cassocke of rede breges satten 7 yardes

Sickness, Febleness, Deformitie, three longe gownes, one of Tawny Satten, the other of ashe-colored satten, the other blacke satten, for every of them viii yardes, xxiv yardes

For the Epilogge a Cassocke of blacke Damaske and ix yardes of purple Damaske for a longe gowne for the same, xvi yardes

Item, a shorte gowne of rede damaske for the Ende, vi yardes

Item, thre shorte gownes of purple breges satten for the Ende, vi yardes for euery of them, xviii yardes

The bad angell iii. yardes of Kersey, and winges for the good angel and the bad, three thromde hates and tenn dosson of counters, and what you shall lake for the furniture hereof to provide and se them furnished, and theis shalbe yor warrante in this parte. Yeuen at oure Pallace of Westminster the last of Septembre in the firste yere of oure reign.

Summa: Of Damaske xxi yardes, of breges satten vi score xiii yardes, of Kersey thre yardes.

Among the old plays which have come down to us, either in print or in manuscript, I cannot find any which would fit this cast. It could not have been "The Castle of Perseverance," as Humanum Genus there enters as a child, and except the "good and bad angel," the characters are all different; nor the other allegory called by Collier "Mankind," which gives Mercy, New Guise, and Now-a-days, Mischief, Nought, etc. Nor could it have been "Respublica," said to have been made in the year 1553, 1 Mary, and to have been played before the Queen. The Prologue is spoken by the author himself in the character of the Poet, and the other characters are Respublica (England), Authority, Policy, Oppression, Avarice, Insolence, Adulation, Nemesis, Misericordia, Justitia, Honesty, Pax, People. Nor could it have been the old play of Nature and Reason; nor the Interlude of Youth. So it may be reckoned as an interlude of which neither the name nor the text is as yet known, but it may some day be discovered through this cast. Of its plot we may at least guess that it would be in supposed prophetic relation to the Queen's reign, and that all the good characters would triumph over the bad. Of its author no clue has as yet been found.

John Heywood was an interlude writer of the time, formerly a singing gentleman in the Chapel, and jester to Queen Mary. Udall had written plays, and various scholars of the universities had tried their hands. It might have been put together by one of these, or by one of the gentlemen of the Chapel: Richard Farrant, afterwards Master of the Children of Windsor, is known to have written interludes, and so is William Hunnis, author of many pieces in "The Paradise of Dainty Devises," and many religious poems in the

following reign, when he was also the Master of the Children of the Chapel Royal, and designer of the great festivities at Kenilworth, 1575. His friend Thomas Newton writes of him that in the prime of youth he had written besides “sonets sweete,” also “interludes and gallant lays,” which have not come down to us.

If we do not know the author, there is a good deal to learn about the actors. From the “Order of the Royal Household of Edward IV” we know their necessary qualifications and duties, not their numbers; for while there were twenty gentlemen and eight children in Henry VIII’s time, in Edward’s they were raised to thirty-two gentlemen and twelve children, a number kept up by Mary. From the royal warrants to the Keeper of the Great Wardrobe we know that they all had new liveries for the Coronation. A further warrant for new surplices includes several other small items for chapel use, and a list of the names of the gentlemen. As there is no list previous to 1561 printed, except that of Hawkins and Burney in their “History of Music,” without date, and with the hazy reference to “A MS. in the British Museum,” which has thus indefinitely been followed by all musical writers and by Rimbault in his “Cheque-Book of the Chapel Royal,” it will be as well to print this duly authenticated list here. One referring to the mourning for Edward VI appeared in “Archaeologia.” I have found three others at the British Museum with definite references and one at the Society of Antiquaries, but none of them agrees exactly with that of Hawkins and Burney, the original of which has yet to be found.

EXCHEQUER ACCOUNTS, 427. 5, (10) BY THE QUENE.

Marye the Quene. We will and commande you furthwith upon the sight hereof to delyver, or cause to be delyuerid, unto our servaunte Robert Bassocke, serieante of our Vestrye, to be by hym employed within our chappell aboute the seruyce of God, these parcells followynge, that is to saie for our Subdeane of the said Chappell two surplices of drawne worke; for 32 gentilmen and yomen, threscore and foure surplices; for 12 children, foure and twentie surplices; for foure children for Sensors and tapers, eight Albes for ravyshmente with Amyttes to them; for three children to carie three crosses in precession, sixe albes with Amyttes to them; for the High Altar prestes, deacon, and subdeacon, for foure sewtes, twelve Albes, and for corporas clothes four elles of fyne clothe; for the two lowe alters

foure Albes and foure elles for corporas cloths. For the high aultar foure aulter clothes of five Elles apece, for towelles for the said high aulter foure Ellys, and two Ellys for the Lowe Alters; for sixe Aulter clothes for the Lowe Aulters eighteen elles. Also two payer of Tynne Crewettes, one Lether potte for water and one gyspay of lether for wyne. Also sixe peace of Tape for tucking girdelles. Also twelve dosen of silke poyntes for Copes. Also one hundreth crochettes, and five hundreth hookes, for green clothe to folde stuffe upon three veardes. Also one coffer to trusse in plate. Also two bare hydes to cover the stuffe in cartes, one hammer and one payre of pynsons. Also one small fyre shovell to fyll censers, and a grete shovel to carie coles. And these our lettres shalbe yor suffycient warraunte and dischardge in that behalf. Yeven under our signet at our mannor of St Jeamys, the 17th day of September in the first yere of our reigne.

To the Officers of oure grete Wardrobe for the tyme being and to any of them

THE COURT OFFICERS.... THE CHAPPELL ...

Warraunte for the Chapell Lyueries against the coronacion, f. 23.

The Bushop of Norwiche, Deane of the Chapell.

Emery Tuckfelde, preste.

Nicholas Archebolde, preste.

William Walker, preste.

Roberte Chamberlain, preste.

William Gravesend, preste.

John Angell, preste.

William Hechons.

Thomas Byrde.

Richarde Bowre.

Robert Perye.

William Barbour.

Robert Richmonte.

Thomas Wayte.

Thomas Tallis.

Nicholas Melawe.

Thomas Wright.
John Bendbowe.
Robert Stone.
John Shepherdes.
William Mauperly.
George Edwardes.
Robert Marecocke.
William Hinnes.
Rice Aleworth.
Thomas Palfreman.
Roger Centon.
Lucas Caustell.
Richarde Farrante.
Edwarde Addams.
Mr. John Singer, gospeller preste.
Robert Bassock, Serjeante of the Vestrey.
Thomas Causton.
Richard Luen.
John Denman.
Walter Thirlbye.
Morres Tedder.
Hugh Williams.
xii Children of the Chappell.

It may be noted that there are only thirty-one instead of thirty-two. It is possible that one has been accidentally omitted, probably John Lucam, yeoman; or some one may have refused even then to take the oath of allegiance. Several other names appear in other lists. Every one of these, in his day, must have been of some note.

The Chapel Royal was the haven of the best musical talent of the day. Every music lover knows of Shepherd, Tallis, Farrant; and Marbeck's service was harmonized by these in conjunction with some of the minor names above. Thomas Byrde was the father of William Byrde, the pupil and associate of Tallis. Thomas Palfreyman was a well-known writer on moral philosophy, as well as a musician.

We have no clue to the names of the twenty-three performers selected from these, either for their fitness, or as a special mark of honour. Richard

Bowyer was the Master of the Children then, William Hunnis and Richard Farrant were Masters of the Children afterwards, so these three would probably have definite histrionic powers. Of their appearance we know little. We only know of one of them, William Hunnis, that he was a very handsome young man, as this is stated in the examinations of the prisoners at the Tower in 1556.

As to the day and hour of the performance, there is no definite information. John Stow mentions that during her progress from the Tower to Westminster on Saturday 30th September

At Fanchurch was a costly pageant made by the Genouwayes, at Grace Church Corner there was another pageant made by the Easterlings. At the upper end of Grace Street there was another pageant very high, made by the Florentines.... One other pageant at the little conduit in Cheape next to Paul's, made by the Cittie, where the Aldermen stood ... and in Paul's Churchyard, against the school, one Master Haywood sate in a pageant under a Vine, and made unto her an oration in Latin and English.

It may be remembered that it was *after* she reached Westminster in the afternoon that she signed the warrant for the dresses. After the Coronation services in the Abbey on Sunday, which are of course well known, came the Coronation feast, the details of which are not so well known, and are worth recording. "She was conveyed in goodly order unto Westmynster Hall to dinner" (Cotton MS., App. xxviii, 24). In MS. 34, 320, f. 97, Brit. Mus., we find the

Summa Fercularum [or number of the dishes] served on Sondag at Westminster ye first of October for ye coronacion off Quene Mary 1553.

First bourd. At ye First Bord sat Regina, ye bishoppe, ye Lady Elizabethe, ye Lady Anne of Cleves, dishes in ye hole 156, with ye kevers 312.

Dukes, Marques, Erles, and all other Lords spirituall and temporall, and ye barons of Thexchequer, to sitt at ye middel bourd, on ye ryght hand off ye hawle, 500 dishes.

Duchesses, Marchionesses, Countesses, and other Ladies of honor at ye middel bourde, on ye left hand of ye hawle, 500 dishes.

Barons of ye V porttes, &c., at ye side bourd upon ye right hand off ye Queene, next ye wall, 450 dishes.

Lord Maior of London &c at ye side board in ye hawle on ye left hand of ye Quene, next the wall 450 dishes.

4900 dishes wast, in all 7112.

The food served at these five boards is most remarkable, and accounts for a considerable part of the levy of £20,000 which Mary made on the City of London. To note it all would take too much space, but the Queen's dinner is really too interesting to pass. In the same MS. (f. 86) we find:

The Fare at the Royal Table for the Queene, the Bishop, and the Lady Elizabeth, three messe of like fare.

1st course, A warner of the feast. Brewet blanck, viand Sipers. The Wyld Bore's head. Pheasaunt in Stew. Pestles of red deer powdered. Signets larded with Chawdorne. Capons in hault gr. in brewett. Carpets of Venison in Egerduc. Pikes gr. in Armor. Langetts larded and endored. Herush larded. Doreie or. Friands de Shappord. Custard Royall. Leach solas in Mountaine. Fritters Pomanders. A subtlety made representing a Queene's Estate, with this Scripture "Vox populi vox Dei. Vivat Regine Marye."

2nd course. Jelly Blancke in Rocks Pott. Rudge Mange Royal in barrye. Pecoock in hackley. Rooe reverste. Bittores larded. Connyes larded. Coungers gr. in soild. Knotts or good Wytts. Brawne or Carpe gr. on soppes in sharpe sawce. Phesaunt larded. Peions. Snights. Venison in paste Royall of fallow and red. Florentyne garnisshed. The Cheste board garnisshed. The tarte melior. Leach Lemoney. Fritters sharp. A Subtlety of ——.

3rd course. Jelly Rubie gilt. Cadelet Royalle. Crane larded. Rayles. Plovers green. Fresh Sturgion. Quailles. Feasaunt in his Royaltie. Larks. A subtletye made of a Castle garnished with armes of England, Fraunce, Ireland, and Spaine. Great Burt in Soile furnishes garnished. Red Deer backt froit. Oranges conserved in paste. Tarte borbonett. Leach Viand. Fritters Roisset. A subtletye

made wherein shalbe enclosed with four pillers a device representing vii Cardinal Vertues with their scriptures.

Apparently each of these was reduplicated three times, except the subtleties; and the three “messes” seem to have been one for the Queen, one for the Bishop (*i.e.*, of Winchester, who had crowned her that day) and one for the two ladies who sat at her board. That this distinction was carried out may be inferred from the following note:

Servers.

The Earl of Sussex for the Queen.
Sir Humphrey Ratcliffe for the Bishop.
Sir Anthony Browne for the Ladies.

The most noticeable peculiarity beyond its variety is the apparent setting on of salt and sweet together which is still a custom in Eastern feasts, and the making a second and a third course, as of another complete dinner, also of salt and sweet dishes. The crown of each was the “Subtelty,” a comparatively artistic design in jelly and candied sugar, something like a modern trifle, but always utilized for bearing the motto of the feast, and consequently it was probably the last to be demolished. No wines are mentioned in this manuscript. It must have taken a long time even to eat a morsel of each selection.

And after the feast was over would come into the hall, as was the custom with her progenitors, the gentlemen of her Chapel Royal and perform their play about Humankind and the good and bad angels. The customary prayer for the Queen by the performers, would close the proceedings.

“Athenæum,” 1st September 1905.

FOOTNOTES:

[93] A copy is preserved by the Society of Antiquaries.

XXV
SIR ANDREW DUDLEY AND LADY MARGARET
CLIFFORD, 1553

The Dudley, who with Empson, served Henry VII rather too eagerly in filling the coffers of the State, was sacrificed in the first year of Henry VIII to the resentment of the people. He left three sons, John, Andrew, and Jerome, plain Dudleys. The aspiring ambitions of the eldest were successful beyond his early hopes, and he had worked himself up through all the grades of nobility to the highest place, and greatest power in the land, by the first half of 1553.

The Dudleys were a united family, both through affection and common interests, and John helped his brother Andrew as much as he could, to add to his own strength in Edward's reign. So plain Andrew Dudley was made Admiral of the Fleet of the North on 27th February 1546-7, and knighted shortly afterwards. He was also made Keeper of Westminster Palace, October 1560, Master of the Robes, and Captain of Guisnes. He did not share in the greater honours the Privy Councillors bestowed on each other on 11th October 1551, when his brother John, then Earl of Warwick, was made Duke of Northumberland. But in 1552-3 Sir Andrew Dudley was made Knight of the Garter, and it became evident that his elder brother meant to shower more honours on him should he himself be successful in his skilfully prepared *coup d'état*. An old Earl of Warwick had been surnamed "the Kingmaker"; this Dudley, Earl of Warwick and Duke of Northumberland, might have been surnamed *the Queenmaker*. By a curious coincidence, all the possible heirs to the throne at that time were women. Northumberland arranged to set aside the will of Henry VIII, in so far as it affected the succession of Mary and Elizabeth, on the ground that their father had determined their illegitimacy in Acts of Parliament which had never been repealed; he followed that will in excluding from succession the Scottish Queen, and he persuaded Edward VI to make a will for himself settling the crown on the heirs of his Aunt Mary, Duchess of Suffolk, younger sister of Henry VIII. Mary had left two daughters, Frances, now

Duchess of Suffolk, and Ellinor, late Countess of Cumberland. It has never been explained how Northumberland managed to persuade the Duchess of Suffolk to allow herself to be passed over during her lifetime. But he arranged it somehow, that her eldest daughter, the Lady Jane Grey, should be the chosen heir to Edward's throne. When he thought he had settled this, he married the Lady Jane to his eldest unmarried son, the Lord Guilford Dudley, and gave her two younger sisters to his friends. The story of the disasters brought thereby on all concerned is universally known.

But it is not so well known that Northumberland's far-reaching vision had seen and settled with further possible royal successions, and he betrothed his brother Andrew to the sole daughter and heir of Ellinor, Countess of Cumberland. The bare fact is mentioned in the D.N.B., and in some other authorities (not in all). A hitherto unnoted suit has turned up at the Record Office among the uncalendared proceedings of the Court of Requests of Elizabeth, which provides much fuller tragi-romantical details. This is a suit instituted by Sir Robert Dudley, afterwards Earl of Leicester, to secure possession of all his uncle Andrew's goods, as executor of his will. Ellinor, daughter of Mary, Duchess of Suffolk, had married Henry Clifford, 2nd Earl of Cumberland; and it says much for the power and influence of the Duke of Northumberland in 1553 that he should have made the noble Earl content to give his well-dowered daughter Margaret, great-granddaughter of Henry VII, to a middle-aged landless knight, a widower to boot. The fair young girl, if the D.N.B. is correct in the date of her birth (which it gives as 1540), would be but thirteen years old, though it seems from her examinations later, she was a year or two older. The inclination of the lady is nowhere referred to. It is barely possible there may have been some feelings of affection between the apparently incongruous pair. She may have

Loved him for the dangers he had passed,
And he loved her that she did pity them.

They were duly betrothed, and arrangements proceeded. The earliest preserved reference is in "A Warrant to Sir Andrew Dudley, as Master of the Wardrobe, to take for the Lady Margaret Clifford, daughter to the Earl of

Cumberland, and to himself for their wedding apparel, sundry silks and jewels, 8th June, 7 Ed. VI, 1553, M. S. Reg. 18, cxxiv. f. 364.”

On 12th June of the same year a letter was dictated by the Privy Council in favour of Sir Andrew Dudley, concerning a marriage to be concluded “at the King’s request,” but the address is not given in the register. So by the middle of June 1553, Sir Andrew Dudley was gaily preparing for his wedding with the second cousin of the King, a girl who, by the new scheme of the succession, stood next in the line of inheritance of the throne after the Lady Jane Grey and her two sisters.

The Earl of Cumberland had shunned Court life since the death of his wife Ellinor, and had lived with his young daughter at Skipton Castle, in Craven, Yorkshire. He was loth to part with his daughter, even had Sir Andrew had a suitable home to which to take her. Therefore it had been arranged that the bride and bridegroom should reside with the Earl at Skipton, at least for a time. Sir Andrew sent rich gifts of jewels and clothing, collected all his best plate and furniture, and even borrowed some from his friends to adorn the suite of rooms they should dwell in. He seems to have had faithful and capable servants. Oswald Wilkinson, of the city of York, had been gentleman porter at Guisnes when Sir Andrew was in command there; he left when his master left, and followed him to Ireland, where he served him during the last year of Edward VI. And now Sir Andrew sent this trusty servant in charge with sixteen or seventeen others to convey his treasures north to his bride. Among other things there were:

Three cupboards furnished with plate, with a garnish of vessels silver gilt, a Venetian cup with a cover pounced, a salt with certain stones set therein, and one or two pieces of small plate which were thought to be all pure gold.... Also much goodly apparel, both for him and for her, three or more suits apiece, two of them of gold and silver tinsel, the rest of velvet and satin, with buttons and aglets of gold. As for money, none went with them, save a little purse of gold and silver strange coins, in value about £10.

Oswald Wilkinson and Alexander Harrison were present at the unpacking, and thought the things would be worth at least £3,000. Wilkinson made two copies of the inventory, with rough valuation, in the presence of Lady Margaret Clifford, Lady Conyers, Sir Ingram Clifford,

James Banks and William Danby, gentleman servants to the Earl, and Mrs. Brograve, gentlewoman to Lady Margaret. Wilkinson signed one of the inventory-books, and gave it to the Lady Margaret, she signed the other, and gave it to him to keep till his master came. The Lady waited for her Lord in the Northern Tower, with the keys of the plate cupboards, the clothes chests, and the jewel coffers in her pocket, while the faithful henchman of her future husband kept the keys of the treasure chamber. They seem to have remained at Skipton nearly three weeks, during the first part of which time Sir Andrew was winding up his affairs, realizing his money, and preparing to follow his wedding gifts to his future home.

But the young King died too soon; too soon for Northumberland, for he had not yet had the Royal Will ratified by his submissive Parliament; too soon for Sir Andrew, for he had not yet wed his lady. Edward's death was concealed from the outer world for a day or two, while Northumberland and the Council prepared their plans. Then followed an anxious week for the country. But in Skipton Castle there was a special dread. New rulers had sometimes a way of getting rid of collateral connections.

Northumberland and the Council proclaimed the Lady Jane as Queen, and arranged that the Duke of Suffolk should go forth to deal with Mary. But the only Royal action the poor little Queen Jane was ever allowed to do of her own free will, was to insist that her father should stay with her in the Tower, a decision by which she helped to save his life in the first instance. So Northumberland perforce had to go himself, and all his family supported him. He got as far as Cambridge, his forces deserting as he went. The unexpected courage of Mary, the ready response it met, turned the tide of events. The Council he had left behind him in London, bound with an oath to Jane, proclaimed Mary. Northumberland tried to save himself also by proclaiming her in Cambridge. But he was too late. All the Dudley family were arrested, Sir Andrew among them, so he never reached his bride and his treasure waiting for him in Skipton Tower, but was hurried to the Tower of London, in by the Traitor's Gate.

The Earl of Cumberland had been sitting on the fence. When he heard that Mary had been proclaimed in York, he dropped on the safe side, and to show his love and loyalty took the keys of her treasures from his fair daughter, the keys of the chamber from Dudley's servants, with both the

inventories, and took possession of the property in the name of Queen Mary!

No affronted Sovereign, backed by her people, could afford to pass by treason so determined. Northumberland and some of his chief supporters fell at once. The Baga de Secretis records, under the date of 19th August 1553, the attainder of Sir Ambrose Dudley, Henry Dudley, Esquire, Sir Andrew Dudley, Sir John and Sir Henry Gate, “for levying war against the Queen, and asserting the title of the Lady Jane on the 18th and 19th July, and for taking their way towards Framlingham Castle, to deprive the Queen of her Royal Dignity.” They were all condemned. But Mary was wonderfully merciful. She pardoned the Dudleys, she even released the Duke of Suffolk, father of her rival, because confinement did not agree with his health.

There was an investigation into the traitors’ goods. Oswald Wilkinson was sent to the Tower, on the charge of carrying his master’s goods to Skipton, and he was kept there till the inventories were sent for and gone into. Early in 1554 Sir Andrew Dudley “was created loyal subject, and enabled to take, receive, and enjoy all manner of gifts of land, goods, and household stuff henceforth to him given.” That was cold comfort to a man past his prime, now without place or influence or friends to give him aught. And he wanted his bride. He sent up humble petitions for relief. By-and-by, “the King and Queen, moved with pity, by their letters patent under the Great Seal, granted him all such goods and chattels as had belonged to him on the 22nd July, 1553,” which had afterwards belonged to the King and Queen, and gave him full power and authority “to prosecute all actions or suits or executions concerning the goods, money, debts, against all and every person deteyning them, and in peace quietly to have and enjoy them, as if Sir Andrew Dudley had never been attainted of treason.” But this concession came too late.

We must turn back to note what the Cliffords had been doing. Sir Andrew being in the Tower, the Earl of Cumberland came to London, and handed over his Collar of the Garter into the Queen’s own hands, and some other jewels to the Queen’s Commissioners, Lord Rich and Mr. Potts, and on 6th September 1553, it was agreed that the Earl should keep the rest of Sir Andrew’s goods, on paying £500 into the Exchequer. Mary was very cordial to the Earl, but warned him that he must not marry his daughter except to

one approved of by herself. It would almost seem that she suggested Henry, Lord Strange, son and heir of the Earl of Derby. At least the smiles of royalty brightened this wedding. The Queen presented the bride with a brooch of thirteen diamonds, all the household linen, and all the robes which had belonged to Sir Andrew Dudley. It is probable the Lady Margaret Clifford wore at her marriage to Lord Strange on 7th February 1554-5, the very robes of gold and silver tinsel Sir Andrew had received from the Royal wardrobe for his own intended wedding in June 1553. The Queen made a great feast at Court on the occasion of the marriage. There were jousts, in which King Philip himself took part, and "after supper there was the Juego de Cañas," a Spanish game, in which he led. The Queen was anxious, a presentiment of evil weighed her down, and she more than once sent to beg the King not to expose himself so much. Her suspicion of a lurking danger was well founded. There was already widespread discontent with the Spanish marriage, the religious severities had increased this, and on the 4th of February, only three days before this gay wedding, John Rogers, the first Marian martyr, had been burned at the stake amid the murmurs of the people. The State Papers tell us that a secret band of conspirators had appointed William Hunnis, Allday, Cornwall, and others to the number of twelve, to kill the King, and after him the Queen, that very night. But though these elements of danger mingled in the gay crowd nothing was done. "A cautious consideration of the risks run by themselves put the conspirators out of stomach for the enterprise." So the Lady Margaret Clifford was safely married to the Catholic Lord Strange; and after the festivities were all over the Queen's pity turned to her former *fiancé*, and he was made capable of holding property and demanding debts. The first thing he did was to send his former servant, Alexander Harrison, to York to meet Oswald Wilkinson, and go with him to Skipton Castle to demand back his (Sir Andrew's) wedding provision. But the Earl refused unless they paid him £500. They had it not to pay. The Earl refused even to give them some necessary pieces of plate for Sir Andrew's use, worth in all about £40, which they earnestly requested. Poor Sir Andrew never saw either his bride or his property again. He was in a sad plight. He had lost all Court influence through his brother's death, he was not so young or so astute as his nephews. He became suspected of being concerned in the plot held together by John Throckmorton, the Ashtons, and Henry Dudley (not his nephew). He might have sympathized with it, but nothing was proved against him.

After a year filled with trials and executions in connection with this conspiracy Sir Andrew Dudley fell ill. He thought he was going to die, and made his will on 21st July 1556, leaving many legacies to be paid out of debts due to him, and appointing as overseers his nephews, Ambrose, afterwards Earl of Warwick, Robert, afterwards Earl of Leicester, and Henry, not the conspirator. The broken man did not then die. A new path to promotion might have been found for him in the new reign, through his nephews. But he died in the first year of Elizabeth at Westminster. His will was proved on 22nd November 1559, by Sir Robert Dudley. Thence arose the suit in the Court of Requests, which has preserved so many details. Sir Robert could not settle the legacies without securing the debts, so he exhibited a Bill of Complaint against the Earl of Cumberland, the chief debtor. The complaint itself is lost, but it is easy to reconstruct it (excepting the date) from the other papers. In an undated answer the Earl denied that the Lord Robert Dudley had any right to demand goods lawfully forfeited, minimized the amount and value of the goods, but acknowledged having:

One purse of 29 pieces of gold and 11 pieces of new money; divers apparels, as shirtes, petycotes, trusses, doublets of taffaty and satin, hoses of velvet and saten, jerkyngs, clokes, and gowns of velvet and satin with aglets of gold, jackets of cloth of gold, cote of silver, velvet, and satin, hankerchers, certain plate double gilt, parcel gilt, white plate, one cup of gold, and certain pewter and glass.

The Queen became possessed of all, kept the jewels, and bargained the other goods to him for £500, as may be seen by a privy seal. The Replication of Lord Robert Dudley (also undated) declared the answer insufficient. The Earl of Cumberland in the first instance was not an official of the Queen's, and had no right to seize the goods. They were not in his keeping, but in the keeping of the Lady Margaret. He never paid that £500 to the Exchequer, and had no receipt for it. Dudley was able to prove the goods were worth £4,500. Sir Andrew had a patent granted him to sue for all debts.

In the rejoinder the Earl said he knew of Sir Andrew's patent, but before it was granted the Queen had seized the goods, detained some, sent some to the Lady Strange, and sold the remainder to him for £500. It is true that he did not pay this directly. But the Lord Strange owed him £500, and paid it for him. A commission was appointed to hear witnesses at Westminster, and

they heard Lord Robert Dudley's on 10th December 1560. The most important was Oswald Wilkinson, who stated all the facts above, and added that they could not have altered the inventory without his knowing it. Thomas Greene, of Adlyngton, co. Cheshire, another old servant, spoke to sums of money Sir Andrew had possessed. Alexander Harrison, while supporting Wilkinson, added that he had received from Sir Henry Sidney through James Shelley £1,300 for Sir Andrew Dudley at Petty Callys in Westminster in the last year of Edward VI. The Earl kept all the goods and inventories and everything except the four horses he and his fellows rode on. William Garrat and William Clark, gentlemen, of Westminster, former servants, supported the depositions of their fellows, and Hugh Briscowe had seen the book of payments for all Sir Andrew's property, and heard him confess it on his death-bed. He knew Sir Andrew had sent in a Supplication against the Earl to the late Queen in the Court of Requests. John Cogges had packed all the property and had heard it estimated at £5,000.

The Earl's witnesses were not examined till 3rd February 1561-2, Christopher Monckton, William Danby, and others, who really supported Dudley's witnesses. On the same day, the 3rd of February 1561-2, the noble witness the Lady Margaret Strange was called. She gave her age as twenty-four, and thus the D.N.B. would seem to be out by two years in the date of her birth. She supported the depositions of the Dudley servants clearly and fully, and signed her deposition in her beautiful clear, careful handwriting, "Margaret Strange." From the Book of Decrees and Orders one can gather that some private arrangement was come to after all. Lord Robert Dudley was becoming ever more powerful with the Queen, and the Earl of Cumberland would doubtless have to climb down. And the Lady Margaret Strange, who was not very happy with her Lord, became, on his father's death, the Countess of Derby, survived her husband, and, it is said, communed with soothsayers, who promised her that her son should be King. That son resisted the suggestion, and she saw him struck down by poison given, it was said, by disappointed Jesuits. Her second son became Earl, and kept himself safe and secluded from worldly ambitions, "writing only comedies for the common players"; and she, out of favour in Elizabeth's suspicious Court,^[94] because of her dreams of a Royal succession, ended her life in gloom in 1596. (See Camden's "Annals," p. 470.)

“The Yorkshire Post,” 26th August 1912.

FOOTNOTES:

[\[94\]](#) She was confined in 11th March 1579, also 23rd November 1579. See Reg. Privy Council of date, and at other later times.

XXVI

JANE, THE QUEEN'S FOOL

The only woman in this country clearly recorded to have filled the peculiarly masculine office of the Royal Fool was a person named Jane, whose paternal name is as yet only a matter of inference. It is not insignificant that she flourished in the time of our first Queen Regnant, 1537-1558, coming to the Household while Mary was Princess, and sharing the days of her adversity, as well as of her prosperity. It is possible that Mary, with her modest nature, considered that it would be more decorous that her quiet household should be amused by a humourist of her own sex, than by such jesters as awakened by their broad witticisms roars of laughter in her father's Court. But it is more than likely that, from some kind motive at first, she had extended her protection to Jane as a young girl left under some peculiar need of help, and, after fitting her for it, appointed her to the office. No book of Jane's witticisms has come down to us, nor any allusions to them, as in the case of her predecessor Scogan, and her contemporary Will Somers, so that it is probable that her sayings were neither very brilliant nor very broad, and that she was one who rather warmed and illumined life by a genial humour, than one who flashed upon it startling coruscations of wit. Dr. Doran, in his "History of Court Fools," does not allude to her, though he might have done so had he studied Sir Frederick Madden's published transcript of the household expenses of the Princess Mary, as Miss Strickland has done to advantage.

Little is known of her except through the accounts of her garments, and yet through the language of clothes we find in this case a good deal of information regarding Court customs and expenditure, and of the Queen who determined both. In many ways Mary showed herself liberal by nature, but nowhere more markedly than in the clothing of her Court Fools. Besides the Girl-Fool of her youth, the Queen, on coming to the throne, "entertained" her father's fool, William Somers, doubtless on account of his well-known kindly and charitable disposition. Armin, in his "Nest of Ninnies," says of him:

He was a poor man's friend
And helped the widow often to her end;
The King would ever grant what he did craue,
For well he knew Will no exacting Knave,
But wished the King to do good deeds great store
Which caused the Court to love him more and more.

But though Henry VIII granted his Fool's requests, he did not array Somers anything like so handsomely as Mary did. So it does not seem surprising that she liked to deck her Woman Fool almost gorgeously at times. One can only wonder how Jane could wear out all the shoes that were made for her, unless she had some poor relatives whom they fitted. The more limited gifts of Mary's early days were, no doubt, eked out by home-made "translations," and certainly aided by grants from the King. The earliest entry (Royal MSS. British Museum, 17B. xxviii) runs: "December 1537. Payd for housen and shewes to Jane the Foole 20^d."

In 1538: "Payd for a yerde and a halfe Damaske for Jane the Fole 7/. Item payed to M^{rs} Laundress for stuff by hir bought for Jane the Fole 15/."

In 1542 appears: "Item for a pair of shews for Jane the Fole 6/." In April 1543: "Item for three elles clothe to make Jane the Fole smocks 3/." In July 1543: "Item payd for Jane the Fole for the tyme of her seekness 22/6." In September of that year:

"Payd for a Kirtle for Jane Foole 15/.

"Item for nedles for Jane 1^d."

In January 1543-4: "Payed for shaving of Jane Fole's head 8^d," an expense which was again incurred in July 1544, in August and September of that year, as if some weakness in the hair had followed her severe illness.

In June-1544: "Item for a coffer for Jane the Foole 3/4."

From another source we find other facts. In 1540 there had been a warrant issued by Henry VIII to Sir Anthony Denny, Master of the Great Wardrobe, to deliver certain quantities of silks and stuffs to "The nurse of Prince Edward, to Catharine Champernoone, to Ann Basset, and to Jane the Foole" (Add. MS. 7100, Brit. Mus.).

In the autumn after Mary's accession she allowed for the Coronation to William Somers "A gowne of blue satten, the ground yellow stripping with a slight gold, a jerkin furred, with sleeves of same, furred with conie" (427 (4) Exchequer Accounts, Q.R., P.R.O.).

Mary's warrants to Sir Edward Waldegrave, Keeper of the Great Wardrobe, were generally in favour of an individual or group of individuals of the same class, as of the ladies of her chamber or ushers of her Court. So much was to be "delivered" either for the occasion or annually. I have not as yet found a notice of Jane so early as those of the others, but this may arise from the fact that her expenses were always included with those of the Queen, and were apparently retrospective. Mary's special warrants included her own personal wants, with occasional references to those of King Philip; those of one lady, probably the "chief" of her "women," at first Lady Margaret Clifford (until her marriage to Lord Strange on 7th February 1555-6); afterwards "Lady Jane Seymour," but always those of her two fools, William and Jane, sometimes in strange juxtaposition. The earliest after her accession which has been preserved is that of 27th April 1 Mary 427 (11) Exchequer Accounts, in which are included:

Item, for thre yerdes of black satten geuen to M^r Herte, being Jane our Foole's Valantyne, *all of our great guardrobe*.^[95]

Item, for making of a Douche gowne for Jane our Foole of striped purple satten, the pleites lyned with frise and buckram, the bodyes lyned with fustian.

Item for making of a kirtle for her of striped silk lyned with cotton, the bodyes and placket lyned with linnen cloth.

Item for making of a Douche gowne for her of Crimson satten striped with golde, the bodyes lyned with fustian, the pleites lyned with freize and buckram.

Item for making of a kirtle for her of blewe silke fringed over, the bodyes lyned with linnen clothe, the skirtes with cotton.

Item for making of a Douche gowne for her of crimson striped satten, the bodyes lyned with fustyan, the plate with frieze & buckram, and for sewing silk to the same.

Item for making a kirtle of like crymson striped satten for her, the bodyes lyned with lynnene cloth, and the skirtes with cotton.

Item, for making of a cloak for her of yellow cloth garded with grene clothe layde on with yellow whippe lase, and for pillow silk to stitch it on.

Item for making of a Douche gowne for her of blew damaske chekered, the bodyes lyned with fustyan, the pleight lyned with cotton and buckram.

Item, for making of a kirtle for her all of white satten fringed with copper silver, the bodyes lyned with lynnene clothe and the skertes with cotton.

Item, for making of a kirtle for her of red vared silke lyned with lynnene and cotton cloth.

Item for making of a peticoate for her all of red cloth.

Item for making of a Frenche gowne for the Ladye Margaret Clifford of purple satten, etc.

It is a pity that the cost of the items is not given in this series of papers, but it is evident that there is no distinction of quality between the dress of Jane, and that of the great ladies of the Court, though there is sometimes in the colours or combinations, and generally in the shape. Jane seems to have worn Dutch gowns, and the courtiers French gowns, but the material is as good for Jane as for them and the number of garments greater.

The gentleman alluded to as Jane's Valentine was probably one of the sons of Sir Percival Hart, who are recorded as performing then a device of their own before the Queen at Court.

This fact seems to suggest that Jane mingled with the other courtiers on a somewhat equal footing. As to what "a Valentine" really implied we cannot be sure, but it seems to have been normally conducted by an annual casting of lots. In Mary's privy purse expenses there is an illustrative entry: "Item geven to George Mountjoye drawing my Lady Grace to his Valentyne." And in the list of the Princess's jewels is another: "Item, a Broche of gold enamyled blacke with an agaite of the story of Abraham with foure small

rockt rubies,” while at the margin is added “Geven to Sir Antony Browne drawing her Grace to his Valentyne.”

At the foot of each page is the signature “Marye,” showing that the Princess had passed the entries. In the autumn of the year 1 and 2 Philip and Mary 17th October, the Queen being at Westminster, issued her warrants (427, 11. Exchequer Accounts):

Item to the said Marie Wilkinson our Silkewoman for one rich robe lace of purple silk & gold for his saide Majestie, wrought very richly with taffeta.

Then appears an item for “translating” some gowns for Lady Margaret Clifford; then:

Item, to the saide Edward Jones, tailor, for making of a douche gowne of fustian of Naples striped for Jane our foole, lyned with buckram & fringe and fringed the bodyes lined with fustyan.

Item, for making of a kirtle for her of yellowe Turkey Satten, lyned in Cotton, the bodyes and placarde lyned with linnen clothe.

Item, for making of a douche gowne for her of grene satten tyncelled with copper gold freges, the plaits lyned with cotton and Buckram the bodyes lyned with white Fustyan & paste Buckram.

Item, for making of a peticoat for her of red upperbodyed with Turquie Satten, lyned with Linnen Cloth.

Item, for making of a Dowche gowne of Cloth for Beden the foole, freged, the plaits lined with friese and buckram, and the bodyes lyned with fustyan.

Item, for making of a kirtle for her of yellowe Turkey Satten lyned with cotton.

Item for making of a peticoat for her of red upperbodyed with yellow Turquie satten lyned with linnen clothe.

Item, to the saide Marie Wilkinson sylkewoman for nine peire of blak knit hose for the saide Jane our Foole, thirteene ounce and a haulfe of frence of divers colours of fine slaine silke employed upon two gownes and two cappes for her, and for making the same.

Item, for twelve Handkerchevers of Holland for William Sommers our Fole, thre peyre of lynnyn hosen for him, two peyre of knit hose, two ounce and a haulfe of grene sylk employed upon a grene coate for hym & thre dossen of grene buttons.

Item, more for him, haulfe an ounce of blewe silke employed upon a coate of blewe damaske, one quarter of an ounce of silke for a doublet of canvas, two dossen white buttons for the same doublet, and one ounce and a haulfe of blew & yellow silke employed upon a Coat of Blew damaske garded with yellow Vellat.

Item for sixe and thre quarters ounce of fine slayne silke frence of divers cullors employed by the said Edward Jones upon a gowne for the said Beden the foole.

Item to John Bridges Taylor, for making of a gown of purple Damaske, for the said William Sommers our foole with thre gardes of yellow Vellat.

Item for making of a jerkin for him of purple damask plaine, four caps of cloth, two russet, two of them garded with vellat, & stitched with silk.

Item, more to the saide Henry Arnolde our Shewmaker, for seven peire of shews to the saide Jane our fole.

This paper gives us two or three suggestive points. It shows that the knitted silk stockings, supposed to be a new experience to Queen Elizabeth, were liberally given to the Court Fool in the previous reign. It also introduces a new word, "Beden," evidently a proper name, which can only mean one of two things; either that there was a second Female Fool, and a third Court Fool, nowhere else alluded to, or that "Beden" was the patronymic of Jane, which I take to be the case. I looked carefully through all the household lists of earlier years for a resembling name, and find a "John Bedon" mentioned three times as yeoman of the Chamber to Henry VIII in 1525, 1531, and 1533, who would have been a suitable enough father for her. There was also a John Beddon, master of the vessel sailing to Bordeaux for the King's wine in 1526, and a Richard Bedon on the commission of the peace for Surrey, 1541. I cannot connect "Jane" with any

of these, but thought it wise to note the names, as they may later yield some clue to her paternity.

The accounts here fail us at the Record Office, but fortunately they have strayed no further than to the Bodleian Library, whither they may be followed. Only six months later than the above list there were more garments ordered for Jane, (See Calendar of Charters and Rolls in the Bodleian, W. H. Turner; see also p. xviii.) In the account for 1 and 2 Philip and Mary, 10th April, at Hampton Court, we find:

Item for furring of a gowne (for William Sommer our foole) with gray jennets tayles, with a peere of sleeves and a caape of jennets tayles to the same gowne, and fourtie white lambskynnes.

Item for furring of a gowne of grene figured Vellat (for hym) with sixtene white hare skynnes and fourtie and sixe white lamb skynnes.

Item for furring of a jerken (for hym) of the same Vellat, with seven white hare skennes and twenty whyte Lamb skynnes.

Item, for furring of a gowne of the same Vellat with sixe white hare skynnes for Jane our foole.

Item, for thirteen dosen and a haulf of round silke buttons of sundrie collours (for the saide William Sommer), two loupe buttons of silke, and two dossen buttons of grene silke and silver, five ounces of black stitching silke, sixe peire of Lemon hoosen, twelve shirts of Holland Cloth, and twelve Handkerchens of Holland Cloth.

Item, for eight paire of black knit hoosen (for the said Jane) seventeene ounces and a haulfe of Frenge of divers collors of fine Spanish silke, for the frenging of a gowne and a cappe of divers collors one peece^[96] of green poynting Ribande for a gowne of grene satten and striped with golde, and for the making of two cappes, the oone with frenge, the other with Armiens.

Item, for thre yerdes of red cloth to make him a coate and two yerdes of Vellat to garde the same for lining, making, and embroidering of our letters.

Item, for 12 peire of shewes for the said Jane.

The account of six months later, also preserved at the Bodleian, continues the story (1st October 2 and 3 Philip and Mary, Greenwich):

Item for making of a loose gowne of greene vellat for Jane our foole, tyncelled with golde of our store lined with blacke cotton, the fore sleeves lined with friese and bagges and staye for the same.

Item for making of a Douche gowne of Fustian of Naples edged with frence, the plaits lyned with buckram and cotton, the bodyes and sleeves lined with frise, the collar lyned with stiff buckram.

Item, for making of a Kirtle (for her) of striped unwatered Chamblet with bodyes, the nether parte lyned with blacke cotton, and the bodyes and placarde lyned with Linnen clothe.

Item, for twelve peire of shewes for the said Jane.

Item, for making of two Grene coates for the saide William Sommer, the one garded with Vellat, the other playne and lyned with cotton.

Some other accounts seem to have vanished altogether. Jane appears to have been in trouble again, as among the lists of New Year's gifts for 1556 are two:

Geven to a woman dwellyng at Burye for healing Jane the Foole her eye, oone guilt salt with cover.

To Maistres Ager for keping the saide Jane during the time of the healing of her eye, two guilt saltes.

The relative handsomeness of these gifts seems to show Mary's appreciation of her Woman Fool. A later account at the Record Office (427, 18 Exchequer Accounts, 27th March, 6 Mary, Greenwich) shows continued liberality:

Item thre yerdes of blacke Satten geven to M^r Barnes, being Jane Foole her Valantyne.

Item, for making of a petycoat for Lady Jane Seymour of Scarlet garded with crimson vellat, &c....

Item for making of a Dowch Gowne for Jane our foole of blew fustyan of Naples, the pleights lyned with cotton and buckram, the

bodies and sleeves with fustyan, the upper sleeves with fryse and for making of a kyrtle for her of striped mockado, lyned with cotton, the bodies and placard with lynnene clothe. And for making of another dowche gown for her of wrought fustian of Naples, the pleights lyned with cotton and buckram, the bodies and sleeves with fustyan, the upper sleeves with fries and the collar with paste buckram and also for making of a kirtle for her of striped Russet lyned with cotton the bodies and placarde lyned with lynnene cloth.

Item for three yerdys of Russet Clothe to make a gowne for William Sommers his sister....

Item, delivered to the saide Lady Jane Seymour six peces of black jeane poynting ribbande four peces of hollowe lase, one pece of girdling and thre ounce of crimson sylke in graine.

Item, delivered for the said William Somer eyght dosen of round silke buttons, thre ounce thre quarters of sylke, twelve shertes of Holland cloth, twelve handkerchers of holland, fowre peyre of woollen hose, sixe peyre of lynnene hose, also two peyre of black buckram hose.

Item, delivered for the said Jane foole thirty one ounce thre quarters of frence in colours for frenching of the said two gownes and cappes of fustian of Naples, and for making of the same cappes And for thirteene peyre of black knit hose.

The next item is a long list of velvet shoes for the Lady Jane Seymour—so long, indeed, that one must think she had to supply the other ladies of the Chamber.

Item for twelve peire of shewes for the saide Jane Foole.

Item, for the said Thomas Perrye for furring of a gowne of clothe for the said William Somer, with thre tymbre of Callake(?) and thyrte & eighte white lambe skynnes.

Item to the saide Mary Wilkenson, for four elles of Holland delivered to the said William Somer, etc.

The special feature of handkerchiefs in the wardrobe of William Sommers is noticeable. Other retainers do not seem to have had similar

grants. He had apparently had this year a visit from his sister, whose relatively humble position is implied by the material of her garment. It may be remembered that Armin in his “Nest of Ninnies” gives a delightful account of the visit of William Sommers’ uncle to Court in Henry’s days. But we hear nothing further of the sister.

It is difficult to decide which “Mr Barnes” was Jane’s Valentine this year.

Then comes the last account of all, which becomes touching when we remember how Mary, crushed with ill-health, and the neglect of the husband for whom she had risked so much, with the loss of Calais, with long-continued “evil weather,” with the disaffection of her subjects, and the shrinking of her income, gave up all gaiety and expense.

Yet Mary, *about to die*, does not limit her expenditure upon her Court Fools, faithful among many faithless. (Exchequer Accounts, 31st October, 6 Mary 427, 18.) St. James:

Item, for furring of a gown of red fustian of Naples for Jane oure fole, with a here collored furre....

Item for William Somer our fole, seven ounce and a haulf of silke, one gross of buttons with stawlkes, eyght tassels of grene and yellow silke, two elles of Holland clothe, tenne peyre of Lennen hoose, fyve peire of Buckram hoose, haulfe a dossen of Handkerchievers, and thre dossen of round buttons.

Item for the said Jane our foole, thirteen ounce and a haulfe of silk freenge to frenge a gowne and two cappes, for making of the saide two cappes, and for thre ounce of grene silke for another gowne of grene damaske, one pece of crimson ribande and twelve pair of woollen hose....

Item, for making of twelve peire of lether shewes for the said Jane our foole....

Item to Richard Tysdale Taylor, for making of two grene coates for William Somer our foole thone garded with Vellat, and thother plaine, both lined with cotton, for making of two canvas doublets for him lyned with Bockram, and for making of a gowne of grene damaske garded with yellow vellat, and for making of a jerkin of same damaske lykewise garded with yellow Vellat.

And then the end came. Doubtless Mary's two fools, after the way of their kind, knew more of the heart of their liberal mistress than many of her retainers. They do not seem to have offered their services to her successor, or to have been invited to her Court, though William Sommers had some payments made to him early in her reign. He apparently gravitated eastward from the Court, to the neighbourhood afterwards so famous for players and jesters, and he was buried in St. Leonard's parish church in the Liberty of Shoreditch on 15th June 1560.

But there is no further word of Jane—she disappeared on the death of her royal mistress. I did not know of the name of “Beden” when I went through the registers of many London parishes; and though I have gone through the printed registers of others, I have as yet seen no record of the burial of any “Jane Beden,” or even of “Jane, a woman,” as was sometimes a clerk's way of expressing the identity of the defunct. It is possible that through the suggestion of the patronymic some future worker may find some more details of the life of Jane, Queen Mary Tudor's female Fool.

“Athenæum,” 12th August 1905.

FOOTNOTES:

[95] This phrase is repeated every time.

[96] A “peece” does not here mean an indefinite quantity, but a known length for each material, 6, 12, 18, or 36 yards.

XXVII

ELIZABETH'S FOOLS AND DWARFS

It has been presumed that Elizabeth found her life interesting enough, and her Court attractive enough, to be able to do without the spice of the Court Fool or the contrasts of the Court Dwarf. But though no facetiae have come down to us as memorials of their existence in contemporary letters or State Papers, it is evident that she sometimes, at least, had such attendants. From the accounts of the Treasurer of the Chamber, we can see that Mary and Elizabeth supported William Somers, their father's Fool, until his death. (He was buried in St. Leonard's, Shoreditch, on 15th June 1560.)

Scrappy notes are scattered through the Warrants and Wardrobe Accounts in the Lord Chamberlain's Books, and give us a few details. There is one series of these in English, and another in Latin, richly garnished with English borrowings. In later papers we find references to "the Fool," and other allusions to unclassified persons who may have acted as such. There are "Sara Snow,"^[97] "Monarcho," "William Shenton," "a little Blackamoor," and "Thomazina, our Woman Dwarf." There is also a mysterious "Ipolyta the Tartarian," who has a warrant dormant granted her for sets of robes and garments every year, dated 4 and 5 Elizabeth, in which she is described as "Ipolyta the Tartarian, our dearly beloved woman." Some of the particular payments for her robes and kirtles and the richness of her clothes show she was dressed on a level with the Court ladies. About the same time are granted clothes to another woman, and between the two is mentioned unconnectedly "The Foole." This is the first time any fool is mentioned. Such rarely are referred to without a name, if it is so done here. It is possible it may refer to one of the women. It has been said that "there have been no women fools." But I answered that statement in my paper in this journal on "Jane, the Queen's Fool" (12th August 1905). To understand the present reference I must give it here in full:

Sara Snow. For twelve yardes of black satten to make her a gowne,
and 2 yardes of velvet to gard the same.

- The Foole. Item, for 2 yardes of crimson sarcenet delivered to Henry Herne to lyne the said Foles hosen.
- Ipolyta the Tartarian. Item, to the said Henry Herne for 8 paire of cloth hosen for her, all of our great Warderobe. Item, to the said Garret Johnson for six paire of Spanish Lether shoes for her.—“L. C.,” v, 34, p. 17.
- Ipolyta. Item, to the said Adam Blande for furring of two cassocks of cloth for Ipolyta the Tartarian with 12 black coney skins from our great wardrobe.—p. 43.

On page 41 is another of those entries which suggest more than they tell, the first notice of “Monarcho”:

To Thomas Ludwell for making of a gowne of red grograyne chamblet for an Italian named Monarcho garded with three yardes of blue velvet with buttons of copper gold, a doublet for him of striped sackcloth faced with red taffeta,

lined with fustian furred, and “a hat of blue taffeta striped with gold lace.”

On page 240 there were a number of similar robes entered “for Monarcho,” and after these,

Item, for making of a Gascon coate for a lytle Blackamore of white Taffata, cut and lyned under with tinsel, striped down with gold and silver, and lined with buckram and bayes, poynted with poynts and ribands ... and faced with taffata ... with a white taffata doublet with gold and silver lace, silver buttons, faced with Taffata; a payre of Gascons, a pair of knit hose, a paire of white shoes and pantoufles, a dozen of poynts, and a paire of gaiters.

On page 266 appears:

The Foole. Item, for making of a Gaskyn cote for a foole of graie cloth, striped with sylke lace sewed with sylke, with buttons and poyntyng riband faced with taffata, lined with fustian; for making of a doublet for him of Striped Sackcloth trymmed with silk lace, faced with taffeta lined with fustian.... Item, for making a hatt for the said foole of gray clothe, layd upon with sundry devices of sylke lace and a feather trimmed with gold and spangles. For a pair of

gaskins for a foole of gray clothe trimmed with lace of divers colours.

On page 310:

Monarcho ... a gowne of gold Tincell for Monarcho guarded with yellow velvet layd on with lace, faced with chaungeable macadowe ... a doublet for him of striped sackcloth trymmed with lace ... a jerkin [for him] of chaungeable mockado striped above with billymente lace, furred with 44 black coney skynnes and 10 white lamb skynnes.

On page 312:

Item, for making of a coate of freyze for William Shenton our Foole, cut and lined underneath with mockado ... for making of a doublet of striped sackcloth trymmed with lace ... a pair of gascons of mockado trimmed all over with billyment lace, 2 paire of knit stockings, garters, and girdle of leven taffata and 2 knit cappes.

The resemblance between the dress of “William Shenton our Foole” and that of “Monarcho” makes me think the latter also of the class Fool.

Some have suggested that Richard Tarleton acted the Fool to Elizabeth, but he was very different. He was the chief of the Queen’s company of players, of whom Stow says “for a wondrous pleasant extemporal wit, he was the wonder of his time.”

After many years of accounts for “Ipolyta the Tartarian” she disappears, and her place in the books is filled by another (v. 36), even more gorgeously robed, in 1577-8 (page 110):

The Dwarf. Item, for making of two gownes, thone of white damask, thother of blew chamblet [for a woman dwarf] for two peticoats, thone of mockado, thother of red kersey [for the said Dwarf], laced with blew silk, upperbodied with mockado.

Page 174, 1578-9:

For making of a straight bodied gown of chamblet for Thomasina, a woman dwarf, garded with velvet, laid on with lace of crimson and white silk ... a paire of sleeves of Carnation taffata cut [for her], lined with sarcenet; a peticoat of red mockado striped with copper

gold, laid over with lace ... a straight bodied gown of watched taffeta with hanging sleeves laid with lace of counterfeit silver and silk ... a paire of sleeves of orange collored Taffata ... a peticoat of stamell coloured cloth garded with velvet laid on with lace of crimson sylke with bodies of crimson taffata.

The materials become richer as the years go on. 1580:

A gowne of blacke wrought vellat, the ground yellow sattin, for Thomasina the dwarfe, layde with counterfeit silver lace ... a straight bodyed gown of yellow satten striped with silver ... a gowne of orrendge coloured chamblet garded with blacke vellat ... 3 paire of sleeves of white satin (p. 239).

She was in mourning in 1585.

From the other series of accounts in Latin an even fuller description can be gained of the increasing gorgeousness of “Thomasina, our Woman dwarf”:

a *toga* of white satin with gold lace and ribbon, the sleeves jagged and lined with carnation satin.

In 1589 she had a

gown of carnation and black figured satin lined with silver lace, a stomacher and sleeves of white satten cut and lined with silver lace; a gowne of changeable silk grograine with 2 paire of sleeves, and a stomacher and sleeves of white sattin, fringed with gold lace; a petycoat of changeable tuft-taffeta with 3 gold lace about, the bodies carnation satin.

The following year she had a similar gown of tuft taffeta laced about with Venice silver, the bodice and sleeves wrought all over with like lace. The next gown for “Thomasina Muliercula” was a variety

in yellow vellat laced about with Venise silver, the sleeves cutt and drawne out with cobweb lawn, a stomacher of white satin lined with sarcenet laced with gold lace ... the bodies of carnation satten.

Another year she had a gown of carnation velvet with silk lace, cut, and drawn out with cobweb lawn and tinsel, sleeves of white satin laced with gold. The price of the material is given in this series. In 1590 she had a blue

velvet dress, seven yards, at 24s. the yard; the next year a carnation velvet of same price, richly adorned, sleeves of white satin and gold lace; a loose gown of black damask, with a pair of sleeves of tawny satin. In 1592 there is “a gowne of tawny silk grograine at 16s. the yard, sleeves of white satin”; next year a yellow velvet again. In 1594 we find

a haire coloured velvet gown and hanging sleeves wrought with silver, white satin shewes laced with gold lace, a gown of white taffeta lined with satin tinsel; a gowne of willow-coloured velvet at 22s. a yard.

She was in flame-coloured silk in 1596, next year in black velvet and black silk, and the following year in purple tuft taffeta, as if she had been in mourning. In 1600, after all the honourable ladies of the Court, appears “Thomasina our Woman Dwarf,” and the supply allowed to her is noted. The following volume in this series seems to have been lost.

But in another series she is entered still as “Thomazina Muliercula,” 43-44 Elizabeth, on which occasion she had a “robe of satin tawny with sleeves of cut satin lined with gold,” etc. This series runs through five volumes, but I am afraid of giving references, they have changed so often since I began to go through the whole of the books twelve years ago. They used to be L.C. II. 22, etc. I thought the names which I have selected worth noting, as they may hereafter explain some recondite allusions. I remember having seen “Monarcho” mentioned in contemporary literature, but forget the reference. ^[97] I have found no further notices of William Shenton, nor any further information about Thomasina. She disappears from the Lord Chamberlain’s books with her royal mistress, and she is resuscitated nowhere else. She evidently did nothing to distinguish herself for good or bad. But she lived longer in her office than any of the others, and she adds a feature to our picture of Court life during the later years of Elizabeth.

“Athenæum,” 16th August 1913.

FOOTNOTES:

^[97] In the account of Queen Elizabeth’s coronation is mentioned “Mrs. Snow, five yards scarlet,” among the “Extraordinary women of the Privy Chamber when the Queen pleaseth to call for them.”

[98] Mr. J. F. in the “Athenæum,” 30th August 1913, reminds me it is in “Love’s Labour’s Lost,” iv, 1, l. 103: “A phantasime, a Monarcho, and one that makes sport to the Prince,” and Mr. Littledale refers me to Scot’s “Discouerie of Witchcraft,” 1584, “The Italian whom he called The Monarch,” p. 42.

XXVIII

THE ROLL OF COVENTRY

THE ARREST OF PRINCE HENRY

There is a delightful roll in Birmingham Public Library, not like those massive lesson-books called in the Record Office, "Recusant Rolls," "Coram Rege Rolls," etc., but a little roll, not six inches in breadth, and not very long, though it records notes on the history of Coventry during three hundred years.

It is entered in the Catalogue of Warwickshire MSS. as "No. 115,915. Citizens of Coventry with right to wear swords, 1352-1650." Though this can hardly be called incorrect, it is, as a title, certainly incomplete and misleading; for the little roll is *a list of the Bailiffs or Mayors of Coventry* during that period. Very often it is only a bare list, and as none of the names of the office-holders are very striking, I did not transcribe them altogether, finding a lack of consecutive interest in a string of mere names.

But against some of these names are remarks, records of the most notable events of the year of each man's mayoralty, or what the writer took to be such. I am not about to discuss the position or office of the writer, or even to attempt to fix the exact date at which the roll was written, if it did not grow through the ages. It is at least old. But the writer seems to have been a selector and a copyist, because he is not certain in the reckoning of the regnal years, and generally renders them as a year too late. I give here the double date of the years of a mayoralty. I am only about to record those remarks which can, in general, be understood in the light of contemporary history, and occasionally reflect some light upon its pages.

The Roll begins with a bare list of names from 1352. The first which is annotated is:

1403-4, John Smither. In this year a Parliament was held at Coventry....^[99]

1405-6, William Attleborrowe. In his year the Commons of Coventry rose....

1406-7, John Boutener. Ther was the pauement made in the city....

1412-3, John Horneby. Hee arrested the Prince in the city of Coventry....[\[100\]](#)

1423-4, Henry Peytoe. The Crosse was beegunn in the Cross Cheaping his yeare.

1424-5, Thomas Walgraue. This yeare the hermite preached in the King's parke, where was a greate audience.

1425-6, John Braytoft. Hee arested the Earle of Warwick and brought him to the gaole in Coventry....

1433-4, Richard Sharpe. In this yeare began the new workes in St. Michell Church from the Battlement to the top.

1434-5, John Michell. In his yeare came the small strikes....

1444-5, 1445-6, Richard Braytoft. Maior two years, and St. Mary Hall was robed.

1451-2, Richard Boyes. In his yeare the King maid this a county.

1452-3, John Willgraue and Reignold his brother were the first Sheriffs here, also heard masse at St. Michael's Church....

1457-8, Richard Braytoft. In his year the King and Queen came to Coventry....

1460-1, William Kempe. The King, Queen, and Prince came to Coventry, and held the Parliament there....

1467-8, John Garner. In his yeare the King Edward keep his Christmas heere....

1469-70, William Dawes. King Edward held his Councell in Coventry....

1471-2, William Stafford. Now was one Clapham beheaded, and his head was sett on Bablake Gate.

1472-3, John Bett. The sword taken from the Maier and the yerdes from the Sheriffes; the city was faine to give 500 marks to redeeme the Franchises.

1473-4, John Thornton. In this yeare Kent rose, sett fire on London Bridge; the King took the Captaines and beheaded them in Coventry....

1476-7, Robert Onley. Prince Edward came to Coventry, which gave 100*l.* and a cup; at Easter came there and kept St. George's Feast, and afterwards his Christmas here at Chellesmore House....

1479-80, Robert Bornell. The king keep his Christmas at Chellesmore House.

1480-1, William Marshall. In this yeare died in thie city and the Liberties thereof 3400 people....

1482-3, Richard Collenes. In this yeare the Commons of Coventry rose....

1485-6, Henry Keball. Hee maide the Bakers fly to Bagginton Castle....

1497-8, John Dove, who died in his mairalty.

1498-9, William Ford. In his yeare was much rising in Coventry and Daventrye.

1499-1500, Thomas Bond. Prince Arthur came to Coventry, and had a hundred pounds and a cup given to him....

1512-3, John Strong. In his yeare King Henry the 8 and Queen Katherine cam to Coventry, wheare they were receved with 2 paggenes and a Stage Play, and logged at the Priory.

1513-4, Richard Horsall. In this yeare one [should be "seven"] was burned in Littell Parke. There was given to the Marquise one hundred men with horse by the citty. The ould Crosse in the Crosse Cheaping pulled down and new built....

1524-5, Julimus Nethermill. This yeare Pratt and Sloth were araigned of treason, and their heads and quarters sett upon the gates of Coventry....

1526-7, Nicholas Haines. An evell Lammas Day.^[101]

1527-8, Henry Wall. The Lady Mary came to Coventry, was royally receved at the Priory, staid two dayes, at whose departure the city gave her 100 marks and a kerchiefe....

1536-7, Robert Keruin. The Dukes of Norfolke and Richmond came to Coventry, were receved by the Crafts in Liveries and a Banquett on horseback....

1552-3, Richard Hunt. In this year the Magistrates of Coventry made a great seale of wood in the Park, and made it a pasture....

1563-4, Thomas Ryley. In this yeare was a great plague in Coventry....

1565-6, Edward Brownell. In this yeare Queen Elizabeth came to Coventry and lay there three nights, and had given to her a purse and a hundred pounds in itt....

1568-9, John Harford. This Harford in a quarrel betwixt one Heyle and him about there two dogges stroke the said Heyle soe that he died within one fortnight, for which fact he was put out of his mairalty and Mr. John Sanders served out the rest of his time....

1577-8, Robert Letherborough.... [His daughter married Thomas Shakespeare.]

1596-7, John Whitehed, who died in his Mairalty, and one Breers searued out his yeare.

1597-8, John Rogerson. A good man....

1601-2, Richard Butler. In this yeare the Library at Coventry was begun to be builded....

1604-5, William Wheate. In this year was a great plague in Coventry.

1605-6. Mathew Collines.^[102]...

1616-7, Samuell Myles. In this year came King James with a greate traine to this citty and laye heere one night, and had a cup of gould given him of the value of one hundred and sixty pounds....

1622-3, Thomas Potter. Hee caussed the tops of St. Michael's Steeple and Trinity to bee new sett up and painted.

1623-4, John Thomas. A Dutchman....

1625-6. William Burbage....

1649-50. Samuel Snell.

The Roll ends without any concluding remark. Now the Leet-Book of Coventry has been edited (or at least full selections from it from 1384 to 1590) by Miss Dormer Harris, and though it gives very much fuller information concerning the history of Coventry, some items occur in this Roll which do not occur in the Leet-Book. "Life in an Old English Town: a History of Coventry," also by Miss Dormer Harris, gives very many more details, but misses some of these.

There remains a special charm in this little roll compared to the comparatively commonplace quartos which give even fuller information. A copyist, about the end of the seventeenth century, compiled a sort of history of the Mayors of Coventry (Harleian MS. 6388, f. 15).

While many of these short notes have a special value of their own, we may be allowed to express a particular interest in the record of John Hornby, here given as 1412-13.

Many able articles have been written, and speeches made, about the possibility or impossibility of a Lord Chief Justice committing a prince to prison. Many researches have been undertaken, in the Record Office and elsewhere, to try to discover any historical basis for the story regarding Prince Hal and the Lord Chief Justice Gascoigne, which so delighted Shakespeare that he added to it. But all researches have been in vain. No fact that in any way supports the tradition has been preserved. The story itself has been traced no further back than to Sir Thomas Elyot, who refers to it without giving the name of the Justice. Here, in this little Coventry Roll, it is recorded, as *the* event of John Hornby's year, that "he arrested the Prince in the city of Coventry." We should like to have been told more, and to have heard the cause and consequence of the arrest.

This is the only trustworthy story of any *arrest* of Prince Henry, and it is possible that the action of Mayor John Hornby, as Justice of the Peace in right of his office, became the foundation for the legend concerning the

anonymous Lord Chief Justice. We know from other sources that Prince Henry was a good deal in Coventry when acquiring military experience in the Welsh wars, that he lay at Cheylesmore House in the immediate vicinity, and he probably took his amusements in Coventry. It may only be Shakespeare's imagination which fixed the scene of his convivial gatherings with Falstaff and his train at the Boar's Head Tavern in East Cheap. It is possible—indeed, more than likely—that these were carried on at Coventry, and that some breach of the peace there forced the courageous Mayor to do justice even against his popular prince.

We know that Shakespeare, to glorify Henry V, makes him retain the Lord Chief Justice Gascoigne in office on his accession, as a proof of his recognition of courage and directness in the administration of justice. This, as Dr. Blake Odgers pointed out, in an address to the Shakespeare League, was proof positive that Bacon did not write the play of "Henry IV, Part II," at least. He *knew better*. For Gascoigne had been a Gray's Inn man, and so was Bacon, and the latter knew that the young king Henry V did *not* appoint Gascoigne to be his Lord Chief Justice. The records of Gray's Inn prove that, and also the epitaph on Gascoigne's tombstone, where it was clearly stated that he "had been Lord Chief Justice to King Henry the IV." That epitaph would not have been silent about King Henry V if he had reappointed his father's choice in the office of Lord Chief Justice.

It seems ungracious to dispute the credit of Shakespeare as an historian; but truth is better than fiction. The testimony that Prince Hal *was* arrested at Coventry may stimulate our imaginations anew, and lead us to further research in fresh directions.

One other point may be noted. It is generally supposed that the local records say nothing about the intended duel between Bolingbroke and Mowbray. But this authority gives the suggestive idea that the combatants were received by the crafts in liveries, and had a banquet "on horseback"! King Richard II himself is not referred to.

Each of the short notes might be dwelt on and expanded indefinitely. As they stand, they only show us what struck the scribe as the note of the year.

"Athenæum," 8th October 1910.

PS. A captious correspondent writing the following week was very scornful about my calling this a “delightful little roll” when there were other manuscripts, (which I had mentioned), about my publishing extracts from it, indeed, as it had already been printed. Some form of it had appeared in Dr. Thomas’s edition of Dugdale, p. 147. But the printing referred to had been sandwiched irrelevantly into an appendix to a little-known book, “Fordun’s Scotochronicon,” by Hearne, and he certainly had *not* taken this little roll as his copy. His recension is indeed different in some details from Harl. MS. 6388, and also from Add. MS. 11364. Neither of these seem to have been known to my critic, who thought he made a point, that a third MS., called the City Annals, containing similar entries, is to be found among the muniments of Coventry from 1350 to 1566, the continuation from that year having been torn away and replaced in a later hand. This, however, Miss Dormer Harris had mentioned in a note in her “Life in an Old English Town.” But the objections were made only to lead up to the discussion of the arrest of the prince. He did not consider the story at Coventry trustworthy, and blamed me for suggesting even that it might have given the idea to Shakespeare. He considered Shakespeare’s story incorrect, and only invented by Sir Thomas Elyot. Such a fact must have attracted attention, and must have been mentioned in some of the records of the time. But a most exhaustive search had been made, without avail, therefore it must be supposed to have been taken from the story of Edward II, who when a prince was expelled from Court for half a year for insulting one of his father’s ministers, though he was not imprisoned for the offence, as the Rev. A. J. Church noted in his “Henry V.”

The critic was desirous of supporting the character of Prince Hal, and added that the day after he succeeded his father he caused to be summoned to his first Parliament “Sir William Gascoigne Knight, Chief Justice of our Lord the King, assigned to hold pleas before our Lord the King, before the King himself.” He had also a grant of four bucks and does annually for life, which shows that the King did reappoint him, and his intention was to keep him in office. It must have been, therefore, at his own request that his patent was not renewed. To this I replied, pointing out that Henry V summoned his first Parliament on 23rd March, and appointed a new Lord Chief Justice on the 29th, *the only one of the Judges replaced.*

Miss Dormer Harris joined in the discussion as to the truth of the record, and added that there were two Ardens, John and Geoffrey, mentioned in the Leet Book in 1461; that it noted in 1545 “Shakespeare’s house in the new rent vacant the yeir 2/6” that a “Richard Shackspeare of Hinkly and Jane Erdsone of the cittie of Coventry widow were married before Mr. Matthew Smith Justis of peace the 20th of August 1656” (Holy Trinity Register).

Lastly, the citizens in Hornby’s year, Candlemas 1412 to Candlemas 1413, lent £100 to the Prince (Leet Book 61).

Sir James H. Ramsay wrote to say historical students were much indebted to me for having published the extracts, especially the one about the Prince, which shows that a Prince *could* be arrested. The original disputant wrote again against my “little roll,” as compared to the “other rolls” (which are paper quartos), and then turned his attention to demolishing Sir James Ramsay’s remarks,

The small quarto, Harl. 6388, was bought in 1690 by Mr. Humfrey Wanley, with accounts of Coventry and its Mayors from 1348 till the Revolution. The Collector’s name seems to have been Miles Flint, who gives the following account of his authorities: “This book was taken out of Manuscripts. The one written by Mr. Christopher Owen Mayor of this Citty, which contains the charter of Walter de Coventre, concerning ye Comons &c. to Godfrey Leg, Mayor 1637. The other beginning at the 36 Mayor of this citty and continued by several hands, and lately by Edmund Palmer, late of this Citty Counsellor, till Mr. Yardly late Mayor 1689 1690; and another written by Mr. Bedford, and collected out of divers others and continued to Mr. Septimus Bott: and two others collected by Tho. Potter, and continued to Mr. Robert Beake, and another written by Mr. Francis Basnett, to the first year of Mr. Jelliff’s mayoralty and another written by Mr. Abraham Ashley and continued to Mr. Sep’ Bott; and another written by Mr. Abraham Boune and Humphrey Wightwick, 1607.” On the title-page is recorded:

“Humphrey Wanley (that is Oneley) bought this of Mr. Tipper, December 17th 1690, price 6d.” The book notes that—

“Richard Stoke 1356, brought in the good strikes.” John Smith is called “Smither,” and the Parliament is called a “layman’s parliament.” When it reaches the special date, it reads, “William Hornebye 1411-12. He arrested

the Prince in the Priory of Coventry. A quarter of wheat sold for twenty shillings,”

“William Dilcocke, 1412-13. In his year died King Henry.”

The later entries are not dated, and John Yardeley was the last mayor mentioned.

Add. MS. 11364, “presented by Mr. Joseph Gibbs,” contains:

“A brief History of Ye city of Coventry from Ye most early accounts of it,” which tells about Leofric and Godiva. [\[103\]](#)

It begins in 1348 the story of the mayors with John War. It gives:

1412. John Horneby. He arrested ye Prince in ye Priory of Coventry.

1512. Richard Horsfell Draper seven burned in little parke and one did penance for heresy, viz. for hearing ye Lords prayre &c. in English.

1597. John Whitehead and John Breers. (Here is much writing of scarcity and its causes—great differences from roll.)

1703. Jonah Crynds (the last mayor mentioned).

Miss Dormer Harris, in the year after my paper, brought out her “Story of Coventry and the Kingdom,” in which she discusses the arrest, from the point of view of the fact that the later recorded arrest of the Earl of Warwick can be proved to be an error, and an explicable one.

Mr. Fowler gave me an interesting note which may come in here, as it may have some bearing on the reality of Shakespeare’s Boar’s Head Inn. It is from Chancery Inquisitions, Post Mort., Vol. 151, No. 72. London, 1568-9.

Robert Harding held land in the city, including: “... one messuage, tenement, or tavern, called ‘Le Boares Heade,’ situated and lying in Eastcheap in the parish of St. Michael in Crooked Lane ... formerly in the

tenure and occupation of John Broke and now of Edward Beltam. He it was held it of the Lady the Queen ‘in libero Burgagio ciuitatis London ... et valet per annum ... decem Libri.’”

FOOTNOTES:

[99] In Harl. MS. 6388: “The King Sent Process to the Sheriffes that they should choose no Burgesses nor Knights that had any Knowledge of the laws of the Realm by reason whereof it was called The Layman’s Parliament.”

[100] In the same MS., f. 15, there is a transcript of a similar text with notable differences: “John Hornby arrested the Prince in the Priory.” (Date a year earlier.) Also Add. MS. 11364.

[101] Referring to the popular risings which commenced at that date.

[102] I noted this name because Francis Collins of Warwick became Shakespeare’s lawyer, and town clerk of Stratford-upon-Avon after Thomas Green.

[103] The first note is of Canute’s time and St. Nicholas Church. The annals proper begin in 1348 with John Ward, Jordan Sheppy, Nicholas Michell, Richard Freeborne, “William Horne. 1352-3 a drie Summer, rained not from March till July, and there was a dearth.”

XXIX

THE STRATFORD POET

The Editor^[104] has courteously allowed me to reply to his article, “The Great Stratford Superstition,” as I have studied all the works of Bacon and Shakespeare, most of the writings concerning the Baconian Heresy, and have answered the chief of them. The first recorded student of Shakespeare was a woman, Mrs. Ann Merrick, who, on 21st January 1638, wrote from the country to a friend in London, that she could not come to town that year, but must content herself “with the *study* of Shakespeare and the History of Women” (State Papers, Dom. Ser., Charles I, 409 (167).) In these two interests, thus early and specially combined, I follow the lady’s lead.

One short magazine article cannot possibly deal with the subject exhaustively, therefore I only attempt to make a general protest against the Editor’s paper, and to illustrate a few of its weaknesses.

“Possession is nine-tenths of the law”; from which proverb it would seem that the arguments for Bacon’s authorship would require to be ten times as strong as Shakespeare’s, before they can have a reasonable chance of ousting the present possessor from his dramatic name and fame. On the contrary, there is no real *argument* for putting Bacon out of the great sphere which he designed for himself, into one designed by his admirers, but utterly incongruous to his nature and powers. All his own contemporaries, all his immediate successors, and all their descendants for 250 years, attributed the plays to their author, Shakespeare. Guess-work began about the middle of the nineteenth century, and like a snowball rolling, gradually increased by external accretion, but not by vital energy. I do not deny that there are some apparent difficulties and some strange coincidences, or Baconianism, as a cult, could not have been possible. But these difficulties depend upon our temporary ignorance, these coincidences may be explained in a different way from that on which the Baconians insist.

Francis Bacon was a genius, and a well-trained one. He early saw the deficiencies of the science and philosophy of his day. His devotees to-day

do not follow his prime advice for conducting investigations enunciated in his great “Novum Organum,” “to search after negatives” to any hypothesis they may start. On the contrary, they greedily accept everything, however unfounded, that tells in the favour of their new theory, and ignore whatever contradicts their points. No amount of repetition will make a hazy and unfounded tradition into a fact, and inferences from unsound premises give no worthy conclusion. I can only bring forward a few of my facts here, and still fewer of my inferences.

Echoing the cry of old, “Can any good come out of Nazareth?” the Baconians commence by crying, “Can any good come out of Stratford and Warwickshire?” and to give weight to the cry, strive to belittle the place.

It may be remembered that a fine German writer, Jean Paul Richter, insisted that a “poet should always have himself born in a small city.” There are many reasons that made the “small city” of Stratford eminently suitable for the birthplace of a poet. It was at the very heart of England, the centre of the converging influences of descent and of legend from British and Saxon and Danish ancestors. The great Roman roads crossed not far off, and Stratford, with her substantial bridge, was on the line of traffic. Stratford was a thriving town, “emporium non inaequalis,” says Camden. Its gentle, undulating scenery lay just on the borders of a great forest,

Where nightingales in Arden sit and sing.

(Drayton.)

It had had an aristocratic semi-religious guild from ancient times, centre of the county families, an old college, now also passed away, and a noble church, still existing. Becon, a great scholar, in 1549 speaks of Warwickshire as the most intellectual of all the English counties, and Stratford, in Shakespeare’s time at least, had a town-council intelligent enough to know the value of a good schoolmaster, and to seek to secure him in the practical way by offering double the amount of salary enjoyed by the head-master of Eton and others. The books used in the grammar schools of the day can be found in the writings of Mulcaster and Brinsley, and by

reference to the Stationers' Registers. The status of the schoolmaster determined the character of the study and of the books. Those who say that Stratford was then a "bookless neighbourhood" speak without book. It is easy for a particular instance to destroy so universal an affirmative. There was, at least, one suit at law because a man had not returned a book he had borrowed; and from my own knowledge of their names, I can state that one curate alone had 170 books of the best selections in philosophy, divinity, history, literature, and legend. I know that Mr. Shakespeare bought at least one.

After decrying Stratford, the Baconians attempt to defame young Stratford Shakespeare. Fortunately, when he was young, his father was one of the most important men in the place, and as the grammar-school was free to all the sons of burgesses, it is more than reasonable to suppose that he had his full opportunities given him. Of course, he may have neglected them, which is an occasional way with a genius. There is *no* authority for the statement that Shakespeare was apprenticed to a butcher. Even if he had been so, that circumstance would not have quenched a native genius that rebelled against it. Wolsey was the son of a butcher, so was Akenside. Keats was the son of a livery stable keeper. There is authority for his early marriage, imprudent because his father was in pecuniary difficulties at the time, but just the kind of marriage one would have expected from his poetic, impulsive tendencies. His relations to life, property, and literature were more like those of Sir Walter Scott than any other man. When he found himself in difficulties, he bravely set himself to the task of attempting to retrieve the fallen fortunes of the family, and set off to London. The Baconians firmly believe that he had to fly to escape the consequences of his poaching affair, but has it never struck them how humorous it is to think that Bacon showed spite at Sir Thomas Lucy, for the whipping that Shakespeare received? Bacon in reality was a very good friend of the Lucy family. I exposed the whole falsity of this tradition two years ago in the "Fortnightly Review," in an article entitled "Justice Shallow *not* a Satire on Sir Thomas Lucy."

When young Shakespeare went to London, there is proof that he renewed his acquaintanceship with his Stratford friend, Richard Field, the apprentice, son-in-law, and successor of Vautrollier, the great printer, who had two printing presses, and was allowed to keep six foreign journeymen.

For some years, at least, it is evident that he took time to read Field's books. Webster, his contemporary dramatist, calls him "*industrious* Shakespeare." I say it is evident, because with the exception of a few books referred to, such as Wilson's "Art of Rhetoric," "The Paradise of Dainty Devices," "Seneca," "Plautus," "Holinshed's History of England and Scotland," and others, this one firm alone printed all the books that were *necessary* for the poet's culture, and all classics that he refers to directly.

The limitation in authorities is a strong argument against Bacon's authorship, as well as the plentiful crop of unscholarly blunders to be found in the plays.

Besides Field's library, another opportunity of education and culture was found for the poet in the romantic and faithful friendship of the young Earl of Southampton, a law-student and patron of literature. How can Baconians gravely assert that Bacon *could* have written these two dedications of 1593 and 1594 to Shakespeare's poems? How could he speak of the one poem as the "first heir of his invention," when he already had written much and designed more? How could he say to Southampton in print, "What I have done is yours, what I have to do is yours," while he was at that time a sworn follower of the Earl of Essex? Shakespeare had no position in society or literature sufficient to induce Bacon to use his name as a mantle, by the time that Shakespeare's two poems were brought out by Shakespeare's friend, Dick Field. The sonnets resemble the poems too much in phrases, feelings, and situations to doubt that the author is the same, and all the three are claimed by Shakespeare in print.

Now, can the Baconians explain how they can believe that Bacon, who at the age of thirty-one had already planned "The Greatest Birth of Time," and, filled with the sublime self-conceit of conscious power, had written to Lord Burghley in that year that he "had taken all knowledge to be his province," should have addressed the half-trained young lad, Southampton (among many other similar phrases), in the modest lines:

Thine eyes that taught the dumb on high to sing,
And heavy ignorance aloft to fly,
Have added feathers to the learned's wing,
And given grace a double majesty.
Yet be most proud of that which I compile,
Whose influence is thine and born of thee,
In other's works thou dost but mend the style,
And arts with thy sweet graces graced be—
But thou art all my art, and dost advance
As high as learning my rude ignorance.

Bacon simply could not have written these lines, at least.

And it must be remembered that whoever was able to write the sonnets and the poems, might become able in time to write the fuller and richer plays.

There remain witnesses abundant that Shakespeare's London career was a personal success. Greene's envy, no less than Chettle's praise, point to it, W. Covell, Thomas Edwards, the authors of the Parnassus Plays, John Weever, John Davies, and Thomas Thorpe; that he was a good actor, John Marston, the dramatist, affirms, by asking whether he or Burbage acted best; John Davies also couples their names together as players having

Wit, courage, good shape, good parts and all good.

and says of Shakespeare that he was a fit "companion for a king."

Thou hast no rayling but a raygning witt,
And honesty thou sow'st which they do reape.

The praises of his "works" are emphasized by Professor Meres and many others; and the testimony of the love and appreciation of "his fellows" is unstinted. It must never be forgotten that perhaps the most undoubted praise

was that which an admirer fixed upon his tombstone, a shelter to which surely Bacon cannot enter.

I must also protest against the assumption that Shakespeare “returned to Stratford to lead an illiterate life.” He returned there to live in the best house in the town, bearing arms (then a much greater distinction than now), as *all* his friends and relatives did, to associate on intimate terms with the Combes, Collins, Walkers, Shaws, Nashes, and probably all the county families, as tradition says, especially that of William Somerville, of Edreston. He returned there, and continued to write his plays in the bosom of his family, with one son-in-law, the most distinguished physician of his time, the possessor of a good library, and his other prospective son-in-law, cultured up to the level, at least, of affixing a suggestive French proverb to his accounts, the year that he was Chamberlain.

It is not a fact that he did not teach his favourite daughter to read and write. It is probably because she responded more rapidly to culture than her sister did that she became his favourite, as his will proves. She is recorded to have been “witty above her sex,” and like her father. Her signature can still be seen in Stratford.

I now come to a stock statement of the Baconians that might seem to a careless student founded on fact, that he spent his time as a maltster and moneylender. They never have taken the trouble to find out (as I have) the number of contemporary Warwickshire Shakespeares. There was a second John in Stratford-on-Avon, and a third in a neighbouring village. There were several of the name of William in the immediate neighbourhood, There was even one at Hatton, who had a daughter *Susanna* in 1596; there was another who was a malt-dealer and a money-lender. His transactions commence during the poet’s life, but, alas for the Baconian argument, they *continue for ten years after the poet’s death*. The receipts can still be seen at Warwick Castle. Of course, “selling malt” or not, is quite irrelevant to the question in hand. There is only one point, however, that may be noted in connection with it. In all the plays there is no allusion to the processes of malt-making, beyond the one proverb, or to the technique of brewing or wine-making, as there is, for instance, of printing. Shakespeare only treats the finished article, as sold in the taverns, or drunk in the halls. He only notes philosophically the effect that stimulants have on the hearts, brains, and characters of men. This question never troubles Bacon, but he knows all

about the manufacture, the keeping, storing, curing of ale, wine, mead, and metheglin.

A similar powerful contrast may be seen regarding the differing treatments of the horse and the chase. The poems and plays are full of reference to the delights of the chase and the sympathy subsisting between a rider and his noble steed. The whole works of Bacon supply only three prosy references to the existence of “the horse.”

The great stronghold of the Baconians is “The Promus.” But the notes there are not *proved* to be original. Some of them can be shown to be borrowed echoes of what the writer heard and read. Bacon was a great borrower, as Shakespeare also undoubtedly was. Only a poet is not expected to acknowledge “sources” in his dramas; which a prose writer, in leisurely detail, is expected to do (Robert Burton in his “Anatomy of Melancholy” did so). Only last month I came across one of Chamberlain’s letters, which records a witty saying of the Duchess of Richmond. The writer adds, it might have got into Bacon’s Apophthegms, which he had just published, “not much to his credit.” Whole passages and facts are borrowed by Bacon without acknowledgement from the ancients, trusting to the general ignorance of his readers. The very cipher he claimed as his own was published by Jean Baptist Porta in 1568, and by Blaise de Vigenère in 1587.

I do not attempt to deal with the absurd notion that any real poet could weight the wings of his muse with a cipher. Dr. Nicholson of Leamington gave the *reductio ad absurdum* to Mr. Donnelly’s, and other writers have let in light upon later attempts at cipher mysteries.

The author of “The great Stratford Superstition” says there are no improbabilities in supposing Bacon to have written the plays. What? Bacon write “Romeo and Juliet”? He did not know what love was! In his Essay on Love he calmly asserts that the stage had been more beholden to love than the life of man. In his life without love, the “marriages” he sought, and the one he secured, were all mercantile transactions. He did not deserve to be happy in matrimony. Bacon write the humours of the fat knight? Bacon was full of wisdom and abounded in wit, but of humour he was absolutely destitute.

Unfortunately, once only have we a story of Bacon crossing Shakespeare’s path, a crucial illustration of the impossibility of his having

written one play at least. “The Comedy of Errors” was based on the Menoechmi of Plautus, a translation of which was registered in the books of the Stationers’ Company on 10th June 1594. Books at that time were nearly always handed about in MS. before printing, seeking patrons. Very probably this one was shown to the Earl of Southampton, or Shakespeare may have seen it in MS. It was more than six months after the registration of the Menoechmi that the “Comedy of Errors” appeared in peculiar circumstances, which I have treated fully elsewhere. It was acted as a new play by Shakespeare’s company, amid the uproars in Gray’s Inn Hall, 28th December 1594, when the Prince of Purpoole’s plans came to grief. The Benchers felt it an intolerable disgrace, and appointed Bacon to write a proper play to retrieve the lost honour of Gray’s Inn. He wrote them the “Masque of the Councillors,” which pleased his fellows, and the company that they had re-invited to make amends for the “Night of Errors.” This masque may yet be read, and is exactly the measure of the dramatic capability of Francis Bacon. It is quite a mistake to imagine that a good play would have discredited him. On the contrary, the having written the first English blank verse tragedy was, even at the time, considered the highest distinction of a more aristocratic man than Bacon, a diplomatist too, Thomas Sackville, Lord Buckhurst.

Bacon’s allusion to himself as “a concealed poet” can be clearly understood by those who study his works. He would have called the “Utopia” of Sir Thomas More a concealed poem, as he did call his own “New Atlantis,” (See “De Augmentis Scientiarum,” Book II, Poesy, chap. 13.)

On the other hand, he distinctly states, “I profess not to be a poet, but I *prepared* a sonnet directly tending to draw on her Majesty’s reconciliation to my Lord of Essex, *which I showed to a great person, who commended it!*” Spedding, Bacon’s most able editor and biographer, says of the poor versions of certain psalms put into English metre, “These were the *only* verses certainly of Bacon’s making that have come down to us, and probably, with one or two slight exceptions, the only verses he ever wrote.”

With Bacon and with Spedding I agree, and with Shakespeare. [\[105\]](#)

“*Broad Views,*” April 1904.

FOOTNOTES:

[\[104\]](#) Mr. Sinnet, the Editor of “Broad Views,” had in March 1904 written an article in that Review under the above title in support of Bacon’s authorship of Shakespeare’s Works, and had allowed me to reply the following month.

[\[105\]](#) I had published my volume called “The Bacon-Shakespere Question Answered” at a time when I was under the dominance of Dr. Furnivall in regard to the spelling of the name, 1889.

XXX

SIXTEENTH CENTURY WOMEN STUDENTS

Though we are all familiar with the lives of certain notable ladies who reached a high standard of learning during the sixteenth century, little or nothing is known concerning the general education of girls and women of that period. No Royal Reports enlighten us concerning their opportunities, and no private study has elicited and combined a definite series of details. It is therefore important to note and collate all that may be gleaned concerning this interesting subject.

There is reason to believe that in earlier times the schools that *were* founded, were intended for “liberi”—not “pueri” alone—and that what education there was for the people was open to children of both sexes, as the trades were. I may illustrate what I mean by the statute enacted 7 Henry IV, c. 17.

“That no man or woman, of whatsoever estate or condition they be, shall put their son or their daughter to serve as an apprentice, except he or she have land or rent to the value of 20 shillings by the year, and no man or woman shall receive an apprentice contrary to this ordinance, provided ... always that every man or woman of what estate or condition that he be, shall be free to set their son or daughter to take learning at any manner school that pleaseth them within the Realm.” (Statutes of the Realm.)

But by a limitation of meaning, the word “children” lost its ambiguity of sex, and privileges became limited to boys which our ancestors intended for girls and boys. This took place all the more rapidly in the sixteenth century. Reforms and reformations have always a tendency to be to the disadvantage of women.

The intellectual developments of England during the sixteenth century were moulded by three main streams of influence—that of the Italian Renaissance, which partially passed to us through France; that of the German and Swiss Reformation; and that of the rapid improvements in the

art of printing. Social and political changes stimulated the national intellect to high fervours, and the literary spirit predominated. How much women shared in the general advance of culture is too frequently only a matter of inference, just as we may learn that a sheep, which we have not seen, has passed through a hedge by a fleece of wool caught on the branches. That many women had learned to read we may infer from the religious history of the time. We hear of women as amid those who flocked to buy the testaments of Tyndale and the great Bibles of Rogers; of women who suffered as heretics during the first half, and as recusants during the second half, of the century, doomed by the discovery of their *books*. And we know, on the other side, that Dr. John Hall, of Maidstone, in his “Court of Virtue,” reproached the gayer maidens of the country with reading wicked songs and romances, when they should have been reading the Scriptures. When the decisions of the foreign universities against King Henry’s marriage “were publyshed, all wyse men in the realme moche abhorred that marriage; but women and such as wer more wylful than wyse or learneyd spake against the Determinacion and sayde that the Universities were corrupt, and enticed so to doo,”^[106] an opinion that many wise men have held since. How *were* they educated? Probably all mothers who knew taught their daughters, if only for the sake of acquiring medical and cookery receipts. Doubtless, all who were rich enough had tutors, and there is every reason to believe that any number of unrecorded Dame Schools flourished throughout the length and breadth of the land, where children of both sexes were taught the elements of reading from the Hornbook. (One lady who was admitted to the Guild of Boston in the early part of the century was described as a *schoolmistress*.) I have been fortunate enough to find corroboration of my opinion in the pages of a notable book on the education of boys, by Richard Mulcaster, First Master of the Merchant Taylors’ School, 1581. He says: “Seeing that I begin so low as the first elementary, wherein we see that young maidens be also *ordinarily trained*,” etc. That seems to imply primary education for many, if not for the mass of the people.

A still thicker veil hides us from the true state of their secondary education. The destruction of the convents involved the destruction of many opportunities of feminine culture. Fuller says of them: “They were the schools where the girls and maids of the neighbourhood were taught to read and work, and sometimes a little Latin was taught them, music, and Church History.”

Among the numerous schools founded or refounded in the century, the Collegiate schools seem always to have been reserved for boys, but we have no means of knowing whether the schools founded by private laymen for *children* were not originally intended for both sexes in England, as they always were in Scotland, at the Reformation. We know that Christ Church Hospital was so, and it is quite probable that many others have since drifted into the one-sided channel of masculine privilege. Stow includes in his list of “charitable men” the names of many women. The number of grants to schools and colleges is remarkable, and suggests sympathy with education, that might have extended to that of girls. He concludes: “Thus much for the worthiness of citizens, both men and women, in this citie.” I have not yet met an instance of a private foundation of a school expressly for girls, or even of one in which they were *stated* to have been included, until the next century. Then Lucy, daughter of Sir Henry Goodyere, niece of Drayton’s Warwickshire “Idea,” prevailed on her husband, Sir Francis Nethersole of Kent, to found a school in her native town of Polesworth, with “a liberal maintenance of a schoolmaster and schoolmistress, to teach the *children* of the parish, the boys to read and write English, the girls to read and to work with the needle.” Whether the founders were following an old custom, or whether they found that unprotected foundations were apt to lapse, their intention was preserved by cutting in stone over the doorways, associated with their coats of arms, the words “puerorum, puellarum” (Dugdale’s “Warwickshire” under “Polesworth”).

Whatever may be proved of foundations, I have always been convinced of the existence of voluntary secondary schools (see “L.L.L.,” iv, 2), and here again Richard Mulcaster supports my opinion. As master of a boys’ school, and professing only to write for them, he might well have passed over girls, but he did not. He devotes a whole chapter to the subject of their education. Seeing that some still doubted the wisdom of teaching them *further than the elementary*, he gives, as four good reasons for doing so:

First. Because it is the *custom of my country*.

Second. Because it is a duty which we owe to them, wherein we are charged in conscience not to leave them lame in that which is for them.

Third. Because of their own towardness, which God would never have given them had He meant them to remain idle.

Fourth. Because of the excellent effects in that sex when they have had the help of good bringing up.

Their natural towardness ought to be cultivated because we have it by commandment of the Lord, to train up, not only our own sex, but our females, and He makes an account of natural talents.

In expanding these heads, he adds suggestions that in modern terminology at least would imply that there were special opportunities for girls; for he says: "The custom of my countrie hath made the maiden's training her approved travail," though elsewhere he states that "there is no *public* provision, but such as the professors of their training do make of themselves." He would not have them go to the public grammar schools or the universities, but advises all parents to educate them according to their powers. He regrets that girls *in general* only study until about the age of thirteen or fourteen, "wherein the matter which they must deal withal, cannot be very much in so little time, for the perfitting thereof requireth much travail!" "Some *Timon* will say, What should women do with learning? Such a churlish carper will never pick out the best!" "Is it nothing to us to have our children's mothers well furnished in mind, and well strengthened in body?" Mulcaster would give them the pencil to draw, the pen to write; teach them some logic, rhetoric, philosophy to furnish their general discourses, and the knowledge of some tongues, as well as housewifery. He says that the selection of studies depended upon whether a girl was intended to marry or to earn her bread. As the trades-guilds were then open to them, education would be of value to those prepared to enter any of these, or to become teachers, or practitioners in some branches of medicine, such as barber-surgeons, midwives, etc. Mulcaster, besides giving theories, states facts:

We see young maidens taught to read and write, and can do both with praise. We heare them sing and playe, and both passing well; we knowe that they learne the best and finest of our learned languages to the admiration of all men.... Whoso shall denie that they may not compare even with our kind in the best degree.... Do we not see some of that sex in our countrie so excellently well

trained as to be compared to the best Romaines or Greekish paragonnes—

to the German, the French, or the Italians?

If no storie did tell it, if no state did allow it, if no example did confirme it, that young maidens deserve trayning, this our own myrrour, the majestie of her sex, doth prove it in her own person, and commendes it to our reason. We have besides her Highness as undershining starres, many singuler ladies and gentlewymen so skilful in all cunning of the most laudable and loveworthy qualities of learning, as they may well be alledged as presidents to prayse.

As they are “educated according to the wealth of their parents, the greater born have better means of prosecuting it best.”

I quote so much, as this is the sole special authority I have for their *secondary education*. We know of their higher culture from Spenser, Harrison, and others. It is evident that private tutors were the teachers of at least the higher education to women, and after the suppression of the monasteries the number of these “poor scholars” would be greatly increased for a time. But the profession of governess had already been established.

In Dr. Dee’s Diary he notes, 1st September 1587:

I covenanted with John Basset to teach the children the Latin tongue, and I to give him seven duckats by the quarter.

September 1st, 1596, Mary Goodwyn cam to my service to governe and teach Madinia and Margaret my young daughters.

I have not been able to learn anything of voluntary schools in general, but there is reference to one in the description of the education of one girl of the wealthy upper middle classes of London, daughter of one great merchant, and wife of another. Though her fame shows that her successes were not quite commonplace, it also suggests that she had numerous competitors and rivals. Elizabeth Withypoll^[107] is included by Ballard among his “learned ladies”; and Stow notes her distinction, as may be seen on her tombstone in the south aisle of the parish church of St. Michael in Crooked Lane. Many such may have passed into oblivion; this has been handed on to us.

Every Christian heart seeketh to extoll
The glory of the Lord, our only Redeemer;
Wherefore Dame Fame must needs inroll
Paul Withypoll his childe, by Love and nature
Elizabeth, the wife of Emanuel Lucar
In whom was declared the goodness of the Lord,
With many high vertues which truely I will record.

She wrought all needleworks that women exercise,
With Pen, Frame, or Stoole, all pictures artificial,
Curious Knots, or Trailes which Fancy could devise,
Beasts, birds or Flowers, even as things natural.
Three maner handes could she write them faire all.
To speake of Algorism, or accounts in every fashion,
Of women, few like (I think) in all this nation.

Dame Cunning her gave a gift right excellent,
In goodly practice of her science musical,
In divers tongues to sing and play with Instrument
Both Vial and Lute and also Virginall;
Not only upon one, but excellent in all.
For all other vertues belonging to Nature
God her appointed a very perfect creature.

Latine and Spanish, and also Italian
She spake, writ and read, with perfect utterance
And for the English, she the *garland* won
In Dame Prudence Schoole, by graces purveyance
Which cloathed her with vertues, from naked Ignorance
Reading the Scriptures, to judge light from darke
Directing her faith to Christ, the only marke.

The said Elizabeth deceased the 29th day of October, An. Dom.
1537, of yeeres not fully 27. This stone and all hereon contained
made at the cost of the said Emanuel, Merchant Taylor.

It is interesting to know that there *was* at least *one* school for upper class girls in England, where English was taught, and where Elizabeth won the prize, interesting also that she used her English to read the Scriptures at that date. There is almost a hint that her husband taught her accounts, and it is possible she helped him with his business affairs. Doubtless Elizabeth, however, learned her accomplishments from tutors and masters, and there she becomes a link with the upper ten thousand, educated in the same way to a high standard in learning and accomplishments, such as we see suggested in “The Taming of the Shrew.”

Petrucio Ubaldini, a Florentine who came to England in 1551, says:

The rich cause their sons and daughters to learn Latin, Greek, and Hebrew, for since this storm of heresy has invaded the land they hold it useful to read the Scriptures in the original tongue.

Erasmus, in his Epistles, says:

31. The scene of human things is changed: the monks, famed in past times for learning, are become ignorant, and women love books. It is beautiful that this sex should now betake itself to ancient examples.

Udall, the Master of Eton, speaks with admiration of their advance in learning:

The great number of noble women not only given to the study of human sciences and strange tongues, but also so thoroughly expert in Holy Scriptures that they were able to compare with the best writers, as well in enditing and penning of godly and fruitful treatises to the instruction and edifying of readers in the knowledge of God, as also in translating good books out of Latin or Greek into English, for the use and commodity of such as are rude and ignorant of the said tongues. It is now no news in England to see young damsels in noble houses, and in the Courts of princes, instead of cards and other instruments of idle trifling, to have continually in their hands either psalms, homilies, or other devout meditations, or else Paul’s Epistles or some book of Holy Scripture matters, and as familiarly both to read and reason thereof in Greek, Latin, French, or Italian, as in English.

Dr. Wotton, in his “Reflections upon Ancient and Modern Learning,” says that “learning was so very modish then, that the fair sex seemed to believe that Greek and Latin added to their charms. Plato and Aristotle untranslated were the frequent ornaments of their closets. One would think by its effects that it was a proper way of educating them, since there are no accounts in history of so many great women in any one age as are to be found between the years fifteen and sixteen hundred.”

Amid all the discussions over the causes of the great outburst of literature in the sixteenth century I have never noted any one allude to the fact that the cultivation of the *mothers* paved the way for the higher development of the sons. Sir Thomas Elyot, who wrote “The Defence of Good Women” (1545), also advised his sister, Margery Puttenham, on the bringing up of her children, Margery, Richard, and George who wrote “The Art of English Poesie.”

Lyly dedicated his “Euphues” to the ladies and gentlewomen of England, a work which more than any other one volume refined the old and moulded the later English speech; Shakespeare wrote of, and to, cultivated women; numerous ladies were patronesses of struggling authors, and nearly every poet of the time has his dedication to, if not his adoration of, some peerless woman. The very delicacy and power of the poems on the passion of love bear witness to the culture of the women as well as that of the men: for example, the “Amoretti” of Spenser.

Two causes, besides the inspiration of the reforming spirit of the age, may be considered in regard to the advance of Englishwomen. The first was the association of the sexes in so many spheres. Foreign ambassadors note of the women that they go everywhere with their husbands, even to outdoor sports, such as hunting and hawking. In the semi-religious guilds established for good fellowship and a community of good works through life, and common prayers for each other at death, the initial and nobler forerunner of the modern *Club*, women joined freely in equal numbers and with privileges equal to men, the same standard of morality being demanded from each.

Most of the trade guilds were open to women by inheritance or by apprenticeship, and all were open to the widows of freemen. Women went to all the guild dinners with their male relatives; they went to the secret

Bible readings, to the public sermons, and when the time came, to the theatres.

The other cause lay in the fact that the higher education of women was distinctly *fashionable*. I do not think that the reason it became so has ever been sufficiently realized.

Our natural detestation of Spanish religious intolerance and our political rivalry with Spain have blinded our eyes to much that we owed to that country. The widening of our geographical horizon seemed to stimulate and suggest new poetic ideas. There is no doubt that the English Sebastian Cabot did much for his country, but a greater halo of romance and wonder floated over the sails of Columbus that bore him to the golden islands of the Spanish Main. But women, as a sex, owed something more to Spain than the dreams of El Dorado, for thence came, early in the century, the noble but unfortunate Queen Katharine of Aragon. It was her intelligent culture that first made the higher education of women *fashionable* in the best sense of the word. She was the youngest of the four distinguished daughters of the "Ferdinand and Isabella to whom Columbus gave a new world." Isabella was the most learned woman of her time, and she had taken special care of the education of her daughters.

When Katharine came to England as the affianced bride of Prince Arthur, the greatest lady in the land was the King's mother, Margaret, the Countess of Richmond and Derby. She was a woman of wonderful abilities, with a tenacious memory and a piercing wit. She spoke French fluently, and had some acquaintance with Latin, but she always regretted that in her youth she had not made herself mistress of that language. She was very pious. About the beginning of the sixteenth century she translated out of French a Latin book called "The Mirroure of Gold for the Sinful Soul," and "The Fourth Book of Dr. John Gerson's Treatise of the Imitation and Following the Life of Christ." She also commanded other translations, was a patroness of learned men, founded lectureships, schools, colleges, almshouses, and decided and wrote down the orders for state etiquette and the management of the Royal household.

But the culture of Katharine was more varied and liberal, and during the period of her supremacy she did much to mould the tastes of the Court. Everything that was best in Henry responded to her influence; it was only

when he turned from her that his character began to change for the worse. Learned men sought her Court and her favour. Erasmus dedicated to her his book on "Christian Matrimony," Ludovico Vives his work on "Education."

The first sixteenth-century woman student of whose training we have any clear information was her sole surviving daughter, Mary Tudor, born 18 February 1515-16. The third day after, she was christened, confirmed, and proclaimed Princess. Not only had she a nurse selected in Catharine, wife of Leonard Pole, Esq., but a "Lady Maistress," or governess, in Lady Margaret Bryan, a lady of great good sense and ability. The Countess of Salisbury was made State governess and head of her household.

Dr. Linacre, the learned physician, who had formerly been one of Prince Arthur's tutors, was appointed her physician and her instructor in Latin. He wrote a Latin grammar for the child's use, which seems crabbed enough to modern minds of riper years, and dedicated it to her with a complimentary preface, in which he speaks with praise of her docility and love of learning. This is all the more remarkable when we remember that Linacre died when she was eight years old. Lilly, who brought out later editions of this grammar, added his praises to those of Linacre. To Queen Katharine we may be said to owe the first treatise on the "Theory of Education for Women."

Ludovico Vives, born 1492 in Valentia, who was accounted one of the three most learned men in Europe, was one of her correspondents. Knowing her desire to educate her daughter wisely, he published a treatise on the "Education of a Christian Woman" (1523), and dedicated it to her as the most learned woman of her age. (This was translated into English, and published in 1541, thus becoming the guide to many sixteenth-century mothers.) Queen Katharine asked him to draw up a special further course of study for her daughter, which he did. His works are even yet well worthy of study.

He considers the intellects of women inferior to those of men, but he would not on that account refuse them instruction, which they needed the more to develop their character. He said that a learned woman rarely or never failed in virtue. He did not fix the age at which they should commence to learn, but remarked that they should learn sewing and knitting at the same time as reading. He is not particular whether they begin their

serious study in their sixth or seventh year, but of the seriousness of the study there is no doubt—in science, philosophy, and languages. He knows hard work is not agreeable to all women, any more than it is to all men. He does not speak of Art: there was no Art-culture in his day beyond illuminations and embroidery; but, strange to say, he does consider *hygiene*, air, exercise, the amount of sleep necessary, the due *hardness* of the bed. He has a chapter on decoration, and says hard things of the face-painting of the period. “How can a woman weep for her sins, when her tears would stain her face?” She should not over-dress. (He blamed the painters who represented the Virgin Mary with robes of silk and ornaments.) She should have no affectation, she should be modest in society, but when she does talk she should be able to talk well. Her parents should choose her husband; affection will come after marriage. But he disapproved of precocious marriages, and thought seventeen or eighteen years the lowest age possible. There ought to be no rejoicings at a marriage, because the results are very uncertain. He gives advice regarding servants, showing that the domestic troubles of to-day existed even then. A woman should know a little medicine, so as not to call in the doctor and apothecary continually. Even a girl should set aside an hour daily for meditation and prayer. She should read the Gospels and the Fathers; for recreation, moral stories, such as stories from the Bible, from Papyrius in Aulus Gellius, of Lucretia in Livy, and of the patient Griselda, but *no romances*.

The “Index Expurgatorius” that he gives is interesting to the bibliographer:

The laws ought to take heed of such ungratious books, such as be in my countrey of Spain, “Amadis,” “Florisande,” “Tirante,” “Tristram and Celestina,” “Le Prison d’Amour.” In France “Lancelot du Lac,” “Paris and Vienna,” “Pontus and Sidonia,” “Pierre de Provence,” and “Melusyne.” In Flanders “Flory and White Flower,” “Leonella and Canamour,” “Curias and Floreta,” “Pyramus and Thisbe.” In England “Parthenope,” “Genarides,” “Hippomadon,” Wylliam and Meliour, Livius, Arthur, Guye, Bevis and many other, and many translated out of Latin; the “Facetiæ Poggii,” “Euryalus and Lucretia,” and the “Hundred Tales of Boccaccio,” in Italy:

Of maids some be but little mete for lernyng lykewise as some men be unapte, agayne, some be even borne unto it, or at least not unfit for it. Therefore they that be dulle are not to be discouraged, and those that be apt should be harted and encouraged. She that hath learned in books hath furnished and fenced her mind with holy counsels.

He gives among examples of women good and learned: Portia, the wife of Brutus; Cleobula, daughter of Cleobulus; and the daughter of Pythagoras, who, after his death, became the ruler of his school.

Ludovico Vives was invited in 1523 to come to lecture at Oxford and to superintend the education of Princess Mary. This he did.

She went to live at Oxford to be near him, and therefore was the first woman student in that university town. His lessons to the Princess were so interesting that the King and Queen often came to Oxford to listen.

He says a girl ought to be taught to pronounce clearly, and every day commit something to memory and read over before retiring to rest. He allows the use of a Latin dictionary, recommends translation from English into Latin, and conversations in Latin with her preceptor. He advises the learning by heart of the "Distiches" of Cato, the "Sentences" of Publius Syrus, and the "Seven Sages of Greece," lately collected and published by Erasmus. The course of reading drawn up included Cicero, Seneca, Plutarch; some dialogues of Plato, particularly those of a political turn; Jerome's "Epistle"; part of St. Ambrose and St. Augustine; the "Enchiridion," "Institutio Principis"; the "Paraphrases" of Erasmus; and the "Utopia" of Sir Thomas More; a portion of the New Testament to be read morning and evening, and of the Christian poets, Prudentius Sydonius, Paulinus, Arator, Prosper, and Juvenius, as well as Lucan, Seneca, and a part of Horace. Before selections such as these even a modern candidate for classical honours might feel nervous.

Poor little Princess! With these grave studies and serious maxims were her natural high spirits toned down to meet her melancholy fate. She proved an "apt" student and prospered in her work, being encouraged and guided by her loving mother, who delighted in revising her Latin exercises and criticizing her style. Many learned men watched her progress with interest. Lord Morley, one of the literary nobles of the day, dedicated a book to her

at the time of her fallen fortunes, when men were little likely to overestimate her powers, in which he says:

I do well remember that skant ye were come to twelve yeres of age, but that ye were so rype in the Latin tonge, that rathe dothe happen to the women-sex, that your grace not only coulde perfectly rede, wright, and constrewe Laten, but farthermore translate eny harde thinge of the Latin into ower Englyshe tonge.

And he refers with praise to one of her works she had given him.

The translation itself, preserved in a missal, is entitled, "The prayer of Saynt Thomas of Aquine, translatyd oute of Latin ynto Englyshe by ye moste exselent Prynses Mary daughter to the most hygh and myghtie Prynce and Prynces Kyng Henry the VIII *and Quene Kateryn his wyfe*. In the yere of oure Lorde God 1527, and the xi yere of her age." (See Cott. MS., Vesp. E, xiii, f. 72.)

That her studies were not limited to Latin we see in the quaint verses of William Forrest, priest:

Shee had to her sorted men well expert,
In Latyne, Frenche, and Spaynische also
Of whome, before they from her did revert,
Shee gathered knowledge, with graces other mo,
The thing atchieved, departed her not fro,
For as shee had promptness the thyng to contriue
So had shee memory passing ententyue.

Anthonie Crispin, Lord of Milherbe, a French gentleman resident in London, wrote in 1536 some verses also about her:

Souvent vaguant aux divines leçons
Souvent cherchoit des instruments des sons
Ou s'occupoit à faire quelque ouvrage
Ou apprenait quelqu' estrange langage....

Puis à savoir raison des mouvements
Et le secret de tout le fermament
Du monde aussi la situation;
Des élémens l'association.

Puis sagement avec Mathématique
Mêloit raison, morale, politique....
Puis apprenoit Latine et Grecque lettre
Par oraison, par histoire, et par mètre.

The wonder of the records of her learning is increased when we remember the frequent overtures of marriage that were laid before her, which must somewhat have occupied her thoughts, also the extraordinary fluctuations of her fortunes. The demands upon her hours, in the time both of her prosperity and adversity, must have been great. In 1525, when the Emperor broke off his engagement to her to marry Isabel of Portugal, she was sent to hold High Court with viceregal splendour, as the first Princess of Wales at Ludlow Castle. There she stayed for eighteen months. The Countess of Salisbury was still her State governess, and Mr. Featherstone her Latin tutor. She did not keep strictly to the advice of the prudent Vives; for she gave considerable time to dancing and playing on the virginals, and in her privy purse expenses there are many entries of her losses when *playing at cards*. On her return to her father's Court, she is recorded not only to have danced with him, but to have danced in the ballets, and acted in the Court masques of the day, as well as in one of the comedies of Terence. It was a new and hitherto unheard-of proceeding for Royal ladies to appear as stage performers, but the example seems to have been followed. (Mary was always devoted to the Drama, and spent more on it in a year than did either her father or her sister.) In her sudden fall from her high estate, she relinquished only her gaieties, but continued her studies, including domestic economy, inculcated by Vives. Mary was restored to Court favour after the death of Anne Boleyn, and was on friendly terms with her later stepmothers, especially Katharine Parr. At the request of the latter she undertook the translation of the Latin paraphrase of St. John by Erasmus into the English language. She meant to have translated more, but an attack of illness laid her aside. Her rendering of St. John was printed and

published in the same volume with the translations of the other paraphrases of Erasmus by the celebrated reformers, Kay, Cox, Udall, Old, and Allen, though her name was not affixed to the first edition.

Among her scientific tastes was the study of botany, and she imported many foreign plants and trees, striving to naturalize them. She also had a special interest in clock-making, like her relative Charles V. This was not, in her time, so commonplace a manufacture as it is to-day. Her value for time, and the exact measurement thereof, carry us back in thought to the days of her predecessor Alfred, with his candle-measured hours.

Prepared as she was for the throne, the misfortunes of her life make us almost believe in the power of evil stars. Her period of depression lasted too long for her health and spirits; the doctrine of the virtue of irresponsible feminine obedience prevented her from ever showing her true nature, except once. Her courage and prudence at the *coup d'état* of Northumberland, her clemency afterwards, show what she might have been had she been allowed to act independently, as did the second royal student of the century.

Elizabeth was born on 7th September 1533. Her stars were fortunate, and the moon shone full upon her birth. Her physical health was excellent; her period of depression lasted just long enough to steady her flighty spirits and elevate her character. She was fortunate in the kind sympathy of Katharine Parr, that excellent and learned woman, who showed a genius for fulfilling wisely and tenderly the difficult duties of a stepmother. Elizabeth is said to have been very precocious, learning Latin, French, Italian, and music without difficulty. In a letter of the Princess Mary to her father, Henry VIII, 21 July 1536, she says: "My sister Elizabeth is well, and such a child toward as I doubt not but your Highness shall have cause to rejoice of in time coming." She was four years old when her brother Edward was born, and Sir John Cheke, being appointed his tutor, sometimes gave her lessons. She was once reading with him when Leland called, and her tutor desired her to address the antiquary in Latin. She immediately did so, and the old scholar in return addressed to her four Latin verses of genuine admiration. By the age of twelve she had considerably advanced in history and geography, understood the principles of architecture, mathematics, and astronomy, was fond of poetry, and studied politics as a duty. She had a talent for languages, speaking French, Italian, Spanish, and Flemish with

facility. Her tutor Ascham tells us what she had done in classics before she was sixteen. She had read almost the whole of Cicero and a great part of Livy, some of the Fathers, especially “St. Cyprian on the Training of a Maiden.” The select orations of Isocrates and the tragedies of Sophocles were her Greek text-books. During Mary’s reign Ascham wrote to John Sturmius:

The Lady Elizabeth and I are studying together, in the original Greek, the crown orations of Demosthenes and Æschines. She reads her lessons to me, and at one glance so completely comprehends not only the idiom of the language and the sense of the orator, but the exact bearings of the cause and the public acts, manners, and usages of the Athenian people that you would marvel to behold her.

In addition to the tongues, she studied rhetoric, philosophy, and divinity, and history remained her favourite study. In Ascham’s “Scholemaster,” which was not published until after his death, he praised her as being far above the ordinary university students. Scaliger declared that she knew more than any of the great men of her time, which was certainly flattery. But there are many apparently genuine anecdotes of her prompt replies to foreign ambassadors in their own tongue or in Latin.

During her happy years with her brother Edward she shared his studies and read with him the Scriptures. He called her his “sweet sister Temperance,” probably in allusion to that name in John Hall’s “Court of Virtue,” in which, instead of the heathen muses, the Christian virtues are grouped around their Queen.

Elizabeth appears early not only as a student but as an *author*. Much of the literature of the period was translation. At the age of twelve she rendered out of English into Latin, French, and Italian the prayers and meditations collected out of prime writers by Queen Katharine Parr. About the same time she translated as a treatise, published in 1548, the “Godly Meditation of the Christian Soule, compiled in French by Lady Margaret, Queen of Navarre, aptlie translated into English by the ryght vertuous Lady Elizabeth, daughter to our Sovereigne Lord King Henrie the VIII.” Appended to this was her metrical rendering of the fourteenth Psalm; and thus, curiously enough, Queen Elizabeth appears as the versifier of the first metrical Psalm printed *with date*. This little volume was reprinted in 1595,

again in Bentley's "Monument of Matrons," and a facsimile edition was brought out by Dr. Percy Ames in 1897. Other verses are ascribed to her, and translations from Boethius and Plutarch.

Elizabeth studied politics far more deeply than her sister; she remained unmarried; her frivolity and flirtation often veiled astute statecraft; she kept Lord Burleigh as her adviser, and fortune gave her health and a long life. She guided her country, through the difficult tides of the Reformation, into the harbour of prosperity and peace, and her people glorified her name. She inherited the great men born in her sister's short reign, and other great men hastened to be born just after her accession. All other reigns put together do not contribute so much to the great Literature of the world.

These two remarkable sisters had two remarkable cousins, who may be called their political victims, destined to be so through the action of Henry VIII concerning the succession, which "made confusion worse confounded." But it is only as *students* that I now discuss them.

Lady Jane Grey (1537-1553-4) was eldest daughter of the new Duke of Suffolk, and Frances, eldest daughter of Charles Brandon, Duke of Suffolk, and Mary, daughter of Henry VII. She had a fine genius, and she was carefully educated under the care of Mr. Aylmer, afterwards Bishop of London. Ballard says of her:

She understood perfectly both kinds of philosophy, and could express herself very properly in the Latin and Greek tongues. Sir Thomas Chaloner, her contemporary, says she was well versed in Hebrew, Chaldee, Arabic, French, and Italian. She played instrumental music well with a curious hand, and was excellent at her needle.

Roger Ascham, Queen Elizabeth's tutor, tells a story of her. When he called on her to take leave before he went abroad, he found that the Duke and Duchess and all their household were hunting in the park.

I found her in the chamber reading "Phaedon Platonis," in Greek. I asked her why she preferred this to the sport in the park, and she answered: "One of the greatest benefits that God ever gave me, is, that He sent me so sharp and severe parents, and so gentle a schoolmaster."

She described how sharply they checked and corrected her, so that she wearied for the time to come that she must go to Mr. Aylmer,

who teacheth me so gently, so pleasantly, and with such fair allurements to learning, that I think the time all nothing while I am with him, and when I am called from him I fall on weeping, because, whatever I do else but learning is full of grief, trouble, fear, and whole misliking unto me. And thus my book hath been so much my pleasure, that all other pleasures be but trifles and very troubles unto me.

Foxe says of her:

If her fortune had been but as good as her bringing up, joyned with fineness of wit, she might have been comparable ... not only to any other women that deserveth high praise for their singular learning, but also to the university men, which have taken many degrees of the schools.

The young king was devoted to her, and his personal affection prepared him to fall in with Northumberland's designs to induce him to leave the crown to her. Her own judgment declared in favour of the accession of Mary, and she did not wish a crown for herself. It was through obedience to her parents only that she submitted to be proclaimed, and went to the Tower as Queen, to remain as prisoner. Mary was inclined to deal gently with her; she let her father go off scot-free. But when he associated himself anew with Wyatt's rising, he sealed not only his own fate, but that of his daughter.

The Lady Jane was one of the few who, having grasped and accepted the principles of Protestantism, remained firm at the hour of trial. Mary, anxious to convert her, sent her former tutor, then her chaplain, Feckenham, afterwards Abbot of Westminster, to discuss religious questions with her. Her firm and clear replies showed her acuteness and trained habits of thought, as well as the purity of her faith. She is the most wonderful illustration of that strange distinction between the cultured girls of that period and of our own—their early maturity in thought and action. Compare the tender, dignified, and tragic picture of the ten days' queen, of little more than sixteen years of age, with the average upper-class High School girl of to-day of the same age, and no more need be said of sixteenth-century education and its results.

Dr. Fuller says of her:

She had the innocence of childhood, the beauty of youth, the solidity of middle-age, the gravity of old age, and all at sixteen; the birth of a princess, the learning of a clerk, the life of a saint, yet the death of a malefactor for her parents' offences.

Youngest, fairest, and most unfortunate of the four remarkable cousins, Marie Stuart, born 1542, a queen at a week old, is more remembered for the charm of her personality than for her scholarship. More has been thought and written about her than about all the other queens of the century put together. Opinions are divided about her character, and I dare not touch the question now. But of her native genius and aptitude for study there is no doubt. The little Princess, with her four Maries, had even in the charming and sequestered island of Inchmahome, before she was six years old, commenced her studies in Latin,^[108] French, Spanish, and Italian. Henry VIII wished to marry her to his son Edward VI, and sent an army with fire and sword to fetch her. The Scots "had no objection to the marriage, but disliked the manner of such rough wooing," and sent her off to France, accompanied by her governess, Lady Fleming, and her four Maries, "Marie Beaton, Marie Seaton, Marie Carmichael, and *me*."

There her studies were directed by Margaret, the sister of Henry II of France, one of the most accomplished and learned ladies of her time. The little Princess delighted in work, in religion, and was most amenable to discipline. She learned Greek and Italian with facility, but was not taught English or Scotch, that French might be paramount in her heart. Her Latin exercises in 1554 have been printed by the Warton Club. Her skill in elocution delighted the French Court, when in 1554 she gave a Latin oration. The subject she chose was intensely suggestive—"The Praise of Learned Ladies." In this she stated her opinion that women were able to excel in anything if they only had an opportunity given them. She was fond of poetry, in which Ronsard taught her to essay her powers, had a taste for music, played well on several instruments, was a fine dancer, a graceful rider, and delighted in needlework. Accomplishments so varied are rarely found in one person. She married the Dauphin in 1558; his father died in 1559, and she became Queen, but her husband died in 1560. Fortune dealt hardly with her; her lot was cast in times too difficult for her and in circumstances discordant with her education.

Katharine Parr (1509-1548) was the elder daughter of Sir Thomas Parr, of Kendal, and Dame Maud, his wife, “who, following the example of Sir Thomas More and other great men, bestowed on her a learned education, as the most valuable addition he could make to her other charms.” She had been married twice before she became Queen, 12 July 1543, and was fortunate enough to survive her husband. She wrote several religious books and translations, and procured several learned persons to translate Erasmus’s “Paraphrase of the New Testament,” one of whom was her stepdaughter, the Princess Mary. She was deeply interested in the religious questions of the day, and very nearly suffered with Anne Askew. The Bishop of Winchester and Chancellor Wriothesley had conspired against her so artfully, persuading the King that she set up her judgement against his, that he had signed the warrant for her arrest. Warned by a friend, she so skilfully explained matters to the King, that his love and trust returned, and he reproached Wriothesley. The King left her Regent of the country when he went abroad, and she fulfilled her duties well; and her skill in nursing alleviated his sufferings till his death.

Anne Askew (1520-1546) was the daughter of Sir William Askew, of Kelsay in Lincolnshire, who educated her liberally, but married her against her will to Mr. Kyme. She demeaned herself as a Christian wife; but when, through reading the Scriptures, she saw the force of the Protestant doctrines, her husband drove her from his home and informed against her. She was seized, dragged before the Inquisitor, Christopher Dare, examined, brought before the King’s Council, tried at Guildhall, and condemned as a heretic, though she defended herself skilfully. They put her to the rack to find the names of other ladies of her opinion. She bore it, and was silent, and was burned on 16th July 1546. And this was the fate the last wife of Henry VIII escaped.

Sir Thomas More, Lord High Chancellor of England, preferred knowledge to all other riches. Erasmus wrote to a friend in Italy:

What is it, you say, which captivates me so much in England? It is because I have found a pleasant and salubrious air: I have met with humanity, politeness, and learning; learning not trite and superficial, but deep and accurate—true old Greek and Latin learning. When Colet discourses, I seem to hear Plato himself: In Grocyn I admire a universal compass of learning: Linacre’s

acuteness, depth, and accuracy are not to be exceeded; nor did Nature ever form anything more elegant, exquisite, and accomplished than Sir Thomas More.

In a well-known letter to a friend about the choice of a wife Sir Thomas says:

May she be learned, if possible, or at least capable of being made so! A woman thus accomplished will be always drawing sentences and maxims of virtue out of the best authors of antiquity. She will infuse knowledge into your children with their milk and train them up in wisdom.

Such wives did he prepare his own daughters to be; Margaret Roper, Elizabeth Dancy, and Cecilia Heron. Erasmus described their home at Chelsea as a "little academe combined with a university of Christian religion." The favourite was the eldest, Margaret (1508-44), who was most like her father. He procured some of the best linguists of the age to teach her the learned languages, as Dr. Clement and Mr. William Gonell, and other great masters to instruct her in the liberal arts and sciences, philosophy, logic, rhetoric, music, mathematics, astronomy, and arithmetic. Her letters and orations delighted the most learned of her contemporaries, as the great Cardinal Pole, John Voysey, Bishop of Exeter, and Erasmus, who called her "the ornament of Britain." The tutor of the Duke of Richmond wrote to Sir Thomas More to express his regret that he had not been present when his daughter "disputed of philosophy before the King." The love and tenderness of her father were equal to his wisdom, and the story of their lives is ideally beautiful. When she married Mr. William Roper, of Eltham, Kent, he kept up communion in correspondence. In one letter he says:

Farewell, dearest daughter, and commend me kindly to your husband, my loving sonne, who maketh me rejoyce that he studieth the same things as you do, and whereas I am wont to counsel you to give place to your husband, now on the other side I give you licence to maister him in the knowledge of the spheres. Commend me to all your schoolfellows and to your maister especially.

She wrote and translated many works, especially Eusebius's "Ecclesiastical History" out of Greek into Latin, which her daughter, Mary

Roper, another learned student, translated afterwards out of Latin into English.

Leland the antiquary writes of Sir Thomas More's daughters, verses translated thus:

The purest Latin authors were their joy
They loved in Rome's politest style to write
And with the choicest eloquence indite.
Nor were they conversant alone in these
They turned o'er Homer and Demosthenes,
From Aristotle's Store of Learning too
The mystic Art of reasoning well they drew.
Then blush ye men, if you neglect to trace
Those heights of learning which the Females grace.

Associated with them in their life and studies was Margaret Giggs (1508-70), a niece of Sir Thomas More. She is included in both of Holbein's portrait-groups of the More family, and was also distinguished for her aptitude in learning. Algebra was her special study, and Sir Thomas More sent an algorism stone of hers from the Tower. She married their family tutor, Dr. John Clement, and Leland wrote her epithalamium. Her husband made her little inferior to himself in Latin and Greek, and she assisted him in his translations. She and her husband went abroad on Elizabeth's accession. Her only daughter, Winifred, married William Rastell, nephew of Sir Thomas More.

Sir Anthony Cooke, one of the learned tutors of Edward VI, also gave his daughters an education so liberal that they became the wonder of their age. He considered that women should be educated on the same lines as men, and that they were quite as fit. Mildred (1526-89), was well skilled in the Greek and Latin tongues, particularly Greek. She delighted in reading the works of Basil the Great, Cyril Chrysostom, Gregory Nazianzen, and other similar writers. She translated part of St. Chrysostom into English. When she presented the Cambridge University Library with a great Bible in Hebrew and other languages, she sent with it a Greek letter. In 1546 she married Sir William Cecil, afterwards Lord Burleigh, and became the

mother of Anne Countess of Oxford, and Robert Cecil, afterwards Earl of Salisbury. Her marriage was happy, and after her death her husband wrote "Meditations" upon her goodness, her private charity and helps to learning.

Anne, born 1528, second daughter of Sir Anthony Cooke, was also liberally educated, and distinguished among the *literati* of the time. She was said to be "a choice lady, eminent for piety, virtue, and learning, and exquisitely skilled in the Greek, Latin, and Italian tongues," and was associated with her father by being made governess to King Edward VI. She translated out of Italian into English twenty-five sermons written by Bernardino Ochino, 1550. She also rendered out of Latin into English Bishop Jewel's "Apology for the Church of England," for which she had great praise from the author and the Archbishop. "Besides the honour done to her sex, and to the degree of ladies, she had done pleasure to the author of the Latin book, by delivering him by her clear translation from the perils of ambiguous and doubtful constructions." She married Sir Nicholas Bacon, Lord Keeper of the Great Seal, and had two sons, Anthony and Francis, whose great powers she cultivated from their earliest years.

Elizabeth, born 1529, third daughter of Sir Anthony Cooke, was also learned in languages and sciences. She translated out of French a tract on transubstantiation, afterwards printed, and was consulted by all the learned men of her age. She married, first, Sir Thomas Hoby, Ambassador in France; and second, Lord John Russel, son and heir to the Earl of Bedford, and carefully educated her children.

Katherine, born 1530, fourth daughter of Sir Anthony Cooke, was also famous for learning in Hebrew, Greek, Latin, and for her skill in poetry. A specimen of her talent is preserved in Sir John Harington's notes to his "Ariosto," and by Dr. Thomas Fuller in his "Worthies of England" (328). Probably a certain timidity of his own powers in this accomplishment induced one of her admirers to employ George Buchanan to write verses for him. These appear among George Buchanan's epigrams and three short poems, "To the learned daughter of Sir Anthony Cooke, in the name of Henry Killigrew, Englishman." This gentleman she afterwards married.

The three daughters of the unfortunate Duke of Somerset, Protector of England, under Edward VI, Lady Anne, Lady Margaret, and Lady Jane, were also widely famed for their learning and culture. They wrote 400 Latin

verses on the death of Margaret of Valois, the Queen of Navarre, and it was said of them by Ronsard that if Orpheus had heard them sing, he would have become their scholar.

Lady Jane, the eldest daughter of the famous poet the Earl of Surrey, who married the unfortunate Charles Neville, Earl of Westmoreland, was a distinguished scholar. Foxe, the Martyrologist, was her tutor, and he said of her that “she might well stand in competition with the most learned men of the time, for the praise of elegancy both in Greek and Latin.”

Henry, Lord Maltravers, only son of the Earl of Arundel, one of the few representatives left of the ancient nobility, excelled in all manner of good learning and languages, and gave a learned education to his son and his two daughters, Mary, Duchess of Norfolk, and Jane, Lady Lumley. Mary translated selections from Greek into Latin, and Jane, “Isocrates,” the “Iphigenia” of Euripides and others referred to in Ascham’s “Schoolmaster.” Their exercise-books of translations are still preserved in the Royal MSS. The former died at the age of sixteen, after she had given birth to Philip, afterwards Earl of Arundel.

Mary, daughter of Sir Thomas Arundel, who was first married to Robert Ratcliff, secondly to Henry Howard, Earl of Arundel, was also a distinguished scholar. She translated from English into Latin “The Wise Sayings and Eminent Deeds of the Emperor Alexander Severus.” She also translated from Greek into Latin select “Sentences of the Seven Wise Grecian Philosophers,” and “Similes collected from the Books of Plato, Aristotle, Seneca, and other Philosophers.” These she dedicated to her father.

Lady Elizabeth Fane, wife of Sir Ralph Fane (who was sent to the Tower with the Duke of Somerset and suffered with him in 1551), was thoroughly educated, after the fashion of her time, though not so brilliant as many of her contemporaries. She translated and versified 21 Psalms and 102 Proverbs in English, printed by Robert Crowland, 1550.

Elizabeth Jane Weston, born about 1558, was gifted with fine talent, which was highly cultivated. She left England young, and settled in Prague. She wrote several Latin books in prose and verse, highly esteemed by the learned men of the time. She is ranked on the Continent with Sir Thomas More and the best Latin poets of the century, was highly praised by

Scaliger, and complimented by Nicholas May in a Latin epigram. She married Mr. John Leon, a gentleman of the Emperor's Court.

Catherine Tishem was a great linguist, and could read Galen in the original, which few physicians of her time could do. She married Gualterus Gruter of Antwerp, and was the chief instructor of her son John Gruter the famous philologist.

Elizabeth Legge, born 1580, was noted for her faculty of acquiring languages, having studied thoroughly the Latin, French, Spanish, and *Irish* tongues, besides cultivating her poetical powers. Unfortunately, she could not make use of her acquirements, as she lost her sight in consequence of severe study. She never married, lived chiefly in Ireland, and died at the age of 105.

Ballard also mentions Esther Inglis as a scholar, though she is chiefly noted for her beautiful handwriting, which is preserved in the British Museum.

Many ladies of the century were known as writers, as Elizabeth Grimeston, and more as patrons of literature. But by far the greatest woman author of the later century was Mary, sister of Sir Philip Sidney, and wife of the Earl of Pembroke. She was carefully educated in Latin, Greek, and Hebrew, and shared her distinguished brother's literary tastes. She was married in 1577, and her eldest son, William, was born in 1580. About that time Sir Philip Sidney was in disfavour at Court, and stayed with her at Wilton House, where was a good library. They retired together in the summer to a small house at Ivychurch, where they continued their literary pursuits. Two years afterwards Sir Philip dedicated to her his romance, "the Countess of Pembroke's Arcadia," first printed by Ponsonby. She did not like it as it stood, so corrected and expanded it much, and republished it. She also translated a "Discourse upon Life and Death" from the French of Plessis du Mornay, her brother's friend, published 1590; and rendered very freely into English blank verse Robert Garnier's French tragedy of Marcus Antonius, adding choral lyrics of her own. Some of the passages are finer than anything her brother produced. She edited and published her brother's poems after his death, and completed the metrical translation of the Psalms which he had begun, and worked up to the forty-third, but she did not publish these. They lie in the British Museum, Add. MSS., 12047-8. She

lost her father in May, her mother in August, and her brother in October 1586. She expressed her sorrow for his loss in a poem published by Spenser with his “Astrophel” (1595), and awkwardly named by him “The Dolefull Lay of Clorinda.”

Spenser says of her in “Colin Clout’s Come Home Again”:

Urania sister unto Astrophel
In whose brave mind as in a golden coffer
All heavenly gifts and riches locked are
More rich than pearls of Ind, or gold of Ophir,
And in her sex more wonderful and rare.

In a dedicatory sonnet to “The Faery Queene” he says:

Your brother’s goodly image lives
In the divine resemblance of your face.

and elsewhere he repeats:

The gentlest shepherdess that lived that day,
And most resembling in shape and spirit
Her brother dear.

He dedicates to her also his “Ruines of Time,” in which he praises her brother.

Abraham Fraunce extols her, and produces “The Countess of Pembroke’s Ivychurch, 1591,” and “The Countess of Pembroke’s Emmanuel.”

The poet Daniel became tutor to her sons, and to her he dedicated his “Delia,” a collection of sonnets (1592), and his tragedy of “Cleopatra” as companion to her “Mark Antony.”

Thomas Nash says of her, in prefatory lines to the 1591 edition of Sidney's "Astrophel": "The artes do adore her as a second Minerva, and our poets extol her as patroness of their inventions." Osborne says of her:

She was that sister of Sir Philip Sidney's to whom he addressed his "Arcadia," and of whom he had no advantage but what he received from the partial benevolence of Fortune in making him a man.

Meres compares her to Octavia, Augustus' sister and Virgil's patroness; and describes her as being not only liberal to poets but a most delicate poet, worthy of the complimentary lines which Antiphilus Sidonius addressed to Sappho.

Thomas Churchyard writes:

Pembroke a Pearl that orient is of kind,
A Sidney right shall not in silence sit,
A gem more worth than all the gold of Ind,
For she enjoys the wise Minerva's wit,
And sets to school our poets everywhere
That do pretende the laurel crown to wear.
The muses nine and eke the graces three
In Pembroke's books and verses you may see.

She died in 1621, and her family raised no monument to her, but Ben Jonson wrote the famous epitaph:

Underneath this sable hearse
Lies the subject of all Verse:
Sidney's sister, Pembroke's mother,
Death, ere thou hast slain another
Fair and wise and good as she,
Time shall throw a dart at thee!^[109]

Arabella Stewart, born 1577, the daughter of Charles Stewart Lennox, the youngest brother of Lord Darnley, was a very highly cultured woman, and was appointed by her cousin, James I, to be governess to his daughter the Princess Elizabeth, who loved her dearly. She wrote histories and had a great facility for poetical composition.

Two other names I would like to mention of ladies born in the sixteenth century, who carried into the next its culture with a difference, as the new spirit of science and mathematics, history, and political economy absorbed some of the time hitherto devoted to classics.

Elizabeth Stewart, mentioned above, was born in 1596, at Falkland Palace. When her father came to England she was sent to the charge of Lord Harington at Coombe Abbey, Warwickshire. That nobleman followed the plan of Sir David Lindsay, of the Mount, surrounded her by cultured companions, explained to her the meaning of everything, and taught her the foundations of the Christian religion. Mr. Beauchamp was her writing master, and the famous Dr. Bull, the composer, her teacher in music. Lord Harington himself taught her much in history, literature, and geography. She was very fond of animals and of natural history, and she had a little corner of the park, with a lake in it, to preserve her treasures. She built a little cottage for a widow and her children to attend to her animals, and designed it herself. Near it was her fairy farm, with the smallest kind of cattle that could be bought. She studied the changes of insects through the microscope, then newly invented. When ten years old a portrait was painted of her, inexplicable without knowing all this. She has a monkey and a dog at her feet, a love-bird in her hand, a macaw on one shoulder and a parrot on the other. She was familiar also with the use of the telescope, and studied mathematics and astronomy. Her home at Coombe Abbey suggested to Dr. Johnson "The Happy Valley of Rasselas." She was devoted to her brother Henry, and inconsolable at his death, in 1612. In the following year she married the Count Palatine, and great festivities took place in London. The poets Donne and Daniel call her "the pearl of Britain," and Sir Henry Wotton wrote verses in her praise:

Tell me, if she were not designed
Th' Eclipse and glory of her kind.

Her chief fault was extravagance, which increased her pecuniary troubles with her unfortunate husband. But they were happy together and had many children, one of whom was that Elizabeth who became the pupil and friend of the philosophic Descartes.^[110]

Anne Clifford, born 1589, daughter and heir of the Earl of Cumberland, had been forbidden by her father to learn Latin, much to her chagrin. She made up for it by studying all that she could find to read in English, and by that time through translations she found a good deal. Her diary still remains at the British Museum. She gives a beautiful description of her mother's character, and of her moral virtues, prudence, justice, fortitude, and temperance. She was not a linguist, but a reader, a thinker, and a *chemist*, and possessed "many excellent knowledges, human and divine."

Her tutor was Samuel Daniel, "that religious and honest poet who composed the Civil Wars of England in verse," and he led her to the study of history, old archives, armorial bearings, and the laws regarding inheritance, whereby she was able to sustain the noble fight against her King and her husband concerning the right of heiresses to transmit property undiverted to their heirs. What she had received from her father she wished to leave to her daughters. In this *she* succeeded, though the laws drifted after her date to the exclusions and disabilities from which modern women have so much suffered.

She was capable in land estate management and architecture, in which Cromwell gave her practical lessons by demolishing her castles for her fidelity to the King. Each time he destroyed them she rebuilt them stronger, until, fired with admiration at her courage, he bade his officers desist from further molestation.

Her funeral sermon, preached by Bishop Rainbow, was an eloquent oration, in which he said that the life of this great, good woman was fitter for a history than a sermon. He alluded to her studies and her conversation with admiration. "She could speak well on anything, from predestination to slea-silk."

Thus, I think the women of the sixteenth century proved to their successors that they were fit, in the words of the little Marie Stuart, to study anything, if so be they were granted opportunity.

The lives of these illustrative individuals, who became illustrious because they *excelled* many others, suggest the probability of a much more general culture, and that of a higher standard, than has been hitherto realized. It is to be hoped that more research may yield more information, and account for the tidal backdraw in the position of women between these times and our own. Men grow great, and poets become inspired in proportion to the influence of the other sex, and it is only reasonable to add to the causes of the special glory of the sixteenth century, the greatness of its women.

*Lecture delivered before the Royal Society of Literature, 1904. See
Proceedings R.S.L., vol. xxv.*

FOOTNOTES:

[106] Hall's "Chronicle," p. 730.

[107] A MS. Brit. Mus. (MS. Reg. 2, A. xviii A) gives a calendar of special events, and under 29th October 1537 it is stated: "This day dysseasyd Elizabethe Lukar, dowghter of Paul Withypoll." A note to this adds that a Sarum Missal, in possession of Mr. Douce, contained that and other entries, *e.g.* "XII Kl. Feb., 1509. This day was Pol Withypol, married to me Anne Cursonne his wife." The above-mentioned Elizabeth was born in 1510, her brother Edward in 1512 (Brit. Mus. 5524, f. 94).

[108] Buchanan had been at one time her tutor and dedicated to her his Latin Psalms, though he turned against her afterwards.

[109] These lines are sometimes supposed to be written by Browne, on the strength of an inferior second verse by him.

[110] In the Preface to his works he said he had met some who understood the mathematical side of his philosophy, and others who understood the metaphysical side; but he had met but *one* who understood both sides, and that was she whose intellect he therefore reckoned *the incomparable*.

NOTES TERMINAL

NOTE TO ARTICLE III ANOTHER DEBT OF JOHN SHAKESPEARE

Since my article on “Shakespeare and Asbies” appeared (“Athenæum,” 14th and 21st March) I have had two communications about the Shakespeares. The later, from Mr. Young, seems to suggest another mysterious debt of some John Shakespeare.

Henry Higford, gent., of Solihull, Warwickshire, in his own person appeared on the fourth day against John Shakysper, formerly of Stratford-upon-Avon in county Warwick, “whyttawer,” and against John Musshen, formerly of Walton Dobell in said county, on the plea that each of them should pay him £30 which they owed him; and against John Wheler, formerly of Stratford-on-Avon in said county, yeoman, on the plea that he should pay him 80s. which he owed him, and unjustly detained. And if they did not come and pay, that the Sheriff should bring their bodies here on Easter Day in five weeks (Common Pleas, Roll 1313, membrane 399, Easter 15 Eliz., 1573).

Now this was a “whyttawer nuper de Stratford.” Could this mean a leather-dresser for making *gloves*? Or could it mean a leather-dresser for making shoes? Was it the John Shakespeare who went to live in Clifford Chambers, and was confused with *our John* by earlier writers? Or could he be the John Shakespeare who ran his race in Stratford as “corvizer” from 1580 till 1592?

All these questions might be asked, as well as the more important one: Is there any reason to believe that the language *at that date* could fit John, William Shakespeare’s father? I should be glad to know.

“Athenæum,” 25th April 1914.

PS. Some correspondence followed on as to the meaning of “Whittawer,” and Mr. Arthur Betts sent me his pamphlet on the white tawers, or tanners of white leather. They were held in some discredit owing to their frequently

receiving the skins of poached game, and they were forbidden to dwell near a royal forest. I had been puzzled by the use of “nuper” in the citation, but I find it was used only in one of three descriptions, to prevent evasion. I therefore think it must refer to our John Shakespeare.

NOTE TO ARTICLE VII
“ADOLESCENS” AND “ADOLOCENTULA”
IN STRATFORD-ON-AVON REGISTER; IN RELATION TO
GILBERT SHAKESPEARE

The application of the term “Adolescens” to “Gilbert Shakespeare,” in the Burial Register of Stratford-on-Avon, and the information it has been supposed to give concerning the poet’s family, make an examination of the context incumbent upon Shakespearean students. There are, indeed, some noteworthy peculiarities concerning the Stratford use of terms, which I have not seen in any other of the Registers which I have studied.

The Registers of Stratford are, however, like many others, a mixture of English and Latin entries. Sometimes Latin prevails for a page or two, and then English runs on for a like period, sometimes the entries are almost time about in each language, sometimes both languages are used in the same entry, as “Jane uxor John Davis als Keliam, she was Kild with a tinker on the Bridge, July 2nd 1599,” or “John filius William Walford Draper.” The commonest Latin terms are of course *filius*, *filia*, *uxor*, *Vidua*, *clericus*, *generosus*, but the writers were rarely careful with their genitives. There were occasional notes of a man’s trade, sometimes in Latin, much more frequently in English.

But there was one period during which Latin gained the upper hand, and that was the period after Mr. Bifield had finished his transcript of the early registers, and had given up signing its pages. The signature of “William Gilbard alias Higges minister” was a new one to the Register in 1603, though he had been known as assistant Schoolmaster and then as Curate, since 1563 at least. It is not clear whether there was a new Parish Clerk at the time, or whether the Curate wrote the notices himself, or if he gave any directions to aid the intelligence of the clerk. But coincident with this change of signature, there is a great increase in Latin phrases, many more qualifying adjectives are added, and attention is generally paid to the Latin cases. “Almsman” becomes “Elemosynarius,” or “Eliëmo;” “Bastard” becomes “Nothus” or “Notha”; trades are translated into Latin, as “Scissor,” “Lanio,” “Fab. lig.,” “Calcearius,” “Pistor.” Never before had there been any reference to age, or to condition, other than “Uxor,” “Vidua.” Now

there is *one* case of “Margaret Urllle, *Cælebs*, 8th April 1609” who does not seem to have been born in the town. Early in the period which we may suppose Sir William Gilbard alias Higges to have controlled the entries, occurs the first use of “*adolescens*” in the Registers, and the *only one*, excepting that of Gilbert Shakespeare. “Anna Yat, *adolescens*, Jan. 8th 1602,” (Burials), On referring back, I find that one Anne Yate, daughter of John Yate, was baptized on 20th September 1573, and that another of the same name, daughter of Richard Yate, was baptized on 29th September 1589. It might be assumed that it was the younger of these two who was buried at thirteen years of age, though why, among all the other young girls buried there, she alone should be singled out to be described as “*adolescens*,” baffles explanation. Her father was still alive, and absence of any reference to him is also strange. If it were applied to the elder Anne, who was twenty-nine years old, it would be less surprising to find her father unnoticed, but “*adolescens*,” in its ordinary sense, could hardly have been applied to her. The only other contemporary of the name was a wife, married as *Annys*, buried as *Anne Yate*.

But if there are only two entries of “*adolescens*,” the first applied to a female, and the second to a male, there are many of a resembling word, “*adolocentulus*,” which should mean a very young man, but it is very difficult to guess what it really did mean in Stratford Latin.

“Isabella Rodes, *Adolocentula*” was buried 12th May 1604. She does not seem to have been born in the parish. There is no other mention of her name, so her age cannot be estimated, but as an “*Annys Rodes*, widow” had been buried a fortnight before, she might have been an orphan daughter. “Nicholas Lane, *Adolocentulus*, buried 16th Nov. 1604.” There was one Nicholas Lane, son of John Lane baptized in 1569, and another in 1584; the elder would have been thirty-five, the younger twenty. John Lane himself had been buried in 1600, so this entry would seem to fit the younger man. But on the other hand, “Richard Clarke, *adolocentulus*,” buried 10th June 1605, was the son of Henry Clarke, and had been baptized 11th March 1572, so that he would be in his thirty-third year. “Margaret Clarke, *adolocentula*,” buried 2nd June 1611, had been baptized in 1581 and was thus thirty years old. (She had an illegitimate son Thomas in 1605.) “Henry Ainge *adolocentulus*,” 24th December 1605, had been baptized on 5th February 1581 and was therefore twenty-four years old.

“Jone Hadon, Adolocentula” does not seem to have been born in the parish. “Ales Brage, Adolocentula,” 8th January 1610, had been baptized in July 1576, and was therefore about thirty-four. “Susanna Daniel, Adolocentula,” 17th November 1608, had been baptized on 24th May 1593, and would be fifteen. Her father had died in 1596, and she might be alone. The only other “adolocentula” does not seem to have been baptized in the parish.

The result of studying “adolocentula,” therefore, is as unsatisfactory as that of studying “adolescens.”

William Gilbard alias Higgs signed the Register pages till July 1610, and he *may* have superintended them till May 1611, when the page was signed once by John Rogers, Vicar. In that year the curate, William Gilbert alias Higgs, died, and, strange to say, was buried the *very day before Gilbert Shakespeare, i.e.*, on 2nd February 1611-2.

Does this imply that the clerk was left to his own classic inspirations or memories in writing the register, or that his superintendence was taken over by the succeeding assistant minister, Edward Woolmer? Under him the language of the text gradually simplified, until it took on a new varnish of Latin under Mr. Richard Watts.

But the fact remains, that “adolescens,” which had only *once* appeared before, *never* appears again, and it is difficult to gauge the extent of its meaning and use. It has been held by all writers to support Halliwell-Phillipps’ statement that the poet’s brother went to settle as a haberdasher in St. Bride’s, London, and lived to a great age. I have definitely proved that Halliwell-Phillipps was mistaken in saying that Gilbert was a London haberdasher (see my article in the “Athenæum,” 29th December 1900, “John Shakespeare of Ingon, and Gilbert of St. Brides”), p. 62. The whole arguments of the family-wills tell against the notion of the survival of the poet’s brother, and my careful study in registers helps to convince me that the word “adolescens” is not here used in its normal and natural sense.

That should be “a youth” or “junior.” In either case if this is accepted as true of some unknown nephew of the poet, it would imply that Gilbert Shakespeare married *somewhere*, baptized this child *somewhere*, and died *somewhere*, and that the mother died *somewhere*, none of these facts having yet been proved. If it had its ordinary meaning, it would suggest that the

father and mother were already dead, and the “youth” stood alone in the world. But if so, where was Gilbert buried? The name of Shakespeare would have been sure to have been noticed, either in London or in country registers.

The difficulties seem to me so great,^[111] that the alternative seems a trifling one in comparison, that the word, for some inexplicable reason, has been unintelligently applied to the poet’s brother Gilbert. In this opinion I have taken much counsel from students of registers, and they agree that it is the most natural explanation of the puzzle. And therefore I believe firmly that Gilbert Shakespeare, the poet’s brother, died and was buried at the date recorded in the register (Feb. 3, 1611-2), which accounts for his not being mentioned in the poet’s will.

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NOTE TO ARTICLE XI (1)
WILLIAM COMBE AND THE PROPOSED WELCOMBE
ENCLOSURES, 1614-19

The story of the attempted enclosures at Welcombe at the beginning of the seventeenth century has always been considered chiefly of interest because Shakespeare's name was associated with it. But the incidents are of great importance in the history of Stratford-on-Avon and its relation to William Combe, entirely apart from the interest Shakespeare gives to the proceedings. The facts are worth recalling in relation to the great fires, which I discussed in this paper lately under the title of "Fires and Thatch at Stratford-on-Avon." Just about the time of the disastrous fire of 9th July 1614, John Combe, the money-lender, died. After various charitable bequests, in his will dated 28th January 1612-13, he desires to be buried in the church near his mother, and a convenient tomb to be set over him of the value of threescore pounds. He leaves his brother George Combe the land "called Parson's Close, or Shakespeare's Close" in Hampton; to his brother John Combe his property in Warwick; residuary legatees were William and Thomas Combe his nephews (proved 10th November 1616). Hardly had they inherited (before even they had proved their uncle's will), William took it into his head to enclose the Common Fields of Welcombe, over most of which he was chief landlord. We can find a good many details of the proceedings, preserved in the crabbed characters in which Thomas Greene made his memoranda, in a few leaves which have been called "His Diary," now among the Stratford Records. This shows that Shakespeare went up to London on 16th November, and next day Thomas Greene, then staying in London, "went to see him how he did." They were both full of "the enclosures," and Shakespeare told Greene the latest news of the plan and the schemes, adding that "he thought nothing would be done." That very night, however, Greene drew up the petition of the town, and "gave it to Edmund to write fair, so that Greene and Mr. Wyatt might see it before it was wrytten to be presented to the Lordes," that is, the Lords of the Privy Council. On the 22nd Greene records that he heard that Lord Carew meant to oppose the enclosing all he might, and Mr. Mainwaring said if he did not do it *well* he cared not to do it at all. This "Lord Carew" is he who married Joyce Clopton, and whose tomb is in the church at Stratford. Thomas

Greene was Town Clerk, and he notes on 5th December that six of the company (himself among them) were to “go to Mr. Combe, and present their loves, and desire he would be pleased to forbear the enclosing.” They went on the 9th, and were not satisfied with the results. William Combe said he would be glad of their loves, but the enclosure would not be hurtful to the town; indeed, there would be some profit in it. Thomas Combe said “they were all cures,” and spoke of “spitting one of the dogs.”

Mr. Spenser said the Lord Chancellor was their friend, and Sir Fulke Greville advised them on a precedent. But William Combe went on determinedly. “The Miscellaneous Documents” and reports of the Council meetings at the Hall give details of his actions. Thomas Greene says in his Diary on the 23rd December 1614, that at the Hall that day the company had written through him to Mr. Mainwaring and Mr. Shakespeare (and he himself wrote a private letter “to his cosen Shakespeare”) to prove the “inconvenience” of the proposed enclosure. Neither of the letters to Shakespeare has been preserved, but that to Mainwaring has, and from it we may have some notion of the arguments of the other. (Wheler MS., i, 109.) This Mr. Mainwaring was the steward and agent of the Lord Chancellor Ellesmere, who seems to have had some interest in local affairs, and who in the earlier stages at least seems to have co-operated with William Combe. It was addressed “To the Worshipfull Arthur Mainwaring, Esq., at the Rt. Hon. the Lord Chancellor his howse.” The Bailiff and the company showed him that by the Charter of Edward VI the tithes were allowed them for the support of the almshouses, the school, and the bridge. “We hear that some land is conveyed to you in Welcombe, and that you intend enclosure. We entreat you to call to mind the manifold great and often miseries this Borough hath sustained by casualties of fires fresh in memory, and now of late one dying in the ashes of desolacion, and in your Christian meditations to bethink you that such inclosure will tend to the great disabling of performance of those good meanings of that godly king, to the ruyne of this Borough wherein live above seven hundred poor which receive almes, whose curses and clamours will be poured out to God against the enterprise of such a thing.” That was the way the Corporation looked at the enclosure. They “could not fulfil their trust to do the best possible for the town” without opposing it tooth and nail. And Thomas Greene could not fulfil his duty to the Corporation without working along with them, and we may be sure that his letter to Shakespeare was strong enough to convince the poet

also. The Christmas of 1614 was a gloomy one for Stratford, with the ruins of blackened houses lying around, the poor calling for shelter and food, and the great dread of this new disaster looming all the more largely before them because of the general depression. The year 1615 saw a pitched battle. The aldermen took what legal action they could in their own right; they filed their "complaints" in many courts; they were driven into unnecessary expenses of various kinds; they sent Thomas Greene often to Warwick and to London; and all because of William Combe's unsettling whim. He had sent his own servants and employed others, Stephen Sly among them, to dig ditches round the land he wished to enclose, and Thomas Greene writes that on 7th January "William Combe had told Baylis that some of the better sort meant to go and throw down the ditches, and said 'I would they durst' in a threatening manner with very great passion and anger." Two days after some of the Corporation did, indeed, send on their spades to avoid a riot, and they went themselves and filled in the ditches. They were personally injured by Combe's servants. William Combe said, "They were a company of factious knaves, and he will do them all the harm he can," and added, "they were puritan knaves, and underlings in their colour." Next day Mr. Archer was appealed to as a justice of the peace and a commoner to prevent a breach of the peace. He proposed for the preventing of tumults that there should be a stay of proceedings; that no further ditching or ploughing should be done till the 24th March, and no further ditches to be thrown down before that date. (While they were discussing these matters, however, the remainder of the ditches were being filled in by women and children.) On the 11th of January 1614-15 they took an attorney's opinion as to what constituted a riot; and on the 12th Mr. Replingham came to the Hall, hoping to talk the company over. The Bailiff said he would never agree to the enclosures as long as he lived. Then Mr. Replingham wanted him to bind some of the inhabitants over to good behaviour. Thomas Greene said he would not bind them for all his clerk's fees. On the 16th Mr. Combe went to London to push his cause as he might. He then rated the value of the enclosure at £250 per annum. On the 25th of January Mr. Chandler and Mr. Daniel Baker went to London to take advice on their side. A lull seemed to come into the proceedings, probably because of Mr. Archer's decision above noted. On the 24th of February they resolved to take Sir Edward Coke's opinion. On the 22nd of March Mr. Chandler for the Corporation did present a petition to the Lord Chief Justice at Coventry, and Mr. Combe

called him a knave and a liar to his face. The Lord Chief Justice bade Chandler remind him of the case when he came to Warwick on the 27th. There he definitely said that it was against the laws of the realm and must be stopped. Thomas Greene says in his Diary, 1st April 1615: "Mr. Baker told me at his shop-house that the day before he was in Sir William Somerville's and Mr. Combe's company a-hunting in Awston fields, and Mr. Combe told him he might thank me for the petition, and offered to sell him lands to the amount of £50 per annum lying in Bridgetown among the Lord Carew's land there, and that he never meant to inclose." On the 2nd of April Mr. Combe asked Mr. Alderman Parsons why he was against the enclosures, and he said, "We are all sworn men for the good of the Borough and to preserve their inheritance, therefore they would not have it said in future time they were the men which gave way to the undoing of the town; and that all three fires were not so great a loss to the town as the enclosures would be." On the 12th of April Mr. Parsons reported that he had been beaten by Mr. Combe's men.

On the 19th April Laurence Wheeler and Lewis Hiccox started ploughing on their own land within the intended enclosure, and Mr. Combe railed at them; but the next day they returned, and Mr. Nash and many other tenants did the same, and Mr. Combe became still more wrathful. Mr. Combe's next move was to try to get Sir Edward Greville and Sir Arthur Ingram to sell him the royalty of the town; but Sir Henry Rainsford told Greene he would never get that, and added that he was going to sue Mr. Combe on his own account in an action for trespass, and would sue him in the Star Chamber for riots, and he was going to sue Thomas Combe on a bond for £40, and so the bitterness spread. September saw fresh quarrels with Mr. Combe. On 14th December Greene notes, "Mr. Francis Smith told me that Mr. Thomas Combe told him that his brother would plow this year for his own good, but next year would lay it down to spite me. The Combes questioned my Lord Chief Justice's authority to make any such order as was made, there being nothing before him." And again there was another Christmas clouded by threatened enclosures, Shakespeare's last Christmas upon earth.

On 21st February 1615-16, the Corporation agreed that the enclosure should be "made a Town Cause," and the charges defrayed out of the revenue, for the battle was becoming fiercer than ever. Their opponent, Mr. William Combe, had been made High Sheriff of the county, the very officer

delegated by the Crown to *prevent* riots, etc., which he was really rousing. Mr. Baker on the 24th told him and his brother “at the Bridge end towards the woodyard that he marvelled they would, contrary to my Lord’s order, enclose and dig in the Common. They said they hoped my Lord would not hinder them from doing what they would with their own, and Mr. William Combe said the ditch was made to save his corn.” The Combes retorted on Mr. Baker that “the Corporation had given money to my lord’s gentleman to work my lord, *i.e.*, Sir Edward Coke, and that was no good employment for the Town revenue!” In Mr. Sheriff’s absence Mr. Thomas Combe set some workmen to work, and when the Sheriff came home he approved of it, and promised the workmen they should come to no harm. On the 1st of March some members of the Council went to inspect and found workmen “finishing twenty-seven ridges of the enclosure, acre’s length a-piece.” “Mr. Sheriff told Morrell that if he were not out of authority he would send him to gaol, and having divers times impounded his sheep, bade him tell my Lord Coke that for every several trespass he would have a several action, and for every sixpence damage he would recover against him six pounds.”

On the 2nd of March 1615-16, Mr. Chandler having sent his man Michael Ward to the place where Combe’s men were digging to fling down the ditches, they assaulted him, and would not let him proceed, and Stephen Sly said that “if the best in Stratford were to go there to throw the ditch down he would bury his head at the bottom.”

No wonder that in the petition of the 27th of March 1616, the Corporation stated, “Mr. Combe being of such an unbridled disposition he should be restrained.” In that Lent term at the Assize Court my Lord Coke delivered his final decision, and told Combe to set his mind at rest, for he would “neither enclose nor lay down any arable land, nor plough up any ancient greensward.” The Corporation told Mr. Combe that they desired his goodwill, but they would ever withstand the enclosure: and on the 10th of April Mr. High Sheriff told Mr. John Greene that he was out of hope now ever to enclose.

So Shakespeare sank to rest that month with the belief that the struggle was over, and there would be no enclosure in Welcombe. But it was not over yet by a long way. Mr. William Combe made up his mind to defy the Lord Chief Justice as well as the Corporation. He moved gently now, however. On the 24th of June 1616, he wrote to the Corporation from

Abchurch, desiring their loves, and showing how he would remedy all their objections, a long letter still among the records. They replied that they were desirous of his love and of peace, but they prayed him against the enclosure, and said they would by all lawful means hinder it. The miscellaneous documents of Stratford-on-Avon show that the Bailiff and Burgesses of Stratford also complained to the Court of Common Pleas against William Combe for enclosing. Their notes show "The points to be complained of and containd in our petition are that Mr. Combe hath not laid down meres according to my Lord Hobart's order, and the certificates of the justices upon the reference. And that he hath decayed 117 ridges of tilling and neglecting the farming thereof contrary to the order and contrary to his own word and promise made to the judges and justices at the tyme of their conference. My Lord Coke at Lent Assizes 13 James I, and my Lord Hobart confirmed this assize. The grief for decaying is the destruction of our common, and the decaying of the tilling is the losse of our tythes with which our poor are free." They also presented "My Lord Coke and my Lord Hubbard their orders for the restraint of enclosier and decay of tillage in the feeldes of Stratford, 1617."

But the struggle continued during 1618, though more warily on Combe's side. The Privy Council had become interested. It had dawned on them that they had had to excuse the subsidies from Stratford more than once on account of the fires, and if it happened, as a petition from the Corporation suggested, they might have to excuse them again on account of Combe's enclosure. On the 14th of February 1618 the Privy Council referred the consideration of the Stratford petition to the Master of the Rolls and Sir Edward Coke, and wrote officially to William Combe in a very sharp way. He was to restore the enclosures to their pristine condition, and whatever the judges decided to do with him in regard to the course he had taken in defiance of the order of the justices in assize and the certificate of Sir Richard Verney he must not fail to obey, or he would answer it at his peril.

Apparently Combe was at last alarmed, and gave in, not too soon, for decisions had gone against him in every court, and orders were out against him for "contempt of court" also. Influence saved him from some of the consequences. In the Stratford Miscellaneous Documents there is one called "Dispensation to William Combe for enclosing," or "Mr. Combe, his pardon for enclosing." But he had to pay a fine of £4 for that, and to go to all the

expense of putting the land back as the people were used to see it. By the summer of 1619 Stratford-on-Avon and its Corporation were at rest as to Combe's enclosure.

I have found that the final award for the Stratford enclosures, under the Act of Parliament for enclosures, 15 George III, was signed 21st January 1775. They amounted to 1,635 acres, 1 rood, 18 perches.

“Stratford-on-Avon Herald,” 23rd August 1912.

NOTE TO ARTICLE XI (2)

FIRES AND THATCH IN STRATFORD

The distressing fires which so frequently raged in Stratford-on-Avon during the sixteenth and seventeenth centuries may be considered among the causes likely to account somewhat for the fact that no letters of Shakespeare's have come down to us. These fires (1594-6, 1598, 1614) were almost of national importance, as they were serious enough to force the Corporation to petition the Queen for the remission of taxes—which was granted (Wheeler MS. i. 46); and sometimes also they had permission to collect for their poor in the neighbouring towns and counties. A touching letter in 1598 from Richard Quiney as “the poor suitor from Stratford,” whose purse is weakened by long sojourning in London “shews that the Collector was retaining £24 10s., while the poor needed it,” is in Wheeler MS., i, 54.

In the petition of 1598 they state that the town had lost £12,000 by two very grievous fires, on which petition the Queen was graciously pleased to instruct the Attorney-General to give a book of discharge for the subsidy, 17th December 1598. They again petitioned to be relieved of their duties to the Queen and to the poor in 1601 (7th June). Again a dreadful fire took place in 1614, at the time of the death of John Combe, when eighty-five houses were burned down, besides many smaller edifices, and again petitions went up to the Queen for the remission of taxes, as they had 700 poor on their hands. Their distress and anxiety were intensified just at that time by William Combe's determined efforts to start enclosures at Welcombe. They naturally saw in this a reduction of tithes, from which were endowed their school and almshouses, and in their many petitions against his high-handed action they always referred to their town as “being greatly ruined by fire.” At last it seems to have struck some of the members of the Privy Council that they should inquire why Stratford should have more than its share of fires. Some one in Stratford found the cause in the thatched roofs of the period, and the Corporation forbade any more houses to be built with thatched roofs; indeed, ordered the thatch of old houses to be exchanged for the greater safety of tiles and slates. This would materially change the appearance of Stratford, not improving it in an artistic

sense, but making it much safer. Now, there are papers in London which often fill out the information preserved among the valuable records of Stratford-on-Avon. I have come across some letters in the unpublished Register of the Privy Council, which may be added to the history of the town. They show that some one, or some party of inhabitants, had complained to the Privy Council against three men, who persisted in using thatch, and they tell their own story, so I give them in full.

16th March, 1618-19. To the Bayliffe, Chief Aldermen, and Towne Clarcke for the tyme being of Stratford-upon-Avon.

Wee sende you heere enclosed a petition exhibited unto us on the behalf of that Burrough of Stratford-upon-Haven, wherein is humbly represented unto us the greate and lamentable losse happened to that towne by casualty of Fyer, which of late years hath been very frequently occasioned by means of thatched cottages, stacks of straw, furze, and such-like combustible stuffe, which are suffered to be erected, and made confusedly in most of the principal parts of the town without restraint: and which being still continewed cannot but prove very dangerous and subject to the like inconveniences. And, therefore, wee have thought meete for the better safety and securing that towne from future dainger, hereby to authorize and require you to take order that from henceforward there be not any house or cottage that shall be erected by any owner of land or other, suffered to be thatched, nor any stacks or pyles of strawe or furzes made in any part of that towne, either upon the streetes or elsewhere, that may in any way endanger the same by fyer as formerly, but that all the houses and cottages to be hereafter built within the towne be covered with tyles or slates, and the foresayd stacks and pyles removed to fitt and convenient places without the towne. And for the houses and cottages already built and covered with strawe there, wee do likewise require you to cause the same to be altered and reformed according to theis directions with as much expedition as may stand with convenience, and as the safety and welfare of that towne may any way require. Herein wee require you to take order accordingly, and in case of any opposition to theis our directions, whereby the performance of the same may be interrupted or stayed to make certificate unto us of the names of

such as shall not conforme themselves accordingly that such further order may be taken therein as shall be expedient.

10th November, 1619. A warrant to John Foster, one of the messengers of his Majesties' Chamber, to bring before their lordships, George Badger, William Shawe, and John Beesley alias Coxey, inhabitants in the Burrow of Stratford-upon-Avon, in the county of Warwick.

26th November, 1619. A letter to [no name added]. You shall understand that complaint was made unto us by a petitioner in the name of the Baliffe and Burgesses of the Town of Stratford-upon-Haven that whereas there was an order lately made at this Board restrayning the use of thatching of houses and cottages in the towne to prevent and avoyd the danger and great losse by fier that of late tyme hath often happened there by means of such thatched houses to the utter ruyne and overthrow of many of the inhabitants: Theis three parties, George Badger, William Shaw, and John Beesley, refusing to conforme themselves to our said order, had in contempt thereof erected certain thatched houses and cottages to the ill example of others, and the endangering of the towne by the like casualty of fire. Whereuppon they being convented before us, forasmuch as they do absolutely deny that they have shewed any such disobedience at all to our said order nor committed any manner of act contrary thereunto since the publication of the same in that towne. And that the partie that exhibited the complaint against them in the name of the towne did not appear to make good his informacion, wee have thought good to dismiss the said Badger, Shaw, and Beesley for the present, and withall to pray and require you to take due examynacion of the foresaid complaint, which you shall receive here enclosed, and upon full informacion of the truth thereof to make certificate unto us of what you find therein that such further order may be taken as shall be meete.

The complaint has not been preserved, but it would have been interesting to us to have known who sent it up, and what were the arguments used.

“Stratford-on-Avon Herald,” 12th April 1912.

NOTE TO ARTICLE XIII
SHAKSPEARE'S BUST AT STRATFORD
ITS RESTORATION IN 1749

I had been searching for years for contemporary notices of the alteration, in every possible direction, but I only discovered what I wanted a few months ago, viz., the letters of those concerned in the restoration.

The figures are not so large, nor the details quite so full, as I had hoped they would be; but, such as they are, they ought to be laid before the public. They are taken from the Wheler Collection, Stratford-on-Avon, a number of copies from the MSS. of the Rev. Joseph Greene, Master of the Grammar School. The series begins with the account of the reasons for the movement towards restoration:

As the generous proposals of the proprietors of the two greatest playhouses in this Kingdom were kindly accepted and encouraged, in relation to each of them acting a play for the sole purpose of erecting a new monument to the memory of Shakespeare in Westminster Abbey, and as the curious original monument and bust of that incomparable poet, erected above the tomb that enshrines his dust in the Church of Stratford-upon-Avon, Warwickshire, is through length of years and other accidents become much impaired and decayed, an offer has been kindly made by the judicious and much esteemed Mr. John Ward and his company to act one of Shakespeare's plays, vizt., "Othello; or, The Moor of Venice" (in the Town Hall) at Stratford, on Tuesday, the ninth of this instant, September, 1746, the receipts arising from which representation are to be solely appropriated to the repairing of the original monument aforesaid.

Then follows a "copy of an old play-bill at the time of repairing and beautifying Shakespeare's monument, with the Rev. Joseph Greene's remarks on the performers. The printed bill was drawn up by Greene himself, and somewhat corrected by Mr. John Ward, grandfather of the present celebrated Mrs. Siddons (MSS. penes Mr. George)." The annotations by Greene give some suggestions of the quality of the players.

The part of Othello to be performed by Mr. Ward.

Iago	Mr. Elrington (<i>a young man, acts well</i>).
Cassio	Mr. Redman (<i>a middle-aged man, too indifferent in acting</i>).
Brabantio	Mr. Woodward (<i>an elderly man; some things well, others wretchedly</i>).
Montano	by Mr. Butler (<i>an old man; comic parts very well</i>).
Roderigo	Mr. Butcher (<i>a young man, low humour pretty well</i>).
Gratiano	Mr. Bourne (<i>an elderly man, low humour very well</i>).
Doge of Venice	by Dts.
Desdemona	Mrs. Elrington (<i>a second wife, but young; a very agreeable actress</i>).
Emilia	by Mrs. Ward (<i>a middle-aged woman, a good actress</i>).

With several Entertainments of singing between the acts by Mrs. Elrington and Mrs. Wilson^[112] (*Mrs. Elrington's voice is rather more agreeable than Mrs. Wilson's, but Mrs. Wilson has most judgment in music*).

It is therefore humbly wished that such persons as have a taste for the inimitable thoughts, the sublime expressions, the natural and lively descriptions and characters of that great genius, and consequently a value for his memory, will encourage the proposed method of perpetuating it by attending the play at that juncture for the laudable purpose of rebeautifying his venerable monument and effigies.

N.B.—The money received on this occasion is to be deposited in the hands of the churchwardens.

In these days of Shakespeare Memorial Schemes, Shakespeare Societies, and Shakespeare Exhibitions, it is well to remember the simple aims and methods of eighteenth-century Memorial Committees in their early

proceedings, and take warning from the results of delay, the causes for which are not clearly explained. It was not the fault of the players that there was even so much delay as there was.

By the following copies from Greene's MSS. it appears "that some disputes arose between the cashier-churchwardens for 1746, and the contributors towards repairing Shakespeare's Monument, which reparation did not take place till 1748. Meetings took place, and forms were proposed for the churchwardens' signatures to compel the cashier to pay the money to the artist when he had completed his undertaking."

Copy of a notice published on Sunday, November 20, 1748, in Stratford Parish Church by the clerk, *me ibid concionant*. MSS. Greene:—

"I am desired to give notice that on Friday, 25th Nov. next, there will be a meeting at the Market Hall in Stratford of those persons who contributed for the repairing of Shakspeare's monument, in order to resolve upon a proper method of repairing and beautifying the monument aforesaid."

It seems that few or none attended, and that nothing was then done. There was, however, a form drawn up which was meant to be signed by those present:

We whose names are hereunder written or annexed, contributors to the sum raised at the Town Hall of Stratford-upon-Avon, for repairing and beautifying the original monument of Shakspeare the poet, agree that the direction and execution of that work shall be committed to Mr. John Hall, Limner; and (provided he takes care, according to his ability, that the monument shall become as like as possible to what it was, when first erected) that then the money already raised for the purpose aforesaid shall be forthwith paid him upon finishing the work. We will also use our endeavours that such further money shall be collected and given him as, with the former collections, may make up the whole sum of sixteen pounds.

This was not then and there signed, but apparently was brought forward again at a meeting held at the Falcon Inn, at which were “present Sir Hugh Clopton, Rev. Mr. Kenwrick, Rev. Mr. Preston, ye Master of the Free School (Greene), Mr. Alderman Haynes, Mr. Joseph Broom, Mr. John Hall. A form proposed by Mr. Greene to the gentlemen at the Falcon, but rejected by Mr. Kenwrick (the vicar), who thought it did not sufficiently limit what was to be done by Mr. Hall, as a form which he himself had drawn up. November 30, 1748.” The differences were trifling. “Agreed: That Mr. John Hall, Limner, shall repair and beautify, or have the direction of repairing and beautifying, the original monument of Shakespeare the poet, etc.”

Mr. Joseph Greene, who seems to have had the work of restoration very much at heart, had before the meetings at the Falcon written a letter to Mr. John Ward, who was then at Hereford:

I believe you are by this time no stranger to the disputes arisen on this side the country concerning the disposal of the money collected at your representation of ‘Othello’ and generously given by you for the repairing of Shakespeare’s original monument. That it should lye as useless in our churchwardens’ hands, as cash in the trunk of a miser, is making it not current, but dormant coin, an impropriety which many of us can by no means approve of: wherefore to set aside all idle surmises which any may chance to entertain of knavishly mismanaging, or foolishly not managing, the devoted sum, some gentlemen in our neighbourhood have requested by me that you would speedily by letter, or some way which you think most proper, signify to the parties concerned what your intentions are, or what directions you would choose to give concerning the money, that it may once more make its public appearance in open daylight, and that a blacksmith’s sable apron may no longer be used as a napkin wherein to hide your talents.

Be pleased, Sir, to inform us whether you would have the affair postponed untill next summer, when (as we are assured) you intend to revisit us, or whether you would chuse to have the business forthwith proceeded upon, and some ingenious artificer or other to be employed directly for the purpose. If the case, as stated in this latter respect, is agreeable to you, whether, if any particular ingenious person should be pitched upon and approved by the

majority of, or most considerable among, those who contributed that night, whether in such case you would chuse to acquiesce. Your setting us clear in these matters is much desired by many persons, well-wishers to the memory of Shakespeare and to the person of Mr. Ward, his and our ingenious benefactor. Particularly be pleased to believe these the wishes of, Sir, your very humble servant, Joseph Green, Stratford-upon-Avon. Nov. 23, 1748.

Mr. Ward replied to this:

Sir,—I received the favor of yours, and am sensible of the honor you and the gentlemen do me in appealing to my judgment with regard to the monument of Shakespeare. I am ignorant of any disputes that may have happened on that account, but own I was surprised when I heard that nothing had been done in that affair. I entirely submit to the opinions of the gentlemen who so generously contributed to the play in every respect, and, as I intend paying a visit to Stratford next summer, I hope to have the pleasure of seeing the monument of our immortal Bard compleatly finished; and will readily come into any proposal to make good the sum for the use intended, if what is already in the churchwardens' hands should prove deficient.—I am, Sir, your most obedient servant, John Ward. Hereford, Dec. 3, 1748.

THE SECOND MEETING AT THE FALCON.

On Saturday evening, about nine o'clock, Mr. Kenwick having exhibited at Lilly's at the Falcon a paper signifying what Mr. Hall was to do, and of what materials to repair the monument of Shakespeare, he proposed that Mr. Hall and Mr. Spur should sign the agreement, the former that he might be obliged to do the work in a compleat manner, and the latter that upon its being finished he should pay to Mr. Hall the sum of twelve pounds ten shillings; but though Mr. Hall seemed ready to sign this, and a pen and ink were called for publicly, yet John Spur absolutely refused, and said he would never sign any paper for the delivery of the money, ridiculously vaunting it that his word ought to be taken as credibly as his bond, and his word would go for £1,000. However, at last he was prevailed upon to declare before the undermentioned witnesses that as soon as the monument

was finished he would, without further delay, pay the money. This affair happened December 10, 1748.

Witnesses—The Rev. Mr. Kenwick, Vicar of Stratford; Joseph Greene, clerk, Master of the Free School; Mr. Turbitt, mercer; John Spur, blacksmith, cashier, churchwardens of the borough when the money was collected in 1746; Mr. Benjamin Haynes, glover; Mr. Joseph Broom, weaver (for the borough); Mr. Samuel Morris, farmer; Mr. John Southam, of Welcombe, farmer (for the parish churchwardens in 1748); Mr. John Hall, undertaker of the work.

Another set of letters were “transcribed from the Greene MSS. penes Mr. Wright, Lichfield.” The first from Mr. George Steevens, editor of the Quarto edition of Shakespeare, dated Hampstead, 25th June 1770, to the Honourable James West, Esq., formerly President of the Royal Society, then residing at Alscot, near Stratford-on-Avon. He enclosed a letter from Mr. Theophilus Lane, of Paston Court, near Hereford, addressed to himself, and asked Mr. West to inform him whether the fact relative to Shakespeare’s monument may be depended on, “as it should be added to the other little anecdotes already known concerning him, if it can be well ascertained.” He also asked a confirmation of some conversations he had once had with his honourable friend some years previously. [\[113\]](#)

The letter Steevens enclosed from Mr. Theophilus Lane itself encloses another from a friend of his who had missed seeing him on the day they both visited Shakespeare’s tomb. This friend had misread the date of Mrs. Hall’s tombstone, and could not harmonize it with the date on Shakespeare’s. He considered that Shakespeare’s monument had little authority as to its date and inscription, and thought that the monument must have been put up after everybody had died who knew him.

This letter Theophilus Lane had forwarded to Steevens, and Steevens to the Honourable James West. He apparently in his turn had submitted it to the Rev. Joseph Greene, as the latter writes to Mr. West a long letter containing his strictures on it. He shows that the confusion of dates arose from misreading the date of Mrs. Hall’s death as 1640 instead of 1649, which can be corrected from the parish registers, and therefore that the other arguments based upon this mistake are, of course, valueless; and adds:

Applause is due to every investigator of *Truth*, provided he is sufficiently attentive in his enquiries; and although I allow this letterwriter's superstructural remarks are ingenious enough, yet as he did not sufficiently examine the solidity of his foundation, I cannot think him entitled to any man's thanks.

This letter is only of importance as illustrating a great deal of the shallow criticism of Shakespeare, which is based upon preliminary errors made by the critics themselves. In this case, we might have hoped that the Rev. Joseph Greene would have explained about the restoration of the tomb, so lately carried out under his supervision, and settled the degree of fidelity with which Mr. John Hall had carried out his instructions. Unfortunately, the unnamed writer having only attempted to criticise the *dates*, which were quite able to be checked, the Rev. Joseph Greene did not think fit to account for the extraordinary freshness of the tomb so lately "beautified," a freshness which was very likely to have first roused the doubt as to "its authority" in the writer's mind, if he had not known all the circumstances.

This is all my new information, but it is something to go on. I have not italicized the important words in my transcripts, but I may now remind my readers that by 1746 the "curious original" was much "impaired and decayed," a decay so serious as to rouse the actively sympathetic feelings of Mr. John Ward towards necessary restoration. The fact is recorded that Mr. John Hall was to have the doing of the work of "repairing and rebeautifying," or "the direction" of it. But that "materials" were to be used.

My arguments are these. No one would call the present tomb a "curious" one; but, as represented by Dugdale in his "Antiquities of Warwick" (1651), it is "curious," a curiousness which had increased, by the process of decay, when Rowe produced it in his "Life," 1709. Mr. John Hall, acting in all good faith, after provincial notions of restoration in the eighteenth century, would fill up the gaps, restore what was missing, as he thought it ought to be, and finally repaint it according to the original colours, traces of which he might still be able to see in the hollows of the bust.

It would only be giving good value for his money to his churchwardens if he added a cloak, a pen, and manuscript. He could not help changing the expression, from the worn and thoughtful face preserved by Dugdale, to the plumped-out foundation he made in some "material" convenient for his re-

beautifying colours. I have stated elsewhere that I consider the so-called “portrait” at the birth-place to have been painted either by Hall or from Hall, and the little, old representation of Shakespeare’s tomb lent by the Earl of Warwick for the present Shakespeare Exhibition at Whitechapel Art Gallery probably dates from the same period.

I myself consider Dugdale and his draughtsmen wonderfully careful for their period. Those tombs which have not been altered are remarkably faithful representations. See, for instance, the tomb of Sir Thomas Lucy at Charlecote. Now, Dugdale was a Warwickshire man, born only a comparatively short distance from Stratford, eleven years before Shakespeare died. He was an admirer of Shakespeare, and knew the bust he engraved. He was in Stratford in attendance on Queen Henrietta Maria when, at the outbreak of the Civil War, she stayed in Shakespeare’s house as the guest of his daughter, Mrs. Hall. There was every reason to believe that he would be more careful in regard to representing Shakespeare’s tomb (instead of less careful) than he was with others.

The second edition of Dugdale’s “Warwickshire” was revised, corrected, expanded, the illustrations *checked*, and added to by Dr. Thomas, who was also a Warwickshire man, residing very near Stratford-on-Avon. And he produced the representation of the original tomb from the same unaltered block which Dugdale used. There is, therefore, little reason to doubt that Dugdale was fairly correct both in the face and figure of the “curious monument,” and that the alterations made in 1748-9, great as they are, did not strike the gentlemen of Stratford-on-Avon as anything *worse* than “beautifying.” The dates and verses were left as they were, and the monument, thus strengthened, survives to preserve the memory of the “Sweet Swan of Avon!”

All this has no bearing on the Baconian controversy. It only relates to the likeness of the presentment and the reliability of Dugdale.

“Pall Mall Gazette,” 18th and 21st November 1910.

P.S.—My later discoveries appear on p. 122.

FINIS

FOOTNOTES:

[111] Mr. Savage has just given me a note: “The Roman writers use ‘Adolescens’ and ‘Juvenis’ promiscuously. So Alexander is called Adolescens when he died at thirty-two; Cæsar that year when he was High Priest, and thirty-five at least (Livy?); and Brutus and Cassius in their Praetorship when they were forty (Sallust?).”

[112] Mrs. Wilson (since married to Mr. Butcher) plays very well and genteely on the violin.

[113] The letter is preserved among the MSS. of West of Alscot, purchased by the British Museum from the heirs of the first Marquis of Lansdowne.

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Transcriber's Notes

Punctuation errors have been fixed.

[Page 26](#): "Mis. Doc." changed to "Misc. Doc."

[Page 122](#): "before this postscript" changed to "before this postscript"

[Page 151](#): "to to have" changed to "to have"

[Page 159](#): "th most part" changed to "the most part"

[Page 299](#): "their own towardnesse" changed to "their own towardness"

[Page 343](#): "to to collect for" changed to "to collect for"

The errata noted in the original text have been fixed.

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